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INDIAN POLITY

A COMPREHENSIVE SOLUTION FOR
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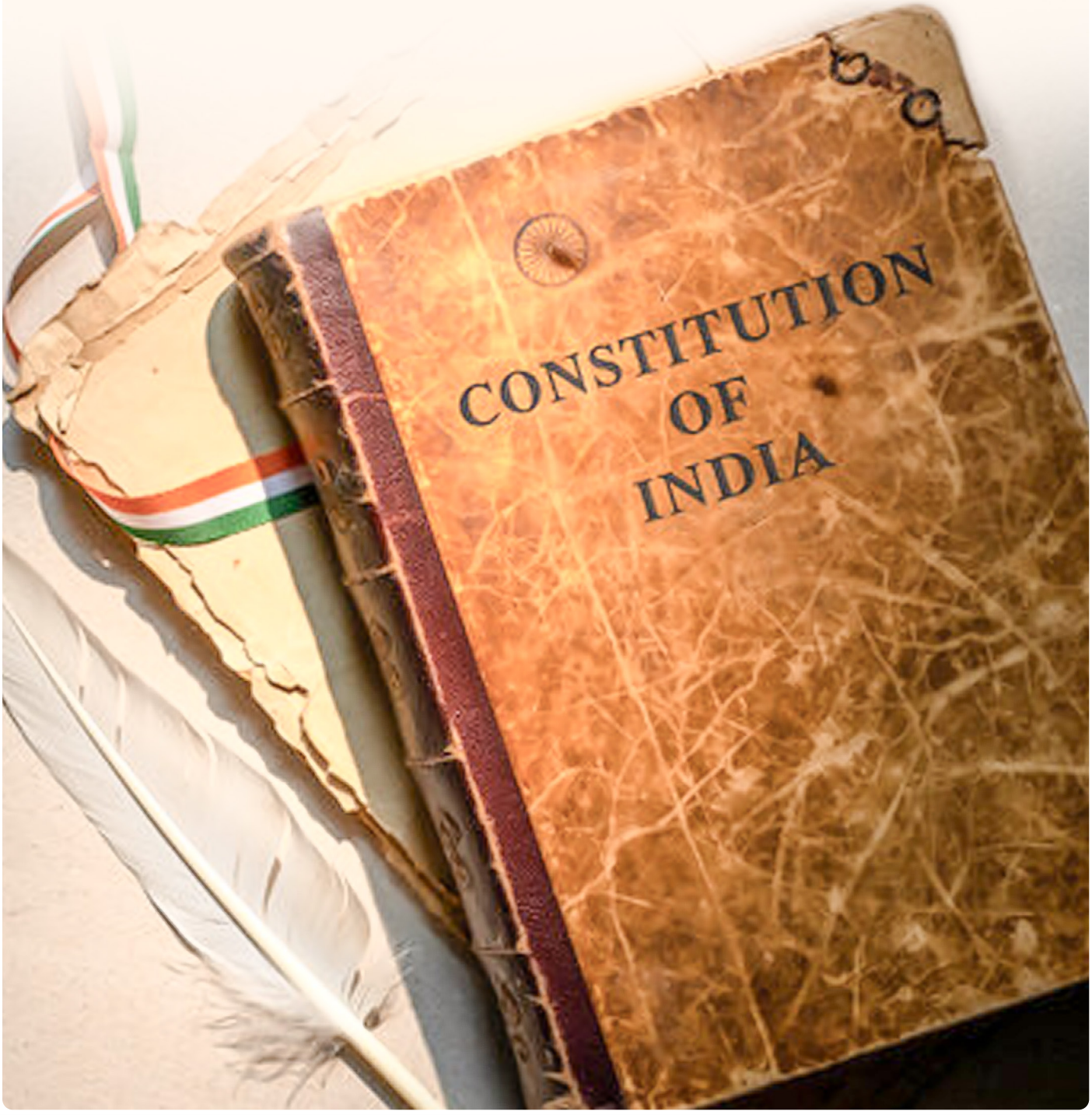
Indian Constitution - Historical Underpinnings, Evolution, Features, Amendments, Significant Provisions and Basic Structure



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1 Historical Underpinnings, Evolution and Making of Indian Constitution

1.1 Indian Constitution: Historical Underpinnings

The Indian Constitution, which came into force on January 26, 1950, represents a complex historical fusion of inherited colonial structures and the nation's own ambitions. As **Dr B.R. Ambedkar** famously stated, it is a synthesis derived from **"the experience gained through the ages".**

Why did the Constitution makers borrow heavily from the 1935 Act?

- **Administrative Familiarity:** Indian politicians and administrators were already familiar with the administrative machinery (foundational framework for the Parliamentary and federal system) established by the 1935 Act.
  - It made sense to adopt an existing, functional system rather than experiment with a completely alien structure.
- **Detailed Institutional Framework:** The 1935 Act provided a highly detailed blueprint for complex administrative systems like the Federal layout, the Judiciary, the Public Service Commissions, and Emergency provisions, which suited the vast and diverse Indian landscape.
- **Need for a Strong Centre:** The 1935 Act had provisions for a strong federal framework which the framers found necessary to hold the newly independent, geographically vast, and socially diverse nation together and prevent balkanisation.

How does the Constitution of 1950 fundamentally differ from the 1935 Act?

Feature	Government of India Act, 1935	Constitution of India, 1950
Source of Authority	• Enacted by the British Parliament. Power flowed from the British Crown.	• Enacted by the Constituent Assembly. Power flows from "We, the People of India" (Popular Sovereignty).
Nature of State	• Proposed an All-India Federation (which never fully materialised).	• Established a Sovereign, Socialist, Secular, Democratic Republic.
Fundamental Rights	• Completely absent. The Simon Commission explicitly rejected the inclusion of fundamental rights.	• It contains a robust Part III (Fundamental Rights) acting as a cornerstone of Indian democracy.
Voting Rights (Franchise)	• Highly restricted. Based on property, tax, and education. Barely 10-14% of the population could vote.	• Introduced Universal Adult Franchise (Article 326) - a revolutionary step granting voting rights to all adults regardless of wealth or literacy.
Communal Electorate	• Institutionalised divide-and-rule by extending Separate Electorates to Dalits, women, and labour.	• Abolished separate electorates to promote national unity. Adopted Joint Electorates with reserved seats for SCs and STs.
Socio-Economic Goals	• A purely administrative and regulatory document meant to prolong colonial control.	• Contains Directive Principles of State Policy (Part IV), aiming to establish a welfare state and social justice.
Judiciary	• A Federal Court was established, but the ultimate court of appeal was the Privy Council in London.	• Established a truly Independent and Integrated Supreme Court, which is the final interpreter of the Constitution.
Residuary Powers	• Arbitrarily given to the Governor-General.	• In the Union Legislature (Parliament)

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A "Bag of Borrowings" or a Tailored Masterpiece?

The debate over whether the Indian Constitution is a **"Bag of Borrowings" or a "Tailored Masterpiece"** is as old as the document itself. While critics often dismiss it as a **"patchwork"** of foreign laws, Dr. B.R. Ambedkar famously argued that **there is no shame in "ransacking"** the best features of existing constitutions to suit the needs of a new nation.

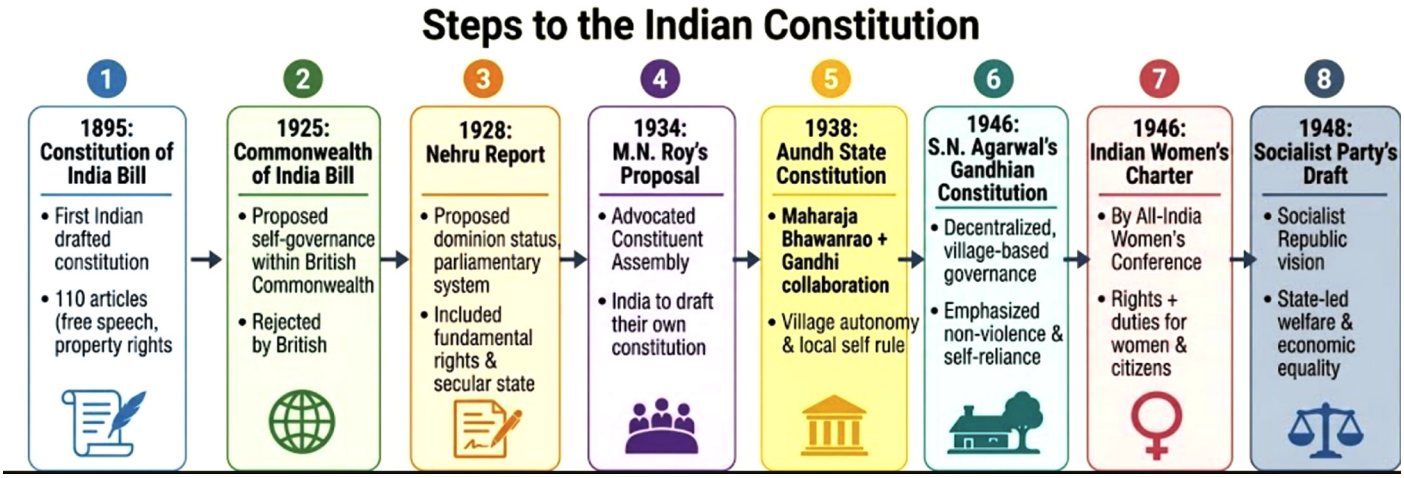
The reality **lies in the adaptation**: the framers didn't just copy-paste; they **modified global concepts** to fit India's unique socio-political diversity.

Feature	Primary Source	How it was "Tailored" for India
Parliamentary System	United Kingdom	• Unlike the British "Sovereignty of Parliament," India adopted Judicial Review. • The Indian Parliament is not supreme; the Constitution is. • India adopted a written Constitution, unlike Britain's unwritten constitutional framework.
Single Citizenship	United Kingdom	• It means that every individual, regardless of their state or territory of birth, is a citizen of the entire nation and does not hold a separate citizenship for their specific state.
Federalism	Canada / USA	• India is a "Union of States" with a strong centralising tilt (quasi-federal as mentioned by K.C. Wheare) to prevent secession and manage internal diversity.
Fundamental Rights	USA (Bill of Rights)	• These are not absolute. The Indian Constitution includes "Reasonable Restrictions" to balance individual liberty with social order.
Directive Principles (DPSP)	Ireland	• Tailored to include Gandhian principles (like village panchayats and prohibition) to reflect India's specific struggle for independence.
Emergency Provisions	Germany (Weimar Constitution)	• Modified to give the President specific powers to maintain national integrity during war, external aggression, or armed rebellion.
Amendment Process	South Africa	• A unique blend of Rigidity and Flexibility. Some parts need a simple majority, while others require a special majority + state ratification.
Secularism	Western Philosophy	• Unlike the Western "wall of separation" (State vs. Church), Indian secularism is "Sarva Dharma Sambhava" (Equal respect for all religions).
Fundamental Duties	USSR	• Moral and civic obligations for Indian citizens outlined in Article 51-A (Part IV-A) of the Indian Constitution.

Acknowledging the colonial origins of our Constitution does not diminish its greatness but rather highlights the intellectual maturity of its framers. By pragmatically assimilating the best administrative lessons from the past, the Assembly transformed a history of colonial concessions into a durable, sovereign charter of justice and democratic rights.

1.2 Making of the Constitution

The institutional framework of the Indian Constitution was heavily drawn from the administrative machinery established during British rule. The process shifted from centralisation to gradual decentralisation and limited representation.



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Demand for Constitution

- **M.N. Roy's Proposal (1934):** M.N. Roy, a pioneer of the communist movement in India, was the first to formally put forward the idea of a Constituent Assembly.
- **INC's Official Stand (1935):** The Indian National Congress (INC) officially demanded a Constituent Assembly to frame the Constitution of India.
- **Nehru's Declaration (1938):** Jawaharlal Nehru declared on behalf of the INC that the Constitution of a free India must be framed ***"without outside interference by a Constituent Assembly elected on the basis of adult franchise."***
- **British Acceptance:** The demand was accepted in principle by the British in the **August Offer (1940) and** later formed the core of the failed **Cripps Mission (1942)**.

Constitution Drafted (1946–1949)

- **Constituent Assembly:** The Assembly met for the first time on **December 9, 1946.** The Muslim League boycotted the meeting, insisting on a separate state of Pakistan. Dr. Sachchidananda Sinha was elected as the temporary President, later replaced by Dr. Rajendra Prasad.
- **Objective Resolution:** On December 13, 1946, Nehru moved the historic "Objective Resolution", laying down the philosophical fundamentals of the constitutional structure. This eventually became the Preamble.
- **Impact of Partition:** After the Indian Independence Act of 1947, the Muslim League members from Pakistani territories withdrew. The Assembly's strength was reduced from the original 389 to 299 members.
- **The Drafting Committee:** Set up on August 29, 1947, under the chairmanship of Dr. B.R. Ambedkar. It scrutinised the reports of various sub-committees and prepared the first draft, which was published in February 1948.
- The Assembly held 11 sessions spanning 2 years, 11 months, and 18 days.

Constituent Assembly Committees

Committee	Mandate	Impact
Drafting Committee (Dr B.R. Ambedkar)	• To scrutinise the Draft Constitution prepared by the Constitutional Advisor and publish a finalised version for Assembly debate.	• **Impact:** Ensured legal precision. Acted as the crucial filter for over 7,000 proposed amendments, skillfully balancing individual liberty with "Reasonable Restrictions" to maintain public order and state security.
Union Powers Committee (Jawaharlal Nehru)	• To identify subjects exclusively for the Union List and define the overarching scope of Central authority.	• **Rationale:** The trauma of Partition necessitated a Centripetal Force. • **Impact:** Established a "Federation with a Strong Centre", granting the Union the necessary fiscal and administrative power to ensure national integrity and cohesive economic planning.
Provincial Constitution Committee (Sardar Vallabhbhai Patel)	• To design the Executive-Legislative relationship at the provincial (state) level.	• **Rationale:** To grant provincial autonomy without compromising the newly formed national unity. • **Impact:** Resulted in the "Appointed Governor" model (borrowed from Canada) to act as a vital constitutional link between the Centre and the States, avoiding parallel power centres.
Advisory Committee on Fundamental Rights, Minorities & Tribal Areas (Sardar Vallabhbhai Patel)	• A massive, multi-layered body tasked with securing civil liberties, protecting minority identities, and managing tribal administration.	• **Rationale**: To protect the "Dignity of the Individual" against State overreach and majoritarianism. • **Impact:** Birthed the "Conscience of the Constitution" by dividing Fundamental Rights into Part III (Justiciable/ Political Democracy) and Directive Principles into Part IV (Non-Justiciable / Social & Economic Democracy).
States Committee (Jawaharlal Nehru)	• Its mandate was to confer with the Negotiating Committee of the Chamber of Princes and other representatives of Indian States to determine how the Princely States would be represented in the emerging independent nation	• **Rationale:** To prevent the immediate "Balkanisation" of the Indian subcontinent post-independence. • **Impact:** Transformed a highly fragmented territory into a unified Sovereign Republic, ensuring uniform single citizenship and a unified judicial system.

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Rules of Procedure / Steering Committee (Dr Rajendra Prasad)	• To govern the internal conduct of debates, the process of moving amendments, and overall Assembly administration.	• **Rationale:** To ensure the document derived its authority from "Popular Legitimacy" rather than elite consensus. • **Impact:** By ensuring that over 2,473 amendments were exhaustively debated, these committees proved the Constitution was a product of "Reasoned Deliberation."
Excluded & Partially Excluded Areas Sub-Committee (A.V. Thakkar)	• Special focus on protecting the tribal populations living in the interior regions of India (outside Assam).	• **Rationale:** To shield indigenous cultures from external economic exploitation and land alienation. • **Impact:** Culminated in the 5th Schedule, granting the Governor special, discretionary powers for the "Peace and Good Government" of scheduled areas.
N.E. Frontier Tribal Areas Sub-Committee (Gopinath Bardoloi)	• Designing a unique governance framework for the highly distinct North-East frontier tribes.	• **Rationale:** Acknowledging the distinct socio-political and customary identity of the North-East. • **Impact:** Formulated the 6th Schedule, introducing "Autonomous District Councils" to allow tribal self-governance within the state structure.

Acknowledging the colonial origins of our Constitution does not diminish its greatness but rather highlights the intellectual maturity of its framers. By pragmatically assimilating the best administrative lessons from the past, the Assembly transformed a history of colonial concessions into a durable, sovereign charter of justice and democratic rights.

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2 Salient Features of Indian Constitution

The Indian Constitution is a uniquely comprehensive document that blends provisions borrowed from global constitutions with India's specific administrative needs. This synthesis has resulted in a dynamic framework equipped with several distinct features designed to unite and govern an immensely diverse nation.

UPSC Mains PYQs

1. "Constitutional morality is the fulcrum which acts as an essential check upon the high functionaries and citizens alike.
   In view of the above observation of the Supreme Court, explain the concept of constitutional morality and its application to ensure balance between judicial independence and judicial accountability in India. **(2025)**
2. 'Constitutional Morality' is rooted in the constitution itself and is founded on its essential facets. Explain the doctrine of Constitutional Morality' with the help of relevant judicial decisions. **(2021)**

Features	Description
Lengthiest Written Constitution	It is the most detailed constitution globally, driven by India's vast geography, historical influences (1935 Act), and the inclusion of both fundamental principles and administrative details → It originally contained 395 Articles and 8 Schedules, but today, through multiple amendments, ***the Indian Constitution has expanded*** and now contains 448 Articles (grouped into 25 Parts) and 12 Schedules.
Drawn from Various Sources	Its structural, philosophical, and political frameworks borrow heavily from the Government of India Act 1935, as well as the US, Irish, British, and other global constitutions.
Blend of Rigidity and Flexibility	It synthesises both; some provisions require a special parliamentary majority **(Article 368)** or state ratification, while others can be amended via simple legislative processes.
Federal System with Unitary Bias	It combines standard federal features (division of powers, bicameralism) with strong unitary traits (single citizenship, a strong Centre, all-India services), often described as "quasi-federal".
Parliamentary Form of Government	Based on the Westminster model, it features a nominal and real executive, majority party rule, and collective responsibility of the executive to the legislature at both the Centre and State levels.
Judicial Review	Judicial review is the power of the Courts to examine the actions of the legislative and executive branches of government to determine whether they are constitutional. If a court finds that a law, policy, or government action violates the constitution, it can declare it null, void, and unenforceable
Integrated and Independent Judiciary	A single hierarchy of courts (with the Supreme Court at the top) enforces both central and state laws, protected by constitutional safeguards to ensure complete independence.
Fundamental Rights	Part III guarantees six justiciable rights to protect citizens against state tyranny, though they are subject to reasonable restrictions and can be suspended during emergencies (except Articles 20 and 21).
Directive Principles of State Policy (DPSP)	Enshrined in Part IV, these are non-justiciable directives aimed at establishing a "welfare state" and promoting social and economic democracy.
Fundamental Duties	Added by the 42nd Amendment (Part IVA), these serve as non-justiciable moral obligations for citizens to maintain unity and respect national ideals.
A Secular State	It embodies a "positive" concept of secularism by giving equal respect and protection to all religions, without upholding any official state religion.
Universal Adult Franchise	Grants voting rights to all citizens over 18 without discrimination, a bold experiment that made Indian democracy broad-based.
Single Citizenship	Despite its federal structure, it provides uniform national citizenship to foster unity and fraternity among all Indians.

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Independent Bodies	It establishes autonomous institutions like the Election Commission, CAG, and UPSC to serve as bulwarks for the democratic system.
Emergency Provisions	Contains unique mechanisms that allow the federal structure to temporarily convert into a unitary one during National, State, or Financial emergencies to safeguard the nation.
Three-tier Government	The 73rd and 74th Amendments (1992) constitutionally recognised local rural (Panchayats) and urban (Municipalities) governments, a **unique feature globally.**

2.1 Why is the Constitution called a Living Document?

A constitution is termed a "living document" when it is not a static, frozen piece of legislation but a dynamic, evolving entity that responds to the changing socio-economic, technological, and political realities of a nation. The Indian Constitution has survived for over seven decades precisely because its framers built mechanisms for its continuous evolution without destroying its foundational ideals.

"If you make a constitution too rigid, you stop a nation's growth and the progress of a living, vital people." - Jawaharlal Nehru.

Mechanisms through which the Indian Constitution evolves

Aspect	Explanation
Blend of Rigidity and Flexibility (Article 368)	• **Adaptability:** Over 100 amendments have been passed to reflect changing times. ♦ The **73rd and 74th Amendments (1992)** restructured grassroots democracy, and the **101st Amendment (2016)** overhauled the nation's indirect taxation system to introduce the GST. • **Example:** The **106th Amendment (Nari Shakti Vandan Adhiniyam, 2023)**, reserving seats for women in legislatures, demonstrates its ongoing capacity to address contemporary demands for gender equity. • Article 368 itself reflects the framers' intent to balance continuity with change
Transformative Constitutionalism	• The **Supreme Court of India** is not just the guardian of the Constitution but also its most **active interpreter**. Through its **power of judicial review**, it continuously expands the scope of constitutional text to cover modern issues. • **Expansion of Article 21 (Right to Life):** Originally interpreted narrowly, the *Maneka Gandhi v. Union of India (1978)* case expanded Article 21 by transforming "procedure established by law" into a substantive requirement of fairness, justice, and reasonableness. ♦ The judiciary has expanded "Life and Personal Liberty" to include the **Right to a Clean Environment** (*M.C. Mehta Case, 1986*), **the Right to Education** (*Unnikrishnan Case, 1993*) and, crucially, the **Right to Privacy (K.S. Puttaswamy Case, 2017)** - adapting a 1950 document to the digital age. • **The Basic Structure Doctrine (Kesavananda Bharati Case, 1973):** This judicial innovation ensures that while the Constitution is "living" and can be amended, its "soul" **(secularism, federalism, and judicial review)** remains immortal and immune to destruction.
Laws by the Parliament	• The Constituent Assembly deliberately left many **administrative and procedural details** out of the Constitution, delegating them to the future Parliament to legislate as per the needs of the time. • **Examples:** Voting is a constitutional/statutory right under Article 326, but the exact mechanism of elections, disqualifications, and political funding is dynamically managed by the **Representation of the People Act (1950 & 1951)**. Similarly, the **Citizenship Act (1955)** has been amended multiple times to reflect shifting geopolitical and domestic realities.
Evolution of Constitutional Conventions	• Unwritten conventions and practices have organically grown to supplement the written text, adapting to political realities (such as the era of coalition politics). (conventions are non-binding political practices.) • **Example:** The President's practice of inviting the leader of the largest pre-poll alliance to form the government in the event of a hung parliament is an evolved convention, not a strictly written constitutional rule.
Evolving with Societal Values	• The framework adapts to shifting cultural morals without needing a brand-new Constitution. • **Example:** The decriminalisation of Section 377 in 2018 aligned the law with modern understandings of equality and dignity.

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Constitutionalism and Constitutional Morality: The Twin Pillars of Indian Democracy

While the **Constitution** is the written legal framework of a state, **Constitutionalism** is the political philosophy of "**limited government",** ensuring that state power is restrained by law. Constitutional Morality, on the other hand, is the ethical compass of the document, ensuring that the government and citizens adhere not just to the letter of the law but to its **underlying values of justice, liberty, and equality.**

Constitutionalism (The Structural Restraint)

Definition: The idea that government authority is derived from and legally limited by a body of fundamental law. It is the antithesis of arbitrary, authoritarian rule.

Key Manifestations in the Indian Polity:

- **Limited Government & Fundamental Rights:** The state is not absolute. Part III (Fundamental Rights) acts as a negative injunction against the state, preventing it from encroaching upon individual liberties (e.g., Article 13 voids laws that violate Fundamental Rights).
- **Rule of Law (Article 14):** Borrowed from A.V. Dicey, it establishes that law is supreme, not the ruler. It ensures equality before the law and equal protection of the laws, subjecting executive discretion to constitutional limitations and judicial scrutiny.
- **Separation of Powers & Checks and Balances**: The Constitution prevents the concentration of power by dividing it between the Legislature, Executive, and Judiciary (Article 50).
- **Judicial Review & Basic Structure:** The Supreme Court serves as the ultimate arbiter. Through the Kesavananda Bharati Case (1973), the judiciary established that Parliament cannot alter the "Basic Structure", structurally enforcing Constitutionalism even against a super-majority government.

Constitutional Morality (The Ethical Compass)

Definition: The adherence to the core principles of the constitutional text. It dictates that societal norms, biases, and majoritarian views must bow down to the egalitarian values of the Constitution.

Evolution:

- **Dr. B.R. Ambedkar's Vision:** Dr. Ambedkar introduced this term in the Constituent Assembly (borrowing from historian George Grote). He warned that democracy in India was only a "top-dressing" on an essentially undemocratic soil, arguing that Constitutional Morality- meaning peaceful conflict resolution and paramount reverence for the Constitution - had to be deliberately cultivated.
- **Triumph over "Public/Social Morality":** In recent years, the Supreme Court has resurrected this concept against majoritarian and orthodox societal norms.
  - **Navtej Singh Johar Case (2018):** While decriminalizing homosexuality (Section 377), the Court ruled that "Constitutional Morality" trumps "Social Morality." The rights of a minority cannot be denied merely because the majority disapproves.
  - **Sabarimala Temple Case (2018):** The Court struck down the ban on the entry of women, stating that religious practices cannot subvert the constitutional morality of gender equality and dignity (Article 14 and 21).
  - **NCT of Delhi vs. Union of India (2018):** The Court applied the concept to the federal structure, stating that constitutional functionaries (like the LG and the elected government) must act with mutual respect and constitutional morality, avoiding power struggles.

Key Elements of Constitutional Morality

- Protection of diversity and pluralism.
- Commitment to individual dignity and liberty.
- Non-violence and peaceful resolution of political disputes.
- Eradication of systemic discrimination (caste, gender, religion).

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Application of Constitutional Morality: The Judicial Fulcrum

While Constitutional Morality protects citizens from majoritarianism, it also acts as a vital internal check on high constitutional functionaries. The Supreme Court uses it as a fulcrum to balance the delicate tension between Judicial Independence and Judicial Accountability:

1. Upholding Judicial Independence (Protection from Executive):

- Constitutional morality dictates strict adherence to the **Separation of Powers (Article 50)**.
- It requires the judiciary to act as a fearless guardian of the Constitution, completely insulated from executive or political pressure.
- ***Example:*** In the **NJAC Judgement (2015)**, the Court struck down the National Judicial Appointments Commission, ruling that executive interference in the appointment of judges violates the "Basic Structure" and the constitutional morality of an independent judiciary.

2. Ensuring Judicial Accountability (Protection from Overreach):

- Conversely, independence is not a license for judicial dictatorship. Constitutional morality demands that judges practice **Self-Restraint** and remain accountable to the constitutional text.
- It prevents "Judicial Overreach" by ensuring courts do not usurp the policy-making powers of the legislature or executive.
- ***Example:*** The push for administrative transparency (like bringing the CJI's office under the RTI Act) and the reliance on "In-house procedures" to investigate judicial misconduct are driven by the constitutional morality of public accountability.

The Constitutional Synthesis: Harmonizing Competing Democratic Ideals

The Indian Constitution is not a rigid rulebook but a pragmatic synthesis of diverse political philosophies tailored to India's unique socio-political realities. The table illustrates how the framers successfully balanced contrasting democratic principles to create a resilient and adaptable governance framework.

Theme	Competing Ideals	How the Constitution Achieves Synthesis	Key Provisions	Judgments / Concepts
The Federal Balance	State Autonomy VS. National Unity	• Establishes a **"Quasi-Federal"** structure. • Normal times operate as a federation (dual polity, division of powers). • However, it assumes a unitary character during emergencies or via central appointments to protect national integrity.	• **Schedule 7:** Division of powers • **Article 3:** Parliament altering state borders • **Article 352/356:** Emergencies • **Article 312:** All India Services	• **S.R. Bommai Case (1994):** Federalism declared part of the Basic Structure; protects states from arbitrary central rule.
The Balance of Power	Parliamentary Sovereignty (UK) VS. Judicial Supremacy (US)	• Parliament has vast law-making and amending powers, but the Supreme Court holds the power of Judicial Review to strike down unconstitutional laws. • It uses **"Procedure Established by Law"** rather than "Due Process" (under evolution in India)	• **Article 368:** Amending power • **Articles 13, 32, 226:** Judicial Review • **Article 21:** Procedure Established by Law	• **Kesavananda Bharati (1973):** Invented the Basic Structure Doctrine, limiting Parliament's amending power and elevating judicial review.
Constitutional Adaptability	Flexibility (Easy to change) VS. Rigidity (Hard to change)	• A **"Living Document"** approach. Minor administrative changes need only a simple majority. • Core rights need a special majority. • Federal features require a special majority plus ratification by half the states.	• **Article 3 / 169:** Simple majority changes • **Article 368:** Special Majority • **Article 368:** Special Majority + State Ratification	• The Constitution has survived for 70+ years by amending itself >100 times without losing its core identity.

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The Philosophical Soul	Individual Rights (Political) VS. Collective Welfare (Socio-Econ)	• FRs are negative injunctions on the state (justiciable), while DPSPs are positive obligations (non-justiciable). • The Constitution seeks a harmonious balance, refusing to sacrifice one completely for the other.	• **Part III (FRs):** Political Democracy • **Part IV (DPSPs):** Socio-Economic Democracy • **Article 326:** Universal Adult Franchise	• **Minerva Mills (1980):** Indian Constitution is founded on the "bedrock of the balance" between Fundamental Rights (FRs) and Directive Principles (DPSPs).
Indian Secularism	Strict Separation (Western) VS. Theocratic State	• Adopts a **"Positive Secularism"** (Sarva Dharma Sambhava). • The State has no official religion and treats all equally but retains the power to intervene in religious affairs to eradicate social evils (e.g., untouchability).	• **Articles 25-28:** Freedom of Religion • **Articles 15/16:** Non-discrimination • **Article 17:** Abolition of Untouchability	• Secularism was declared part of the Basic Structure in S.R. Bommai Case (1994).
Democratic Bulwarks	Executive Dominance VS. Democratic Accountability	• Goes beyond the standard three branches (Legislature, Executive, Judiciary) by creating specialised, autonomous constitutional bodies to act as independent watchdogs of the democratic process.	• **Article 324:** Election Commission • **Article 148:** CAG • **Article 315:** UPSC • **Article 266/267:** Consolidated Funds, Public Accounts and Contingency Fund.	• Independence is secured via strict removal processes and charging salaries to the Consolidated Fund of India.

The Indian Constitution derives its enduring strength from its ability to reconcile competing democratic ideals through a pragmatic and balanced framework rather than rigid absolutism. This constitutional synthesis has enabled India to preserve unity, liberty, justice and democratic stability while adapting to changing socio-political realities.

2.2 The Basic Structure Doctrine

The Basic Structure Doctrine is a judicial innovation stipulating that Parliament, through its constituent power under Article 368, cannot alter or destroy the essential framework or "soul" of the Constitution.

As eminent jurist Nani Palkhivala noted, Parliament is a "creature of the Constitution and cannot become its master". Coined in the historic **Kesavananda Bharati case (1973)**, scholar Granville Austin famously termed this doctrine the *"bedrock of constitutional interpretation in India"*.

UPSC Mains PYQs

1. "Parliament's power to amend the Constitution is a limited power and it cannot be enlarged into absolute power." In the light of this statement explain whether Parliament under Article 368 of the Constitution can destroy the Basic Structure of the Constitution by expanding its amending power? **(2019)**
2. What was held in the Coelho case? In this context, can you say that judicial review is of key importance amongst the basic features of the Constitution? **(2016)**

Evolution of the Doctrine

Phases	Description
Phase of Absolute Parliamentary Power (1951-1965)	• **Shankari Prasad Case (1951):** Following the 1st Constitutional Amendment Act (which added the 9th Schedule to protect land reform laws from judicial review), ♦ The Supreme Court ruled → **Parliament enjoys absolute constituent power** to amend any part of the Constitution, including FRs → A constitutional amendment was not considered a 'law' under Article 13(2). • **Sajjan Singh Case (1965):** A 5-judge bench upheld the Shankari Prasad judgement, though some doubts were raised regarding the absolute amendability of the Constitution.

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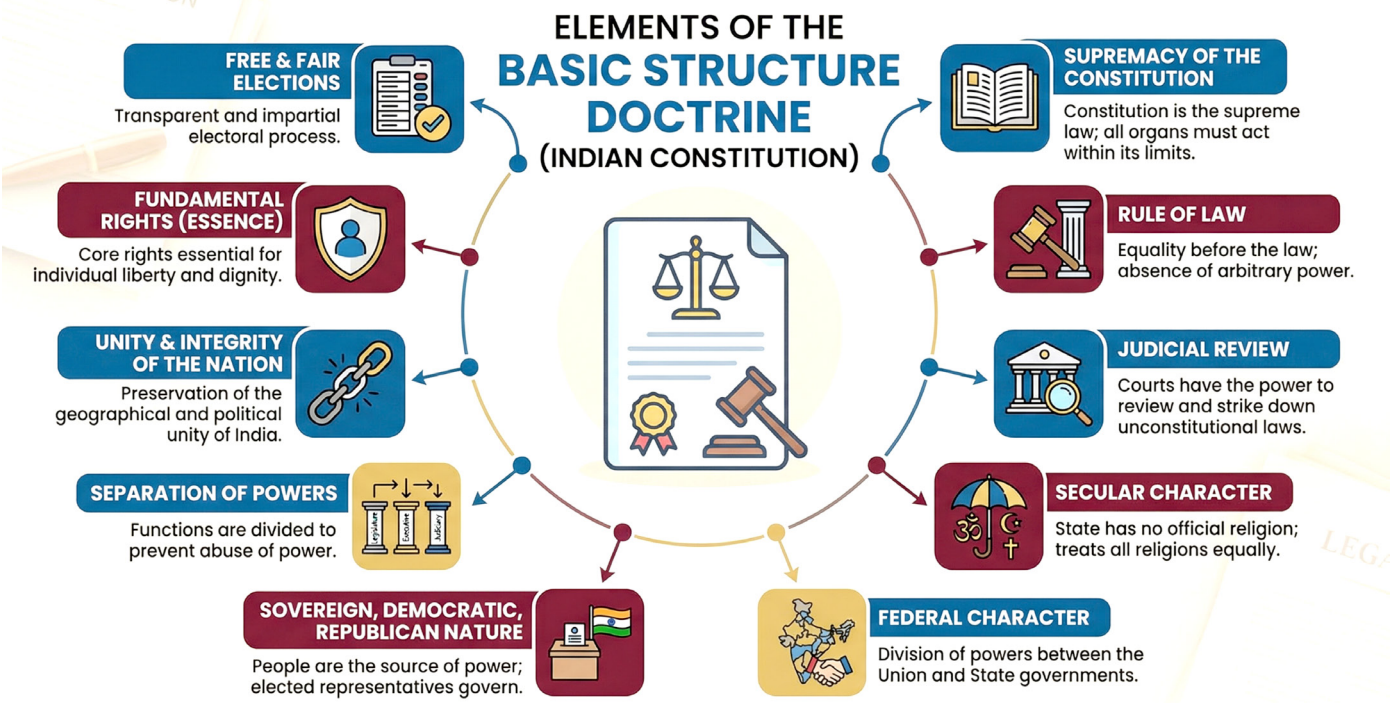
Phase of Fundamental Right Supremacy (1967)	• **Golak Nath Case (1967):** 11-judge bench (6:5 majority) ruled → Parliament does not have absolute power and cannot abridge or take away any Fundamental Right. ♦ It categorically stated that constitutional amendments are considered 'law' under Article 13(2).
Birth of the Doctrine (1971-1973)	• **Government's Reaction:** Parliament enacted the 24th, 25th, and 29th Amendments to nullify the Golak Nath ruling and re-establish its supreme amending power. → The 24th Amendment explicitly stated that Parliament can abridge FRs. • **Kesavananda Bharati Case (1973):** (13 judges) → The Supreme Court performed a balancing act. ♦ It upheld the 24th Amendment, overruling Golak Nath, and declared that Parliament can amend *any* part of the Constitution. ♦ However, it propounded the **Doctrine of Basic Structure**, ruling that the constituent power under Article 368 does not enable Parliament to alter the basic structure or framework of the Constitution.
Cementing the Doctrine (1975-2007)	• **Indira Nehru Gandhi Case (1975):** The SC reaffirmed the doctrine by striking down a provision of the 39th Amendment Act (which kept the Prime Minister's election disputes outside the jurisdiction of all courts) as it violated basic features like free and fair elections and the rule of law. • **Minerva Mills Case (1980):** During the Emergency, Parliament passed the 42nd Amendment (1976), declaring that there is no limitation on its amending.powers, attempting to exclude judicial review over Constitutional amendments. ♦ In *Minerva Mills*, the SC struck this down, stating that a "limited amending power" and "judicial review" are themselves basic features of the Constitution. • **Waman Rao Case (1981):** The SC clarified that the Basic Structure doctrine applies retrospectively only to constitutional amendments enacted *after* April 24, 1973 (the date of the Kesavananda Bharati judgement). • **I.R. Coelho Case (2007):** The SC ruled that there is no blanket immunity from judicial review for laws placed in the 9th Schedule. Any law added to the 9th Schedule after April 24, 1973, is open to challenge if it violates Fundamental Rights (Articles 14, 15, 19, 21) or the basic structure.
Implications of the Doctrine	• **Expansive Judicial Review:** The doctrine marked the beginning of strong Judicial Review in constitutional interpretation. A key example is the striking down of the **99th Constitutional Amendment (National Judicial Appointments Commission - NJAC).** • Present-day constitutional challenges, such as the 103rd Amendment (EWS reservation) and the abrogation of Article 370, are tested against the touchstone of the Basic Structure.



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Significance of the Doctrine	• **Promotes Constitutional Ideals:** Basic Structure Seeks to preserve constitutional principles and Basic ideals envisioned by the founding fathers. • Granville Austin argues that with Basic Structure Doctrine, a balance has been reached between the responsibilities of Parliament and the Supreme Court for protecting the seamless web of the Indian Constitution. • **Protects Fundamental Right**s: Basic Structure protects the citizens' fundamental rights against the legislature's arbitrariness and authoritarianism. • **Constitution as a living document:** Being dynamic in nature, it is more progressive and open to changes in time, making the Constitution a living document. • **Safeguarding Constitutionalism:** If Parliament is bestowed with unlimited powers to amend the Constitution, it defeats the very purpose of having a Constitution. • **Check on Majoritarianism:** Governments have historically enacted questionable amendments to suit ulterior motives, especially during the Emergency Era (e.g., 42nd Amendment). The doctrine ensures that absolute power does not corrupt absolutely.
Comparative Constitutionalism	• India's doctrine is a judicial invention, but similar concepts exist globally, either in text or through judicial routes. • **Germany's 'Eternity Clause' (Art 79(3)): A** Textual ban on amending human dignity/federalism. • **Bangladesh:** Adopted India's doctrine in 1989.

EVOLUTION OF THE BASIC STRUCTURE DOCTRINE – KEY JUDGMENTS

Case	Year	Contribution
Shankari Prasad v. Union of India	1951	Parliament can amend Fundamental Rights under Article 368.
Sajjan Singh v. State of Rajasthan	1965	Reaffirmed *Shankari Prasad*; hinted at possible limitations on amendment power.
I.C. Golaknath v. State of Punjab	1967	Parliament cannot amend Fundamental Rights.
Kesavananda Bharati v. State of Kerala	1973	Parliament may amend any part of the Constitution, but cannot alter its Basic Structure.
Indira Nehru Gandhi v. Raj Narain	1975	Introduced the 'damage or destroy' test; identified free and fair elections, democracy, rule of law, and judicial review as basic features.
Minerva Mills v. Union of India	1980	(i) Limited amending power is a basic feature; (ii) Judicial review is a basic feature; (iii) Struck down expanded Article 31C and held that harmony between Fundamental Rights and DPSPs is itself part of the Basic Structure.
Waman Rao v. Union of India	1981	Applied Basic Structure doctrine to post-*Kesavananda* constitutional amendments.
S.R. Bommai v. Union of India	1994	Secularism recognized as a basic feature; Article 356 proclamations subjected to judicial review.
L. Chandra Kumar v. Union of India	1997	Judicial review under Articles 32 and 226 held to be part of the Basic Structure.
M. Nagaraj v. Union of India	2006	Developed the Width Test and Identity Test to assess validity of constitutional amendments.
National Judicial Appointments Commission Case	2015	Judicial independence reaffirmed as a Basic Structure feature.
Janhit Abhiyan v. Union of India	2022	Upheld 103rd Constitutional Amendment (EWS reservation); held 50% reservation ceiling is not part of Basic Structure.
In Re: Article 370	2023	Upheld abrogation of Article 370; held Indian federalism is asymmetric and not violated.
Madras Bar Association v. Union of India	2025	Struck down key provisions of Tribunals Reforms Act, 2021; reinforced tribunal independence and revived debate on applicability of Basic Structure to ordinary legislation.

SWOT Analysis of the Basic Structure Doctrine

Strengths (S)	Weaknesses (W)
• **Ultimate Safety Valve:** Protects the democratic and secular fabric from being hijacked by a brute parliamentary majority. • **Harmonious Construction:** It successfully reinforced a balance between Fundamental Rights and DPSPs (Minerva Mills). • **Independent Judiciary:** Preserves the separation of powers, ensuring the executive doesn't capture the courts.	• **Lack of Textual Basis:** It is entirely a judicial invention. Nowhere does the Constitution mention "Basic Structure." • **Definitional Ambiguity:** There is no exhaustive list. It is decided on a case-by-case basis, creating legal unpredictability. • **Tyranny of the Unelected:** Critics argue it allows unelected judges to override the will of the people represented by the elected Parliament.

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Opportunities (O)	Threats (T)
• **Expanding Horizons:** The doctrine, alongside expansive constitutional interpretation, may help protect emerging constitutional values like digital privacy and environmental justice under Article 21. • **Shielding Electoral Integrity:** Increasingly vital to protect institutions like the ECI and ensure free/fair elections against political manipulation.	• **Institutional Friction:** Leads to recurrent Executive-Judiciary disagreements (e.g., recent statements by the VP and Law Ministers questioning the Kesavananda verdict). • **Legislative Paralysis:** Fear of the doctrine might prevent bold, necessary constitutional reforms, keeping the Constitution overly rigid.

While the Basic Structure Doctrine is a product of high judicial creativity, it acts as the ultimate bedrock of Indian democracy. However, while wielding this doctrine, the Supreme Court must also respect the democratic mandate attained by the Government, ensuring that the Constitutional values and democratic accountability remain harmoniously balanced.

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3 The Preamble

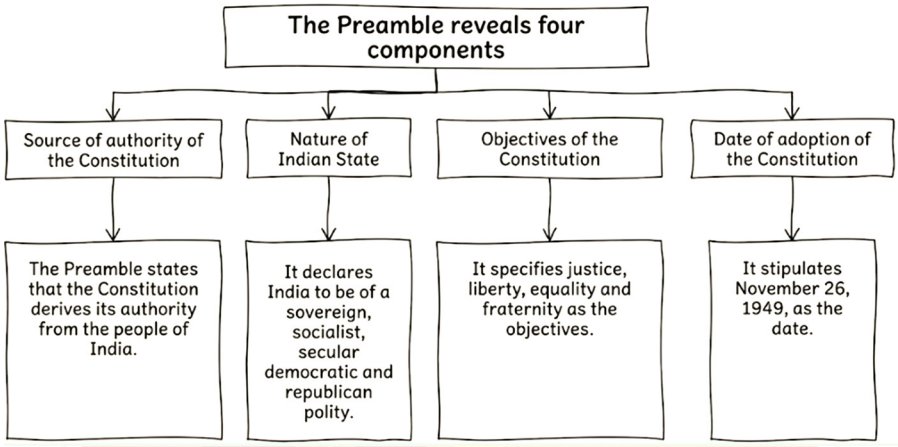
The Preamble serves as the introduction or preface to the Constitution, containing its summary and essence.

- **Origin:** It is based on the 'Objectives Resolution', which was drafted and moved by Pandit Jawaharlal Nehru on December 13, 1946, and adopted by the Constituent Assembly on **January 22, 1947.**
  - The Preamble itself was enacted at the very end of the drafting process (November 1949) to ensure it aligned with the finalised Constitution.
- **"Identity Card"**: Eminent jurist N.A. Palkhivala referred to the Preamble as the **"identity card of the Constitution".**

UPSC Mains PYQs

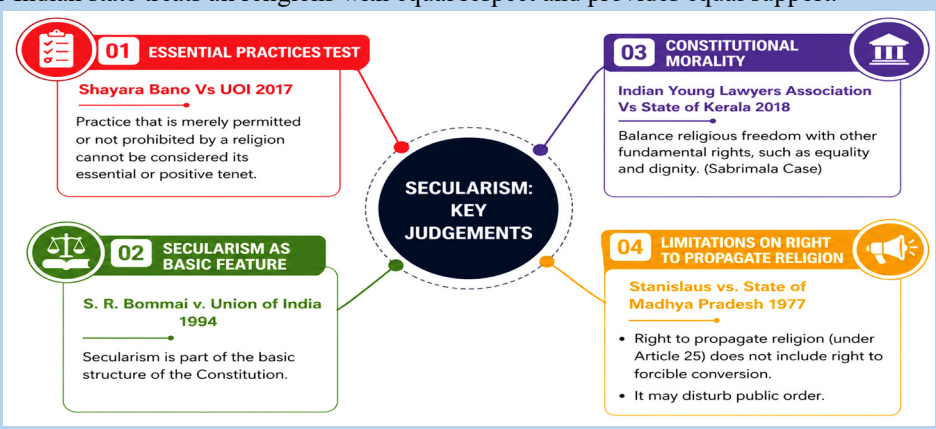
1. Discuss each adjective attached to the word 'Republic' in the 'Preamble'. Are they defendable in the present circumstances? **(2016)**

3.1 Components of the Preamble



3.2 Nature of the Indian State: The Five Adjectives

Sovereign	• India is an independent state, neither a dependency nor a dominion, free to conduct its **internal and external affairs.** ♦ Membership in the UN or Commonwealth does not limit this sovereignty.
Socialist (Added by 42nd Amendment, 1976)	• India follows "democratic socialism" (a mixed economy where public and private sectors co-exist), not "communistic socialism". • It aims to end poverty, ignorance, disease, and inequality. • **Contemporary Dimension**: While the 1991 LPG (Liberalisation, Privatisation, Globalisation) reforms diluted strict socialist credentials, the core aim of distributive justice remains intact.
Secular (Added by 42nd Amendment, 1976)	India embodies "positive secularism". Unlike the Western concept (complete separation of religion and state), the Indian state treats all religions with equal respect and provides equal support.



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Democratic	• Based on popular sovereignty, India practices a representative parliamentary democracy. ♦ Dr. B.R. Ambedkar emphasized that political democracy must be rooted in social democracy (liberty, equality, and fraternity as a "union of trinity")
Republic	• Indicates that the head of the state (President) is elected (indirectly for a fixed term), rather than hereditary as in a monarchy. ♦ It also signifies that political sovereignty vests in the people and that all public offices are open to citizens without discrimination.

3.3 Objectives Enshrined in the Preamble

Justice (Social, Economic, Political)	• ***Social:*** Equal treatment without discrimination based on caste, race, religion, or sex. • ***Economic:*** Elimination of glaring inequalities in wealth and income. • ***Political:*** Equal access to political offices and equal voice in government.
Liberty (Thought, Expression, Belief, Faith, Worship)	• Taken from the French Revolution. Liberty is essential for democracy but is not absolute; it is qualified and must be exercised within constitutional limits.
Equality (Status and Opportunity)	• Ensures civic (Articles 14-18), political (Articles 325, 326), and economic (Article 39) equality by eliminating special privileges for any section of society.
Fraternity (Dignity of Individual & Unity/ Integrity of Nation)	• Promoted through single citizenship and Fundamental Duties (Article 51-A). "Integrity" was added by the 42nd Amendment (1976). It aims to overcome hindrances like communalism, regionalism, and secessionism.

Are the Preamble's Objectives - Liberty, Equality, Justice & Fraternity - Defendable?

Objective	Defendable Elements
Justice(Social, Economic & Political)	• **Social:** Reservation (Arts. 15(4), 16(4), 15(6), 16(6)), SC/ST/OBC protection, POSH Act, victim compensation. • **Economic:** MGNREGA, PM-JAY, Food Security Act, progressive taxation, PLI schemes. • **Political:**Universal adult franchise, 73rd & 74th Amendments, one-person-one-vote.
Liberty(Thought, Expression, Belief, Faith & Worship)	**Article 19 freedoms;** robust judiciary, free press & civil society; Right to Privacy (K.S. Puttaswamy, 2017); decriminalisation of Section 377 (Navtej Johar, 2018) and adultery (Joseph Shine, 2018).
Equality (Status & Opportunity)	**Strong enforcement of Article 14;** Indra Sawhney doctrine with EWS exception (2022); expansion of transgender rights (NALSA, 2014), equal inheritance rights, women in combat roles, Sabarimala litigation.
Fraternity(Dignity, Unity & Integrity)	**Article 51-A(e)** promotes harmony; peaceful multi-religious, multilingual coexistence; participatory federalism through 73rd & 74th Amendments strengthens national integration.

3.4 Key Constitutional Debates

Is Preamble a Part of the Constitution?	This evolved through landmark Supreme Court judgements: 1. **Berubari Union Case (1960):** The Supreme Court stated that while the Preamble is a key to the minds of the makers, it is not part of the Constitution. 2. **Kesavananda Bharati Case (1973):** The Supreme Court rejected its earlier view and held that the Preamble is a part of the Constitution and is of extreme importance for interpreting the Constitution. 3. **LIC of India Case (1995):** The Court reaffirmed that the Preamble is an integral part of the Constitution.
Enforceability (Legal Status)	• The Preamble is non-justiciable, meaning its provisions are not directly enforceable in courts of law. • It is neither a source of power to the legislature nor a prohibition upon the powers of the legislature.
Amendability of the Preamble	• Under Article 368, the Preamble can be amended. • However, in the *Kesavananda Bharati case (1973)*, the Supreme Court ruled that such amendments are subject to the condition that they do not alter or destroy the "basic features" or "basic structure" of the Constitution contained within the Preamble. • It has been amended only once: the 42nd Constitutional Amendment Act (1976) added "Socialist", "Secular", and "Integrity".

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Contemporary Challenges to the Ideals, objectives and aspirations in Preamble

Preamble Component	Relevant Constitutional Provisions	Contemporary Challenges	Way Forward
Sovereign	• Art. 1 (Union of States) • Art. 51 (International peace & security) • Union List Entries 10–21 (Foreign affairs, defence)	• Policy autonomy constrained by FTAs and global supply-chain dependencies (semiconductors, APIs) • Cyber-sovereignty threats (disinformation, critical infrastructure attacks) • Cross-border terrorism and proxy conflicts	• Atmanirbhar Bharat in strategic sectors • Diversified trade partnerships (EU FTA, IPEF) • Strengthened cyber-security architecture (CERT-In, National Cyber Security Strategy)
Socialist	• Art. 38 & 39 (Welfare state, equitable distribution) • Art. 43 (Living wage) • Art. 23–24(Against exploitation)	• K-shaped economic recovery • Jobless growth and structural unemployment • Informal sector (~90% workforce) without social security	• Implement four Labour Codes • e-Shram-linked universal social security • PLI-driven formal employment• PM Vishwakarma-type targeted support
Secular	• Art. 25–28 (Freedom of religion); • Art. 44 (UCC); • Art. 15, 29, 30 (Equality & minority rights)	• UCC debate after Uttarakhand implementation • Social media-driven communal polarization and hate speech • Constitutional challenges to anti-conversion laws	• Judicial balance between Art. 25 & Art. 44 • Effective hate-speech regulation under BNS • Institutional mechanisms for interfaith harmony
Democratic	• Art. 79–122 (Parliament); • Art. 324 (ECI); • Art. 325–329 (Elections); • Tenth Schedule (Anti-defection)	• SIR controversy over electoral rolls • Declining parliamentary sittings and disruptions • Criminalization of politics and opaque political funding • Delay in anti-defection decisions	• Transparency reforms following ADR v. ECI (2026) • Debate on state funding of elections • Strengthen Parliamentary Committee scrutiny • Time-bound disposal of defection petitions
Republic	• Art. 52 (Elected President); • Art. 84 (Eligibility for elected office)	• Dynastic politics • Weakening merit-based institutional appointments	• Mandatory intra-party democracy • Transparent candidate selection • Electoral reforms under the RPA
Justice (Social, Economic & Political)	• Art. 14–18 (Equality); • Art. 38 (Social order); • Art. 39A(Free legal aid); • Art. 46 (SC/ST/OBC welfare)	• Judicial pendency (~5 crore cases) • SC/ST sub-classification complexities after Davinder Singh (2024) • Persistent economic inequality	• Fast-track courts • NJDG-based case management • Objective state-level sub-classification frameworks • Strengthen NALSA
Liberty (Thought, Expression, Belief, Faith & Worship)	• Art. 19 (Freedoms); Art. 21(Life & Personal Liberty); Art. 21A (Education)	• • Preventive detention and UAPA concerns• Frequent internet shutdowns• Surveillance vs. privacy (K.S. Puttaswamy, 2017)• Press freedom concerns	• Effective DPDP Act implementation • Judicial oversight of surveillance • Internet shutdowns per Anuradha Bhasin guidelines• • Reinforce "Bail, not Jail" principle
Equality (Status & Opportunity)	• Art. 14 (Equality); • Art. 15 (Non-discrimination); • Art. 16 (Equal opportunity); • Art. 17 (Abolition of untouchability); • Art. 18 (Abolition of titles)	• EWS reservation and 50% ceiling debate • Low female workforce participation • Digital divide • Continuing caste discrimination	• Implement Women's Reservation after delimitation • BharatNet & PM-WANI expansion • Evidence-based review of reservation policy

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Fraternity (Dignity, Unity & Integrity)	• Art. 51A(e) (Promote harmony); • Art. 350A (Mother-tongue education); • Art. 371 (A–J) (Special provisions)	• Communal and caste polarization • Linguistic disputes • Ethnic conflicts (e.g., Manipur)	• Civic education on Fundamental Duties • Revive National Integration Council-type forums • Conflict-sensitive federal mechanisms • Platform accountability for hate speech
Unity & Integrity of the Nation	• Art. 1 (Union of States); • Art. 3 (Reorganization of States); • Art. 355 (Union's duty to protect States); • Art. 356(President's Rule); • Art. 371 (A–J) (Special provisions)	• Residual insurgency in Northeast & J&K • Demands for greater autonomy/ statehood • Cross-border terrorism • Regional identity assertions	• Cooperative & competitive federalism • Context-specific use of Art. 371 provisions • Sustained peace processes • Border infrastructure and connectivity-led integration

Debate on 'Socialist' and 'Secular' in the Preamble - Retain or Remove?

Arguments for REMOVAL (Petitioners: Subramanian Swamy, Ashwini Upadhyay, Balram Singh, 2020)	Arguments for RETENTION (Upheld by the Supreme Court - Dr. Balram Singh v. Union of India, 25 Nov 2024)
• **Procedural illegitimacy:** The amendment was passed during the Emergency (1975–77), by a Lok Sabha whose normal tenure had already ended on 18 March 1976, without proper debate/opposition scrutiny- thus lacking genuine "will of the people."	• Article 368: Parliament can amend the Preamble by addition, variation, or repeal. • The Court rejected the date-of-adoption argument, holding that accepting it would invalidate all constitutional amendments.
• **Historical rejection:** Petitioners contended that Ambedkar and the Constituent Assembly rejected these terms to keep the Constitution ideologically neutral.	• **44-year delay fatal to the challenge:** The Court found no legitimate cause to entertain a challenge filed 44 years after the words became integral to the Preamble - questioning why this was raised only in 2020.
• **Dating anomaly:** Since the Preamble still carries the adoption date "26th November, 1949," petitioners argued no words could be added later without falsifying that historical marker- the Constitution cannot claim words were part of a document at a date before they existed.	• **Widespread acceptance and settled meaning:** The Court held that the terms have achieved widespread acceptance, with their meanings understood by "We, the People of India," without ambiguity.
• **Ideological imposition:** Critics argued that "socialist" could restrict future governments' freedom to pursue policies such as privatisation, liberalisation, and FDI.	• **Socialist in Indian context:** The Court held that "socialist" denotes a welfare state ensuring social and economic justice, not state ownership. It permits a mixed economy and policy flexibility for elected governments (Property Owners Association v. State of Maharashtra, 2024). • **Secular is part of the Basic Structure:** The Court reaffirmed that secularism is part of the Basic Structure(Kesavananda Bharati; S.R. Bommai, 1994) and cannot be removed. The term merely declared values already embedded in the Constitution.

The Preamble is not merely a preface but the philosophical bedrock of the Indian State. As K.M. Munshi termed it, it is the "horoscope of our sovereign democratic republic," and according to former CJI M. Hidayatullah, it is the "soul of our Constitution" laying down a solemn resolve that nothing but a revolution can alter.

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4 Citizenship

Citizenship is the legal status of a person recognised by custom or law as being a legal member of a sovereign state. It entails a relationship of allegiance to the State and, in return, the State provides protection and certain civil and political rights.

Enshrined in Part II of the Constitution, covering Articles 5 to 11.

The Indian State recognises two kinds of people:

- **Citizens:** Full members of the Indian State who owe allegiance to it. They enjoy all civil and political rights **(e.g., Articles 15, 16, 19, 29, and 30 are available only to citizens).**
- **Aliens:** Citizens of some other state. They do not enjoy all Fundamental Rights. They are categorised into friendly aliens and enemy aliens (who are not entitled to protection against arrest and detention under Article 22).

Article	Description
Article 5 (Citizenship by Domicile)	• A person domiciled in India and fulfilling any *one* of three conditions: (a) born in India, (b) either parent born in India, or (c) ordinarily resident in India for 5 years preceding the commencement of the Constitution.
Article 6 (Migrants from Pakistan)	• People who migrated from Pakistan to India. Differentiated based on whether they migrated before or after July 19, 1948 (the date the permit system was introduced).
Article 7 (Migrants to Pakistan and back)	• A person who migrated to Pakistan after March 1, 1947, but later returned to India for resettlement.
Article 8	• Allowed PIOs residing abroad to register as citizens via Indian diplomatic missions.
Article 9	• If a person voluntarily acquires the citizenship of any foreign state, they shall no longer be a citizen of India.
Article 10	• Every person who is a citizen under the above provisions shall continue to be a citizen, subject to any law made by Parliament.
Article 11 (Parliament's Absolute Power)	• It explicitly empowers Parliament to make any provision with respect to the acquisition and termination of citizenship and all other related matters. • Using the power under Article 11, Parliament enacted The Citizenship Act, 1955. It has been amended multiple times (1986, 1992, 2003, 2005, 2015, and 2019) to address illegal immigration.

Articles 5 to 8 only determined who became a citizen of India at the commencement of the Constitution (January 26, 1950).

4.1 The Citizenship Act, 1955

Acquisition of Citizenship (5 Ways)	• **By Birth (Jus Soli - Right of Soil):** Originally, anyone born in India was a citizen. ♦ Due to illegal immigration, this was tightened. Currently, a person born in India on or after Dec 3, 2004, is considered a citizen only if both parents are citizens, or one is a citizen and the other is not an illegal migrant. • **By Descent (Jus Sanguinis - Right of Blood):** For persons born outside India. ♦ Originally tracked through the father. Post-1992, either parent being an Indian citizen suffices. Post-2004, the birth must be registered at an Indian consulate within one year. • **By Registration:** For Persons of Indian Origin (PIOs) ordinarily resident in India for 7 years, or persons married to an Indian citizen residing in India for 7 years. • **By Naturalization:** For foreigners who have resided in India for a specific period (usually 11 of the past 14 years + 1 continuous year before applying), possess good character, and have adequate knowledge of a language in the 8th Schedule. • **By Incorporation of Territory:** If any foreign territory becomes a part of India, the Government of India specifies the persons who shall be citizens (e.g., Puducherry, Goa, Sikkim).
Loss of Citizenship (3 Ways)	• **By Renunciation:** A voluntary act by a citizen of full age and capacity declaring their intent to surrender Indian citizenship. • **By Termination:** Occurs automatically by operation of law when an Indian citizen voluntarily (consciously and willingly) acquires the citizenship of another country. • **By Deprivation:** A compulsory termination by the Central Government if the citizenship was acquired by fraud, if the citizen has shown disloyalty to the Constitution, or if the citizen has been ordinarily resident out of India for 7 continuous years.

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4.2 Key Debates

Debates	Description
Single Citizenship in a Federal Structure	• Unlike the USA or Switzerland (where a person is a citizen of the nation and their specific state), India follows the Canadian model of **Single Citizenship**. • **Objective:** To forge a united Indian nation and prevent regionalism or parochialism in a highly diverse society. • **The "Residence" Exception:** While Article 15 prohibits discrimination based on *place of birth*, it does not explicitly prohibit discrimination based on *residence*. Under Article 16(3), Parliament (not state legislatures) can prescribe residence within a state as a condition for certain employment.
The Citizenship Amendment Act (CAA), 2019	It amends the 1955 Act to state that Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians from Afghanistan, Bangladesh, and Pakistan, who entered India on or before December 31, 2014, shall not be treated as illegal migrants. It also reduces their naturalisation residency requirement from 11 years to 5 years. • **Arguments in Favour:** ♦ Protects persecuted minorities from neighboring Islamic states. ♦ Uses "intelligible differentia" (historical context of partition and specific state religions of those 3 countries), therefore defending it against Article 14 violations. • **Arguments Against (Criticism):** ♦ Critics argue it violates the secular fabric by making religion a criterion for citizenship. ♦ It excludes persecuted groups from other neighboring countries (e.g., Tamil Hindus from Sri Lanka, Rohingyas from Myanmar, Ahmadiyyas from Pakistan).
Assam Accord and Section 6A	• Section 6A was inserted into the Citizenship Act to implement the Assam Accord (1985), which was signed to end the agitation against illegal immigrants from Bangladesh. • It set **March 24, 1971** (the start of the Bangladesh Liberation War) as the cut-off date for citizenship in Assam. • **Recent Update:** In late 2024, a Constitution Bench of the Supreme Court upheld the constitutional validity of Section 6A, recognising the unique historical and demographic burden borne by Assam, validating the separate cut-off date as a reasonable classification under Article 14.

4.3 Domicile and Citizenship

While citizenship signifies the political relationship between an individual and the State, domicile implies a permanent home or a place where a person resides with the intention of staying there indefinitely. A person can have only one domicile at a time.

- **Constitutional Link (Article 5):** At the commencement of the Constitution (January 26, 1950), citizenship was granted to persons based on their domicile. A person became a citizen if they had a domicile in India and fulfilled at least one of three conditions: (a) born in India, (b) either parent was born in India, or (c) ordinarily resident in India for five years immediately preceding the commencement of the Constitution.
- **Single Citizenship vs. State Domicile:** India has a federal structure but provides for Single Citizenship (no separate state citizenship). However, under **Article 16(3),** Parliament can prescribe residence (domicile) within a state as a condition for certain public employment. Additionally, states can use domicile to offer special benefits, such as educational fee concessions to their residents, without violating **Article 15**

4.4 Comparative Analysis: NRC, NPR, ILP and Census

Parameter	NRC (National Register of Citizens)	NPR (National Population Register)	ILP (Inner Line Permit)	Census
Definition, Target Group & Objective	• Official register of verified Indian citizens • Applies only to citizens • Aims to identify illegal immigrants and verify citizenship.	• Register of all usual residents (citizens + foreign nationals residing for 6+ months) • Creates a demographic database for governance and welfare and may serve as the first step towards a future NRC.	• Travel permit required for Indian citizens entering notified protected states • Regulates entry to protect indigenous culture, land and tribal interests.	• Decennial enumeration of every person residing in India irrespective of citizenship • Generates demographic, socio-economic and housing data for policy planning, welfare, resource allocation and delimitation.

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Legal & Constitutional Basis	• Citizenship Act, 1955 (Section 6A for Assam) + Assam Accord, 1985.	• Citizenship Act, 1955 + Citizenship (Registration of Citizens and Issue of National Identity Cards) Rules, 2003.	• Bengal Eastern Frontier Regulation, 1873 • Operates as a reasonable restriction under Article 19(5) on freedoms under Article 19(1)(d) & (e).	• Census Act, 1948 + Census Rules, 1990 • Articles 81, 82 & 170 make census data the constitutional basis for delimitation of Parliamentary and Assembly constituencies.
Coverage, Implementation & Current Status (2026)	• Implemented only in Assam under Supreme Court supervision using 24 March 1971cut-off	• Prepared nationwide from local to national level • Although earlier linked with Census, no NPR update has been announced alongside Census 2027.	• Applicable in Arunachal Pradesh, Nagaland, Mizoram and Manipur • Stable framework with occasional demands for extension to other states (e.g., Meghalaya).	• Conducted nationwide every 10 years since 1881 • 2027 Census (16th Census) is underway in two phases - House-listing (2026) followed by Population Enumeration (1 March 2027).
Relationship with Delimitation, Women's Reservation & CAA	• Not directly linked to delimitation or women's reservation • May determine citizenship status, while CAA, 2019 provides a separate path to citizenship for specified persecuted minorities.	• No direct link with delimitation or women's reservation • May serve as a demographic baseline for any future NRC exercise.	• Not linked with delimitation or women's reservation • CAA beneficiaries cannot freely settle in ILP-protected areas without complying with ILP provisions.	• Directly linked to delimitation under the 84th CA and implementation of the 106th CA (Women's Reservation Act, 2023). • The (131st CA) Bill, 2026, proposing use of 2011 Census data, failed; hence 2027 Census data will be used. • No direct legal link with CAA, though demographic data may influence future policy debates.
Nature, Frequency & Authority	• Citizenship verification exercise • Conducted as required, not periodically • Overseen by the Registrar General of India.	• Population registration exercise • Updated as notified by the Government • Prepared by the Registrar General of India.	• Regulatory permit system • Permit required for each entry into notified states • Administered by concerned State Governments under the MHA framework.	• Statistical enumeration exercise conducted every 10 years by the Registrar General & Census Commissioner of India under the Ministry of Home Affairs.

4.5 The Immigration and Foreigners Act, 2025

Previously, India's immigration framework was highly fragmented, relying on archaic laws. The new Act aims to modernise, simplify, and digitise immigration rules, ensuring national security while promoting operational efficiency. Acts Repealed: It repeals four older laws:

1. **The Passport (Entry into India) Act, 1920**
2. **The Registration of Foreigners Act, 1939**
3. **The Foreigners Act, 1946**
4. **The Immigration (Carriers' Liability) Act, 2000**

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Domain	Specific Provisions & Mechanisms	Impact
Institutional Framework	• **Bureau of Immigration:** Formally establishes the Bureau to oversee visa issuance, regulate entry/ transit/stay, and advise on immigration policies.	• **Centralises authority.** The Centre may delegate functions to States, but retains absolute overriding authority over exemptions and permits.
Entry & Exit Controls	• **Designated Posts:** Entry and exit are permitted only through notified immigration posts (airports, seaports, and land borders) manned by Immigration Officers.	• Grants Immigration Officers the final authority to validate or refuse entry based on national security, sovereignty, or public health grounds.
Digital Reporting & Accountability	• **Accommodation Providers:** Hotels, hostels, and religious institutions must electronically register foreign guests (including OCI cardholders) within 24 hours of arrival/departure. • **Universities:** Must electronically report the admission of foreign students. • **Medical Institutions:** Must report the indoor treatment, births, and deaths of foreigners within 7 days.	• Shifts from manual, paper-based tracking to a real-time, centralised biometric database. • Ensures tight monitoring of individuals overstaying their visas.
Employment & Activities	• **Restricted Sectors:** Requires prior Central Government approval for foreigners seeking employment in sensitive private sectors (defence, space, nuclear energy, and human rights). • **Expression:** Mandates prior approval before a foreigner can produce films or digital content in India.	• Prioritises national security and counters espionage or internal interference, though it raises concerns regarding freedom of expression.
Carriers' Liability	• **General Declarations:** Expands "carriers" to include air, water, and land transport. Operators must submit passenger/crew details prior to departure and cannot leave without clearance.	• Increases accountability for airlines and shipping companies, curbing human trafficking and illegal smuggling.
Exemptions	• **Protected Categories:** Exempts certain groups from standard visa rules, including citizens of Nepal and Bhutan, Tibetan refugees, registered Sri Lankan Tamils, and minority refugees (Hindus, Sikhs, Buddhists, Jains, Parsis, Christians) from Afghanistan, Bangladesh, and Pakistan who entered before Dec 31, 2014.	• Aligns with India's broader refugee policy and the spirit of the Citizenship (Amendment) Act (CAA).
Enforcement & Penalties	• **Arrest Powers:** Empowers police officers (not below the rank of Head Constable) to arrest violators without a warrant. • **Graduated Fines:** Fines range from ₹10,000 to ₹5 lakh. Entering without a valid passport attracts up to 5 years imprisonment. • **Compounding:** Certain offences can be compounded via fines.	• **Faster Resolution:** Compounding offences reduces the judicial burden. However, lower fines apply to certain refugee and monk groups, showing humanitarian leniency.

Citizenship is the connective tissue between the individual and the Constitution. While India's foundational ethos of single citizenship and secularism ensures a unifying identity across a diverse subcontinent, the evolving statutory framework from the 1955 Act to the CAA 2019- reflects the complex socio-political realities of illegal immigration, historical borders, and demographic anxieties. The ultimate touchstone for these evolving laws remains the delicate balance between sovereign security and constitutional morality under Article 14.

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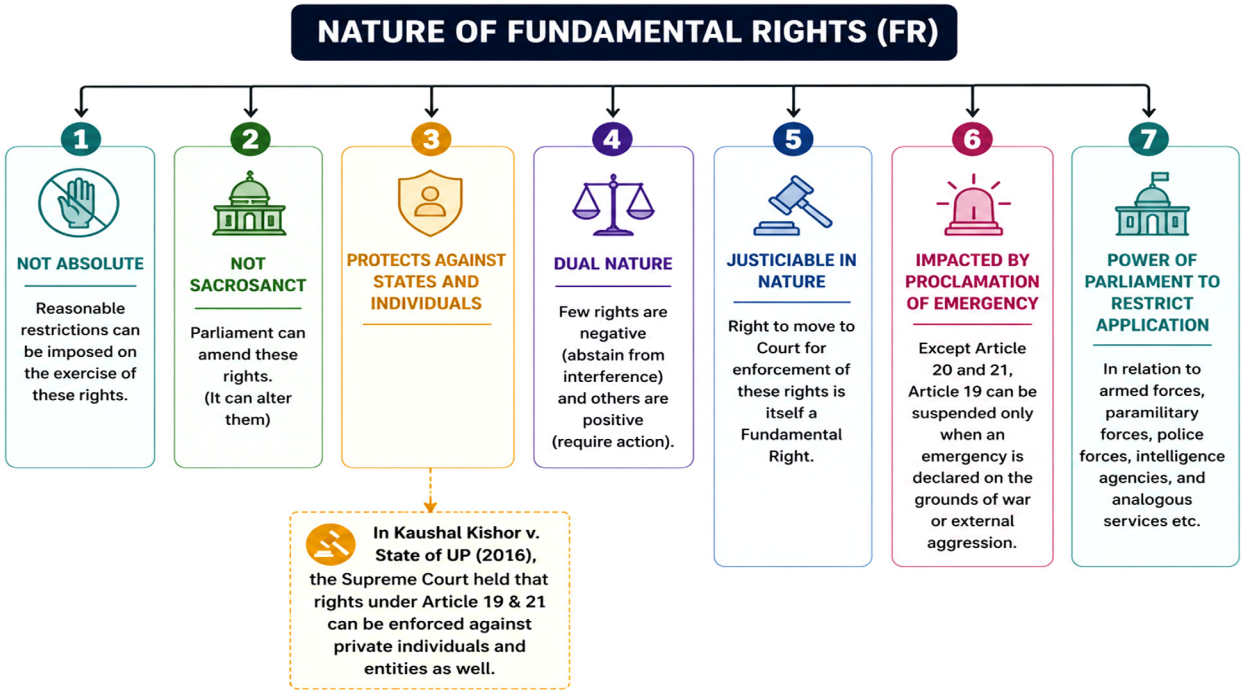
5 Fundamental Rights

Enshrined in Part III (Articles 12-35) of the Constitution and often referred to as the 'Magna Carta of India', Fundamental Rights serve as the bedrock of Indian democracy. They act as a vital shield against State encroachment on individual liberty, establishing a "government of laws and not of men" to ensure the triumph of political democracy over authoritarian rule.



UPSC Mains PYQs

1. Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the constitution. Explain. In this reference discuss the law relating to D.N.A. testing of child in the womb to establish its paternity. **[2024]**
2. Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws. **(2023)**
3. Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment. **(2022)**
4. Examine the scope of Fundamental Rights in the light of the latest judgement of the Supreme Court on Right to Privacy. **(2017)**
5. Does the right to clean environment entail legal regulation on burning crackers during Diwali? Discuss in the light of Article 21 of Indian Constitution and judgements of the apex in this regard. **(2015)**
6. What do you understand about the concept "freedom of speech and expression"? Does it cover hate speech also? Why do the films in India stand on a slightly different plane from other forms of expression? Discuss. **(2014)**
7. Discuss-Section 66A of IT Act, with reference to its alleged violation of Article 19 of the Constitution. **(2013)**

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5.1 Foundational Articles

- **Article 12 (Definition of State)**: FRs are primarily available against the 'State'.
  - Article 12 defines the State broadly to include the Union and State governments, Parliament, State Legislatures, all local authorities (municipalities, panchayats), and statutory/non-statutory authorities (LIC, ONGC, SAIL, etc.).
  - The Supreme Court has ruled that even a private body working as an instrument of the State falls under Article 12.
- **Article 13 (Laws Inconsistent with FRs):** This article explicitly provides for the **Doctrine of Judicial Review.**
  - It declares that all laws that are inconsistent with or in derogation of any of the fundamental rights shall be void.

Key Judicial Doctrines Governing the Constitutional Validity of Laws

Judicial Doctrine	Description	Example
Doctrine of Eclipse	• States that a pre-constitutional law that is inconsistent with Fundamental Rights is not completely dead but rather becomes dormant or "eclipsed" by the Constitution. • It can regain validity automatically (without needing to be re-enacted) if a subsequent constitutional amendment removes the inconsistency.	• **Bhikaji Narain Dhakras v. State of M.P.:** A state law authorising a government motor transport monopoly was "eclipsed" by the right to practice any profession **(Article 19(1)(g))**. • It automatically revived when the 1st Constitutional Amendment later allowed State monopolies.
Doctrine of Severability	• Dictates that if a law enacted by the legislature violates the Constitution (e.g., Fundamental Rights), the courts will not strike down the entire act. • Only the unconstitutional, offending provisions are declared void, while the rest of the law remains valid—provided the valid and invalid parts can be logically separated and function independently.	• **A.K. Gopalan v. State of Madras:** The Supreme Court struck down **Section 14 of the Preventive Detention Act** for violating fundamental rights but upheld the rest of the Act because the invalid section could be cleanly separated from the whole.
Doctrine of Basic Structure	• Acts as a fundamental limitation on Parliament's amending power. It holds that while the legislature can amend the Constitution, it cannot alter, destroy, or modify its "basic structure" or core essential features (such as democracy, secularism, the rule of law, and judicial review).	• **Kesavananda Bharati v. State of Kerala:** The landmark case that established this doctrine. • It ruled that Parliament has broad powers to amend the Constitution, including Fundamental Rights, but cannot rewrite its core identity or framework.

5.2 Rights

Fundamental Rights	Description
Article 14 (Equality before Law & Equal Protection of Laws) **Exceptions:** **Article 31-C:** Laws implementing DPSP 39(b) & (c). **Article 361:** Immunity for the President and Governors. **Article 361-A:** Protection for true media reports of legislative proceedings. **Article 105 & 194:** Privileges and immunities for MPs and MLAs. **Foreign Dignitaries:** Immunity for foreign rulers, ambassadors, and diplomats. **International Bodies:** Diplomatic immunity for the UNO and its agencies.	• **Equality before Law (British concept):** Absence of special privileges for anyone; no one is above the law. • **Equal Protection of Laws (American concept):** Equals should be treated equally. Article 14 prohibits class legislation but permits reasonable classification. (must be based on "intelligible differentia" and have a "rational nexus" to the objective).

Point of Difference	Equality Before Law	Equal Protection of Law
1. Origin	Derived from the British tradition.	Derived from the American Constitution.
2. Core Principle	• All citizens are equal in the eyes of the law.	The same law will be applied to all people equally across society.
3. Nature of Concept	Negative orientation: It restricts the State from making any discrimination between two citizens.	Positive orientation: It implies the State should treat people in similar circumstances similarly (and differently from those in different circumstances).
4. Key Features	• Absence of special privileges for any individual. • Equal subjection of all classes to the ordinary law of the land administered by ordinary law courts. • No person is above the law, regardless of status (rich/poor, official/non-official).	• Equality of treatment under equal circumstances, regarding both privileges conferred and liabilities imposed. • "Like should be treated alike" without discrimination. • Note: The Supreme Court states Article 14 does not apply where equals and unequals are treated differently.

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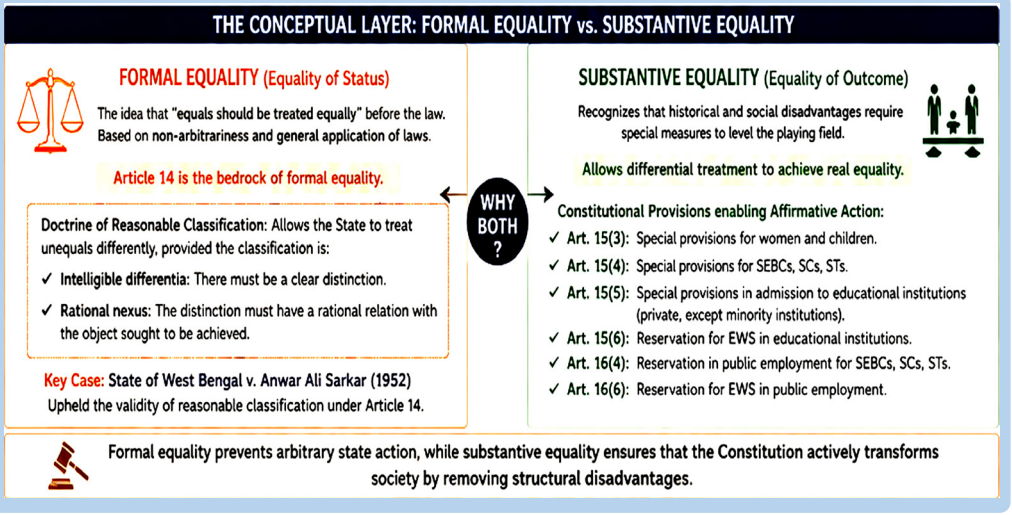

Article 15 (Prohibition of Discrimination)

- The State shall not discriminate against any citizen on grounds *only* of religion, race, caste, sex, or place of birth.
- ***Exceptions:*** Special provisions for women, children, SCs, STs, and Socially and Educationally Backward Classes (SEBCs), including the 103rd Amendment (EWS reservation).
- In a **landmark 6:1 majority verdict** (State of Punjab v. Davinder Singh 2024), the Supreme Court ruled that states have the Constitutional power to sub-classify Scheduled Castes (SCs) and Scheduled Tribes (STs) to grant separate quotas for the most backward within these categories.

Reservation

☆ Constitutional provisions related to reservation

Article 15(4)	Article 15(6) and 16(6)	Article 16(4), 16 (4A) and 16(4B)	Article 46	Article 243D	Article 330
Reservation in educational institution for Socially and Educationally Backward Classes (SEBCs), SCs and STs	10% reservation for EWS for admission in educational institutions and public employment. (103rd Amendment Act 2019)	Reservation in posts and services	Promotion of educational and economic interests of SC, ST and other weaker sections of society	Reservation of Seats for SC and ST in Panchayats	Reservation of seats for SC and ST in House of the People

☆ Important Judgements of SC related to Reservation in India

Indra Sawhney v Union of India, 1992	M. Nagaraj v. Union of India, 2006	Jarnail Singh v Lachhmi Narain Gupta, 2018	Janhit Abhiyan v Union of India, 2022	State of Punjab & Others v Davinder Singh & Others case, 2024
• Reservation under Article 16(4) should in no case exceed 50%. • There should be no reservation in promotions. • Exclusion of creamy layer from OBCs.	• Laid down 3 conditions to be followed for implementing reservation in promotion i.e. State must show the o Quantifiable data on the backwardness of SCs/STs. o Facts about their inadequate representation in public employment. o Reservations are in the interest of administrative efficiency.	Reservation in promotions does not require state to collect quantifiable data on backwardness of SCs and STs.	SC upheld 103rd Constitution Amendment Act which provided for EWS reservation, based on economic criteria.	Supreme Court allowed sub-categorisation of Schedule Castes for the purpose of reservation within SCs.

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RESERVATION FOR OBCs IN EDUCATIONAL INSTITUTIONS

1951 – Constitutional Foundation:
The First Constitutional Amendment inserted **Articles 15(4)**, empowering the State to make special provisions for socially and educationally backward classes.

1979 – Mandal Commission:
The Second Backward Classes Commission identified OBCs and recommended **27% reservation** in Central Government services and public sector undertakings.

1990 – Implementation of Mandal Recommendations:
The Government of India introduced **27% reservation** for OBCs in Central Government employment through an Office Memorandum.

1992 – Indra Sawhney Judgment:
The Supreme Court upheld OBC reservation, introduced the **Creamy Layer exclusion**, and laid down the **50% ceiling** on reservations.

2005–06 – Reservation in Higher Education:
The **93rd Constitutional Amendment (Article 15(5))** enabled reservation in educational institutions, followed by the Central Educational Institutions (Reservation in Admission) Act, 2006, providing **27% reservation** for OBCs in Central educational institutions.

2008 – Ashoka Kumar Thakur Case:
The Supreme Court upheld OBC reservation in higher educational institutions while reaffirming the exclusion of the **Creamy Layer**.

2019–2024 – Recent Developments:
The **103rd** Constitutional Amendment introduced **EWS reservation** without affecting the OBC quota; subsequently, **Janhit Abhiyan (2022)** upheld EWS reservation, while **Davinder Singh (2024)** endorsed **sub-classification** within reserved categories for equitable distribution of benefits.

The Court overturned a previous 2004 judgment **(E.V. Chinnaiah)** and ruled that state governments are permitted to **sub-classify SCs and STs** to ensure that the most marginalized groups within those categories get reservation benefits.

Constitutional Perspective on Gender Justice in India

The Preamble: Sets the philosophical bedrock by securing to all citizens **Justice** (social, economic, and political), **Equality** of status and opportunity, and promoting **Dignity** of the individual.

Fundamental Rights (The Enforceable Guarantees)

- **Article 14:** Guarantees equality before the law and equal protection of laws to all persons.
- **Article 15(1) & (2):** Prohibits discrimination by the State solely on the grounds of religion, race, caste, sex, or place of birth.
- **Article 15(3):** Empowers the State to make special provisions (affirmative action) for women and children, recognising historical disadvantages.
- **Article 16:** Guarantees equality of opportunity in matters of public employment, prohibiting discrimination based on sex.
- **Article 21:** The Right to Life and Personal Liberty, which has been expansively interpreted by the judiciary to include the right to live with human dignity, bodily autonomy, and reproductive choices.

Directive Principles of State Policy (State Obligations)

- **Article 39(a):** Directs the State to ensure that men and women equally have the right to an adequate means of livelihood.
- **Article 39(d):** Mandates equal pay for equal work for both men and women.
- **Article 42:** Instructs the State to make provisions for securing just and humane conditions of work and for maternity relief.

Fundamental Duties

- **Article 51A(e):** Imposes a duty on every citizen to renounce practices derogatory to the dignity of women.

Landmark Judicial Interventions

Area of Intervention	Landmark Judgment	Constitutional Significance & Impact
Workplace Safety & Harassment	Vishaka v. State of Rajasthan (1997)	Filled a legislative void by establishing legally binding guidelines against sexual harassment at the workplace, drawing upon Articles 14, 15, 19, 21, and international conventions (CEDAW).
Employment Equality & Anti-Discrimination	Air India v. Nargesh Meerza (1981)	Struck down discriminatory service rules that mandated termination of air hostesses upon their first pregnancy, ruling it a violation of Article 14 and an affront to human dignity.
Right to Livelihood & Protective Discrimination	Anuj Garg v. Hotel Association of India (2008)	Struck down a law barring women from working on premises serving liquor. The Court ruled that "protective discrimination" cannot be used to restrict women's employment opportunities and autonomy.
Command & Institutional Equality	Secretary, Ministry of Defence v. Babita Puniya (2020)	Directed the government to grant Permanent Commission to women officers in the Army, dismantling gender stereotypes regarding physiological limitations and domestic obligations.

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Dignity & Marital Autonomy	Joseph Shine v. Union of India (2018)	Decriminalised adultery (Section 497 IPC), ruling that the law treated women as the "chattel" of their husbands, thereby violating their right to equality (Art 14) and dignity (Art 21).
Reproductive Rights & Bodily Autonomy	X v. Principal Secretary, Health and Family Welfare (2022)	Granted equal abortion rights to unmarried women under the Medical Termination of Pregnancy (MTP) Act. Crucially, it recognized marital rape solely for the purpose of the MTP Act, upholding a woman's bodily autonomy.
Right to Life & Demographics	Voluntary Health Association of Punjab v. UoI (2013)	Issued strict directions for the effective implementation of the PCPNDT Act to curb the systemic issue of female foeticide and sex-selective abortion.
Adoption Rights, Reproductive and Decisional Autonomy, Maternity Benefits	Hamsaanandini Nanduri v. Union of India (March 2026)	Recognised adoption as an aspect of reproductive and decisional autonomy **under Article 21** and struck down the restriction limiting adoption maternity benefits to children below **three months of age,** thereby **expanding maternity rights for adoptive mothers.**
Right to use menstrual pads	Dr. Jaya Thakur v. GoI and others (2026)	**Menstrual pads** is a matter of bodily dignity and health under **Article 21**, which serves as a necessary prerequisite to fully exercising the **right to education under Article 21A.**

Article 16 (Equality of Opportunity in Public Employment)	• No discrimination in state employment on grounds of religion, race, caste, sex, descent, place of birth, or residence. • ***Exceptions:*** Reservation of appointments or posts for any backward class (Mandal Commission/Indra Sawhney Case) and EWS. ♦ Indra Sawhney v. Union of India (1992) [The Mandal Case] → Upheld the 27% reservation for OBCs but established the **"Creamy Layer"** exclusion. It also capped total reservations at 50% and ruled that reservations cannot be applied in promotions.

Major Constitutional Debates Around Articles 15 & 16

Constitutional Issue & Provisions	Judicial Stance & Current Takeaways
1. Is Reservation a Fundamental Right? • Art 15(4) & 16(4): Special provisions for backward classes. • Art 16(4A): Reservation in promotions.	• Mukesh Kumar (2020) & M. Nagaraj (2006): The Supreme Court explicitly ruled that Articles 16(4) and 16(4A) are enabling provisions. They grant discretion to the State; they do not confer a direct fundamental right, and courts cannot issue a writ of Mandamus directing the State to provide quotas. • Current Status: To implement quotas (especially in promotions), the State must justify it with quantifiable data proving: ① Backwardness, ② Inadequate representation, and ③ Maintenance of administrative efficiency (Art 335).
2. Domicile/Residence-Based Quotas ("Sons of the Soil") • Art 16(2): Prohibits discrimination in public employment based on place of birth or residence. • Art 16(3): Exception allowing Parliament (not state legislatures) to prescribe residence as a condition.	• Pradeep Jain (1984) & Kailash Chand Sharma (2002): The Supreme Court ruled that local or district residence cannot serve as a basis for preferential employment, rendering "sons of the soil" policies unconstitutional. • Current Status: State governments cannot enact laws reserving jobs solely based on domicile. Only Parliament can mandate residence requirements for specific jobs (e.g., Art 371D for Andhra Pradesh & Telangana).
3. Sub-Categorization of SCs and STs • Art 14: Right to Equality (Substantive). • Art 341 & 342: Presidential notification of SC and ST lists.	• State of Punjab v. Davinder Singh (2024): A 7-judge Supreme Court bench overruled the 2005 E.V. Chinnaiah case, ruling that sub-classification within SCs/STs is constitutionally permissible. • Current Status: The Court recognized that SCs and STs are not homogenous and suffer from intra-group disparities. States possess the constitutional competence to sub-classify these groups within their allocated quotas to ensure the "weakest of the weak" receive benefits.

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Effectiveness of Reservation and Sub categorisation

Dimension	Present Status	Challenges / Issues	Way Forward
Effectiveness of Reservation Policy	• Improved educational attainment, income and social mobility of SC/ST/ OBC beneficiaries. • According to AISHE reports, SC enrollment in higher education increased from **46.07 lakh to 69.72 lakh** over a recent decade. • Political reservation has ensured continuous representation since 1950. • Helped break hereditary occupational barriers. • Greatest gains among rural and less-educated SC communities.	• Benefits unevenly distributed across communities. • Reservation alone cannot eliminate structural inequalities in education and employment.	• Continue affirmative action while strengthening education, skilling and livelihood interventions. • **Example:** Over 5.65 crore SC beneficiaries have been supported under the Post-Matric Scholarship scheme, heavily supported by Aadhaar-based Direct Benefit Transfers (DBT)
Intra category stratification	• Elite capture: 25% OBC castes received 97% of benefits (Rohini Commission). • 983 of ~2600 OBC castes received no benefits; 994 castes shared only 2.68%. • Less than 1% OBC groups cornered 50% of benefits. • Similar concentration among SC/ST (basis of Davinder Singh). • 40–50% reserved vacancies remain unfilled in many recruitments.	• Weak creamy-layer enforcement. • Vacancy backlog. • Merit vs affirmative action debate • Demand for proportional reservation after Bihar caste survey. • Political agitations (Jat, Gujjar). • Continuing EWS debate after Janhit Abhiyan.	• Fill backlog vacancies on mission mode. • Strengthen verification of creamy layer. • Evidence-based recalibration using updated caste data. • Focus on school-level inequalities along with reservation.
SC/ST Sub-Categorisation	• E.V. Chinnaiah (2004): SCs treated as homogeneous class. • State of Punjab v. Davinder Singh (2024): 7-judge Bench (6:1) allowed sub-classification based on empirical data. • Court also endorsed applying creamy layer principle to SC/ST (concurring opinion).	• Centre has not implemented creamy layer for SC/ST. • Lack of uniform empirical data. • Risk of political fragmentation and litigation. • Debate whether economic advancement removes caste-based discrimination.	• National empirical database/caste census. • Uniform criteria for sub-classification. • Legislative clarity on creamy layer for SC/ST. • Periodic review of beneficiary groups.
OBC Sub-Categorisation (Rohini Commission)	• Constituted 2017; Report submitted 2023 but not made public • Found extreme concentration of benefits among few OBC communities. • 11 States/UTs already practice OBC sub-categorisation (e.g., Bihar, Tamil Nadu, Karnataka).	• Report remains unimplemented. • Lack of national caste data. • Political sensitivity and vote-bank concerns. • Risk of arbitrary categorisation.	• Publish Rohini Commission Report. • Use scientific socio-economic indicators for categorisation. • Develop a uniform national framework while allowing state flexibility.

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Article 17 (Abolition of Untouchability)	Abolishes untouchability and forbids its practice in any form. It is available against private individuals as well. Enforced via the Protection of Civil Rights Act, 1955.
Article 18 (Abolition of Titles)	Prohibits the State from conferring any title (except military or academic). **Note:** Bharat Ratna, Padma Vibhushan, etc., are not 'titles' within the meaning of Article 18 (Balaji Raghavan case).

Article 19 (Protection of Six Rights)

- Guarantees six freedoms to all citizens:
  - ♦ Freedom of speech and expression (includes press, commercial ads, right to know).
  - ♦ Freedom of assembly (peaceful and without arms).
  - ♦ Freedom to form associations/unions/cooperative societies.
  - ♦ Freedom of movement throughout India.
    - ❑ ***Note:*** **The right to travel *abroad* (external mobility) is not covered here; it is protected under Article 21 (Right to Life and Liberty - *Maneka Gandhi Case*).**
  - ♦ Freedom of residence in any part of India.
  - ♦ Freedom of profession, occupation, trade, or business.
- These are NOT absolute. The State can impose "Reasonable Restrictions" on grounds of sovereignty and integrity of India, security of the state, friendly relations with foreign states, public order, decency, or morality - **Article 19(2)**
- **Hate Speech:** It is **not** protected. It falls under the reasonable restrictions of Article 19(2), specifically "public order," "incitement to an offence," and "friendly relations with foreign states".
- ***Films:*** **Prior censorship is constitutionally valid** for films (unlike print media). *K.A. Abbas v. UoI* upheld the Cinematograph Act, empowering the CBFC to pre-censor movies t**o prevent public disorder.**
- **Amit Sahni v. Delhi Police Commissioner (2020) (Shaheen Bagh Case)**: Upheld the right to protest but established that there is *"no right to protest indefinitely"* in public spaces; it must be balanced with the commuting rights of others.
- **T.K. Rangarajan v. Govt of Tamil Nadu (2003):** Clarified that government employees have no fundamental or statutory right to strike.

Facets of Free Speech under Article 19(1)(a)

Right	Description	Case
Freedom of the Press	Implicitly embedded in the right to free speech; not explicitly stated in the Constitution. It is the freedom of citizens to express themselves through the media.	Discussed in Constituent Assembly (Damodar S. Seth). The Supreme Court has repeatedly affirmed its implicit inclusion (Romesh Thappar v. State of Madras, 1950).
Right to Silence	The negative freedom of speech. The right to express oneself inherently includes the right *not* to be forced to speak or express.	*Bijoe Emmanuel & Ors. v. State of Kerala* (upheld the right to remain respectfully silent during the national anthem).
Right to Information & Know	The right to receive and impart information freely. Essential for an informed citizenry and forms the basis of the RTI Act.	*Union of India v. Association for Democratic Reforms* (Established voters' right to know the antecedents of electoral candidates).
Right to Report & Broadcast	The right to circulate, publish, and broadcast information, including reporting on legislative and court proceedings to ensure transparency.	The Supreme Court has recognised airwaves as public property, making telecasting a facet of free speech.
Commercial Speech	Protection for advertisements and commercial communications that disseminate vital information about products and services to the public.	*Tata Press Ltd. v. MTNL* (Recognised commercial speech as a protected right).
Right Against Pre-censorship	Protection against prior restraint. The government generally cannot prevent the publication of material beforehand.	*Brij Bhushan v. State of Delhi* (struck down pre-censorship as a fatal blow to press freedom).
Right to Demonstrate	Protection for peaceful picketing and demonstrations as a form of expression.	*Note:* This specifically does *not* extend to a fundamental right to strike (Kameshwar Prasad v. State of Bihar (1962)).

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Section 69A (IT Act, 2000): Rights, Restrictions & Case Law

Aspect	Legal Basis	Principle and Judicial Position
Power to Block Content	Section 69A, IT Act, 2000	Empowers the Central Government to block online information in the interests of sovereignty, integrity, security of State, defence, foreign relations and public order.
Procedure & Confidentiality	Blocking Rules, 2009 (Rules 8, 9 & 16)	Provides committee-based review and emergency blocking mechanism; Rule 16 maintains confidentiality of blocking orders.
Freedom of Speech	Articles 19(1)(a) & 19(2)	Digital speech is protected, but may be restricted through reasonable limitations similar to those expressly permitted under Article 19(2).
Equality & Natural Justice	Article 14	Confidential blocking orders raise concerns regarding transparency, fairness and potential arbitrariness, though courts have not invalidated Section 69A on this ground.
Life & Personal Liberty	Article 21	Restrictions affecting digital access must satisfy necessity, proportionality and procedural fairness.
Right to Profession/ Trade	Article 19(1)(g)	Platform restrictions impacting businesses and livelihoods must demonstrate a legitimate purpose and proportionality.
Constitutional Validity of Section 69A	Shreya Singhal v. Union of India (2015)	Supreme Court upheld Section 69A due to narrowly defined grounds, written reasons, review mechanisms and availability of judicial review.
Internet Freedom & Proportionality	Anuradha Bhasin v. Union of India (2020)	Internet-based expression enjoys constitutional protection; restrictions must be necessary, proportionate and subject to judicial scrutiny.
Blocking Orders & Intermediaries	X Corp. (Twitter) v. Union of India (2023)	Karnataka HC largely upheld government blocking orders and recognized the State's authority to direct content/account blocking under Section 69A.
Temporary Platform Restrictions	Telegram Matter (Delhi HC, June 2026)	• The Delhi High Court officially dismissed Telegram FZ LLV's plea against the nationwide restriction. • The Court upheld the suspension, ruling that the Centre strictly adhered to **Section 69A of the IT Act** and employed the **"least restrictive measure"** to secure the integrity of the upcoming NEET-UG 2026 re-examination.

Freedom of Speech vs. State Restrictions

Aspect	Sedition vs. Freedom of Speech	Hate Speech vs. Freedom of Speech
Core Concept	• Penalises words, actions, or visual representations that attempt to bring hatred, contempt, or disaffection against the established government or endanger the nation's sovereignty.	• Penalizes communication that creates divisions in society by belittling, insulting, or inciting violence against specific groups based on religion, race, caste, gender, sexual orientation, etc.
Relation to Fundamental Rights	• Often criticised as a colonial-era restriction on political free speech. Lawful criticism with a view of obtaining change (without inciting violence) does not amount to sedition.	• Runs contrary to the liberating objective of free speech. It threatens constitutional fraternity and the fundamental duty (Article 51A-h) to develop humanism and scientific temper.
Essential Ingredients for Offense	• There must be a clear intention to cause public disorder, disturb peace, or incite violence/armed rebellion against the State.	• Often relies on stereotypes and is used as a tool to gain popularity (e.g., post-election anti-minority incitement). It requires malicious intent to arouse communal disharmony
Primary Legal Provisions (Old vs. New Law)	• **Old:** Section 124A, Indian Penal Code (IPC). • **New:** Section 152, Bharatiya Nyaya Sanhita (BNS), 2023. (The word "sedition" is dropped, but the section penalises acts that endanger the "sovereignty, unity, and integrity of India" or encourage "subversive activities").	• **Old:** Sections 153A, 295A, and 505 of the IPC. • **New:** Sections 196 & 299, Bharatiya Nyaya Sanhita (BNS), 2023 (Penalizes promoting enmity between groups and outraging religious feelings).

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Historical & Foundational Case Laws	1. **Kedar Nath Singh v. State of Bihar (1962):** Put a strict limit on Sedition; only individuals using speech to incite violence and disrupt public order can be penalised. 2. **Shreya Singhal v. Union of India (2015):** Emphasised there must be a "degree of proximity" between the words spoken and the public disorder that takes place.	1. **Dr. Das Rao Deshmukh v. Kamal Kishore (1995): The** SC struck down an election poster saying "teach a lesson to Muslims", ruling it threatened communal feelings and violated India's secular structure. 2. **Pravasi Bhalai Sangathan v. UOI (2014):** SC urged the Law Commission to define hate speech to prevent its delivery under the garb of free speech.
Latest Judgments & Contemporary Context	1. **S.G. Vombatkere v. Union of India (2022):** The Supreme Court put the colonial-era Section 124A (Sedition) in abeyance (suspended its use) due to rampant abuse against critics and journalists. 2. **Vinod Dua v. Union of India (2021):** The SC quashed an FIR filed against journalist Vinod Dua for criticizing the PM on YouTube, upholding journalistic freedom under the Kedar Nath guidelines. 3. **Latest Position (2026):** Pending sedition proceedings may continue with the accused's consent, but the constitutional validity of sedition remains undecided.	1. **Shaheen Abdulla v. Union of India (2022/2023):** In a major ruling to curb rising hate crimes, the Supreme Court directed police across all states to take suo motu (proactive) action to register FIRs against hate speech without waiting for formal complaints, irrespective of the religion of the speaker. 2. **Election Commission Guidelines:** Continuous crackdowns on hate speech used for political mobilization and violence.
Current Challenges	• Despite the suspension of 124A, concerns persist that the new BNS Section 152 uses broad terms like "subversive activities", which critics fear could still be weaponised against legitimate dissenters and journalists.	• It remains a highly profitable political tool. Courts and police constantly struggle with the evidentiary challenge of proving "malicious intent" and drawing the fine line between offensive advocacy and illegal incitement.

Navigating the Boundaries of Article 19

Aspect of Article 19	Provisions	Judicial Pronouncements	Latest Updates
Sedition	**Sec 124A IPC:** Penalised for attempting to bring hatred/ disaffection against Government Requires intent to cause public disorder.	**Kedarnath Singh (1962):** Restricted sedition only to acts inciting violence. **Shreya Singhal:** Required proximity between words & disorder. **Vinod Dua:** Upheld journalistic freedom against arbitrary FIRs.	**Updated Law:** The IPC has been replaced by the Bharatiya Nyaya Sanhita (BNS) 2023. Section 124A is gone, but a new provision (Section 152) penalises acts endangering the sovereignty, unity, and integrity of India.
Hate Speech	Belittles specific groups; contrary to Art 19 & Art 51A(h) (scientific temper). Penalised under various criminal laws.	**Dr. Das Rao Deshmukh:** Seeking votes by arousing communal feelings is offensive, illegal, and violates the secular structure.	**Current Trend:** Remains heavily linked to political polarization online. Tackled under new BNS provisions regarding communal harmony and strict Election Commission monitoring.
Contempt of Court	**Contempt of Courts Act, 1971:** Civil (wilful disobedience) vs. Criminal (scandalizing the court). 2006 Amendment: Made "truth in public interest" a valid defence.	**Het Ram Beniwal (2017):** Held that contempt powers must be exercised sparingly and not in a routine manner.	**Current Trend:** The judiciary continues to balance the necessity of protecting institutional dignity against the right to fair criticism of judgments.

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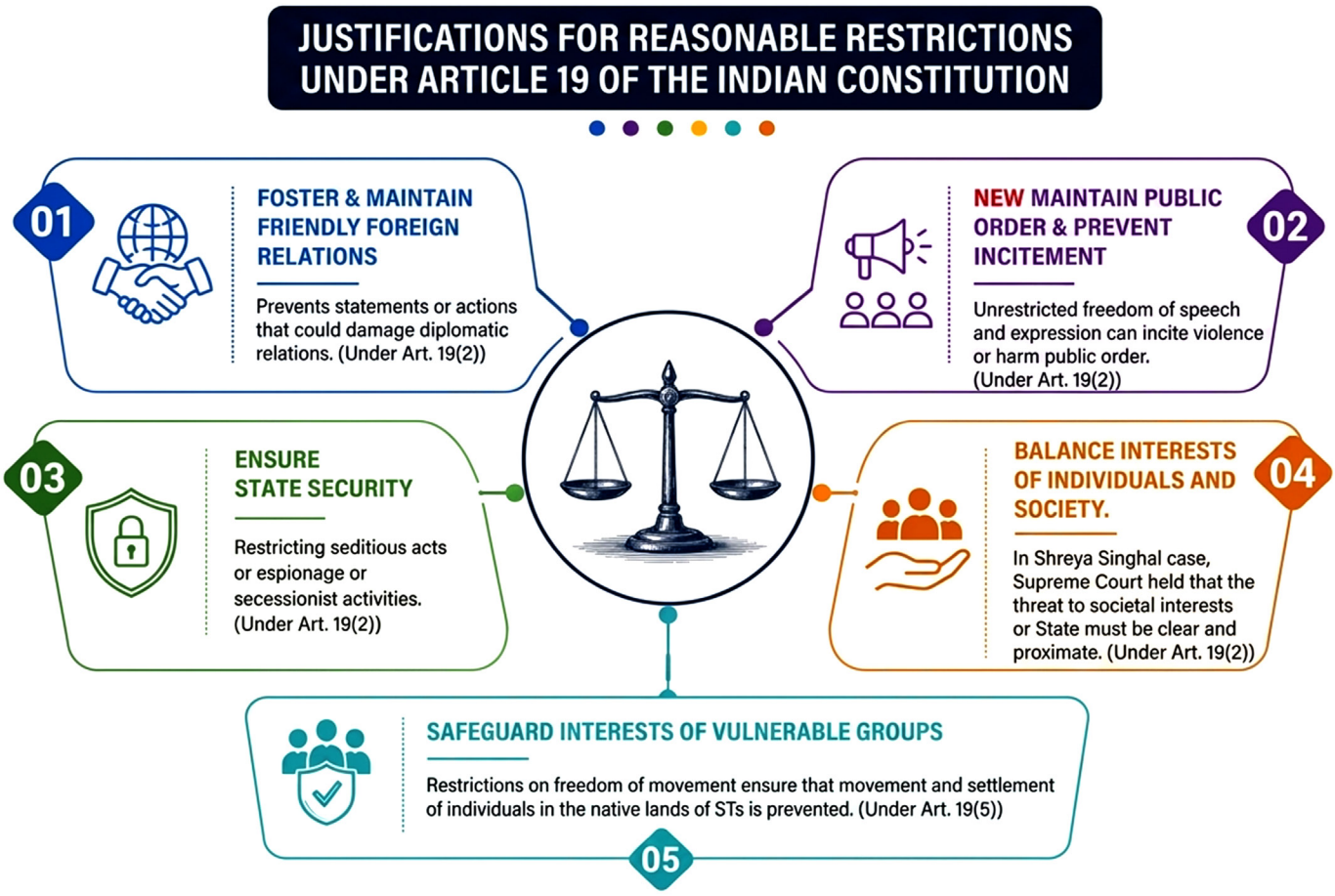
Fake News & Disinformation	Addressed historically via the IT Act (2008), Disaster Management Act (Sec. 54), and IPC (Sec. 505). Often used as a political tool or to target minorities.	**Alakh Alok Srivastava (2020):** SC recognised the problem of 'infodemics' and directed the government to curb the menace of fake news.	Under the IT Amendment Rules 2023, the Govt notified a Fact Check Unit (FCU). However, in Sept 2024, the Bombay High Court struck down the FCU as unconstitutional for violating free speech. The SC is currently hearing the appeal.
Censorship of Cinema	Films undergo certification. The proposed 2021 Bill sought to give the govt. "revisionary powers" to re-examine CBFC-cleared films, triggering self-censorship fears.	**K.M. Shankarappa (2000):** Held that the executive cannot override a CBFC clearance, as it violates the separation of powers.	The Cinematograph (Amendment) Act 2023 was passed. It introduced UA age categories (7+, 13+, 16+), granted perpetual certification, and removed the government's revisionary powers to ensure CBFC autonomy.
IT Rules 2021 (Social Media & OTT)	Mandates Grievance Redressal Officers (GRO), OTT self-classification, and "traceability" (identifying the first originator of a message).	**Tehseen S. Poonawalla (2018):** Directed the govt to stop the dissemination of explosive mob-lynching videos on social media.	**Ongoing Friction:** WhatsApp and others challenged the traceability clause in the Delhi High Court, arguing it breaks end-to-end encryption and violates user privacy.
Right to Internet	A positive right to access the internet and a medium to express oneself, subject to Art 19(2) and 19(6) restrictions.	**Anuradha Bhasin:** Restrictions must pass the Puttaswamy Proportionality Test: legitimate aim, rational connection, necessity, and procedural safeguards.	According to an Access Now report, India recorded 65 internet shutdowns in 2025, the highest among democracies, primarily deployed during protests and communal violence.



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ARTICLES	REASONABLE RESTRICTIONS
19(1)(a) - Freedom of Speech & Expression	In the interests of the **sovereignty and integrity of India**, the **security of the State**, friendly relations with Foreign States, **public order**, **decency or morality** or in relation to **contempt of court**, **defamation** or **incitement to an offence**.
19(1)(b) - To assemble peacefully	In the interests of the **sovereignty and integrity** of India or **public order**.
19(1)(c) - To form associations	In the interests of the **sovereignty and integrity** of India or **public order** or **morality**.
19(1)(d) & (e) - To move freely and to reside and settle	In the interests of the **general public** or for the protection of the interests of any **Scheduled Tribe**.
19(1)(g) - To practice any profession, trade etc	In the interests of the **general public** (*the requirement of professional or technical qualifications + trade, business, industry or service by the State*)

Article 20 (Protection in Respect of Conviction for Offences)

- **Scope** → Protects against arbitrary and excessive punishment in criminal matters • Available to Citizens, Foreigners and Legal Entities → Applicable only in criminal proceedings.
- **Article 20(1): Ex-Post-Facto Laws** → No conviction for an act not an offence when committed → No greater punishment than prescribed at the time of offence → Prohibits retrospective criminal laws → Does not prohibit retrospective civil or taxation laws → Applies to conviction and punishment, not procedure.
- **Exceptions to Article 20(1)** → Does not apply to Preventive Detention → Demand for Security → Retrospective Vodafone taxation valid as Article 20(1) applies only to criminal laws.
- **Article 20(2): Double Jeopardy** → No person shall be prosecuted and punished for the same offence more than once → Protects against repeated prosecution and punishment for the same offence.
  - **Scope of Double Jeopardy** → Applicable only after prosecution and punishment by a Court/ Judicial Tribunal → Not applicable to Departmental Proceedings or Administrative Inquiries → Section 300 CrPC (BNSS equivalent) bars retrial on same facts.
- **Article 20(3): Self-Incrimination** → No accused shall be compelled to be a witness against himself • Recognizes Right to Remain Silent • Applies only to accused persons in criminal proceedings • Covers oral and documentary evidence.
- **Exceptions to Self-Incrimination** → Does not cover production of material objects • Thumb impressions • Blood samples/medical specimens • Specimen signatures/handwriting • Compulsory exhibition of body.

BAIL

Conditional release of an accused **before/during trial.**

TYPES OF BAIL

- **Regular Bail** – Granted during the trial.
- **Anticipatory Bail** – Granted before arrest to prevent unnecessary detention.
- **Interim Bail** – Temporary relief granted pending the final decision.

PAROLE

Conditional release of **convicted prisoner** with **suspension of sentence.**

- For family emergency, medical or social reasons.
- Not a matter of right.

FURLOUGH

Temporary release to maintain **family/ social ties** and **rehabilitation.**

- Granted periodically.
- Generally treated as a **legal right** subject to prison rules.

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Article 21 (Protection of Life and Personal Liberty)

The most organic and expansive right. **"No person shall be deprived of his life or personal liberty except according to procedure established by law."**

- **Evolution:** Post-Maneka Gandhi Case (1978), the Supreme Court ruled that the procedure must be **"right, just and fair"**, effectively bringing in the American concept of **"Due Process of Law"**.
  - It encompasses the right to live with human dignity, the right to a clean environment, the right to privacy (Puttaswamy case), the right to free legal aid, etc.

Parameter	Procedure Established by Law	Due Process of Law
Origin	Derived from the **British** legal tradition.	Rooted in the **American** judicial system.
Scope of Judicial Review	**Narrow:** The court only checks if the law was properly enacted by the legislature and if the prescribed procedure was followed.	**Broad:** The court checks procedural correctness *and* the substantive fairness of the law itself.
Focus	Does not question the intent, fairness, or morality of the law. (If the procedure is correct, a harsh law is still valid).	Allows the judiciary to strike down laws that are unfair, unreasonable, or unjust.

- **Article 21A (Right to Education):** Added by the 86th Constitutional Amendment (2002). The state shall provide free and compulsory education to all children aged 6 to 14 years.
- **Khap Panchayats and honour killings:** Extra-constitutional bodies issuing diktats (like honour killings) that violate Article 21 (Right to Life and Liberty).
  - ***Legislative:*** No central anti-honour killing law yet, but prosecuted under BNS Sections 49 & 55 (Murder, Abetment). States like Rajasthan passed the *Prohibition of Interference with the Freedom of Matrimonial Alliances Bill (2019)*.
  - ***Executive:*** Establishment of police "safe houses" and protection cells for inter-caste/runaway couples.
  - ***Judiciary****: Shakti Vahini v. UoI (2018).* The SC ruled that any attempt by Khap Panchayats to prevent consenting adults from marrying is absolutely illegal. It laid down preventive, remedial, and punitive guidelines.
- **Clean Environment vs. Cracker Burning:** Article 21 (Right to a clean environment) vs. Article 25 (Freedom of Religion/ Customs) and Article 19(1)(g) (Right to trade for cracker manufacturers).
  - Article 21 takes precedence. The right to breathe clean air overrides the absolute right to trade or burst crackers.
  - ***Arjun Gopal v. UoI (2018)*** → The SC heavily restricted fireworks, banning barium salts and allowing only "green crackers" within specific timeframes. Recent NGT/SC rulings continuously uphold total bans in areas with a "poor" or worse Air Quality Index (AQI).

The Expanding Horizons of Article 21

Following *Maneka Gandhi*, the Supreme Court treated Article 21 as a constitutional umbrella, recognising "penumbral rights" (implied rights) essential for a progressive society.

The Progressive Need	The Judicial Expansion under Article 21	Landmark Case Law
Socio-Economic Dignity	Right to Livelihood and Shelter. The Court recognised that "life" means more than mere animal existence	**Olga Tellis v. BMC (1985)** **Francis Coralie Mullin (1981)**
Environmental Justice	Right to a Clean Environment. Recognizing that industrialization must not compromise human survival or health.	**M.C. Mehta Cases** **Subhash Kumar v. State of Bihar (1991)**
Intellectual & Social Mobility	Right to Free and Compulsory Education (later formalized by the 86th Amendment as Article 21A).	**Unni Krishnan v. State of A.P. (1993)**
Technological & Informational Era	**Right to Privacy.** Acknowledging the digital age, bodily autonomy, and informational self-determination.	**K.S. Puttaswamy v. Union of India (2017)**
Bodily Autonomy & Progressive Morals	The Right to choose one's sexual identity and the decriminalization of consensual same-sex relations.	**Navtej Singh Johar (2018)**
Dignity in Death	The Right to Die with Dignity, legally recognizing "living wills" and passive euthanasia for terminally ill patients.	**Common Cause v. Union of India (2018)**
Emergency medical care	Right to trauma and emergency medical care (2026) - SC recognised timely access to trauma and emergency medical care as fundamental right.	**SaveLIFE Foundation and Anr. vs Union of India and Ors. (2026)**

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Article 21 now encompasses not just the right to live, but the right to travel safely, making road safety a constitutional obligation rather than a policy choice.

- **Sexuality:** It denotes an individual's inherent orientation regarding sexual preferences and intimate self-expression. It transcends mere biological acts, manifesting broadly through non-sexual external identifiers such as lifestyle, clothing, and overall disposition.
- **Gender:** In contrast, gender is a socio-cultural construct. It represents the normative roles, behaviours, and expectations structurally imposed by society, traditionally conditioning individuals into rigid binary frameworks of masculinity and femininity.

Informational Privacy	• It is concerned with data protection, data encryption, data security, secrecy, anonymity and adherence to fair information practice standards are informational privacy concerns. • Example: Employers reading employees' personal emails without legitimate business purpose.
Physical Privacy	• Solitude or seclusion, and bodily integrity are essential to physical privacy. • It is concerned with complaints about unlawful search and seizure, peeping toms, trespass, and 'ambush' journalism. • Example: Roadside sobriety testing
Decisional Privacy	• It includes concerns about rights of individuals, married couples, and families to direct their own lives. • Example: LGBTQIA+ Rights
Proprietary Privacy	• It entails seizing otherwise confidential information and personal identifiers. • Example: Identity or financial data theft

The Evolution of Privacy as a Fundamental Right (Article 21)

Although a single, universally accepted legal definition of privacy does not exist, it fundamentally refers to the ability to shield oneself from unwanted intrusion. It encompasses the various ways individuals keep their personal information, property, and decision-making processes inaccessible to others.

The core characteristics of this right are:

- **An Inherent Human Right:** It is a natural right that belongs to every individual simply by virtue of their existence, not a privilege granted by the state.
- **A Constitutional Guarantee:** In the Indian context, it is recognized as a Fundamental Right. It intrinsically flows from the guarantee of "life and personal liberty" enshrined under Article 21 of the Constitution.
- **A Dynamic Concept:** Because society, technology, and personal boundaries are constantly evolving, the exact meaning and scope of privacy are not rigidly fixed. Instead, the courts determine its application on a case-by-case basis.

Year & Landmark Case	Significance
1954: M.P. Sharma v. Satish Chandra	**Rejection of Privacy:** An 8-judge bench held that the Constitution's drafters did not intend to include the Right to Privacy as a fundamental right. Search and seizure operations were upheld as valid.
1962: Kharak Singh v. State of UP	**Partial Recognition:** The SC invalidated nightly domiciliary visits by police as an "unauthorised intrusion into a person's home". However, the majority maintained that the Right to Privacy was *not* explicitly guaranteed under Article 21.
1972: R.M. Malkani v. State of Maharashtra	**Protection of Communication:** The Supreme Court ruled that telephonic conversations are inherently private, establishing that unauthorised phone tapping constitutes a violation of privacy.
1975: Gobind v. State of M.P	**Case-by-Case Evolution:** The Court acknowledged privacy claims but stated they must be developed case-by-case. It held that privacy could only be infringed upon for "superior reasons" (compelling state interest).
1978: Maneka Gandhi v. Union of India	**The Due Process Shift:** The SC Expanded Article 21 to mandate that any law or procedure interfering with personal liberty (and privacy) must be **"just, fair, and reasonable"** and not arbitrary or oppressive.

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1983: Harvinder Kaur v. Harmander Singh	**Gender & Domestic Privacy:** Delhi HC upheld conjugal rights by ruling that their core purpose is marital companionship, not forced sexual intimacy. It held that expanding the right to privacy into the domestic sphere would destroy the sanctity and stability of marriage.
2011-12: Right to Privacy Bill & Justice A.P. Shah Committee	**Legislative Groundwork:** The government initiated drafting privacy legislation. The A.P. Shah Committee laid foundational principles emphasising user consent and institutional accountability.
2017: Justice K.S. Puttaswamy v. Union of India	**The Watershed Moment:** A 9-judge Constitutional bench unanimously declared the **Right to Privacy as a fundamental right** intrinsic to Life and Personal Liberty under Article 21, officially overruling the *M.P. Sharma* and *Kharak Singh judgements.*
2018: Justice B.N. Srikrishna Committee	**Data Protection Framework:** Formed post-*Puttaswamy* to draft a robust data protection framework, laying the groundwork for India's future data privacy laws.
2023: Digital Personal Data Protection (DPDP) Act	**Current Statutory Reality:** Enacted to govern the processing of digital personal data, balancing an individual's right to protect their data with the state's lawful need to process it.

How has the Supreme Court interpreted Article 21 to operationalise the 'Right to Die with Dignity' and Passive Euthanasia in India?

Dimension	Judicial Pronouncements, Principles & Details
The Constitutional Premise	**Article 21:** The "Right to Life" inherently encompasses the "Right to Die with Dignity." • **Common Cause Case (2018/2023):** A Constitution Bench legally recognised passive euthanasia and validated "Living Wills" (Advance Medical Directives), with guidelines simplified in 2023 for better accessibility.
Recent Landmark Application	**Harish Rana v. Union of India (2026):** Marked the first time the SC gave the green signal to apply the complete Common Cause guidelines. • Allowed the withdrawal of life support for a patient in a permanent vegetative state (PVS) for over a decade.
The Litmus Test of Article 21	The core legal question is not whether death is in the patient's best interest, but whether it is in their "best interest" to have their life artificially prolonged by technological means when recovery is impossible.
The "Best Interest" Principle	• There is no straight-jacket formula. It demands a holistic assessment. • Must include medical factors (chances of recovery) and non-medical factors (the patient's previously expressed values, beliefs, and what they would have chosen if mentally competent).
Right to Palliative Care	**Principle of Non-Abandonment:** Withdrawing treatment does not mean abandoning the patient. • The withdrawal must be accompanied by a clear, humane, and step-by-step End of Life (EOL) palliative care plan to minimise suffering.
Active vs. Passive Euthanasia	**Active Euthanasia (Impermissible):** A positive, overt act to cause death (e.g., lethal injection). • **Passive Euthanasia (Permissible):** The legal halting/withdrawal of medical treatment or life support, allowing the patient to succumb naturally to the underlying illness.

End-of-Life Legalities (India vs. Global)

End-of-Life Paradigm	Indian Status (Art. 21)	Global Regulatory Frameworks & Examples
Active Euthanasia: • A positive, overt act by a medical professional intended to cause a patient's death (e.g., administering a lethal injection) to relieve suffering.	**Impermissible & Illegal.** • Treated as a serious criminal offense under Indian law (equivalent to culpable homicide or murder). • The Supreme Court has repeatedly affirmed that Article 21's Right to Life does not encompass the right to be killed by a positive act.	**Legal in a minority of nations under strict conditions:** • **Netherlands & Belgium:** Pioneers (2002). Requires proof of "unbearable suffering with no prospect of improvement" and strict medical consensus. • **Canada**: Legalised in 2016 as MAID (Medical Assistance in Dying) for eligible adults. • Others: Luxembourg, Spain, Colombia, New Zealand.

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Passive Euthanasia: • The legal halting or withdrawal of medical treatment, life support, or **Clinically Assisted Nutrition and Hydration (CANH)**, allowing natural death from the underlying illness.	**Permissible & Regulated.** • Recognised as an intrinsic part of the "Right to Die with Dignity" under Article 21 (Common Cause 2018). • **Framework:** Regulated through **Advance Medical Directives (Living Wills)**. If no will exists, it requires strict approval by a Primary and Secondary Medical Board (Harish Rana 2026).	**Widely accepted globally:** • **USA & UK:** Firmly rooted in the common law principle of "Patient Autonomy" and the fundamental right to refuse futile medical treatment. • **Germany:** Permitted if it perfectly aligns with the patient's stated or presumed will.
Physician-Assisted Suicide (PAS): A doctor provides the lethal means or knowledge (e.g., a prescription), but the patient self-administers the life-ending medication.	**Impermissible & Illegal.** • Treated strictly as "abetment of suicide" under the penal code. • **In Gian Kaur (1996)**, the Supreme Court explicitly held that the "Right to Life" inherently rejects the right to commit suicide.	**Legal in specific jurisdictions:** • **Switzerland:** Distinct framework allowing PAS (even for foreigners, via clinics like Dignitas), provided the assister has "no selfish motives". Active euthanasia remains illegal. • **USA:** Legal in 10+ states (e.g., Oregon's Death with Dignity Act), where doctors prescribe but patients must self-administer.

Article 21 & Environmental Jurisprudence

Landmark Case	Supreme Court Rulings	Analysis
Genesis of Environmental Rights (M.C. Mehta, 1986)	Read the "Right to live in a healthy environment" intrinsically into Article 21 (Protection of Life and Personal Liberty).	Serves as the foundational precedent for all subsequent environmental and climate litigations in India.
The New "Climate Right" & Climate Inequality (M.K. Ranjitsinh v Union of India, 2024)	For the first time, recognised a distinct "Right against the adverse effects of climate change." • Derived from a combined reading of **Articles 14, 21, 48A (DPSP), and 51A(g)** (Fundamental Duty). • Acknowledged that indigenous/forest communities suffer disproportionately from climate impacts compared to urban populations.	• **The Paradox:** The Court pitted this new climate right (achieved via green energy) against biodiversity. It allowed overhead power lines through the habitat of the critically endangered Great Indian Bustard (GIB). • Highlighted a severe legislative vacuum for an umbrella climate change law.
Biosafety & Precautionary Principle (Gene Campaign v Union of India, 2024)	**Justice Nagarathna's view:** Invoked the Precautionary Principle and Intergenerational Equity against the release of GM Mustard (DMH-11). • Directed MoEFCC to prove the crop is not carcinogenic and ordered national policy on GM crops.	• **Development vs. Precaution:** The contrasting split-verdict opinion favoured a "scientific temper" developmental approach, leaving GM crop regulations uncertain. • Bypassed federalism, as states weren't consulted despite agriculture being a State subject.
Right to Clean Air & Water (Continuing Mandamus) (M.C. Mehta & Ashok Kumar Sinha cases)	• **Air:** SC actively monitored GRAP stages and Solid Waste Management in **Delhi-NCR (AQI 1500+)**, threatening officials with contempt. • **Water:** Ordered the removal of illegal encroachments and stopped plastic waste dumping in the Ganga to protect aquatic/human life.	• **Implementation Rhetoric:** While showing activism here, the SC simultaneously stayed an NGT order that would have criminally prosecuted officials for dumping untreated sewage in the Ganga, showing inconsistency.

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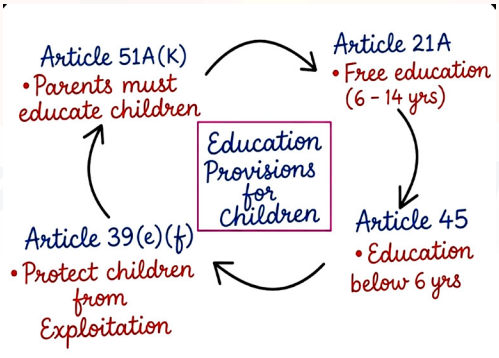
Forest Rights & Cultural Survival (Orans of Rajasthan & Ashok Kumar Sharma, 2024)	**Deemed Forests:** SC ordered the notification of **Rajasthan's Orans (sacred groves) as 'deemed forests'.** • Ordered states to stick to the broad dictionary definition of forests pending the challenge to the FCA Amendment 2023. • In **Naveen Solanki case (2026)** - SC brought clarity on deemed forests - ruled that land can not be retroactively classified as a deemed forest simply because vegetation grew on it over time.	• **A rare example of empathetic,** community-centric jurisprudence that counters the purely human-focused approach to development, protecting the **Article 21** rights of indigenous tribes to their culture and habitat.
Urbanization vs. Environmental Safety (State of H.P. v Yogendra Mohan Sengupta, 2024)	The Supreme Court approved a massive development plan to urbanise **Shimla by 2041**, lifting multiple stays previously placed by the **NGT.**	**Development Trumps Environment:** Critics argue this ruling compromises Article 21, as it ignores that 90% of Shimla is built on risky slopes prone to landslides, favouring urban expansion over ecological carrying capacity.
Polluter Pay Principle (Rhythm County v. Satish Sanjay Hegde, 2025)	SC strongly upheld the expansive, plenary powers of the NGT to levy massive fiscal punishments.	**The** judgement reaffirmed that fines must be punitively proportionate to the financial scale of the industrial project to act as an actual deterrent against illegal environmental damage.

Article 21A	• Mandated that "The State shall provide free and compulsory education to all children of the ages of six to fourteen years in such manner as the State may, by law, determine." • **Amended Article 45 (DPSP):** Shifted the focus of this directive to Early Childhood Care and Education (ECCE) for all children until they complete the age of 6 years. • **Added Article 51A(k) (Fundamental Duty):** Made it the duty of every parent or guardian to provide opportunities for education to their child or ward between the ages of 6 and 14. • **Article 21A** is an enabling provision; it required legislation to define *how* this right would be executed. This led to the enactment of the **Right of Children to Free and Compulsory Education (RTE) Act, 2009** (effective April 1, 2010).



Article 22 (Protection against Arrest and Detention)

Provides protection in cases of *punitive detention* (right to be informed of grounds, right to consult a lawyer, right to be produced before a magistrate within 24 hours) and establishes strict safeguards for *preventive detention* laws.

Preventive detention and procedural fairness

Dimension	Framework	SC Observations
The Core Provision	**Article 22(3)(b)** permits preventive detention, explicitly denying the standard arrest safeguards available to ordinary criminals.	**Union of India v. Ranu Bhandari (2008):** The SC reiterated that preventive detention is an **"evil necessity"** and inherently repugnant to democratic ideals. Because normal trials are bypassed, strict procedural scrutiny is mandatory.

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Right to Information (The Grounds)	**Article 22(5)** mandates that the detaining authority must communicate the grounds of detention *"as soon as may be"*	**The Ruling:** Simply stating the grounds is insufficient. The State must proactively supply **all documents relied upon** (including local language translations). Non-supply paralyses the detenu's legal defense.
Right to Representation	**Article 22(5)** also mandates that the detenu must be given the *"earliest opportunity"* to make a representation against the order.	**Jaseela Shaji v. Union of India and Others (2024):** The SC quashed the detention because prison authorities took 9 months to forward the representation via "ordinary post." The Court mandated the use of modern technology (email) for immediate processing.
Rule of Law vs. Executive Tyranny	The tension between State Security (Public Order) and Individual Liberty (Article 21).	**Pramod Singla v. Union of India & Ors. (2023):** Procedural fairness is the *only* Constitutional shield a citizen has here. The "subjective satisfaction" of a District Magistrate cannot morph into dictatorial power; it is checked by these procedural safeguards.
Constitutional Morality	The expectation that State institutions protect fundamental rights rather than hide behind bureaucratic red tape.	**Jaseela Shaji v. Union of India and Others (2024):** The SC slammed the "casual, callous, and negligent approach" of prison authorities. It established that institutional apathy that delays a representation directly violates **Article 21** (Right to Life and Liberty).

Article 23	Prohibits *begar* (forced labor) and human trafficking. Available to both citizens and non-citizens.
Article 24	• Prohibits employment of children below the age of 14 years in any factory, mine, or other hazardous activities. **Major Developments Strengthening Article 24** • **86th Constitutional Amendment Act, 2002** – Inserted Article 21A, making free and compulsory education for children aged 6–14 years a Fundamental Right, thereby reinforcing the objective of eliminating child labour. • **Factories Act, 1948 & Mines Act, 1952** – Prohibited employment of children in hazardous sectors; the Mines Act barred persons below 18 years from working in mines. • **Beedi and Cigar Workers Act, 1966** – Prohibited employment of children below 14 years in beedi and cigar manufacturing due to unsafe working conditions. • **Child Labour (Prohibition and Regulation) Act, 1986** – Defined a child as below 14 years and prohibited child labour in specified hazardous occupations and processes. • **Child and Adolescent Labour Amendment Act, 2016** – Banned employment of children below 14 years in all occupations and introduced protection for adolescents (14–18 years) by prohibiting their employment in hazardous work. • **Stricter Penalties and Enforcement (2016 Amendment)** – Enhanced punishments for employers violating child labour laws, strengthening deterrence and compliance. • **Child Labour Rules, 2017 & Rehabilitation Measures** – Established mechanisms for prevention, rescue, rehabilitation, monitoring, and welfare of rescued child labourers, supported by judicial directives and welfare funds.

Article 25 (Freedom of Conscience and Free Profession, Practice, and Propagation of Religion)

All persons are equally entitled to freedom of conscience and the right to freely profess, practise, and propagate religion.

Restriction: Subject to public order, morality, and health. The word 'propagate' does not include the right to forcibly convert another person.

Key Term	Meaning	Example
Freedom of Conscience	The absolute inner freedom of an individual to mold their own relationship with God or to shape their religious faith.	The choice to be an atheist or agnostic is fully protected.
Right to Profess	The right to openly and freely declare one's religious beliefs and faith to the world without fear.	A Sikh individual wearing and carrying a ***Kirpan*** as a declaration of their faith.
Right to Practice	The freedom to perform religious duties, worship, rituals, and ceremonies and visibly exhibit one's beliefs.	Performing *Puja* in a temple, offering *Namaz*, or participating in religious processions.

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Right to Propagate	The right to transmit, disseminate, and explain one's religious tenets to others (e.g., missionary work).	This does **not** include the right to convert another person.
Conversion Limit	The Constitution prohibits forced or induced conversions.	Forcing a conversion directly violates the *other* person's fundamental "freedom of conscience".
Doctrine of Essentiality	A judicial test to determine if a specific practice is fundamental and core to a religion's identity. Only "essential" practices are protected under Article 25.	**Origin:** Established in the Shirur Mutt Case (1954). **Example:** The Supreme Court ruled that using loudspeakers or beating drums is not an "essential" part of any religion and thus can be restricted to control noise pollution.

Article 26 (Freedom to Manage Religious Affairs)

- Every religious denomination has the right to establish and maintain institutions for religious/charitable purposes, manage its own affairs, and acquire property.
  - ♦ Article 26 (d) also includes the right to administer such property in accordance with law.
- The courts apply the **"Essential Religious Practices" (ERP) Test** to determine what religious practices are protected.

Essential Religious Practices (ERP) Doctrine

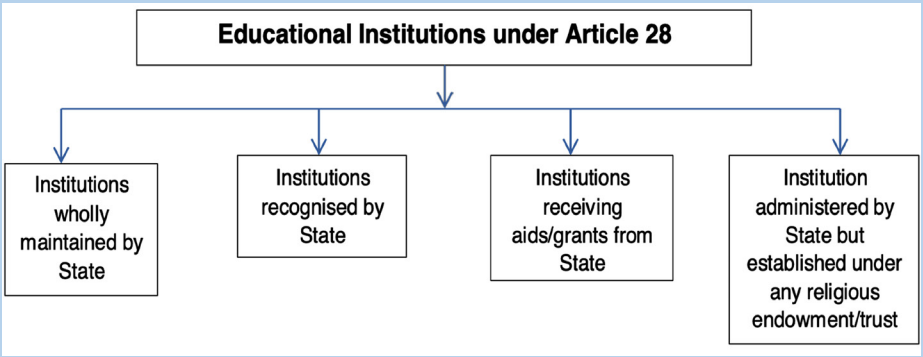
- **Origin:** Developed in **Shirur Mutt Case (1954)** to determine which religious practices are protected under Articles 25 and 26.
- **Core Principle:** Only practices that are essential and integral to a religion receive constitutional protection; secular activities can be regulated by the State.
- **Major Applications:** Used in cases such as **Triple Talaq (Shayara Bano)**, Sabarimala, Hijab, and Ismail Faruqui, where courts examined whether a practice was religiously essential.
  - ♦ Prevents every religious custom from claiming constitutional immunity and enables social reform while balancing religious freedom with constitutional values.
- **Criticism:** Courts effectively become "theologians", deciding what is essential to a religion, leading to inconsistency and allegations of judicial overreach.
- **Current Debate:** The **Sabarimala Reference (9-Judge Bench)** is reconsidering whether courts should continue using the ERP test or shift towards a rights-based approach grounded in equality, dignity, and constitutional morality.

Article 27

The state cannot compel anyone to pay taxes for the promotion or maintenance of any particular religion, but regulatory fees for administration of religious institutions are permissible.

Article 28

- No religious instruction shall be provided in any educational institution wholly maintained out of State funds.



Landmark Cases

- **D.A.V. College v. State of Punjab (1971):** Religious instruction cannot be imparted in institutions wholly funded by the State.
- **Aruna Roy v. Union of India (2002):** Secular moral education is constitutional and does not amount to religious instruction.
- **Bijoe Emmanuel v. State of Kerala (1986):** No student can be compelled to act against sincere religious beliefs.
- **S.R. Bommai v. Union of India (1994):** Articles 25–28 embody secularism, which forms part of the Constitution's Basic Structure.

Article 29

- **(Protection of Interests of Minorities) :** ***Any section of citizens*** residing in India having a distinct language, script, or culture has the right to conserve the same. Protects both religious and linguistic minorities.

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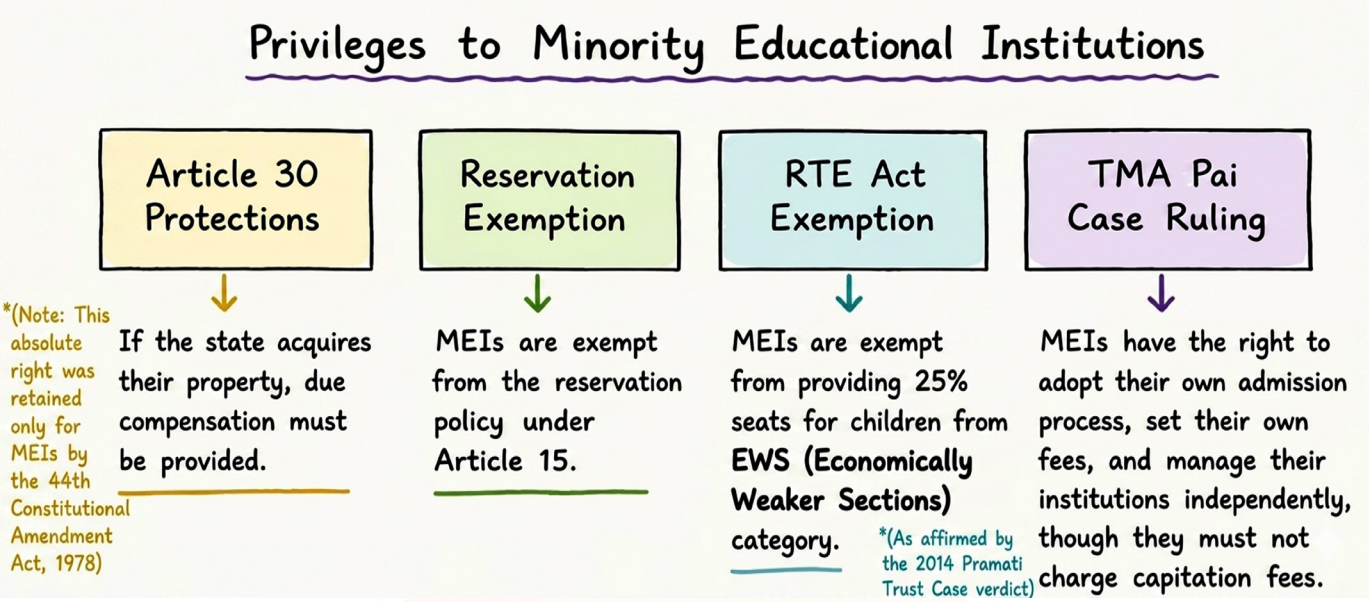
Article 30

Grants all minorities (religious and linguistic) the right to establish and administer educational institutions of their choice.



AMU Judgement and Article 30

Dimension	SC Observations	Significance
The Core Constitutional Conflict	• **Statutory Incorporation vs. Minority Rights:** In *S. Azeez Basha v. Union of India (1967)*, the SC held that AMU was established by Parliament through the AMU Act, 1920, and therefore could not claim to have been 'established' by the Muslim minority under Article 30(1). • **The core question was:** can an institution created by a statute still claim Article 30 rights?	• The 1967 ruling created a paradox where seeking legal recognition (university status via legislation) meant sacrificing constitutional minority rights.
Redefining "Established" (The Genesis Test)	• **Beyong *Basha*** judgement**:** The SC ruled that statutory incorporation does *not* strip an institution of its minority character. • The Court established a broad, substantive test: Courts must look at the **genesis, the "brain" behind the inception, and the primary funding** of the institution, rather than merely looking at the legislative wrapper that formally created it.	• Shifts the focus from **procedural technicalities** to **substantive justice**. • If a minority community founded and funded the institution for its benefit, it remains a minority institution regardless of state legislation regulating it.
The Current Legal Status of AMU	• **A Decision Deferred:** The 7-judge bench **did not** declare whether AMU is definitively a minority institution. Instead, it laid down the legal principles and left the final factual determination of AMU's specific history to a regular **3-judge bench**.	• AMU's status remains *sub judice* (under judicial consideration), but the legal hurdle (the 1967 *Basha* ruling) that previously prevented it from claiming minority status has been substantially weakened/reconsidered.
Implications for Administration & Governance	• **Institutional Autonomy:** If the 3-judge bench eventually grants AMU minority status, it will secure greater protection under **Article 30(1)** to "administer educational institutions of their choice."	• It allows for flexible governance, enabling greater Muslim representation in its executive and academic councils, with greater autonomy in internal administration, subject to reasonable restrictions.

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Implications for Admissions & Reservations	**Exemption from National Quotas:** Minority institutions are exempt from the strict mandates of national reservation policies (SC/ST/OBC/EWS quotas) under Article 15(5).	**Sub-quotas:** If recognised as a minority institution, AMU can legally reserve up to **50% of its seats** exclusively for Muslim students (as per the *St. Stephen's* precedent), profoundly impacting its demographic intake.
The Broader Constitutional Balance	• **Autonomy vs. State Regulation:** The judgement highlights the delicate tension between protecting minority rights and ensuring state oversight. • The SC clarified that while minorities have the right to administer, the State can still impose regulatory measures to ensure academic excellence and prevent maladministration.	• Reinforces the constitutional promise of pluralism. It ensures that minority communities are not penalised (by losing their constitutional rights) simply because they seek formal state recognition or university status.

Article 32

It empowers every citizen to directly approach the Supreme Court of India if they believetheir fundamental rights have been violated by the government or any other authority. Dr. B.R. Ambedkar called it the "heart and soul of the Constitution."

It makes FRs real and effectively justiciable by providing a mechanism for their enforcement.

The Supreme Court has the power to issue **Writs** (Habeas Corpus, Mandamus, Prohibition, Certiorari, and Quo-Warranto) for the enforcement of FRs.

The Five Prerogative Writs

Type of Writ	Application
Habeas Corpus ("To Have the Body")	• Inquires into the **legality of a person's detention.** The court orders immediate release if the detention is found to be unlawful. • **Locus standi** is the legal principle that determines whether a person has the right to approach a court, requiring a sufficient interest or direct injury in the matter. • **Exception:** In Habeas Corpus petitions, the rule of locus standi is relaxed- any person acting in good faith (such as a relative, friend, or even a public-spirited individual) may file the petition on behalf of the detained person
Mandamus ("We Command")	Commands a public official, lower court, or public body to perform a specific public duty that they have failed or refused to perform.
Prohibition ("To Forbid")	Issued by a higher court to prevent a lower court or tribunal from exceeding its jurisdiction or violating natural justice. It acts as an order to stop ongoing proceedings.
Certiorari ("To Be Certified")	Issued to a lower court or tribunal after a final decision has been made. It quashes the lower body's order if there is a legal error on the record, lack of jurisdiction, or violation of natural justice.
Quo Warranto ("By What Authority")	Challenges a person's authority to hold a public office to prevent illegal usurpation. It can be filed by any interested person, even if not directly affected.

Exceptions to Fundamental Rights	• **Article 31A:** Protects five categories of laws (mostly related to agricultural land reforms and industry management) from being challenged on the grounds of contravention of Articles 14 and 19. • **Article 31B (Ninth Schedule):** Protects acts and regulations included in the Ninth Schedule from being challenged on the grounds of contravention of *any* of the fundamental rights. (Though constrained post-*I.R. Coelho case*, 2007). • **Article 31C:** Protects laws made to implement Directive Principles under Article 39(b) and (c) from being challenged on the grounds of Articles 14 and 19.
Article 33	• Empowers Parliament to restrict or abrogate the FRs of members of armed forces, paramilitary forces, police forces, and intelligence agencies to ensure the proper discharge of their duties and the maintenance of discipline.
Article 34	• Provides for the restriction of FRs while martial law (military rule) is in force in any area within the territory of India.

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Electoral Bonds Case: Article 19(1)(a) vs. Article 21

Association for Democratic Reforms (ADR) v. Union of India (2024)

Aspect	Article 19(1)(a): Right to Information	Article 21: Right to Privacy	Supreme Court Ruling
The Core Claim	**Voter's Right to Know:** Citizens have a fundamental right to know the source of political funding to make an informed electoral choice.	**Donor's Informational Privacy:** Donors have a right to keep their political affiliations and donations secret to avoid harassment or retribution.	The Court acknowledged both rights but found the Electoral Bonds Scheme unconstitutional for prioritizing privacy absolutely at the cost of transparency.
Applicability (Individuals vs. Corporations)	Applies fundamentally to the voting citizen who requires transparency for democratic participation.	Applies to individual citizens (protecting personal political beliefs), but corporate political contributions can't claim the same level of privacy protection as individual political beliefs.	**Crucial Distinction:** Companies do not vote. Massive corporate donations are often *quid pro quo*, so the voter's right to know heavily outweighs a corporation's claim to privacy.
The "Double Proportionality" Test	The scheme entirely sacrificed this right, blinding the voter to the flow of political money.	The scheme heavily favoured this right, granting absolute anonymity to the purchaser of the bond.	The scheme **failed** the double proportionality test because it did not balance the two rights; it completely extinguished the Right to Information.
Impact on Existing Laws	Upheld the necessity of disclosure provisions in the Representation of the People Act and Companies Act.	Struck down the anonymity amendments made to the Income Tax Act, Companies Act, and RPA.	The Court struck down the removal of the 7.5% corporate donation cap, stating unlimited anonymous funding threatens democracy.
Final Directive	Transparency restored. The Election Commission was ordered to publish the details for public scrutiny.	Anonymity revoked. The SBI was ordered to stop issuing bonds and disclose all past purchase and encashment details.	The Electoral Bonds Scheme was struck down unanimously as unconstitutional.

Right to Property in India

The Right to Property in India transitioned from a heavily litigated Fundamental Right to a standard legal right under the 44th Amendment Act of 1978. Below is a summary of its historical and current constitutional status.

Aspect	Provisions
Original Position	A Fundamental Right under Part III; **Article 19(1)(f)** guaranteed the right to acquire/hold property, and **Article 31**protected against deprivation without public purpose and compensation.
Early Amendments	Parliament enacted several amendments (1st, 4th, 25th, etc.) adding **Articles 31A, 31B, and 31C** to protect land reform laws from judicial review and expedite welfare projects.
Kesavananda Bharati Case (1973)	The Supreme Court upheld Parliament's power to amend property-related Fundamental Rights, while introducing the Basic Structure doctrine.
44th Amendment Act (1978)	The turning point: The 44th Amendment removed the Right to Property from Part III and inserted Article 300A in Part XII.
Current Status (Post-1978)	It is now a **legal/constitutional right** under **Article 300A** ("no person shall be deprived of his property except by authority of law"). Property can now be deprived only through valid legal authority, and both executive and legislative actions remain subject to constitutional scrutiny.
Impact on Land Acquisition	The government now has greater flexibility to acquire land for infrastructure and social welfare without the strict hurdles of Fundamental Right litigation.

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Exceptions (Compensation Guaranteed)	The State *must* still pay compensation when acquiring: 1) Property of **minority educational institutions** (Art. 30), or 2) Land under **personal cultivation** within statutory ceiling limits (Art. 31A).
Recent Supreme Court Stance	**Kolkata Municipal Corporation & Anr. v. Bimal Kumar Shah & Ors. (May 2024)**: The Court reaffirmed protections under Article 300A, stressing that the rule of law mandates **due process** and **timely, fair compensation** when individuals are deprived of property.

The Three Pillars of Privacy (Puttaswamy Framework) - Paternity and Bodily autonomy

Dimension of Privacy	Constitutional Application	Relevance/ Medical Testing
Physical / Bodily Autonomy	The right to control one's own body and protect it from non-consensual state or private intrusion.	Force drawing of blood or amniotic fluid directly violates a woman's physical autonomy.
Informational Privacy	The right to control the dissemination of personal, medical, and biological data.	DNA contains the ultimate biological blueprint. Forced extraction is a breach of informational privacy.
Decisional Autonomy	The freedom to make intimate personal choices regarding marriage, procreation, and family	A woman's choice to carry a pregnancy without being subjected to adversarial legal interrogations.

WHY PRE-NATAL DNA TESTING IS DENIED?

The Autonomy Defense: A pre-natal DNA test requires invasive procedures on the mother's body. Under the *Puttaswamy* doctrine, no court can force a woman to undergo an invasive medical procedure solely to satisfy a husband's suspicion of infidelity, as it constitutes a gross violation of her bodily integrity.

The Protection of Legitimacy Defense: The courts act as *parens patriae* (parent of the nation) for the unborn child. Ordering a paternity test risks removing the legal legitimacy of the child, causing lifelong social stigma. The child's right to identity and dignity (Article 21) outweighs the father's right to truth.

The Evidentiary Defense: A DNA test is not meant to be a shortcut for divorce proceedings. If a husband claims adultery, he must prove it through independent evidence, not by forcing the State (Courts) to violate his wife's biological privacy.

The Constitutional Trilemma: Health vs. Trade vs. Religion

The Competing Right	The Constitutional Argument	The Constitutional Argument
Article 25 (Freedom of Religion)	Pro-cracker advocates argued that bursting fireworks during Diwali is a core religious custom protected under freedom of practice.	**The Health Caveat:** Article 25 is explicitly subject to "public order, morality, and *health*". Furthermore, bursting crackers is a modern addition and fails the **"Essential Religious Practices" (ERP) Test**. Thus, it enjoys no absolute protection.
Article 19(1)(g) (Right to Trade/Business)	Firecracker manufacturers in Sivakasi argued a ban destroys their fundamental right to a livelihood and creates mass unemployment.	**The Survival Caveat:** The SC ruled that Article 19(6) allows reasonable restrictions in the public interest. The economic livelihood of a few cannot be placed above the biological survival and respiratory health of millions.
Article 21 (Right to Life/Clean Air)	Citizens (especially children and the elderly) argued that the toxic smog violates their right to live with human dignity and health.	**The Ultimate Victor:** The Court applied the **Precautionary Principle,** having generally prioritised public health and environmental concerns under Article 21 while balancing competing rights under Articles 19 and 25.

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Madras HC Ruling (2025): Balancing Free Movement, Protest, and Public Order

Theme	Constitutional / Statutory Provision	Madras High Court
Nature of Fundamental Rights	**Article 19(1)(a)** – Freedom of Speech and Expression **Article 19(1)(b)** – Right to Assemble Peacefully **Article 19(1)(d)** – Freedom of Movement	• The Court held that the rights to move freely, assemble peacefully, and express grievances are integral to democratic participation. • However, these rights are not absolute and remain subject to reasonable restrictions in the interest of public order under **Article 19(2) & 19(3).**
Rights vs. State's Regulatory Power	Police regulations requiring prior permission for public demonstrations	• The Court observed that where the law requires prior permission for protests, participants must comply with the conditions imposed. • Fundamental rights cannot be exercised in disregard of a valid regulatory framework.
Methods of Protest & Public Order	**Public order principles under Article 19(2) & 19(3)**	The Court held that methods such as climbing cellphone towers, life-threatening fasts involving senior citizens, and displaying human skulls and bones are inconsistent with the constitutional guarantee of peaceful protest.
Check on Executive Arbitrariness	**Sections 55, 56 & 156, Railways Act, 1989**	• The Court held that railway authorities may deboard passengers only in limited circumstances - **such as travelling without a ticket, suffering from an infectious disease, or occupying an unauthorised compartment**. • A passenger with a valid ticket cannot be removed merely because he intends to protest. Any such action would be unlawful and officials concerned may be held accountable.

Fundamental Rights are not merely static constraints on the State; they are a dynamic framework that ensures the dignified existence of citizens. The Supreme Court's expansive interpretation, especially of Article 21, coupled with the Basic Structure Doctrine, ensures that the Fundamental Rights continue to evolve and adapt to modern challenges (e.g., cyber laws, privacy, and environmental protection), keeping the constitutional machinery vibrant and citizen-centric.

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6 Directive Principles of State Policy

Enshrined in **Part IV** of the Constitution (Articles 36 to 51). Borrowed from the Irish Constitution. Dr. B.R. Ambedkar described them as the "novel features" of the Constitution. Granville Austin called DPSP and Fundamental Rights the **"Conscience of the Constitution".** While Fundamental Rights establish *political* democracy, DPSPs aim to establish **socio-economic democracy**. They signify the transition from a colonial 'Police State' to a modern **'Welfare State'**.

UPSC Mains PYQs

1. Discuss the possible factors that inhibit India from enacting for its citizens a uniform civil code as provided for in the Directive Principles of State Policy. **(2015)**

6.1 Dimensions of DPSP

Nature (Article 37)	• **Non-Justiciable:** They are not legally enforceable by the courts for their violation. The State cannot be sued for failing to implement them. • **Fundamental in Governance:** Article 37 explicitly declares that it shall be the duty of the State to apply these principles in making laws. ♦ They act as an "Instrument of Instructions" for all successive governments, regardless of their political ideology. • **Judicial Compass:** Though non-justiciable, the Supreme Court uses them to determine the constitutional validity of laws. Courts often interpret laws implementing DPSPs sympathetically while balancing them with Fundamental Rights.
Socialistic Principles (Egalitarian Society)	• **Article 38:** Promote the welfare of people by securing a social order permeated by justice- social, economic, and political and minimise inequalities in income, status, and opportunities. • **Article 39:** Securing adequate livelihood, equitable distribution of **material resources of the community [39(b)]**, prevention of concentration of wealth **[39(c)]**, equal pay for equal work for men and women. ♦ **Example:** Abolition of the Zamindari system, Nationalization of Banks (1969), and enactment of the Equal Remuneration Act, 1976. • **Article 39A:** Equal justice and **free legal aid** to the poor. ♦ **Example:** Enactment of the Legal Services Authorities Act (1987) and the establishment of Lok Adalats. • **Article 41 & 42:** Right to work, education, public assistance (old age, sickness), and provision for just/ humane conditions of work and **maternity relief**. • **Articles 43 & 43A:** Securing a living wage, decent standard of life, and participation of workers in the management of industries.
Gandhian Principles	• **Article 40:** Organise **Village Panchayats** and endow them with powers of self-government. *(Implemented via 73rd Amendment)*. • **Articles 43 & 43B:** Promote cottage industries on an individual/cooperative basis in rural areas, and promote voluntary formation of **co-operative societies**. ♦ **Example:** Establishment of Khadi and Village Industries Commission (KVIC), Coir Board, Silk Board, etc. • **Article 46:** Promote educational and economic interests of SCs, STs, and other weaker sections, protecting them from social injustice. • **Article 47:** Prohibit the consumption of **intoxicating drinks and drugs** which are injurious to health. • **Article 48:** Prohibit the **slaughter of cows**, calves, and other milch/draught cattle to improve their breeds.
Liberal-Intellectual Principles	• **Article 44:** Secure for all citizens a **Uniform Civil Code (UCC)** throughout the country. ♦ The Supreme Court has repeatedly reminded the state to implement it (*Shah Bano case, Sarla Mudgal case*). The debate centers on balancing gender justice/national integration with minority cultural autonomy. The recent Uttarakhand UCC act is a major case study. • **Article 45:** Provide early childhood care and education (ECCE) for all children until they complete the age of six years. • **Articles 48 & 48A:** Organise agriculture/animal husbandry on modern, scientific lines, and protect/ improve the **environment, forests, and wildlife**. • **Article 49:** Protect monuments, places, and objects of artistic or historic interest (national importance). • **Article 50: Separate the judiciary from the executive** in the public services of the State. • **Article 51:** Promote **international peace and security**, maintain just relations between nations, and foster respect for international law.

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Evolution via Amendments	• **42nd Amendment (1976 - "Mini Constitution"):** Added 39A (free legal aid), 39(f) (healthy development of children), 43A (workers in management), and 48A (environment). • **44th Amendment (1978):** Added Article 38(2) requiring the State to minimise inequalities in income, status, facilities, and opportunities. • **86th Amendment (2002):** Changed the subject matter of Article 45. Made elementary education a Fundamental Right (**Article** 21A) and directed the State to provide early childhood care under **Article** 45. • **97th Amendment (2011):** Added Article 43B relating to co-operative societies.

Uniform Civil Code (UCC)

UCC: It is a proposed framework of laws designed to replace religion-based personal laws - which govern marriage, divorce, inheritance, and adoption - with a single, common set of laws that applies equally to all Indian citizens regardless of their religion, caste, or gender.

Landmark Supreme Court Verdicts

The judiciary has frequently highlighted the need for a UCC:

- **Shah Bano Case (1985):** The Supreme Court emphasised the desirability of Article 44 implementation.
- **Sarla Mudgal Case (1995):** Addressed the issue of bigamy and the conflict between personal laws on matters of marriage.
- **Shayara Bano vs. Union of India Case (2017):** Challenged the practice of Triple Talaq and declared it unconstitutional.

Need and Significance of UCC

- **Strengthening Secularism:** A UCC aligns with India's secular principles by establishing a common set of laws for all citizens, irrespective of religion.
- **Equality for All:** It would eliminate discriminatory practices based on religion in personal laws, guaranteeing equal rights.
- **Promoting Gender Equity:** By overriding existing religious personal laws, a UCC could remove gender-based biases, leading to a more just society.
- **Protecting Vulnerable Groups:** It could offer stronger safeguards for the rights of women and religious minorities who might be disadvantaged by current personal laws.
- **Freedom of Choice:** It would provide greater freedom for individuals to choose their partners without religious or caste restrictions under civil law principles

Recent Developments & State Implementations

- **Uttarakhand:** Became the first Indian state post-independence to implement a UCC. It covers marriage, divorce, adoption, and inheritance with a strong emphasis on gender equality. It bans polygamy and child marriage, and notably mandates the registration of live-in relationships to safeguard partner and child rights. (Note: Goa has had a UCC since 1867).
- **Gujarat:** Has followed suit by forming a committee to draft a UCC, indicating growing momentum at the state level.
- **2018 Law Commission Recommendation:** The 21st Law Commission previously recommended codifying existing personal laws rather than implementing a complete UCC, suggesting that the focus should be on universal principles of fairness and equality.

Challenges	Way Forward
Religious Interference: May be perceived as an infringement on religious freedom, restricting personal matters.	Introduce the UCC gradually in stages (piecemeal approach) to minimize disruption and allow for smoother adaptation
Minority Apprehensions: Minorities may fear the imposition of majority-driven codes and the erosion of cultural traditions	Prioritize equity and equal treatment for all citizens during the codification process.
Threat to Diversity: Enforcing uniformity could undermine India's rich cultural and religious pluralism.	Foster public debate and open discussions to ensure transparency and address concerns.
Drafting Difficulties: Creating a universally acceptable code is complex due to diverse ethnic and regional traditions	Include legal and social experts from diverse backgrounds in the drafting process
Constitutional Conflict: Potential friction between Article 14 (Equality) and Article 25 (Freedom of Religion)	Launch educational campaigns and engage with different communities to build awareness and garner support

6.2 Constitutional Tussle: FRs vs. DPSPs

The Evolution:

1. **Champakam Dorairajan Case (1951):** The Supreme Court ruled that in case of a conflict, FRs would prevail. DPSPs have to run as a subsidiary to FRs.
2. **Golaknath Case (1967):** The SC held that FRs cannot be amended for the implementation of DPSPs.
3. **The Parliament's Pushback (24th & 25th Amendments):** Parliament inserted Article 31C, stating that laws made to implement Article 39(b) and (c) (equitable distribution of resources) cannot be struck down even if they violate Articles 14 and 19.

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4. **Kesavananda Bharati Case (1973):** The SC upheld the validity of the first provision of Article 31C, cementing the primacy of 39(b) and (c) over Articles 14 and 19.
5. **42nd Amendment Act (1976):** The government attempted to give legal primacy and supremacy to all DPSPs over Articles 14 and 19.
6. **Minerva Mills Case (1980) - The Final Settlement:** The SC struck down the 42nd Amendment's extension. It ruled that the Indian Constitution is founded on the "bedrock of the balance between Part III (FRs) and Part IV (DPSPs)".

"To give absolute primacy to one over the other is to disturb the harmony of the Constitution. This harmony and balance is an essential feature of the Basic Structure." While Fundamental Rights act as injunctions against State tyranny, the Directive Principles are positive mandates for State action.Together, they form the core of transformative constitutionalism, ensuring that political liberty is not a hollow promise, but is firmly anchored in the reality of social equity and economic justice.

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7 Fundamental Duties

The original Constitution (1950) contained only Fundamental Rights, not Duties. The framers assumed that citizens would naturally perform their duties. Rights and duties are correlative and inseparable. As Mahatma Gandhi famously said, ***"The true source of right is duty. If we all discharge our duties, rights will not be far to seek."*** Borrowed from the Constitution of the erstwhile USSR.

7.1 Dimensions of FDs

Evolution and Nature	• **The Swaran Singh Committee (1976):** Formed during the Internal Emergency to make recommendations about fundamental duties. ♦ The committee argued that citizens must realise that in addition to enjoying rights, they also have certain obligations. • **42nd Amendment Act (1976):** Inserted a new part, **Part IVA**, containing only one article: **Article 51A**. It initially codified 10 Fundamental Duties. • **86th Amendment Act (2002):** Added the 11th duty regarding the provision of educational opportunities for children. • **Restricted to Citizens:** Unlike some Fundamental Rights (e.g., Articles 14 or 21), which apply to foreigners, FDs are strictly confined to Indian citizens. • **Non-Justiciable:** Similar to DPSPs, they are not directly enforceable by courts. There is no constitutional provision for direct legal sanction for their violation.
Duties	• **Civic & Patriotic Duties:** ♦ To abide by the Constitution and respect its ideals, the National Flag, and the National Anthem **[51A(a)].** ♦ To uphold and protect the sovereignty, unity, and integrity of India **[51A(c)].** ♦ To defend the country and render national service when called upon **[51A(d)].** • **Moral & Social Duties:** ♦ To cherish and follow the noble ideals that inspired the national struggle for freedom **[51A(b)].** ♦ To promote harmony and the spirit of common brotherhood; to renounce practices derogatory to the dignity of women **[51A(e)].** ♦ To value and preserve the rich heritage of the country's composite culture **[51A(f)].** • **Environmental Duties:** ♦ To protect and improve the natural environment (forests, lakes, rivers, wildlife) and have compassion for living creatures [**51A(g)].** (Directly linked to DPSP Article 48A and FR Article 21). • **Intellectual & Progressive Duties:** ♦ To develop scientific temper, humanism, and the spirit of inquiry and reform **[51A(h)].** ♦ To strive towards excellence in all spheres of individual and collective activity **[51A(j)].** • **Public Property & Parental Duties:** ♦ To safeguard public property and abjure violence **[51A(i)].** ♦ To provide opportunities for education to one's child or ward between the ages of 6 and 14 years **[51A(k)** - Added in 2002].
Landmark Judicial Pronouncements	• **AIIMS Students' Union v. AIIMS (2001):** The Supreme Court declared that Fundamental Duties are as important as Fundamental Rights. Though Part IVA is not enforceable by writs; it provides a valuable guide to constitutional interpretation. • **M.C. Mehta Case:** The SC has heavily relied on Article 51A(g) (environmental duty) to order the closure of polluting industries, mandating that the state and citizens must jointly protect the environment. • **Shyam Narayan Chouksey v. Union of India (2016):** The "National Anthem Case". The SC initially mandated playing the anthem in cinema halls to instil a sense of committed patriotism (Article 51A(a)), though it later made it optional. • **Ranganath Mishra Case (2003):** The SC directed the Government of India to take steps to operationalise the recommendations of the Justice JS Verma Committee regarding the dissemination and enforcement of Fundamental Duties (Article 51-A) among citizens.

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7.2 Statutory backing for Fundamental Duties

1. **Upholding the Sovereignty, Integrity, and National Symbols**
   - **Prevention of Insults to National Honour Act, 1971:** Directly enforces the duty to respect the Constitution, the National Flag, and the National Anthem by penalising any disrespect or insult toward them.
   - **Unlawful Activities (Prevention) Act (UAPA), 1967:** Strongly aligns with the duty to uphold and protect the sovereignty, unity, and integrity of India by strictly prosecuting unlawful and terror-related activities that threaten the nation.
2. **Promoting Brotherhood and Social Harmony**
   - **The Protection of Civil Rights Act, 1955:** Reflects the duty to promote harmony and the spirit of common brotherhood by strictly prohibiting untouchability and punishing discrimination based on religion, race, caste, sex, or place of birth.
3. **Safeguarding the Dignity of Women**
   - **Women-Centric Legislations:** The duty to renounce practices derogatory to the dignity of women is legally reinforced by statutes like the Dowry Prohibition Act, 1961, and the Immoral Traffic (Prevention) Act (formerly SITA, 1956).
4. **Protecting and Improving the Environment**
   - **Wildlife (Protection) Act, 1972:** Reinforces the citizen's duty to have compassion for living creatures by protecting rare and endangered species and criminalising illegal poaching and wildlife trade.
   - **Forest (Conservation) Act, 1980:** Safeguards natural habitats and checks indiscriminate deforestation, directly echoing the constitutional duty to protect and improve the natural environment, including forests, lakes, and rivers.
5. **Safeguarding Public Property and Abjuring Violence**
   - **Prevention of Damage to Public Property Act, 1984:** Directly translates the moral duty of safeguarding public property and abjuring violence into a legal mandate by penalizing acts of vandalism and destruction.
   - **Bharatiya Nyaya Sanhita (BNS), 2023:** Several penal sections within the newly enacted BNS regarding theft, mischief, and vandalism indirectly enforce the duty to respect the rights of others and protect public/state property.

While Fundamental Rights act as a shield against State tyranny, Fundamental Duties serve as a moral compass for the citizenry. In an era marked by environmental degradation, communal polarisation, and digital misinformation, Article 51A transitions democracy from a mere political mechanism into a participatory civic responsibility. As the Supreme Court has noted, a careful balancing of Part III (Rights) and Part IVA (Duties) is essential to realize the vibrant, progressive republic envisioned in the Preamble.

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8 Constitutional Amendments and Article 368

Part XX, Article 368 grants Parliament the constituent power to amend the Constitution and lays down the procedure. The framers wanted a Constitution that could adapt to changing times but wasn't so fragile that ruling parties could alter its core for political gains. The Indian Constitution strikes a unique balance between extreme **rigidity** (like the USA, requiring a special convention) and extreme **flexibility** (like the UK, amended by ordinary law).

UPSC Mains PYQs

1. The Indian Constitution has conferred the amending power on the ordinary legislative institutions with a few procedural hurdles. In view of this statement, examine the procedural and substantive limitations on the amending power of Parliament to change the Constitution. **(2025)**
2. Explain the significance of the 101st Constitutional Amendment Act. To what extent does it reflect the accommodative spirit of federalism. **(2023)**
3. Explain the salient features of the Constitution (One Hundred and First Amendment) Act, 2016. Do you think it is efficacious enough 'to remove cascading effect of taxes and provide for common national market for goods and services'? **(2017)**

8.1 Procedure and Classification

Aspect	Details
Procedure for Amendment (Article 368)	• **Initiation:** A Constitutional Amendment bill can **only** be introduced in Parliament (Lok Sabha or Rajya Sabha). State legislatures cannot initiate an amendment. • **Introduction:** Can be introduced by a Minister or a Private Member. **No prior permission of the President is required.** • **Majority Required:** The bill must be passed in each House by a **Special Majority** (a majority of the total membership of the House and a majority of two-thirds of the members of the House present and voting). • **No Joint Sitting:** Each House must pass the bill separately. If there is a deadlock, there is **no provision for a joint sitting**(unlike ordinary bills). • **The Ratification Clause:** If the bill seeks to amend federal provisions of the Constitution, it must also be ratified by the legislatures of **half of the states** by a simple majority. • **Presidential Assent:** After passage (and ratification, if needed), it goes to the President. The President **must** give assent. President cannot withhold it or return it for reconsideration (made obligatory by the **24th Amendment Act, 1971**).
Classification of Amendments	• **Amendments by Simple Majority (Outside Article 368)** → These are passed like ordinary legislative processes and are technically not deemed Constitutional Amendments under Article 368. ♦ **Examples:** Admission/establishment of new states, altering boundaries (Articles 2, 3, 4). ♦ Abolition/creation of State Legislative Councils (**Article** 169). ♦ Second Schedule (Salaries of President, Governors, and Judges). ♦ Fifth and Sixth Schedules (Scheduled areas and Tribal areas). • **Amendments by Special Majority (Under Article 368)** ♦ Most provisions of the Constitution fall here. ♦ **Examples:** Fundamental Rights (Part III). ♦ Directive Principles of State Policy (Part IV). ♦ All other provisions not covered in the first and third categories. • **Amendments by Special Majority + Ratification by Half the States** ♦ Provisions related to the federal structure (centre-state relations) require this rigid process. ♦ **Examples:** Election of the President and its manner. ♦ Extent of the executive power of the Union and states. ♦ Supreme Court and High Courts. ♦ Distribution of legislative powers (Union, State, and Concurrent lists). ♦ Goods and Services Tax Council (Article 279A). ♦ Article 368 itself.

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8.2 Procedural vs. Substantive Limitations on Parliament's Amending Power

Aspect	Procedural Limitations	Substantive Limitations
Meaning	Govern the process and conditions for amending the Constitution under Article 368.	Govern the scope and content of amendments by protecting the Constitution's core features.
Source	Expressly provided under Article 368.	Article 13 - power of judicial review
Focus	Regulate how Constitutional amendments are made.	Regulate what Parliament can amend.
Initiation of Amendment	Amendment Bills can be introduced only in either House of Parliament.	Parliament's amending power remains subject to preservation of the Constitution's fundamental framework.
Legislative Approval	Requires a special majority in each House and, in specified cases, ratification by at least half of the States.	Even a procedurally valid amendment can be reviewed for its impact on the Constitution's basic features.
Role of the President	President is constitutionally bound to give assent to a duly passed Amendment Bill.	Presidential assent cannot validate an amendment that damages the Basic Structure.
Federal Safeguards	Protect federal interests through mandatory State ratification for certain amendments.	Protect federalism itself as a component of the Basic Structure.
Judicial Evolution	Rooted directly in the constitutional text of Article 368.	Developed through Shankari Prasad (1951), Golaknath (1967), Kesavananda Bharati (1973), and Minerva Mills (1980).
Key Constitutional Principle	Constitutional change must follow prescribed constitutional procedures.	Constitutional change cannot destroy the Constitution's essential identity.
Illustrative Features Protected	Special majority, separate approval by both Houses, no joint sitting, State ratification, and mandatory presidential assent.	Supremacy of the Constitution, rule of law, judicial review, federalism, secularism, democracy, separation of powers, and judicial independence.
Objective	Ensure broad political consensus and federal participation in constitutional amendments.	Preserve the Constitution's fundamental character while permitting necessary evolution.
Consequence of Violation	Amendment may be struck down for non-compliance with Article 368 procedures.	Amendment may be struck down for violating the Basic Structure Doctrine.

8.3 Constitutional Amendments

Amendment Act & Year	Major Provisions & Constitutional Changes	Significance / Context
1st Amendment Act, 1951	• Added the **Ninth Schedule** to protect land reform laws from judicial review. • Added 'Reasonable Restrictions' (public order, friendly relations, incitement) to Article 19.	• Enacted to overcome judicial hurdles in agrarian reforms, later upheld in the Shankari Prasad (1951) case.
42nd Amendment Act, 1976	• **Preamble:** Added "Socialist, Secular, Integrity". • Added Fundamental Duties (Part IV-A). • Made it explicitly binding for the President to act in accordance with the advice of the Council of Ministers. • Added Part XIV-A (Tribunals).	• Known as the "Mini-Constitution". Passed during the Emergency to establish executive dominance.
44th Amendment Act, 1978	• Removed the Right to Property from Fundamental Rights, making it a legal right (Article 300A). • Replaced "Internal Disturbance" with "Armed Rebellion" for National Emergency. • Allowed the President to send Cabinet advice back for reconsideration once.	• Enacted by the Janata Government to undo the distortions introduced by the 42nd CAA and protect civil liberties.
52nd Amendment Act, 1985	• Added the 10th Schedule providing for disqualification on the ground of defection.	• Aimed at curbing the "Aaya Ram, Gaya Ram" political horse-trading culture.

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61st Amendment Act, 1988	• Reduced the voting age for Lok Sabha and Assembly elections from 21 years to 18 years.	• Expanded the democratic base by enfranchising the youth.
69th Amendment Act, 1991	• Accorded a special status to Delhi, redesignating it as the National Capital Territory (NCT) of Delhi with a 70-member assembly.	• Addressed the unique administrative and political needs of the capital.
73rd & 74th Amendment Acts, 1992	• 73rd: Added Part IX and the 11th Schedule (Panchayati Raj Institutions). • 74th: Added Part IX-A and 12th Schedule (Urban Local Bodies).	• Ushered in democratic decentralisation by providing constitutional status to local self-governments.
86th Amendment Act, 2002	• Made Right to Education a Fundamental Right (Article 21A for ages 6-14). • Added the 11th Fundamental Duty (Art 51A-k).	• A landmark shift towards ensuring universal elementary education.
97th Amendment Act, 2011	• Made the right to form Co-operative Societies a Fundamental Right (Article 19). • Added Part IX-B dealing with cooperatives. • The SC in Union of India v Rajendra Shah (2021) partially invalidated Part IX-B relating to state cooperatives.	• Aimed at encouraging the economic activities of cooperatives with Constitutional protection.
101st Amendment Act, 2016	• Introduced the Goods and Services Tax (GST). • Inserted Articles 246A, 269A, and 279A (GST Council).	• The biggest indirect tax reform, establishing a unified national market ("One Nation, One Tax").
102nd Amendment Act, 2018	• • Granted constitutional status to the National Commission for Backward Classes (NCBC) under Article 338B.	• Brought NCBC at par with the SC and ST Commissions for better safeguarding of backward classes.
103rd Amendment Act, 2019	• Introduced 10% reservation for Economically Weaker Sections (EWS) in education and employment. • Amended Articles 15(6) and 16(6).	• Shifted the paradigm of affirmative action by recognising economic disadvantage independent of social backwardness.
104th Amendment Act, 2020	• Extended reservation of seats for SCs and STs in the Lok Sabha and State Assemblies for another 10 years. • Ended the nomination of Anglo-Indians to legislative bodies.	• Maintained political representation for marginalised communities while rationalising colonial-era provisions.
106th Amendment Act, 2023	• Nari Shakti Vandan Adhiniyam: Mandates a 33% reservation for women in the Lok Sabha, State Legislative Assemblies, and Delhi Assembly.	• A historic milestone for women's political empowerment and gender parity in lawmaking.

8.4 Criticisms and Proposed Solutions

Specific Issue	Impact	Proposed Solution	Example
Absence of a Dedicated Body	India lacks a specialised body (like a **Constitutional Convention in the USA**) tasked with proposing or comprehensively reviewing amendments.	Establish a permanent Constitutional Review Commission or mandate specialised, non-partisan parliamentary committees to thoroughly vet proposals before introduction.	• **42nd Amendment (1976):** It amended 59 Articles and 2 Schedules without expert review; many changes were later rolled back by the 44th Amendment (1978). • **NCRWC (2000–02):** The **National Commission to Review the Working of the Constitution** recommended creating a permanent **constitutional review body,** but the proposal remains unimplemented.
No Deadlock Resolution	The process lacks a mechanism (such as a joint sitting) to resolve deadlocks if the Lok Sabha and Rajya Sabha disagree on a proposed amendment.	Amend Article 368 to allow for a joint sitting of Parliament specifically to resolve deadlocks on constitutional amendment bills.	• **Women's Reservation Bill (108th Amendment Bill, 2008):** Passed by the Rajya Sabha in 2010 but could not be taken up in the Lok Sabha due to repeated disruptions. • **Lapse in 2014:** The Bill lapsed with the dissolution of the 15th Lok Sabha, highlighting how a **constitutional amendment can fail** due to **inter-house deadlock** without any resolution mechanism.

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Ambiguous Ratification Timeframe	There is no prescribed time limit for state legislatures to ratify an amendment, nor clarity on whether they can withdraw their approval.	Stipulate a clear, fixed timeframe (e.g., 6 months) for states to communicate their ratification or rejection, and codify that consent, once given, cannot be withdrawn.	• **66th Amendment Bill (1989):** Passed by Parliament but failed to secure the required state ratifications. • **Legislative Limbo:** The Bill lapsed due to the absence of any time limit or mechanism to ensure state responses, exposing a gap in the amendment process.
Majoritarian Dominance	A central government with a strong majority can pass amendments swiftly, risking the override of minority interests or federal principles.	Introduce a higher threshold (e.g., three-fourths majority) for amendments affecting core federal provisions to ensure wider cross-party consensus.	• The ***One Nation, One Election*** proposal has faced criticism for potentially undermining regional autonomy.
Limited Public Participation	Amendments are often passed without broader public consultation or stakeholder involvement, reducing democratic legitimacy	Mandate a statutory public circulation period (e.g., 90 days) for all amendment bills to invite citizen feedback and expert scrutiny before a parliamentary vote.	• **97th Constitutional Amendment (2011):** Enacted without adequate consultation and state ratification. • **Supreme Court Intervention (2021)**: In Union of India v. Rajendra N. Shah, the Court struck down key Part IXB provisions for failing to obtain the required state ratification, highlighting procedural lapses in the amendment process.
Limited State Legislature Role	States cannot initiate a constitutional amendment; their role is purely reactionary and limited only to provisions affecting federal structures.	Empower state legislatures to jointly propose amendments (e.g., requiring a resolution passed by at least half the states) to be formally taken up by Parliament.	• **Andhra Pradesh Reorganisation (2014):** Parliament created Telangana despite the Andhra Pradesh Assembly's opposition, showing that state consent is not binding under Article 3. • **101st Constitutional Amendment (GST, 2016):** States could only ratify the amendment and had no power to initiate, modify, or veto the restructuring of taxation powers.
Frequent Amendments	The exceptionally high number of amendments points to political expediency or a lack of foresight during drafting.	Differentiate between routine administrative updates and core structural changes, potentially treating administrative provisions as "organic laws" that can be amended more easily than the Constitution itself.	• **High Amendment Frequency:** India has enacted 106 constitutional amendments in about 75 years, compared to only 27 amendments in the USA over 230+ years. • **Administrative Changes via Amendments:** Several amendments **(8th, 21st, 31st, 71st, 92nd, 96th, and 100th)** dealt mainly with changes to the **Eighth Schedule**, indicating the absence of a differentiated amendment process and contributing to constitutional inflation.
Shift in Power Balance	Frequent structural changes risk disturbing the delicate institutional balance between the Centre and States, or Parliament and the Judiciary.	Strengthen institutional guardrails by requiring pre-legislative impact assessments on how proposed amendments affect federal and inter-institutional balance.	• **99th Constitutional Amendment (2014):** Established the National Judicial Appointments Commission to replace the collegium system. • **Struck Down by Supreme Court (2015):** In Advocates-on-Record Association v. UoI, the Court invalidated the amendment for violating judicial independence, highlighting the risks of major structural changes without adequate institutional assessment.
The Basic Structure Debate	While the "basic structure" doctrine safeguards core values, its undefined and evolving scope invites ongoing legal and political friction.	Encourage collaborative dialogues between the Judiciary and Legislature to outline an indicative, clear list of principles that constitute the basic structure to guide future legislative drafting.	• **Repeated Judicial Invalidations:** The 39th Amendment (1975), parts of the 42nd Amendment (1980), and the 99th Amendment (NJAC, 2015) were struck down by the Supreme Court. • **Underlying Issue:** These cases highlight the continuing tension between Parliament's amendment power and the judiciary's evolving Basic Structure Doctrine.

Article 368 ensures that the Indian Constitution is neither a rigid monolith that breaks under the pressure of changing societal needs nor a malleable tool vulnerable to majoritarian whims. The Supreme Court's 'Basic Structure Doctrine' serves as the ultimate safety valve, ensuring that while the Constitution remains a 'living document' capable of reflecting progressive realities (like GST or Women's Reservation), its democratic, secular, and egalitarian soul remains immortal.

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9 Parliamentary vs Presidential form of Government

The Constitution of India provides for a parliamentary form of government both at the Centre and in the states. **Articles 74 and 75** deal with the parliamentary system at the Union level, while **Articles 163 and 164** contain provisions for the states. The bedrock of the Indian political setup is the principle of **collective responsibility** of the Executive (Council of Ministers) to the popular house of the Legislature (Lok Sabha/Vidhan Sabha), ensuring a 'responsible government' over a merely 'stable' one.

9.1 Comparison of Parliamentary System and Presidential System

Feature	Parliamentary System (Indian Context)	Presidential System (e.g., USA)
Executive Structure	**Dual Executive:** The President is the nominal executive (*de jure* head), while the Prime Minister is the real executive (*de facto* head).	**Single Executive:** The President is both the Head of State and the Head of Government.
Separation of Powers	**Fusion of Powers:** The executive is drawn from the legislature. Ministers must be Members of Parliament (or become one within 6 months).	**Strict Separation:** The executive and legislature are completely separate. The President's cabinet comprises non-legislators.
Accountability	**High Accountability:** The Council of Ministers is collectively responsible to the Lok Sabha (Article 75). They remain in power only as long as they enjoy majority support.	**Low Accountability:** The executive is not responsible to the legislature. They cannot be removed by a simple vote of no-confidence.
Tenure	**Uncertain:** The government can fall at any time if it loses the majority (via a no-confidence motion).	**Fixed:** The President and legislature are elected for a fixed term and can only be removed via a rigorous, quasi-judicial impeachment process.
Dissolution of Lower House	The Prime Minister can advise the President to dissolve the Lok Sabha before the expiry of its term to seek fresh elections.	The President cannot dissolve the lower house (e.g., the US House of Representatives).
Merits	• **Harmony between Legislature & Executive:** Reduces deadlocks as the executive is a part of the legislature and commands a majority. • **Prevents Despotism:** Power is dispersed among the Council of Ministers, and their survival depends on parliamentary scrutiny, preventing a dictatorship. • **Ready Alternative Government:** If the ruling party loses its majority, the President can invite the opposition to form the government without imposing immediate elections. • **Wide Representation:** Allows representation of diverse regions, castes, and communities in the executive, which is crucial for India's pluralistic society.	• **Stable Government:** The fixed tenure ensures the government can execute its vision without the constant threat of a no-confidence motion. • **Definiteness in Policies:** Stability allows for the formulation and execution of long-term developmental policies. • **Government by Experts:** The President can more easily appoint domain experts (technocrats) to lead ministries without worrying about their political electability.
Demerits	• **Unstable Government:** Prone to collapse due to defections or coalition withdrawals (e.g., frequent government collapses in the 1990s in India). • **No Continuity of Policies:** Frequent changes in government may lead to policy paralysis or reversal of previous policies. • **Executive dominance over legislature:** If a party enjoys an absolute majority, the cabinet can bypass rigorous legislative scrutiny (e.g., during the 1975 Emergency).	• **Conflict between Organs:** Frequent deadlocks between the President and the Legislature, especially if they are controlled by rival political parties. • **Non-Responsible:** The executive is not dependent on legislative confidence for survival. • **Autocratic Tendencies:** Concentrating massive power in the hands of a single individual carries the risk of authoritarianism.

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9.2 Why Did India Adopt the Parliamentary System?

During the Constituent Assembly debates, a Presidential system was proposed (notably by Prof. K.T. Shah), but the founding fathers chose the Parliamentary system for four primary reasons:

1. **Familiarity with the System:** India had grown accustomed to the parliamentary model introduced incrementally during British rule (e.g., the Government of India Acts of 1919 and 1935). K.M. Munshi argued that it would be unwise to discard a system functioning for decades.
2. **Preference for Responsibility over Stability**: Dr. B.R. Ambedkar explicitly stated that a democratic executive must satisfy two conditions: stability and responsibility. Since no system can guarantee both equally, the Assembly preferred daily and periodic accountability (via questions, debates, and elections) over the absolute stability of a Presidential system.
3. **Need to Avoid Legislative-Executive Conflicts:** An infant democracy struggling with partition, poverty, and integration could not afford the frequent deadlocks characteristic of the American system. A unified approach to nation-building was required.
4. **Nature of Indian Society:** India's extreme diversity (religious, linguistic, ethnic) required a system that could accommodate varied groups within the core power structure (the Council of Ministers), which a single Presidential executive might fail to provide.

9.3 Should India Switch to a Presidential System?

Arguments in Favour of a Switch:

- It would ensure political stability and end the culture of "horse-trading," defections, and coalition blackmail.
- It would allow the direct entry of technocrats and experts into governance instead of relying solely on career politicians.
- Relatively, it would force voters to choose a national leader based on a unified national agenda, rather than fragmented regional, caste, or religion-based voting.

Arguments Against a Switch (The Prevailing View):

- **Basic Structure Doctrine:** The Supreme Court (in the Kesavananda Bharati case, 1973) held that the Parliamentary system is a part of the 'Basic Structure' of the Constitution. Therefore, Parliament cannot amend it into a Presidential system.
- **Swaran Singh Committee (1976):** Formed to review the Constitution, this committee concluded that the parliamentary system has been doing well and there is no need to replace it.
- **Risk of Centralisation**: Given India's socio-economic vulnerabilities and vast inequalities, concentrating executive power in one individual could lead to authoritarianism and alienate marginalised regions.

While the parliamentary system in India has suffered from flaws like the criminalisation of politics, defections, and occasional instability, the solution lies in reforming the electoral process and strengthening intra-party democracy, rather than abandoning the system altogether. The Parliamentary framework, enshrined in **Articles 74 and 75,** with its inherent mechanism of daily accountability, remains best suited to accommodate the vast and pluralistic ethos of the Indian Republic.

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10 Emergency Provisions and Impacts

The Emergency provisions are enshrined in **Part XVIII (Articles 352 to 360)** of the Indian Constitution. Their primary rationale is to safeguard the sovereignty, unity, integrity, and security of the country, as well as the democratic political system. As Dr. B.R. Ambedkar noted in the Constituent Assembly, the Indian Constitution is unique because it can be **"both unitary as well as federal according to the requirements of time and circumstances."** During an emergency, the federal structure seamlessly converts into a unitary one without requiring a formal constitutional amendment.

UPSC Mains PYQs

1. Account for the legal and political factors responsible for the reduced frequency of using Article 356 by the Union Governments since mid-1990s. **(2023)**
2. Under what circumstances can the Financial Emergency be proclaimed by the President of India? What consequences follow when such a declaration remains in force? **(2018)**

10.1 Types of Emergency

Basis of Comparison	National Emergency (Article 352)	President's Rule (Article 356 & 365)	Financial Emergency (Article 360)
Grounds for Declaration	War, External Aggression, or Armed Rebellion (Replaced 'Internal Disturbance' via 44th CAA).	Failure of Constitutional machinery in a state (Article 356) or failure to comply with the Centre's directions (Article 365).	Threat to the financial stability or credit of India or any part of its territory.
Parliamentary Approval Timeframe	Must be approved within **1 month** of its issue.	Must be approved within **2 months** of its issue.	Must be approved within **2 months** of its issue
Type of Majority Required	**Special Majority** (2/3rd members present and voting + absolute majority of total membership).	**Simple Majority** (Majority of members present and voting).	**Simple Majority** (Majority of members present and voting).
Maximum Duration & Renewal	**Indefinite**, provided it is extended every 6 months by Parliament by a special majority.	Maximum of **3 years**, extended every 6 months. *(Beyond 1 year, requires an Election Commission certificate + National Emergency in operation).*	**Indefinite**, until revoked. No repeated parliamentary approval is required.
Impact on Fundamental Rights (FRs)	**Severe:** Article 19 is suspended automatically during emergencies based on War or External Aggression (Article 358). Enforcement of other FRs can be suspended by the President under Article 359, except *Articles 20 & 21.*	**No effect** on Fundamental Rights.	**No effect** on Fundamental Rights.
Impact on State Executive	State government continues to function, but the Centre gains overriding power to give executive directions on *any* matter.	State Council of Ministers is **dismissed**. The Governor administers the state on behalf of the President.	State government continues to function, but must follow the Centre's financial directives.
Impact on State Legislature	The State Legislature continues to function, but Parliament acquires concurrent power to legislate on State List subjects.	The State Legislature is either **suspended or dissolved**. Parliament passes the state budget and laws.	State Legislature functions, but the President can mandate that all State Money/Financial Bills be reserved for his consideration.

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Revocation Process	By the President at any time. **Mandatory revocation** if Lok Sabha passes a resolution by Simple Majority (requires 1/10th of members to give written notice).	By the President at any time. Subsequent parliamentary approval for revocation is **not required**.	By the President at any time. Subsequent parliamentary approval for revocation is **not required**.
Frequency of Use	**3 Times** (1962: China War, 1971: Pak War, 1975: Internal Disturbance).	**Multiple times** (Highly misused before the 1994 *S.R. Bommai* SC judgment).	**Zero.** (Never imposed in India, not even during the 1991 economic crisis or COVID-19 pandemic).

10.2 Evolution of Emergency Provisions

Amendment Act & Objective	Key Provisions & Changes
38th Amendment Act (1975) **Context: Centralising power during the Emergency.**	• **Ousted Judicial Review:** Excluded the satisfaction of the President under Article 352(1) from judicial scrutiny. • **Concurrent Emergencies:** Provided that the President could issue another proclamation of emergency even if one was already in existence.
42nd Amendment Act (1976) **Context: The "Mini-Constitution" enacted during the Emergency to establish executive supremacy.**	• **Controversial Nature:** Passed while most opposition leaders were detained under preventive detention laws. • **Executive Power:** Introduced sweeping changes intended to create a more powerful executive and place its actions completely outside the scope of judicial scrutiny.
44th Amendment Act (1978) **Context: Enacted by the post-Emergency Janata Government to undo the constitutional excesses of the 38th, 39th, and 42nd Amendments.**	**Grounds & Procedure for Emergency (Article 352):** • Substituted "**internal disturbance**" with **"armed rebellion".** • Mandated that the President can proclaim an emergency only on the written advice of the Cabinet. • Parliamentary approval now requires a **Special Majority** (previously Simple Majority). • **Imposed a periodic review:** Emergency must be renewed every 6 months (previously it was indefinite). • **Empowered 10% o**r more members of the Lok Sabha to initiate a resolution to disapprove the proclamation. **Fundamental Rights & Judiciary:** • **Articles 20 & 21 Safeguard:** Fundamental rights under Articles 20 and 21 cannot be suspended during an emergency (preserving the writ of Habeas Corpus). • **Preventive Detention: Intended to** reduce the maximum detention period without Advisory Board approval to 2 months from the earlier 3 months. ♦ Because the Central Government has never officially notified this specific provision, it was never enforced • **Judicial Review Reinstated:** Restored the Supreme Court's power of judicial review over emergency proclamations and election disputes.

Shah Commission of Inquiry (May 1977)	Key Findings
• Headed by Justice J.C. Shah (former CJI) to investigate Emergency excesses (25 June 1975–21 March 1977). • It examined misuse of government power, preventive detentions, press censorship, sterilisation drive and administrative abuse through public hearings, testimonies and official records. • Three reports were submitted during 1978–79.	• **Detentions:** 2,20,146 prisoners against capacity of 1,83,369; 1,26,772 undertrials. • **Sterilisation:** 1.07 crore operations, 548 complaints involving unmarried persons, 1,774 deaths. • **Forced Retirement:** 25,962 employees retired prematurely. • **Press Restrictions:** Electricity to Delhi newspaper offices cut. • **Content Control:** Parliamentary proceedings, judicial proceedings and court judgments censored. • **Media Classification:** Newspapers labelled as Friendly, Neutral or Hostile.

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Lessons from the Emergency

Lesson	Emergency Experience	Constitutional Amendment
Vague grounds for Emergency must be narrowed	**"Internal disturbance"** under Article 352 was vague and enabled Emergency for political survival.	**44th Amendment:** Replaced "internal disturbance"with "armed rebellion"; emergency grounds made objective and narrower.
Cabinet advice must be collective and written	Emergency was proclaimed on the PM's advice without prior Cabinet approval.	**Article 352(3) (44th Amendment):** President can proclaim Emergency only on written recommendation of the Cabinet.
Fundamental Rights cannot be suspended wholesale	**ADM Jabalpur (1976)** allowed suspension of judicial remedies even for Article 21 during Emergency.	**44th Amendment:** Articles 20 & 21 cannot be suspended even during Emergency; ADM Jabalpur overruled in K.S. Puttaswamy (2017).
Judicial independence must be protected	Supersession and transfers of judges created a "committed judiciary."	**Collegium System (Three Judges Cases)** evolved to insulate appointments; reaffirmed during NJAC (2015)judgment.
Legislature's term cannot be extended indefinitely	Lok Sabha's tenure was extended to postpone elections.	**44th Amendment:** Restored the 5-year term (Arts. 83 & 172); extensions allowed only during an actual Emergency and for a limited period.
Parliament's amending power is not unlimited	**42nd Amendment** attempted to make constitutional amendments beyond judicial review.	**Minerva Mills (1980):** Parliament's amending power is limited; Basic Structure Doctrine reaffirmed.
Press freedom requires institutional safeguards	Pre-censorship and government control over newspapers during Emergency.	Later rulings (Indian Express, 1985; Sahara India, 2012) strengthened protection against prior restraint and reinforced press freedom.
Article 356 requires judicial checks	President's Rule was frequently used for partisan dismissal of State governments.	**S.R. Bommai (1994):** Judicial review permitted; floor test, not Governor's opinion, determines majority.
Rights must be balanced with civic duties	Emergency debate emphasized discipline and civic responsibility.	**42nd Amendment:** Added Part IV-A (Article 51-A) containing Fundamental Duties (10, now 11), reinforcing constitutional morality.

10.3 Judicial Review & Landmark Judgments

The Judiciary has played a monumental role in checking the arbitrary use of Emergency provisions, especially Article 356.

- **Minerva Mills Case (1980):** The Supreme Court held that the proclamation of a National Emergency (Article 352) is not immune from judicial review. It can be struck down if it is proven to be malafide, absurd, or based on extraneous facts.
- **S.R. Bommai v. Union of India (1994):** The absolute bedrock judgement for Article 356.
  - It held that Article 356 is subject to judicial review.
  - The state assembly should only be dissolved after Parliamentary approval.
  - A floor test in the assembly is the only definitive test of a majority, not the Governor's subjective assessment.
  - Secularism is a "Basic Feature"; dismissing a state government for anti-secular acts is constitutionally valid.
- **Nabam Rebia Case (2016 - Arunachal Pradesh) & Harish Rawat Case (2016 - Uttarakhand):** The Supreme Court heavily came down on the Centre for the arbitrary imposition of Article 356, physically restoring the ousted state governments and ordered floor test restoration.
  - The Court ruled that the Governor's discretionary powers under Article 163 are limited and subject to judicial review.
- **Anuradha Bhasin Case (2020):** While dealing with the communication lockdown in J&K, the SC ruled that indefinite suspensions **(a quasi-emergency measure)** are impermissible. Any restriction on fundamental rights must pass the **Test of Proportionality.**

Test of Proportionality

The Test of Proportionality is a highly significant legal doctrine used by courts to determine whether a government's restriction on a **citizen's Fundamental Rights** is justified.

In simple terms, it means the government cannot use a "**sledgehammer to crack a nut.**" The restriction placed on a right must be proportionate to the goal the government is trying to achieve.

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In India, the Supreme Court formally adopted this test in the landmark **K.S. Puttaswamy v. Union of India (2017)** case (the Right to Privacy judgment) and extensively applied it in the **Anuradha Bhasin (2020)** case regarding internet shutdowns in Jammu & Kashmir.

Whenever a government action curtails a fundamental right (like Freedom of Speech, Movement, or Privacy), the courts test that action using a four-pronged framework.

To pass the test and be considered constitutional, the government's action must satisfy all four of the following conditions:

The 4 Prongs of the Proportionality Test

1. **Legality (Action backed by Law)** The restriction cannot be arbitrary or based on mere executive orders. It must be expressly backed by a valid, enacted law.
    - **Example:** You cannot restrict internet access just because a police officer wants to; it must be done under a specific law like the Telecom Suspension Rules.
2. **Legitimate State Aim (Need)** The law must seek to achieve a legitimate public or state interest.
    - **Example:** Preventing riots, protecting national security, or stopping the spread of a pandemic are legitimate aims.
3. **Rational Connection (Suitability)** There must be a logical link between the measure taken and the objective it aims to achieve. The restriction must actually help in solving the problem.
    - **Example:** If the goal is to catch a thief in a neighborhood, imposing a nationwide curfew has no rational connection to the goal.
4. **Necessity (Least Restrictive Alternative)** This is the most critical step. The government must prove that the measure they chose is the least intrusive way to achieve the goal. If there is an alternative method that achieves the same result while restricting rights less, the government must choose that alternative.
    - **Example:** If stopping a specific violent website is the goal, the government should block just that website (less restrictive) rather than shutting down the entire internet for the whole state (highly restrictive).

10.4 Way Forward: Commission Recommendations

- **Sarkaria Commission (1988):** Emphasised that Article 356 must be used sparingly and strictly as a **"measure of last resort"** only when all other constitutional avenues (like issuing warnings under Article 355) have been exhausted
- **Punchhi Commission (2010): Localised Emergency:** Recommended a constitutional framework for a "Localized Emergency" under Article 355. Instead of dismissing the entire state government and dissolving the assembly under Article 352 or 356, the Centre should be able to take control of only the specific troubled district/area to tackle the crisis locally → never constitutionally implemented
    - **Codification of Guidelines:** Suggested that the guidelines laid down in the S.R. Bommai judgement should be explicitly incorporated into the text of the Constitution to remove any lingering ambiguities.

The Emergency provisions are a necessary **"safety valve"** to protect the Indian Republic from existential threats. However, the transition from the era of frequent President's Rule (1970s-80s) to the current restrained approach demonstrates the maturation of Indian democracy. Strengthened by the 44th Amendment and the vigilant oversight of the Supreme Court **(*Bommai* and *Nabam Rebia* cases),** these provisions now function closer to Dr. Ambedkar's original vision- a dormant weapon strictly reserved for the ultimate defense of the Constitution, not a political tool for federal subversion.

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Comparison Of The Indian Constitutional Scheme With That Of Other Countries

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11 Comparisons with the USA, UK, France etc.

As Dr. B.R. Ambedkar famously remarked, the Indian Constitution was drafted after 'ransacking all the known Constitutions of the world'. However, it is not a blind plagiarism of Western models but a brilliant **eclectic synthesis**. It ingeniously blends the Parliamentary responsibility of the UK with the Judicial Supremacy of the USA, tailored specifically to manage the colossal diversity of the Indian subcontinent. India also borrowed from Ireland, Canada, Australia, Germany, South Africa, etc., to reinforce the "synthesis" idea.

11.1 India v/s United Kingdom (The Westminster Model)

India adopted the British Parliamentary system but completely rejected its foundational premise: the absolute sovereignty of Parliament.

UPSC Mains PYQs

1. Compare and contrast the British and Indian approaches to Parliamentary sovereignty. **(2023)**
2. The judicial systems in India and the UK seem to be converging as well as diverging in recent times. Highlight the key points of convergence and divergence between the two nations in terms of their judicial practices. **(2020)**

The British Core vs. The Indian Adaptation

Feature	United Kingdom	India	Indian adoption
Nature of the State	**Constitutional Monarchy:** The Head of State is a hereditary monarch.	**Republic:** The Head of State (President) is indirectly elected by the people.	India rejected hereditary privilege to ensure democratic equality at the highest office.
Sovereignty	**Parliamentary Sovereignty:** Parliament is supreme. No codified written constitution. Courts cannot strike down a law passed by Parliament.	**Constitutional Supremacy:** The Constitution is supreme. The Supreme Court can strike down laws via **Judicial Review** and the Basic Structure doctrine.	India recognised that an absolute parliament could lead to majoritarian tyranny over minorities, necessitating a written constitution and judicial checks.
Prime Minister	By convention, the PM **must** be a member of the Lower House (House of Commons).	The PM can be a member of **either House** (ex-PM Manmohan Singh was from the Rajya Sabha).	India provides greater executive flexibility to bring technocrats/ statesmen into the highest office.
Legal responsibility	Ministers are legally responsible and must countersign the King's orders.	**No legal responsibility.** Ministers do not countersign the President's orders.	Protects ministers from personal litigation, shifting accountability strictly to the floor of the House.

11.2 India v/s USA

UPSC Mains PYQs

1. Discuss India as a secular state and compare with the secular principles of the US constitution. **(2024)**
2. Analyse the distinguishing features of the notion of the Right to Equality in the Constitutions of the USA and India. **(2021)**
3. India and USA are the two large democracies. Examine the basic tenets on which the two political systems are based. **(2018)**

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Feature	USA	India	Indian adoption
Federal Structure	**Indestructible Union of Indestructible States.** States have their own Constitutions and dual citizenship.	**Indestructible Union of Destructible States"** (Article 3). A Single Constitution and single citizenship.	India adopted a "holding together" federation with a strong unitary bias to prevent balkanization.
Separation of Powers	**Relatively strict separation with checks and balances.** The executive is not part of the Legislature.	India: **Fusion of Powers.** The Executive (Council of Ministers) is an integral part of the Legislature, drawn from it, and responsible to it (Collective Responsibility).	The US prioritizes stability; India prioritizes daily accountability over stability to prevent executive concentration of power.
Residuary Powers	Vested in the **States** (10th Amendment).	Vested in the **Centre** (Article 248).	***Federalism focus:*** Shows India's inherent centralizing tendency during unforeseen legislative overlaps.
Judicial Appointments	**Politicized:** Nominated by the President, aggressively confirmed by the Senate based on ideology.	**Insulated (Collegium):** Judges appoint judges. The executive has minimal say.	The US favors democratic checks on judges; India prioritizes judicial independence (striking down the NJAC).
Amending the Constitution	**Extremely Rigid:** Requires ratification by **three-fourths (3/4)** of all States.	**Pragmatically Rigid:** Parliament can amend most parts alone. Only federal features require **one-half (1/2)** state ratification.	The US system gives massive veto power to states. India ensures cooperation with states for national progress.
Right to Equality	Strict numerical quotas are largely unconstitutional. The focus is on individual merit and "holistic diversity" rather than guaranteed reservations.	**Emphasizes substantive equality. The Constitution permits reservations and affirmative action (Articles 15(4), 15(5), 15(6), 16(4), 16(4A), etc.)**	Reflects India's commitment to substantive equality and social justice by enabling affirmative action to ensure equal opportunities for historically disadvantaged communities

11.3 India v/s France

UPSC Mains PYQs

1. Critically examine the procedures through which the Presidents of India and France are elected. **(2022)**
2. What can France learn from the Indian Constitution's approach to secularism? **(2019)**

Feature	France	India	Significance
Concept of Secularism	**Negative/Strict Separation (Laïcité):** State strictly separates religion from the public sphere.	**Positive Secularism:** State respects all religions and protects public display but intervenes to reform regressive practices.	French secularism protects the State *from* religion. Indian secularism protects *all religions* equally from State bias.
Form of Government	**Semi-Presidential System:** A powerful, directly elected President coexists with a Prime Minister responsible to Parliament.	**Strictly Parliamentary:** The President is a titular/nominal head; real executive power lies solely with the PM.	France created this hybrid to cure historical political instability. India trusted the pure parliamentary model to prevent authoritarianism.
Procedure of Presidential Election	• **Direct election** by universal adult suffrage in a two-round majoritarian system: a candidate is declared elected in the first round only on securing an absolute majority (50%+1) of votes cast; • Conducted under Article 7 of the French Constitution	• Indirect election by an Electoral College	• India's indirect election keeps the President as a de jure head.

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Judicial Architecture	• **Dual Administrative Law (*Droit Administratif*):** Separate administrative courts exist exclusively for disputes between citizens and the government.	• **Unified Judiciary:** The same Supreme Court and High Courts hear disputes between citizens and between citizens and the State.	• ***Rule of Law concept:*** India adopted the British "Rule of Law" (Article 14), ensuring the government does not get special treatment in separate courts.
Fraternity	• Originates from the French Revolution, focused heavily on political and national brotherhood.	• Adopted in the Preamble, but Dr. Ambedkar expanded it to mean **social brotherhood** (annihilation of caste) and the "dignity of the individual".	• In India, Fraternity is the precondition for Equality and Liberty, serving as an active tool against social hierarchies.

Comparative constitutional analysis highlights that while India has borrowed several institutional features from other democracies, it has adapted them to its unique historical, social and federal realities. This selective adaptation has enabled the Constitution to balance democratic governance, social justice, national unity and constitutional accountability, making it a distinct and resilient constitutional model.

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Functions and Responsibilities of the Union and the States, Issues and Challenges Pertaining to the Federal Structure, Devolution of Powers and Finances up to Local Levels and Challenges Therein

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12 Centre-State relations (Legislative, Administrative and Financial)

The Indian Constitution provides for a federal structure with a strong unitary bias. Granville Austin described it as **"Cooperative Federalism,"** while K.C. Wheare called it **"Quasi-Federal."** The Constitution regulates Centre-State relations across three domains: Legislative (Part XI), Administrative (Part XI), and Financial (Part XII).

UPSC Mains PYQs

1. To what extent is Article 370 of the Indian Constitution, bearing marginal note "Temporary provision with respect to the State of Jammu and Kashmir", temporary? Discuss the future prospects of this provision in the context of Indian polity. **(2016)**
2. Recent directives from the Ministry of Petroleum and Natural Gas are perceived by the 'Nagas' as a threat to override the exceptional status enjoyed by the State. Discuss in light of Article 371A of the Indian Constitution **(2013)**
3. Though the federal principle is dominant in our Constitution and that principle is one of its basic features, but it is equally true that federalism under the Indian Constitution leans in favour of a strong Centre, a feature that militates against the concept of strong federalism. Discuss. **(2014)**

12.1 Introduction to Indian Federalism

Federalism is a system of government where power is structurally divided between a central authority and constituent units (states/provinces). In India, **Article 1** of the Constitution describes India as a **"Union of States."** Crucially, the word **"Federation" is nowhere mentioned** in the Constitution. Dr. B.R. Ambedkar justified the term "Union" to signify two things:

1. The Indian Federation is *not* the result of an agreement among independent states (unlike the USA).
2. The states have *no right to secede* from the federation.

India represents a **"Holding Together"** federation, where a large, diverse nation consciously divides its power between the Centre and States to accommodate administrative convenience and regional diversity, as opposed to a **"Coming Together"** federation (like the USA) where independent states pooled their sovereignty.

Types/Models of Federalism

1. **Cooperative Federalism**
2. **Competitive Federalism**
3. **Asymmetric Federalism**
4. **Fiscal Federalism**

Asymmetric Federalism

- **Concept:** A system where all constituent states do not possess identical powers. The Constitution accommodates unique geographic, ethnic, or historical challenges by granting special status to certain regions.
- Enshrined in **Part XXI** of the Constitution ("Temporary, Transitional and Special Provisions"), **Articles 371 to 371-J** embody this principle, granting special provisions to 12 states (Maharashtra, Gujarat, Nagaland, Assam, Manipur, Andhra Pradesh, Telangana, Sikkim, Mizoram, Arunachal Pradesh, Goa, and Karnataka).

Type	Characteristics & Constitutional Examples
Vertical Asymmetry (Centre vs. States)	• The Union is indestructible; states are not. • States have no role in ratifying most constitutional amendments (only those affecting federal structure require 50% state ratification). • Existence of Union Territories (UTs) directly governed by the Centre.

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Horizontal Asymmetry (State vs. State)	• **Rajya Sabha Representation:** Unequal, based on population (e.g., UP has 31 seats; Sikkim has 1). • **Article 371 (A-J):** Special provisions for specific states (e.g., Naga customary laws in 371A; special development boards for Vidarbha/Saurashtra). • **5th & 6th Schedules:** Special administrative setups for tribal areas. The 6th Schedule creates Autonomous District Councils (e.g., in Assam, Meghalaya, Tripura, and Mizoram).
Among Union Territories	• **Delhi & Puducherry:** Have legislative assemblies and Chief Ministers. • **J&K:** UT with a legislature (currently under transition). • Other UTs (e.g., Lakshadweep, Andaman): No legislature; ruled purely by central Administrators/Lt. Governors.

Why Did India Adopt Asymmetric Federalism?

- **Protection of Cultural & Ethnic Identity:** Recognising that the tribal customary laws and land-holding systems of the Northeast are unique and pre-date the Indian Constitution (e.g., Nagaland and Mizoram).
- **Addressing Regional Imbalances (Developmental Asymmetry):** To prevent the neglect of historically backward regions within a developed state by creating special development boards and ensuring equitable allocation of funds (e.g., Vidarbha in Maharashtra, Saurashtra in Gujarat, and Kalyana in Karnataka).
- **Smooth Political Integration & Law & Order:** To manage the transition of newly integrated regions into the Indian Union (e.g., Sikkim) and to handle sensitive border states where the Governor is given special responsibilities for law and order (e.g., Arunachal Pradesh).

Cooperative vs. Competitive vs. Confrontational Federalism

UPSC Mains PYQs

1. How far do you think cooperation, competition, and confrontation have shaped the nature of federation in India? Cite some recent examples to validate your answer. **(2020)**
2. The concept of cooperative federalism has been increasingly emphasised in recent years. Highlight the drawbacks in the existing structure and the extent to which cooperative federalism would answer the shortcomings. **(2015)**

Paradigm	Concept & Mechanism	Recent Examples & Data
Cooperative Federalism	Centre and States act as partners (horizontal/mutual). Focuses on consensus-building, sharing resources, and national welfare. • **Institutions:** NITI Aayog (Governing Council includes all CMs), Inter-State Council (Article 263), Zonal Councils.	• **GST Council:** A constitutional body where the Centre (1/3rd vote) and States (2/3rd vote) jointly decide indirect taxes. • **COVID-19 Response:** Coordination in vaccine distribution and lockdown management. • **Tax Devolution: The** 16th Finance Commission mandated a 41% share of central taxes to states.
Competitive Federalism	States compete with each other and the Centre (Vertical & Horizontal). A bottom-up approach to attract investment, improve governance, and boost efficiency.	• **NITI Aayog Indices:** States are ranked on Ease of Doing Business (EoDB), Export Preparedness, and Health (SDG India Index). • **Investment Summits:** States like Gujarat (Vibrant Gujarat), UP, and Tamil Nadu independently hosting global summits to attract FDI. • **Aspirational Districts Programme:** 112 underdeveloped districts competing on real-time data metrics for health and education.
Confrontational Federalism (The Challenge)	Friction resulting from the Centre transgressing perceived State domains, or vice versa. Often driven by opposing political party control.	• **Governors vs. State Legislatures:** Recent Supreme Court interventions (2023-2024) where states like Kerala, Tamil Nadu, and Punjab sued their Governors for indefinitely withholding assent to bills. • **CBI Jurisdiction:** Over 9 states (including Punjab and Kerala) have withdrawn "general consent" to the CBI. • **Financial Disputes:** Clashes over delays in GST compensation, reductions in borrowing limits, and the use of central agencies (ED/CBI).

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12.2 Features of Indian Federalism

Federal Features (Promotes State Autonomy)	Unitary Features (Promotes Strong Centre)
Dual Polity: Clear existence of Union and State governments.	**Single Constitution & Citizenship:** States do not have their own constitutions or citizenship (unlike the USA).
Written Constitution & Supremacy: Limits the powers of both the Centre and States.	**Emergency Provisions:** Converts the federal structure into a unitary one overnight without formal amendment (Articles 352 & 356).
Division of Powers: The 7th Schedule divides subjects into Union, State, and Concurrent lists.	**Overriding Legislative Power: The** Centre has residuary powers (Article 248) and overrides states in the Concurrent List.
Independent Judiciary: The Supreme Court acts as the umpire in Centre-State disputes (original jurisdiction under Article 131).	**All India Services:** IAS, IPS, and IFoS are recruited by the Centre but serve the states, providing centralised administrative control.

Indian federalism is a unique **"holding together"** federation that balances state autonomy with a strong Centre to safeguard national unity and administrative efficiency. Its flexible design has enabled India to accommodate vast regional diversity while preserving constitutional stability and cooperative governance.

12.3 Centre - State Relations

Relations between Centre and States

Centre-State Relations

- **Legislative Relations** (Article 245-255)
- **Administrative Relations** (Article 256-263)
- **Financial Relations** (Article 268-293)

Indian Constitution followed Canadian precedent, opting for a strong Union/Centre.

- Under Article 246, all the subjects are divided into Union, **State** and concurrent List.

Under **Article 253,** Parliament has power to make any law for the whole or any part of the territory of India for **implementing treaties and international agreements** and **conventions.**

State Legislature can pass certain bills regarding the imposition of reasonable restrictions on the **freedom** of **trade commerce** and **intercourse** within the **State** in **Public Interest** with previous consent of **President.**

Part XI-Chapter I (Article 245 to 255)

Legislative Relations

• **Article 245**	Extent of laws made by Parliament and by the legislatures of the States
• **Article 246**	Subject matter of laws made by Parliament and by the legislatures of the States
• **Article 247**	Power of Parliament to provide for the establishment of certain additional courts
• **Article 248**	Residuary powers of legislation
• **Article 249**	Power of Parliament to legislate with respect to a matter in the state list in the national interest
• **Article 250**	Power of Parliament to legislate with respect to any matter in the state list if a Proclamation of Emergency is in operation
• **Article 251**	Inconsistency between laws made by Parliament under Article 249 and 250 and laws made by the legislatures of States.
• **Article 252**	Power of Parliament to legislate for two or more states by consent and adoption of such legislaturs by any other State
• **Article 253**	Legislation for giving effect to international agreements
• **Article 254**	Inconsistency between laws made by Parliament and laws made by the legislatures of the State
• **Article 255**	Requirements as to recommendations and previous sanctions to be regarded as matters of procedure only

- In case of conflict between **Central law** and **State law** on a subject of concurrent list, **Central law** prevails except when, **State law** has been **reserved** for **President's consent** and received his **consent.**
- In case of **any overlapping** between jurisdiction Union list and **State** list or **Concurrent list, Union list prevails** and between concurrent list and state list, concurrent list prevails.

Special Conditions

Article 249	If **Rajya Sabha** passes a resolution supported by not less than 2/3rd of its members present and voting that in the national interest, Parliament should make laws on subjects enumerated in the **State list.** The resolution remains in force for one year, though it can be renewed any number of times. The law remains in force till the expiration of six months after **resolution** ceases to be in force.
Article 250	**Parliament** can **legislate** on **State subjects** during **proclamation** of **emergency.** However, such laws will cease to exist on the expiration period of six months after the proclamation has ceased to operate.
Article 252	**Parliament** can legislate on **State** subjects

Article 253	If the legislature of **two or more states** adopt a resolution that it is lawful of Parliament to make laws on any state subject applicable to them.
Article 356	The Parliament can make law for the whole or any part of the territory of India for implementing any treaty, international agreement or convention with any other country.
	The President can also authorise the Parliament to exercise the powers of the State legislature during the proclamation of President Rule. All such laws remain in force even after President Rule ends. Though, such laws can be amended or repealed by State legislature after President Rule ends.

Chapter II (Part XI)

Administrative Relations (Article 256 to 263)

• **Article 256**	Obligation of States and the Union	• **Article 260**	Jurisdiction of the Union in relation to territories outside India
• **Article 257**	Control of the Union over States in certain cases	• **Article 261**	Public acts, records and judicial proceedings
• **Article 258**	Power of the Union to confer powers, etc on states in certain cases	• **Article 262**	Adjudication of disputes relating to waters of interstate rivers or river valleys
• **Article 258A**	Power of the States to entrust functions to the Union	• **Article 263**	Provisions with respect to an Inter-State Council

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Seventh Schedule

Union List

- Comprises of **100 subjects** (earlier 97)
- Parliament has exclusive power to frame laws over these subjects
- Some important subjects include : Defence, Arms and ammunitions, Citizenship, Railways, Banking and Finance Corporations, Stock Exchanges and any other matter not mentioned in list II or III (residuary powers)

State List

- Comprises of **61** subjects (earlier 66)
- Under normal circumstances, State alone can make laws over the subjects mentioned in the list
- Some important subjects include : Police, Public health and sanitation, Land revenue, Taxes on consumption or sale of electricity, Taxes on Luxuries etc

Concurrent List

- Comprises of **52 subjects** (earlier 47)
- Both the Parliament and State Legislature can make laws over the subjects mentioned in **Concurrent list.**
- Some important subjects include : criminal law, marriage and divorce, prevention of cruelty to animals, forests, protection of wild animals, economic and social planning, trade unions etc.

Comparative Analysis

Article 355

- It is the **duty** of the Union to protect States against external aggression and internal disturbance
  - → Imposition of **Article 352**
- It is also the duty of the Union to ensure that the Government of each State is carried on in accordance with the provisions of the Constitution

Article 365

- If the States fail to comply with or to give effect to any directions given by the Union, the President can hold the opinion that the Government of the State is not carried on in accordance to the provisions of the Constitution
  - → Imposition of **Article 356/ President Rule**

Directives given by the Union to the States

To maintain means of communication of national importance like Railways, Ports	To ensure welfare of scheduled tribes in the States	To secure instructions in mother tongue at primary stage of education	To ensure compliance of States to constitutional provisions	To ensure development of Hindi

The centre can direct the state government to ensure the development of Hindi to secure instructions in mother tongue at primary stage of education and to ensure the welfare of scheduled tribes in the State.

Part XII (Article 268 to 293)
Finance, Property Contracts and Suits
Distribution of Revenue between the Union and the States

• **Article 268**	Duties levied by the Union but collected and appropriated by the States	• **Article 277**	Savings	• **Article 286**	Restrictions as to imposition of tax on the sale or purchase of goods
• **Article 269**	Taxes levied and Collected by the Union but assigned to the States	• **Article 279**	Calculation of net proceeds, etc.	• **Article 287**	Exemption from taxes on electricity
• **Article 270**	Taxed levied and distributed between the Union and the States	• **Article 280**	Finance Commission	• **Article 288**	Exemption from taxation by States in respect of water or electricity in certain cases
• **Article 271**	Surcharge on certain duties and taxes purposes of the Union	• **Article 281**	Recommendations of the Finance Commission	• **Article 289**	Exemption of property and income of a State from Union taxation
• **Article 273**	Grants in lieu of export duty on jute and jute products	• **Article 282**	Expenditure defrayable by the Union or a State out of it's revenues	• **Article 290**	Adjustment in respect of certain expenses and pensions
• **Article 274**	Prior recommendation of President required to bills effecting taxation in which States are interested	• **Article 283**	Custody, etc of Consolidated Funds, Contingency Funds and money credited to the Public Accounts	• **Article 290A**	Annual payment to certain Devaswom funds
• **Article 275**	Grants from the Union to certain states	• **Article 284**	Custody of suitors' deposits and other moneys received by public servants and courts	• **Article 292**	Borrowings by the Government of India
• **Article 276**	Taxes on professions, trades, callings and employments	• **Article 285**	Exemption of property of the Union from State taxation	• **Article 293**	Borrowings by States

Domain of Relation	Normal Constitutional Framework (Division of Power)	Mechanisms of Central Control & Coordination	Exceptional Central Overreach (Encroachment)
Legislative Part XI (Articles 245–255)	• **Territorial Extent: The** Parliament legislates for India (including extra-territorial); State legislates for its territory. • **7th Schedule:** Divided into Union, State, and Concurrent Lists. • **Residuary Powers**: Vested in the Centre (Article 248).	• Governor can reserve state bills for the President's consideration (Article 200). • **Prior Sanction:** Certain state bills (e.g., restricting interstate trade) require the President's prior approval before introduction.	Parliament can legislate on State List under 5 conditions: 1. Article **249:** Rajya Sabha resolution (2/3rd majority). 2. Article **250:** During National Emergency. 3. Article **252:** Request by two or more states. 4. Article **253:** Implementing international treaties. 5. Article **356:** President's Rule.

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Administrative Part XI (Articles 256–263)	• **Co-extensive Power:** Executive power aligns with legislative power. • **Obligation of States:** States must ensure compliance with Central laws (Article 256) and must not impede the Centre's executive power (Article 257).	• **Central Directives:** Centre can issue binding directions on communication infra, railways, and linguistic minorities. • **Unified Services:** All India Services (Article 312) serve states but ultimate control lies with the Centre. • **Coordination Bodies:** Inter-State Council (Article 263) and Zonal Councils.	• **Coercion (**Article **365):** If a state fails to comply with Central executive directions, it is deemed a failure of constitutional machinery. • **President's Rule:** This failure directly invites the imposition of President's Rule under Article 356, giving the Centre full administrative control.
Financial Part XII (Articles 268–293)	• **Taxation Powers:** Clearly delineated. Article 246A (101st Amendment) grants concurrent power to Centre and States for GST. • **Revenue Devolution: The** Finance Commission (Article 280) recommends vertical (Centre to States) and horizontal (among States) distribution of net tax proceeds.	• **Grants-in-Aid:- Statutory Grants (**Article **275):** For states in need, charged on CFI. • **Discretionary Grants (**Article **282):** Given for public purposes at the Centre's discretion. • **Borrowing Restrictions (**Article **293):** States are barred from borrowing externally.	• **Internal Borrowing Veto:** A state cannot borrow internally without the Centre's consent if it has any outstanding loan from the Centre (which effectively applies to all states). • **Financial Emergency (**Article **360):** Centre can dictate financial propriety and reduce state salaries.

Principles for Interpreting the Seventh Schedule

Doctrine	Meaning / Basis	Core Principle / Test	Recent Landmark Case
Doctrine of Pith and Substance	Determines the true nature and character of legislation rather than its form or incidental effects. **Basis:** Articles 245–246 and the Seventh Schedule.	If a law substantially falls within the legislature's competence, incidental encroachment into another List does not invalidate it.	**Union of India v. Future Gaming Solutions Pvt. Ltd. (2025):** The Supreme Court held that lotteries fall under "betting and gambling" (Entry 62, State List); hence, the Centre cannot levy service tax on lottery distributors, applying the **Doctrine of Pith and Substance. Parliament's** residuary power cannot override an express State List entry.
Doctrine of Federal Supremacy (Repugnancy)	Where a valid Union and State law conflict on a Concurrent List subject, the Union law prevails and the State law becomes void to the extent of repugnancy. **Basis:** Articles 246, 251, 252 & 254 (primarily Article 254).	Repugnancy exists only when there is direct and irreconcilable conflict, both laws occupy the same field, and obedience to one results in disobedience of the other (M. Karunanidhitest).	**Forum for People's Collective Efforts v. State of West Bengal (2021):** The Supreme Court struck down WB-HIRA, 2017 as repugnant to the central RERA, 2016 under Article 254(1), holding that both laws occupied the same Concurrent List field, making it a landmark application of the Doctrine of Repugnancy.

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Doctrine of Harmonious Construction	Apparent conflicts between constitutional or statutory provisions should be reconciled so that both provisions operate harmoniously. **Basis:** Judicial rule of interpretation.	Courts should avoid conflict, reconcile provisions wherever possible, and avoid rendering any provision redundant.	**M.K. Ranjitsinh v. Union of India (2024):** The Supreme Court harmonized Articles 14 and 21 by recognizing a right against the adverse effects of climate change, balancing environmental protection with developmental and energy needs, exemplifying the Doctrine of Harmonious Construction.
Doctrine of Colourable Legislation	Legislature cannot do indirectly what it cannot do directly; substance prevails over form. **Basis:**Articles 245–246 and the Seventh Schedule.	Legislative competence is examined, not legislative motive; if a legislature lacks competence, it cannot disguise the legislation through indirect means.	**Animal Welfare Board of India v. Union of India (Jallikattu Case, 2023):** The Supreme Court upheld the Tamil Nadu Jallikattu Amendment Act, 2017, rejecting the colourable legislation challenge and holding that legislative competence and true effect - not motive - determine constitutional validity.
Doctrine of Ancillary/ Incidental Powers	Legislature possesses incidental powers necessary for the effective exercise of its principal legislative power.	Legislative power extends to matters reasonably connected with the principal subject; incidental powers must be proximate, not remote.	**Union of India v. Future Gaming Solutions Pvt. Ltd. (2025):** While primarily a Pith and Substance case, the Supreme Court held that Parliament's residuary/ancillary power (Article 248 & Entry 97, List I) cannot override a specific State List entry, reaffirming the limits of the Doctrine of Ancillary Powers.

Evolution of Fiscal Transfers

Era	The Dynamics of Financial Relations	Impact on Fiscal Federalism
The Planning Commission Era (1950-2014)	• **Institutional Overlap:** The constitutional Finance Commission (FC) was marginalised by the extra-constitutional Planning Commission. • **Plan vs. Non-Plan:** Financial transfers were rigidly divided into 'Plan' (developmental) and 'Non-Plan' expenditures.	• **Centralised Dominance:** Discretionary grants under Article 282 (controlled by the Centre/Planning Commission) vastly overshadowed statutory grants under Article 275, making states heavily dependent on the political goodwill of the Centre.
The NITI Aayog Era (2015-Present)	• **Dismantling the Hierarchy:** The Planning Commission was abolished, ending the artificial 'Plan vs. Non-Plan' dichotomy. NITI Aayog acts as a think tank, not a fund allocator.	• **Restoring Constitutional Balance:** The Finance Commission regained its absolute primacy in determining tax devolution, shifting the focus towards rule-based, formulaic transfers.

The Constitutional and Legal Framework for Fiscal Consolidation

Fiscal consolidation refers to the policies undertaken by governments to reduce their deficits and accumulation of debt stock.

- **FRBM Act, 2003:** Acts as the statutory anchor for deficit reduction. The current glide path targets a Union fiscal deficit of 4.5% by 2025-26 and 3.5% by 2030-31.
- **Article 293(3) of the Constitution:** Mandates that states must obtain the Union's consent to borrow if they have outstanding central loans.
  - The 16th FC strictly enforces this to cap State fiscal deficits at **3% of GSDP**.

Curbing Off-Budget Borrowings: The 16th FC mandates integrating all hidden liabilities into state budgets. The CAG is tasked with standardised annual reporting of these liabilities, closing loopholes that states use to bypass FRBM limits.

12.4 GST Council and Fiscal Federalism

The GST Council is a joint constitutional forum of the Centre and the States, established to govern the Goods and Services Tax (GST) - a destination-based indirect tax aimed at creating a **'One Nation, One Tax'** system.

Constitutional Mandate: Inserted by the **101st Constitutional Amendment Act, 2016,** under **Article 279A**.

Objective: To pool the fiscal sovereignty of the Centre and States, ensuring a harmonised indirect tax structure across the country.

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Fiscal federalism

Refers to how federal, state, and local governments share funding and administrative responsibilities within India's federal system.	It is often associated with three broad principles i.e. Fiscal Equivalency, Decentralization theorem, and Principle of Subsidiarity.

Constitutional Provisions defining India's Fiscal Federalism Arrangement

Seventh Schedule:	Distribution of Revenue:	Grants-in-Aid:	Borrowings	Finance Commission
Tax Bases Delineated in Union and State Lists (Article 246)	› Article 269: Taxes levied and collected by Centre, assigned to states. › Article 269-A: GST in inter-state trade. › Article 270: Taxes distributed between Union and states per Finance Commission	To states by Centre as per Article 275.	› Union can borrow domestically or internationally (Article 292). › State can only borrow domestically (Article 293).	constituted to adjudicate sharing of resources between Union and States (Article 280).

Centre – State Financial Issues

Borrowing Limits:	Vertical Imbalance:	Expenditure Burden:	Cess Revenue:	Grants Decline:
States restricted to borrowing 3% of GSDP (15th Finance Commission). ** Note: Followed a glide path from 4% down to 3% by 2023-26	Centre controls major taxes; states limited to SGST (post-GST).	States' developmental spending rose from 8.8% (2004-05) to 12.5% (2021-22) of GDP.	Cess and surcharge collections (~14-20% of GTR) not shared with states.	Central grants (specifically Revenue Deficit Grants) dropped from ₹1.95 lakh crore (2015-16) to ₹1.65 lakh crore (2023-24)

GST Council

Enshrined under **Article 279A** via the **101st Constitutional Amendment,** the **GST Council** is India's first truly federal decision-making institution. It represents a historic leap of faith into **'pooled sovereignty',** where the Union and the States voluntarily surrendered their exclusive taxation domains to forge a unified national market. However, the Council currently navigates a fragile equilibrium, caught between the constitutional ideal of cooperative federal consensus and the centralising realities of fiscal majoritarianism.

Dimension	Details	Impact
Basic Structure & Composition (Article 279A)	• **Chairperson:** Union Finance Minister. • **Members:** Union Minister of State for Finance + Finance/Tax Ministers of all States/UTs.	• Institutionalises "cooperative federalism" by forcing the Centre and all 28 States to sit at the same table to decide tax policy
Voting Architecture & Central Veto	• **Centre's Weight:** 1/3rd of the total votes. • **States' Weight:** 2/3rd (distributed equally among all states). • **Decision Threshold:** Requires a 75% majority.	• **De Facto Veto:** No resolution can pass without the Centre's support (due to its 33.3% share). Even if all 28 states agree, they cannot pass a decision, reducing a federal forum to what critics call an "appendage of the Union Executive."
Loss of Fiscal Autonomy	• States surrendered roughly 44% of their own-tax revenue mechanisms (VAT, Octroi, etc.) to join the GST regime.	• States lack the fiscal flexibility to adjust tax rates during local economic crises, natural disasters, or post-pandemic stress.
Unshared IGST & Divisible Pool	• Under Article 269A, IGST is levied on interstate commerce. IGST constitutes about 55% of total GST collections.	• Large sums (e.g., ₹2.4 Lakh crore in 2021-22) have historically remained in the "undistributed IGST black box", severely impacting fund-starved states.
GST Compensation Fund Expiry	• States originally agreed to GST on a 5-year revenue compensation guarantee, which expired in June 2022.	• Despite pleas for an extension, the Centre refused. Consequently, states face massive revenue shortfalls (fiscal cliffs) without the power to adjust rates.
Consumer vs. Producer Disparities	• GST is a destination-based consumption tax.	• It structurally harms manufacturing/producer states and rewards consumer states. For instance, Southern states contribute highly to direct/indirect taxes but receive a lower proportion from the central divisible pool.
Reliance on Cesses/Surcharges	The Union government increasingly relies on cesses and surcharges.	These are not shared with states via the Finance Commission pool, further shrinking the states' legitimate share of national revenues.

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Challenges

Challenge	Description
The Loss of State Fiscal Autonomy	Before GST, states could raise VAT or excise duties to fund emergency relief (e.g., floods, pandemics) or fulfil local welfare manifestos. Today, they cannot alter tax rates without the Council's approval, leaving them financially paralysed during crises.
The Missing Dispute Resolution Mechanism	Article **279A(11)** explicitly mandates the Council to establish a mechanism to adjudicate disputes between the Centre and States, which has not yet been established.
The Veto and Political Partisanship	Opposition-ruled states allege that the Centre uses its **33.33% veto** weightage, combined with the votes of ruling party states, to steamroll decisions (like the taxation of essential goods or online gaming), bypassing genuine consensus.

Judicial Interventions & The Transition to "GST 2.0"

Aspect	Context & Recommendations	Significance for Federalism
Judicial Pushback: The Mohit Minerals Case (2022)	The Supreme Court ruled that GST Council recommendations hold only persuasive value, not binding force. Under Article 246A, Parliament and State legislatures have "simultaneous" and "equal" power to legislate on GST.	Reaffirmed India's federal architecture. It reminded the Centre that the GST Council must be a space for "collaborative dialogue", not coercive central dictation.
GST 2.0: Justice Kurian Joseph Committee Report	A recent expert committee warned that the current GST framework has eroded the fiscal autonomy of States, advocating for a second generation of reforms (GST 2.0).	Highlights that GST is not just a technical tax mechanism but a constitutional arrangement requiring continuous balance between integration and autonomy.
Reforming Voting Weights	**Recommendation:** Reduce the Union's vote share to 20%, or adopt a "one member, one vote" model.	Treats the Union as an equal partner rather than a dominant promoter, ensuring true consensus.
Rotational Chairpersonship	**Recommendation:** Rotate the GST Council chair annually between the Union and State Finance Ministers (similar to the European Union model).	Democratises the agenda-setting process, preventing the Centre from monopolising discussions.
Fiscal Flexibility (Rate Bands)	**Recommendation:** Allow States to vary their SGST component within a narrow, pre-defined band (e.g., +/- 2%).	Gives states the critical fiscal agency needed to raise emergency funds without breaking the national macro-tax structure.
Independent Dispute Resolution	**Recommendation:** Establish an independent GST Dispute Settlement Authority chaired by a retired Supreme Court judge.	Neutrally resolves Union-State fiscal conflicts, bypassing the built-in Central veto of the Council.

Way Forward

Reform Area	Description
Operationalising the Independent Tribunal	Immediately finalise the formation of the **GST Appellate Tribunal (GSTAT)** with predominantly judicial (rather than technical) members to resolve Centre-State revenue disputes outside of the highly politicised Council meetings.
Democratizing the Voting Structure	To reduce the perception of a Central dictatorship, experts recommend amending the weightage to require the affirmative vote of at least 50% of the States (14 states) alongside the Centre's vote for any decision to pass, preventing a few large states and the Centre from bullying smaller states.
State-Specific Emergency Levers	Introduce a Constitutional provision allowing states to levy a temporary micro-cess (e.g., 1%) on GST within their own borders strictly for notified natural disasters, restoring a sliver of fiscal autonomy without breaking the national supply chain.
Rate Rationalization & Exemptions	The Council must transition from the complex multi-slab structure (5%, 12%, 18%, 28%) to a simplified three-slab structure (as recommended by various economic committees) to boost compliance, reduce classification disputes, and increase the overall revenue pie for states.

The GST Council was envisioned as the apex temple of cooperative federalism, built on the premise of mutual trust and pooled sovereignty. However, the Supreme Court's Mohit Minerals judgement serves as a stark reminder that the Council's survival depends not on constitutional coercion but on political statesmanship.

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12.5 Centre-State Friction Points

UPSC Mains PYQs

1. Examine the evolving pattern of Centre-State financial relations in the context of planned development in India. How far have the recent reforms impacted the fiscal federalism in India? **(2025)**
2. What changes has the Union Government recently introduced in the domain of Centre-Stare relations? Suggest measures to be adopted to build the trust between the Centre and the States and for strengthening federalism. **(2024)**

Friction Point	Explanation	Recent Examples	Way Forward
Misuse of the Concurrent List	• Centre enacts laws on Concurrent subjects without consulting states, undermining cooperative federalism.	• **Farm Laws (Repealed):** Passed without adequate state consensus. • **NEP 2020:** Strong resistance from states like Tamil Nadu over the Three-Language Formula and centralization of higher education.	• **Revitalise the Inter-State Council (ISC):** Make the ISC a permanent, active body meeting thrice a year (as per Sarkaria Commission) to build consensus before drafting legislation.
Governor's Assent to the State Bills	• Article 200 lacks a specific time limit for giving assent to state bills, leading to indefinite stalling and legislative paralysis.	• **SC Intervention (2023-24):** Kerala, Tamil Nadu, and Punjab governments approached the SC against their respective Governors for withholding assent to crucial university and public health bills for years.	• **Judicial Oversight & Guidelines:** The SC explicitly ruled that Governors cannot act as *"unelected parallel governments."* Implement **Punchhi Commission recommendations** to fix a 6-month time limit for bill assent.
Partisan Role of the Governor	• Discretionary powers regarding government formation, floor tests, and dissolution of assemblies are often misused to favour the ruling party at the Centre.	• **Maharashtra Crisis (2023)**: The SC strongly criticised the then-Governor for calling for a floor test without objective material, stating Governors cannot enter the political thicket. • **Jharkhand (2024):** Controversies over delays in inviting the majority coalition to form the government.	• **Reforming the Office:** Implement Punchhi Commission guidelines: fixed 5-year tenure, removal via an impeachment-like process (not just "pleasure of the President"), and codified rules for floor tests.
Weaponisation of Central Agencies	• States allege the Centre uses the CBI, ED, and NIA to destabilise elected state governments and target political opponents.	• **Withdrawal of General Consent:** Around 9 states (including Punjab and Kerala) have withdrawn the "General Consent" mandated under the DSPE Act for the CBI to operate in their jurisdictions.	• **Institutional Autonomy:** Establish independent oversight committees for Central agencies to ensure political neutrality and adherence to the rule of law.
Unilateral Deployment of CAPFs	• Centre deploys Central Armed Police Forces (CAPFs) for public order (a State subject) without state consultation.	• **BSF Jurisdiction Extension:** The Centre unilaterally extended the BSF's jurisdiction from 15 km to 50 km inside the international borders of Punjab, West Bengal, and Assam (on the ground of national security), heavily opposed by Punjab and WB.	• **Cooperative Security:** Deployment should ideally be done with the state's consent. Article 355 should be used strictly as a "measure of last resort.

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Proliferation of Cesses & Surcharges	• The Centre increasingly relies on cesses (e.g., Agriculture Infrastructure Cess), which bypass the "divisible pool", shrinking the states' actual share of revenue.	• **The Missing 41%:** While the 15th Finance Commission recommended a 41% devolution, the effective devolution to states was practically around 31-32% because cesses and surcharges constituted over 20% of the Centre's gross tax revenue.	• **Financial Equity:** Rationalize the use of cesses; cap them at a certain percentage of total tax revenue, or make a portion of them shareable with the states via constitutional amendment.
The North-South Divide (Horizontal Devolution)	• Southern states protest that the Finance Commission penalises them for successful demographic management, as "population" remains a heavily weighted criterion.	• **"Tax Return" Protests:** States like Karnataka and Kerala recently protested in Delhi, highlighting that for every ₹100 they contribute in direct taxes, they receive back relatively less (₹15-₹30), compared to northern states receiving over ₹200.	• **Balanced Devolution:** The Finance Commissions must strike a careful balance between "equity" (helping poorer states) and "efficiency" (rewarding performing states).
Stringent Borrowing Restrictions	• The Centre imposes Net Borrowing Ceilings (NBC) on states under Article 293, restricting their ability to raise funds for capital and welfare expenditures.	• **Kerala vs. Union of India (2024):** Kerala filed a historic suit in the SC under Article 131, arguing that the Centre's borrowing limits were arbitrarily choking the state's finances and violating fiscal federalism.	• **Consensus-Based Approach:** Adopt the GST Council's consensus-based model to resolve broader fiscal disputes and borrowing limits, treating states as equal economic partners.

12.6 Commissions on Centre-State Relations: A Comparative Overview

Commission & Year	Summary & Core Philosophy	Recommendations on Governor's Office	Other Key Recommendations
Administrative Reforms Commission (ARC) (1969)	• Concluded that the existing constitutional provisions were sufficient to regulate federal tensions → Focused on functional & behavioural changes rather than constitutional amendments. • Gave 22 specific recommendations.	• Must be a non-partisan person. • Must have long experience in public life and administration.	• Establishment of an Inter-State Council under Article 263. • Maximise the delegation of powers to the states. • Transfer of more financial resources to the states to reduce dependency.
Sarkaria Commission (1983 - Submitted 1988)	• Conducted a massive review of legislative, administrative, and financial relations. • Aimed to protect the autonomy of states while maintaining a strong Centre to preserve national unity.	• Should be eminent in some walk of life and from outside the state. • Should be a detached figure without intense political links and not a member of the ruling party. • Appointed after effective consultation with the State CM, Vice President, and Lok Sabha Speaker. • Removed before tenure ends only on rare constitutional grounds or if aspersions are cast on their morality/dignity.	• Article 356 (President's Rule) must be used very sparingly, only as a "measure of last resort". • Recommended the setup of a permanent Inter-State Council (eventually established in 1990). • Strongly supported the retention and strengthening of All-India Services. • Residuary powers of taxation should remain with the Centre, but other residuary powers should go to the Concurrent List.

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Punchhi Commission (2007 - Submitted 2010)	• Formed to relook into issues examined by Sarkaria, factoring in the era of coalition politics, economic liberalisation, and new internal security challenges.	• Should have stayed away from active politics (even locally) for at least two years prior to appointment. • Appointment via a broad Committee: PM, Home Minister, LS Speaker, State CM, and Vice President. • Fixed tenure of 5 years.The "Doctrine of Pleasure" should be deleted from the Constitution. • Provision for impeachment of the Governor by the state legislature (similar to the President's removal).	• Proposed "Localised Emergency": Invoking Articles 355/356 only for specific troubled districts/areas rather than dismissing the entire state government. • Recommended setting up an Inter-State Trade and Commerce Commission under Article 307. • Guidelines for Chief Minister selection when no party has a clear majority (to prevent Governor's arbitrary discretion).

Indian federalism is an evolving, asymmetric arrangement tailored to the nation's unique socio-political realities. While a "strong Centre" was historically necessary to ensure national integration, the maturation of Indian democracy demands that states be treated as equal partners. Shifting from a paradigm of "subordination" to one of genuine "cooperation and collaboration" is essential for India's inclusive growth and the realisation of its constitutional ethos.

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13 Inter-State Water Disputes

Inter-state water disputes in India arise when two or more states contest the sharing and use of river waters flowing across political boundaries. Driven by uneven rainfall, growing agricultural demand, and climate change, these disputes pose a major challenge to cooperative federalism and sustainable resource management.

Although water is primarily a State subject under the Constitution, the Union is empowered to regulate inter-state rivers in the national interest. To address such conflicts, Article 262 provides a special constitutional mechanism for adjudication, leading to the enactment of the Inter-State River Water Disputes Act, 1956. However, delays, ad-hoc tribunals, and procedural inefficiencies continue to weaken the effectiveness of the existing framework.

UPSC Mains PYQs

1. Constitutional mechanisms to resolve the inter-state water disputes have failed to address and solve the problems. Is the failure due to structural or process inadequacy or both? Discuss. **(2013)**

13.1 Constitutional and Legal Framework

- **Entry 17, State List:** Water - supply, irrigation, canals, drainage, embankments, water storage, water power - is primarily a state subject.
- **Entry 56, Union List:** Gives the Union power to regulate and develop inter-state rivers and river valleys, but only to the extent Parliament declares this **"expedient in the public interest."**
- **Article 262(1):** Parliament may by law provide for adjudication of any dispute relating to the use, distribution, or control of inter-state river waters.
- **Article 262(2):** Parliament may bar the Supreme Court and all other courts from exercising jurisdiction over such disputes - an unusual ouster clause, without direct parallel elsewhere in the Constitution.

13.1.2 Legislation enacted under these provisions:

- **River Boards Act, 1956** - allows the constitution of advisory River Boards for integrated basin development. Never operationalised, no River Board has ever actually been constituted in nearly seven decades.
  - However, some river boards, commissions, authorities have been constituted through government resolution, agreements, executive orders or Acts. Example: Andhra pradesh state reorganisation Act, 2014 established - **Godavari River management boards and Krishna river management board.**
- **Inter-State River Water Disputes (ISRWD) Act, 1956** - the primary operative law. A state government requests the Centre to refer a dispute; if negotiation fails, the Centre must constitute a Water Disputes Tribunal. A published tribunal award has the same force as a Supreme Court decree.
- **2002 Amendment (Sarkaria Commission recommendations):** Mandated a 1-year deadline to constitute a tribunal and a 3-year deadline (extendable by 2 years) for it to give a decision - deadlines routinely breached in practice.

13.1.3 Inter-State River Water Disputes (ISRWD) Act, 1956

Section(s)	Provision	Key Features
Sec. 3 & 4	Initiation & Constitution of Tribunal	• State may request Centre to refer a dispute. If negotiations fail, Centre must constitute a Tribunal within 1 year (2002 Amendment). • Tribunal comprises Chairperson + 2 judicial members nominated by the CJI. • Limitation: No mandatory technical/hydrological experts.
Sec. 5 & 5A	Adjudication & Vacancies	• Tribunal investigates disputes and submits its award within 3 years (extendable by 2 years). • Clarification references to be decided within 1 year. • Vacancies are filled by CJI nominees without restarting proceedings.

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Sec. 6 & 6A	Binding Nature & Implementation	• Award is published in the Official Gazette, becomes final and binding, and has the same force as a Supreme Court decree. • Centre may establish implementation authorities (e.g., CWMA & CWRC) through notified schemes.
Sec. 7–9A	Powers & Administrative Framework	• Prohibits discriminatory water rates; avoids overlap with the River Boards Act; • Tribunal has Civil Court powers (summons, documents, surveys, data requisition). • Centre must maintain a river basin data bank, though data-sharing remains weak in practice.
Sec. 11	Bar of Jurisdiction	• Bars jurisdiction of courts over water disputes under Art. 262(2). • However, the Supreme Court has exercised appellate jurisdiction under Article 136 (SLP), making the exclusion not absolute.
Sec. 12–14	Miscellaneous & Special Tribunal	• Sections 12–13 contain procedural provisions. • Section 14 provides for the Ravi-Beas Waters Tribunal under the Rajiv–Longowal Accord (1985), with relevant provisions of the Act applying mutatis mutandis.

13.2 Issues and Explanation

Core Issue	Explanation & Examples
Ad hoc-ism of Tribunals	Separate tribunals are created for every dispute, leading to a massive loss of institutional memory. Once an award is given, the tribunal dissolves.
Lack of Hydrological Data	There is no universally accepted central repository of water data. States often present conflicting data on river flow and distress years, breeding mistrust.
Inordinate Time Lags	The Godavari tribunal took nearly 10 years, and the Mahadayi (Goa-Karnataka-Maharashtra) tribunal took over 16 years. Justice delayed exacerbates the conflict.
Non-Compliance by States	• Tribunal awards lack a strong enforcement mechanism. • **Example:** In the **Sutlej-Yamuna Link (SYL) Canal Dispute**, despite Supreme Court directives since 2002 to finish the canal, Punjab refuses to comply, citing over-exploited groundwater, declining river flows, and changed hydrological realities. • In **May 2025**, the Supreme Court had to step in again, directing Punjab and Haryana to cooperate with the Centre for an "amicable mediation".
Bypassing Article 262	Though Art 262 bars SC jurisdiction, states routinely bypass this by filing Special Leave Petitions (Article 136) in the Supreme Court (e.g., Cauvery dispute), defeating the purpose of specialised tribunals.

13.3 Way Forward

To fix these archaic issues, the Inter-State River Water Disputes (Amendment) Bill of 2019 (which was lapsed later) proposed revolutionary changes

1. **Dispute Resolution Committee (DRC):** A mandatory pre-litigation negotiation phase. A dispute will only go to a tribunal if the DRC fails to resolve it amicably within 1 year.
2. **Single Permanent Tribunal:** Dissolving all existing ad-hoc tribunals to create one permanent tribunal with multiple benches, saving costs and retaining technical expertise.
3. **Strict Timelines:** Reducing the total adjudication time to a maximum of 4.5 years.
4. **National Data Bank:** Mandating the Centre to maintain a transparent, national-level data bank for every river basin to eliminate "data wars" between states.
5. **Binding Decision:** The decision of the bench will automatically become final and binding, removing the requirement for the Centre to officially publish it in the gazette to give it force.
6. **Operationalise the River Boards Act** so basin-level cooperative planning has a genuine institutional home, rather than remaining entirely dormant.

Inter-state river disputes highlight the tension between federal autonomy and national resource management. A transparent, science-based, and cooperative institutional framework- supported by reliable hydrological data, time-bound adjudication, and effective enforcement - is essential to transform water from a source of conflict into an instrument of cooperative federalism.

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14 5th and 6th Schedules

Part X of the Indian Constitution details the special administrative frameworks for "Scheduled Areas" and "Tribal Areas" under **Article 244**. The framers recognised that tribal populations, due to their distinct socio-cultural practices and historical disadvantages, required specialised protection to prevent exploitation and land alienation. Consequently, the Constitution deployed **Asymmetric Federalism**, establishing the 5th Schedule for mainland tribal areas and the 6th Schedule for the uniquely autonomous tribes of the North-East.

Dimension	Fifth Schedule (Article 244(1))	Sixth Schedule (Article 244(2) & 275(1))
Geographical Extent	**10 States in Mainland India:** Andhra Pradesh, Telangana, Jharkhand, Chhattisgarh, Gujarat, Himachal Pradesh, Madhya Pradesh, Maharashtra, Odisha, and Rajasthan.	**4 States in North-East India (AMTM):** Assam, Meghalaya, Tripura, and Mizoram.
Declaration & Alteration	The **President** is empowered to declare an area as a Scheduled Area, alter its boundaries, or revoke the order (in consultation with the Governor).	The **Governor** is empowered to organise and re-organise "Autonomous Districts" and "Autonomous Regions" (alter boundaries and change names).
Key Administrative Institution	Tribes Advisory Council (TAC)	**Autonomous District Council (ADC)** and Regional Councils.
Composition of Institution	Maximum **20 members**, of which three-fourths (3/4th) must be ST representatives sitting in the State Legislative Assembly.	**30 members** (4 nominated by Governor, 26 elected by adult franchise for a 5-year term). *(Exception: Bodoland Territorial Council has 40 members).*
Nature of Institution	Purely an **Advisory Body**	Highly autonomous **self-governing body** (often termed a "state within a state").
Legislative Powers	**None.** The TAC only advises on matters referred to it. The Governor holds the power to make regulations restricting land transfer and money-lending.	**Vast.** ADCs can make laws on land, forests, shifting cultivation, village administration, inheritance, marriage, and social customs *(subject to Governor's assent).*
Executive Control (Role of Governor)	The Governor enjoys vast proactive powers to independently direct how state/central laws apply to the area.	The Governor acts primarily as an approving authority for the laws passed by the ADCs and determines the jurisdiction of their courts.
Applicability of Central/State Laws	Acts of Parliament or State Legislature **apply by default**, unless the Governor issues a specific public notification restricting or modifying them.	Acts of Parliament or State Legislature **do not apply** automatically (or apply with specified modifications). For Assam, the Governor decides; for other states, the President/Governor decides.
Judicial Powers	**No judicial powers.** Regular state judiciary applies.	ADCs can constitute village councils or courts for the trial of civil/criminal suits between ST members.
Financial Autonomy	Highly dependent on the State Government. TAC has no taxation powers.	ADCs can assess and collect **land revenue** and impose specific local taxes (on professions, trades, animals, vehicles, tolls).
Extension of Local Governance	The 73rd Amendment does not apply directly; Parliament enacted the **PESA Act, 1996,** to empower Gram Sabhas in 5th Schedule areas.	Neither the 73rd Amendment nor the PESA Act applies, as the ADCs themselves serve as the primary local self-government framework.
Contemporary Challenges & Friction Points	• **TACs as Rubber Stamps:** Often headed by the CM, stifling independent tribal voices (Xaxa Committee). • **Governor's Inaction:** Governors rarely use their proactive powers to stop corporate land grabs. • **PESA Dilution:** State rules frequently bypass Gram Sabha consent for mining/ dams.	• **State vs. ADC Conflict:** State governments deliberately delay funds (under Article 275(1)) and Governor's assent to ADC bills. • **Exclusion of Minorities:** Non-tribals in ADC areas face political alienation (e.g., Bodo vs. non-Bodo clashes). • **Demand for Expansion:** Agitations in Ladakh demanding 6th Schedule status to protect land/ environment.

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Way Forward

Reform Dimension	5th Schedule	6th Schedule
Institutional & Democratic Reforms	**Democratise the TAC:** Implement the Xaxa Committee recommendation that the TAC should elect its own chairperson (rather than the CM by default) and mandate a minimum number of meetings per year to ensure genuine tribal representation.	**Pass the 125th Amendment Bill:** This pending bill aims to significantly increase the financial and executive powers of the ADCs and establish elected Village Municipal Councils to ensure decentralisation doesn't stop at the district level.
Financial Devolution	**Direct Funding to Gram Sabhas:** Ensure strict adherence to the Tribal Sub-Plan (TSP). Funds should be earmarked and transferred directly to PESA Gram Sabhas, bypassing state-level bureaucratic delays.	**Direct Finance Commission Grants:** Mandate the Central Finance Commission to allocate funds directly to the ADCs (bypassing the State Government). Introduce mandatory **CAG audits** to ensure transparency and curb corruption within ADCs
Administrative & Governor's Role	**Proactive Discretion:** Governors must actively use their constitutional mandate to submit timely, independent reports to the President and veto state mining/land acquisition laws that alienate tribal lands.	**Mediation & Timely Assent:** The Governor should act as a neutral constitutional mediator to resolve the frequent administrative and financial deadlocks between the State Legislature and the ADCs.
Local Governance & Land Rights	**Enforce PESA in Letter & Spirit:** Stop the dilution of the PESA Act by state rules. The "Free, Prior, and Informed Consent" (FPIC) of the Gram Sabha must be strictly mandatory before any land acquisition or corporate mining.	**Strengthen Village Courts:** Standardise and upgrade the customary village courts under the ADCs to ensure speedy, accessible justice while ensuring their practices align with basic Fundamental Rights.
Inclusivity & Conflict Resolution	**Harmonise FRA and PESA:** Ensure seamless implementation of the Forest Rights Act (FRA, 2006) alongside PESA to guarantee community forest resource rights.	**Protect Minorities:** Develop political and administrative mechanisms to give a voice to non-tribal minority populations living within ADC jurisdictions to prevent severe ethnic clashes (e.g., in Bodoland or Meghalaya).

The ultimate goal of both schedules is democratic decentralisation. Moving forward, the paradigm must shift from a '*Welfare Approach*' (treating tribals as passive beneficiaries) to an '*Empowerment Approach*' (treating them as active stakeholders in their own development), ensuring that the quest for national economic growth does not result in the marginalisation and displacement of India's indigenous populations.

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15 Union Territories

Under **Part VIII (Articles 239 to 241)** of the Constitution, Union Territories are administered directly by the Central Government. Unlike states, which share a federal relationship with the Centre, UTs exhibit a **unitary relationship**. The creation of UTs was necessitated by diverse reasons:

1. **Political & Administrative:** Delhi and Chandigarh (capital and contentious borders).
2. **Cultural Distinctiveness:** Puducherry, Daman & Diu, Dadra & Nagar Haveli (former French/Portuguese colonies).
3. **Strategic Importance:** Andaman & Nicobar, Lakshadweep.
4. **Special Treatment & Security:** Jammu & Kashmir, Ladakh.

UPSC Mains PYQs

1. Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir. **(2025)**
2. Whether the Supreme Court Judgment (July 2018) can settle the political tussle between the Lt.Governor and elected government of Delhi? Examine. **(2018)**
3. Discuss the essentials of the 69th Constitutional Amendment Act and anomalies, if any, that have led to recent reported conflicts between the elected representatives and institution of Lieutenant Governor in the administration of Delhi. Do you think that this will give rise to a new trend in the functioning of the Indian Federal Politics? **(2016)**

15.1 General Administrative Framework of UTs (Articles 239–241)

Dimension	Constitutional Provision & Explanation
Executive	Administered by the President through an appointed Administrator (designated as Lieutenant Governor, Chief Commissioner, etc.). The Administrator is an *agent of the President*, not a Constitutional head of state like a Governor.
Legislature	Parliament holds the paramount power to make laws on **any subject** (including the State List) for any Union Territory.
President's Regulations (Article 240)	The President can make regulations for the "peace, progress, and good government" of certain UTs (Andaman, Lakshadweep, Dadra & Nagar Haveli and Daman & Diu, Ladakh). These regulations have the same force and effect as an Act of Parliament.
Judiciary	Parliament can establish an independent High Court for a UT (e.g., Delhi is the only UT with its own) or place it under the jurisdiction of an adjacent state's High Court.

15.2 The Case of Delhi

Dimension	Details
Constitutional Basis	**Article 239AA** (added by the 69th Amendment Act, 1991, based on the S. Balakrishnan Committee). Designated Delhi as the National Capital Territory (NCT) with a Legislative Assembly.
Legislative Exceptions	The Assembly can legislate on all State/Concurrent List subjects **except three:** Public Order, Police, and Land (exclusive to the Centre).
Article 239AB	It outlines the provisions in case of a failure of constitutional machinery in the National Capital Territory (NCT) of Delhi. It empowers the President of India to suspend the special administrative mechanisms of Delhi and take direct control over its governance.
The Core Friction	Overlapping jurisdictions between the elected Chief Minister and the Centre-appointed LG, leading to massive friction over who controls the bureaucracy ("Services").

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2018 SC Judgment	Ruled that the LG is bound by the **"aid and advice"** of the Council of Ministers (except on the 3 reserved subjects). LG cannot act as an independent adjudicator (invoke the doctrine of *"Constitutional Morality"*).
2023 SC Judgment	Ruled that the Delhi Government has legislative/executive control over **Services** (Entry 41). Emphasised the *"Triple Chain of Accountability"* (Civil Servants → Ministers → Legislature → Electorate).
GNCTD (Amendment) Act, 2023	Nullified the 2023 SC ruling by removing "Services" from the Delhi government. Created the **NCCSA** (CM + Chief Sec + Home Sec) for transfers. With bureaucrats forming the majority, the CM can be outvoted. The LG holds the **final say** in disputes.

15.3 The Case of Jammu & Kashmir

Dimension	Details
The Transition	Following the abrogation of Article 370, the J&K Reorganisation Act (2019) downgraded the State to a UT with a legislature, while Ladakh became a UT without a legislature.
Legislative Exceptions	The J&K Assembly can legislate on the State List, **EXCEPT TWO:** Police and Public Order. *(Unlike Delhi, J&K retains control over Land, and these restrictions are statutory, not constitutional).*
SC Judgement (Dec 2023)	Unanimously upheld the abrogation of Article 370 as a temporary provision. Directed the EC to hold assembly elections by Sept 2024 (which are now concluded).
Status of Statehood	The SC avoided ruling on the constitutional validity of downgrading a State to a UT under Article 3. It accepted the Centre's assurance that J&K's UT status is **"temporary"** and directed the earliest restoration of statehood.

15.4 Broad Issues with UT Governance

Issues	Details
Democratic Deficit (in UTs without Legislatures)	UTs like Lakshadweep and Andaman are entirely governed by unelected bureaucrats. *Example:* Recent controversial regulations in Lakshadweep (land development/animal preservation) were introduced without local consultation, sparking massive protests.
Over-centralization & Asymmetric Federalism	Even in UTs with legislatures (Delhi, Puducherry), the ultimate veto lies with the Centre. *Example:* In Puducherry, the LG frequently bypasses the CM by directly issuing orders to secretaries, causing severe policy paralysis.
Financial Dependence	UTs have virtually no financial autonomy. They are heavily dependent on the Ministry of Home Affairs (MHA) for grants and cannot independently borrow money in the market like States can.
Role of the LG	The Constitution lacks a clear boundary delineating the LG's role as a pure "Administrator" versus a "Constitutional Head" in UTs with legislatures, leading to continuous administrative gridlock and endless litigation.

15.5 Way Forward

1. **Respecting the Triple Chain of Accountability (SC Recommendation):** For UTs with legislatures, the Centre must respect the electoral mandate. The civil service must remain accountable to the elected ministers to ensure effective day-to-day governance, as ruled in the 2023 SC judgment.
2. **Implementation of Punchhi Commission Principles:** Although the Punchhi Commission focused on Governors, its core principle - that the titular head should **not act as a parallel power centre** or dictate policies to an elected government - must be legally codified for Lieutenant Governors.
3. **Local Democratic Empowerment (Lakshadweep/Andaman Model):** For UTs without legislatures, the Centre should strengthen the **Panchayati Raj Institutions (PRIs)** and Municipalities. Major administrative regulations should be subjected to mandatory public consultation and approval by the local District Panchayats.
4. **Time-bound Statehood for J&K:** To restore democratic trust and fulfill the assurances given to the Supreme Court, a clear, time-bound roadmap for restoring J&K to full statehood must be initiated by Parliament.

The Union Territory model was designed for regions requiring specialised care, not as a tool for mechanism for excessive centralisation. While the Centre's overarching control is justified for national security (J&K) or protecting the national capital (Delhi), it must be harmonised with the fundamental constitutional ethos of representative democracy and collaborative governance.

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16 Panchayati Raj Institutions, Urban Local Bodies, PESA

Decentralisation is the transfer of authority, responsibility, and resources from the central and state governments to local bodies. In India, it is governed by the **Principle of Subsidiarity**, which dictates that a central authority should perform only those tasks which cannot be performed effectively at a more immediate or local level. Rooted in **Article 40** of the Directive Principles of State Policy (organising village panchayats), true democratic decentralisation materialised through the landmark **73rd and 74th Constitutional Amendment Acts (CAAs) of 1992**, transforming India's federal structure from a two-tier to a three-tier system.

UPSC Mains PYQs

1. Analyse the role of local bodies in providing good governance at local level and bring out the pros and cons of merging the rural local bodies with the urban local bodies. **(2024)**
2. To what extent, in your opinion, has the decentralisation of power in India changed the governance landscape at the grassroots? **(2022)**
3. The strength and sustenance of local institutions in India has shifted from their formative phase of 'Functions, Functionaries and Funds' to the contemporary stage of 'Functionality'. Highlight the critical challenges faced by local institutions in terms of their functionality in recent times. **(2020)**
4. Assess the importance of the Panchayat system in India as a part of local government. Apart from government grants, what sources the Panchayats can look out for financing developmental projects? **(2018)**
5. In the absence of well – educated and organised local level government system, Panchayats and Samitis have remained mainly political institutions and not effective instrument of governance. Critically Discuss. **(2015)**
6. Khap panchayats have been in the news for functioning as extra – constitutional authorities, often delivering pronouncements amounting to human right violations. Discuss critically the actions taken by the legislative, executive and judiciary to set the things right in this regard. **(2015)**

16.1 Panchayati Raj Institutions (PRIs) - 73rd CAA

The 73rd Amendment created a three-tier Panchayati Raj framework across the country (Village, Intermediate/Block, and District levels) and institutionalised grassroots democracy.

Core Constitutional Provisions	Explanation
Gram Sabha (Art 243A)	The foundational unit comprising all registered voters in a village. It acts as the "Legislature" at the village level.
3-Tier System	• Gram Panchayat (Village), Panchayat Samiti (Block), and Zila Parishad (District). *(States with a population of <20 lakhs may skip the intermediate tier.)* • ***Further exceptions exist:*** Nagaland, Meghalaya, Mizoram, Scheduled Areas (subject to PESA) and certain tribal regions.
Reservations (Art 243D)	Proportional reservation for SCs/STs. At least **1/3rd** of total seats and chairperson positions are reserved for **Women** (many states like Bihar and MP have extended this to 50%).
Independent Institutions	• **State Election Commission (SEC):** Ensures free, fair, and timely elections every 5 years. • **State Finance Commission (SFC):** Recommends the devolution of financial resources from the state to the Panchayats.
The Eleventh Schedule	Added to the Constitution, detailing 29 functional items that fall under the purview of Panchayats, including agriculture, rural development, sanitation, education, and poverty alleviation programmes.

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16.1.1 The "3 Fs" Crisis: Bottlenecks in Decentralisation

Dimension	Details	Examples / Impact
Funds (Over-reliance on Grants & Poor Revenue Generation)	• **Negligible OSR (own-source revenue):** Gram Panchayats generate less than 1% of their total revenue from local taxes (like property, fairs, or water tax). • **Tied Grants:** Over 95% of their budget comes from central/state grants (e.g., MGNREGA, PM-AWAS), which are "tied" to specific schemes, leaving the Panchayat with zero discretionary spending power. • **SFC Apathy:** State governments routinely delay setting up SFCs, reject their recommendations, or fail to table the reports in the assembly.	• **The Expendable Agency:** Because they lack financial autonomy, PRIs are reduced to mere "implementing agencies" for top-down State/Central schemes rather than self-sustaining local governments capable of solving unique village problems.
Functions Discretionary Devolution (Article 243G)	• **The 11th Schedule Illusion:** The Constitution lists 29 subjects (agriculture, health, education) for PRIs. However, Article 243G leaves their actual devolution entirely to the discretion of the State Legislature. • **Lack of Activity Mapping:** States formally transfer subjects but do not map the specific activities, leading to overlapping jurisdictions between state departments and the Panchayat.	• **Positive Example:** Kerala (People's Plan Campaign) devolved all 29 subjects and 30% of its plan budget directly to PRIs. • **Negative Example:** States like UP, Punjab, and Bihar have devolved very few subjects. Furthermore, parallel parastatal bodies (like Rural Development Agencies) bypass the Zila Parishad entirely.
Functionaries	• **No Independent Cadre:** Panchayats do not have their own bureaucracy. They rely on the Block Development Officer (BDO) or Panchayat Secretary, who are State employees. They report to their line ministries, not to the elected Sarpanch. • **Capacity Deficit:** A massive lack of technical expertise among elected representatives for tasks like spatial planning or accounting. • **Proxy Representation:** The "Sarpanch Pati" syndrome, where male relatives wield the actual power on behalf of elected women.	• **Executive Paralysis:** An elected Sarpanch cannot even initiate disciplinary action against an absent village teacher or health worker because those functionaries belong to the State cadre, breaking the chain of local democratic accountability.

Role of Women in Panchayati Raj Institutions (PRIs)

- **The 73rd Constitutional Amendment Act (1992)** brought a silent revolution in India's democratic structure by mandating women's representation at the grassroots.
- **Article 243D:** Mandates the reservation of **not less than one-third (33%)** of the total number of seats and offices of Chairpersons at all three levels of Panchayats for women.
- **Current Status:** Many states (e.g., Bihar, MP, Kerala, and Rajasthan) have legally increased this reservation to **50%**. Nationally, women currently hold about **46% of all Panchayat seats** (MoPR, 2022).

Impact of Women's Reservation in PRIs (Positive Outcomes)

Theme	Outcomes
Political Empowerment	• Elevated economic, social, and political status of women. • Inspires Aspirations: Grassroots leadership encourages more women to step out of domestic roles and contest elections independently.
Better Governance Focus	• Women leaders tend to prioritize human development indicators like education, healthcare, drinking water, and sanitation over purely infrastructure-heavy projects.
Gender-Sensitive Policies	• Increased focus on social welfare policies that directly benefit women and children. • Examples: Spearheading anti-liquor movements, installing public streetlights for safety, and leading gender budgeting initiatives (e.g., in Kerala).
Reduction in Corruption	• Studies and anecdotal evidence often suggest that women-led panchayats exhibit higher transparency and lower instances of systemic corruption.

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Way Forward

To move from "*de-concentration*" of administration to true "*devolution*" of power, structural reforms must be integrated with recent technological initiatives.

Reform Areas	Solutions
Financial Autonomy	• **Expand and rationalize own-revenue sources:** property tax reform (GIS-based property mapping, as piloted in some states), user charges for water/sanitation services, advertisement tax, market fees • **Reallocate rigid tied grants into untied grants** where sectoral saturation has been achieved (per Standing Committee recommendation) - enabling need-based local spending • **Incentive-linked grants:** Centre/States should link a portion of grants to own-revenue mobilization performance (as practiced in some urban local body reforms under AMRUT), creating a positive fiscal incentive rather than pure dependency • **16th FC Grants:** The 16th Finance Commission (FC) significantly boosted financial grants for Panchayati Raj Institutions (PRIs) to over ₹4.35 lakh crore for 2026–2031. • To drive fiscal autonomy, it mandated a *50:50 ratio of tied-to-untied grants*, heavily incentivised the growth of local Own-Source Revenue (OSR), and introduced penalties for delayed state-level fund transfers.
Activity Mapping & Functions	• **Clear Devolution Index:** The Inter-State Council should penalise states that fail to implement detailed "Activity Mapping" (specifying exactly what the state does vs. what the Panchayat does). Parastatal bodies must be merged into Zila Parishads. • Draw on global decentralization models (e.g., Nordic local-government systems where municipalities manage substantial independent tax revenue) as aspirational benchmarks, adapted to Indian federal context
Empowering Functionaries	• **Creation of a Panchayat Cadre:** Establish a dedicated local bureaucratic service accountable strictly to the Zila Parishad and Gram Panchayat. • **Rashtriya Gram Swaraj Abhiyan (RGSA):** Aggressively scale up RGSA to provide continuous, technology-driven capacity building and training for elected representatives, particularly women, to end the "Sarpanch Pati" culture.
Digital Transparency	• **e-GramSwaraj & AuditOnline:** Mandate 100% compliance on the MoPR's unified portal for digital planning, accounting, and online auditing of Panchayats to curb corruption and build state trust in local bodies.

The 73rd Amendment was a watershed moment in India's democratic journey, successfully achieving the *political* empowerment of marginalised sections and women. However, the next generation of reforms must focus on ***functional and financial*** **empowerment.** By mandating strict activity mapping, building an independent local cadre, and leveraging technology like the SVAMITVA scheme to boost its own-source revenue, PRIs can be transformed from mere administrative appendages of the State into vibrant, self-reliant institutions of grassroots nation-building.

16.2 Panchayats Extension to Scheduled Areas (PESA) Act 1996

Based on the recommendations of the **Dilip Singh Bhuria Committee**, Parliament enacted the **Panchayats (Extension to the Scheduled Areas) Act, 1996 (PESA)**. PESA embodies the highest form of **Asymmetric Federalism** and **Participatory Democracy**. Unlike the mainland where the elected Panchayat is supreme, PESA flips the power structure: **it makes the Gram Sabha (the community) the absolute, unquestionable authority**, recognising that for tribals, the community is the natural unit of governance.

PESA grants extraordinary powers to the Gram Sabha to protect tribal identity and resources

Dimension of Power	Specific Provisions under PESA
Defining the "Village"	A village is not just a geographical boundary; it is defined by "traditions and customs, management of community resources, and customary mode of dispute resolution".
Land Rights	• **Mandatory Consultation:** The Gram Sabha must be consulted before acquiring land for development projects or resettling affected persons. (This is India's version of Free, Prior, and Informed Consent - FPIC). • **Preventing Alienation:** Power to prevent the alienation of tribal land and restore any unlawfully alienated land.

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Resource Management	• **Minor Forest Produce (MFP):** Vests the absolute ownership of MFP (tendu leaves, bamboo, and honey) in the Gram Sabha. • **Water Bodies & Minerals:** Mandatory recommendations from the Gram Sabha are required prior to granting prospecting licenses or mining leases for minor minerals.
Social & Cultural Control	• **Prohibition:** Power to enforce prohibition or regulate the sale and consumption of intoxicants. • **Money Lending:** Power to exercise control over money-lending to Scheduled Tribes. • **Customary Justice:** Power to safeguard the cultural identity and resolve local disputes using traditional methods.
Administrative Control	• The Gram Sabha holds the power to approve all socio-economic development plans *before* they are implemented by the Panchayat, and issues the utilisation certificate for funds.

Despite its revolutionary legal text, PESA has suffered from a massive "governance deficit". State governments and the corporate-bureaucratic nexus have systematically diluted its provisions.

Core Issue	Explanation	Examples & Impact
Dilution via State Rules	• PESA is a central law, but State Legislatures had to frame rules to implement it. **Few states still haven't framed PESA rules.** Even states that did (like MP and Gujarat) drafted them cleverly to transfer the Gram Sabha's powers to the District Collector or Forest Department.	• **The MFP Monopoly:** State Forest Corporations often retain monopoly rights over trading lucrative MFP, like tendu leaves, depriving the Gram Sabha of its Constitutional revenue source.
Bypassing Consent (The Land Grab)	• The mandatory "consultation" clause for land acquisition is routinely violated. State governments use the colonial-era Land Acquisition Act or the Coal Bearing Areas Act to bypass PESA. Gram Sabha resolutions are frequently forged.	• **Hasdeo Arand (Chhattisgarh):** Massive tribal protests erupted against coal mining, where locals alleged the State and corporates forged Gram Sabha consent resolutions. • **Polavaram Project (AP):** Large-scale displacement occurred with allegations of inadequate Gram Sabha consultation.
Conflict with Other Laws	• PESA frequently clashes with the **Indian Forest Act (1927)**, the **Wildlife Protection Act**, and even the **Forest Rights Act (FRA, 2006)**. Bureaucrats prefer operating under the Forest Department's rules rather than respecting the Gram Sabha's autonomy.	• **Criminalisation of Tribals:** Forest guards routinely harass tribals collecting minor forest produce inside sanctuaries, citing conservation laws and ignoring PESA/FRA protections.
Functionary / Capacity Deficit	• The traditional tribal leadership is often unaware of the complex bureaucratic procedures required to exercise PESA rights. A Ministry of Panchayati Raj (MoPR) study showed that over **40% of elected ST representatives** do not fully understand the Act.	• **Bureaucratic Apathy:** The Panchayat Secretary (a state official) controls the registers and funds, often manipulating them without the actual consent of the tribal Sarpanch or Gram Sabha.

Way Forward

1. **Legal & Administrative Reforms**
   - **Enforce Mandatory Consent (FPIC):** Amend the PESA Act to explicitly require the "Free, Prior, and Informed Consent" (FPIC) of the Gram Sabha before any land acquisition or mining lease is granted, replacing the weak "consultation" clause.
   - **Harmonise Conflicting Laws:** The Ministries of Tribal Affairs and Panchayati Raj must legally synchronise the PESA Act, the Forest Rights Act (FRA, 2006), and the Land Acquisition Act (LARR, 2013) to create a single, unbreakable tribal rights framework.
   - **Strict Rule Compliance:** Implement the Xaxa Committee's recommendation by empowering the Inter-State Council to penalise 5th Schedule states that have failed to frame or operationalise proper PESA rules.
   - **Establish a Tribal Ombudsman:** Create a dedicated, independent grievance redressal authority at the district level exclusively to handle violations of PESA, FRA, and tribal rights.
2. **Transparency & Capacity Building**
   - **Mandate Digital Fund Tracking:** Enforce the use of the PESA-GPDP Portal to digitally track fund utilisation. This ensures that bureaucrats cannot forge offline utilisation certificates without the Gram Sabha's actual knowledge.
   - **Resource Mapping via NTRI:** Empower the National Tribal Research Institute (NTRI) and utilise the Rashtriya Gram Swaraj Abhiyan (RGSA) to train tribal youth in digitally mapping their community forest resources to assert their legal ownership over Minor Forest Produce (MFP).

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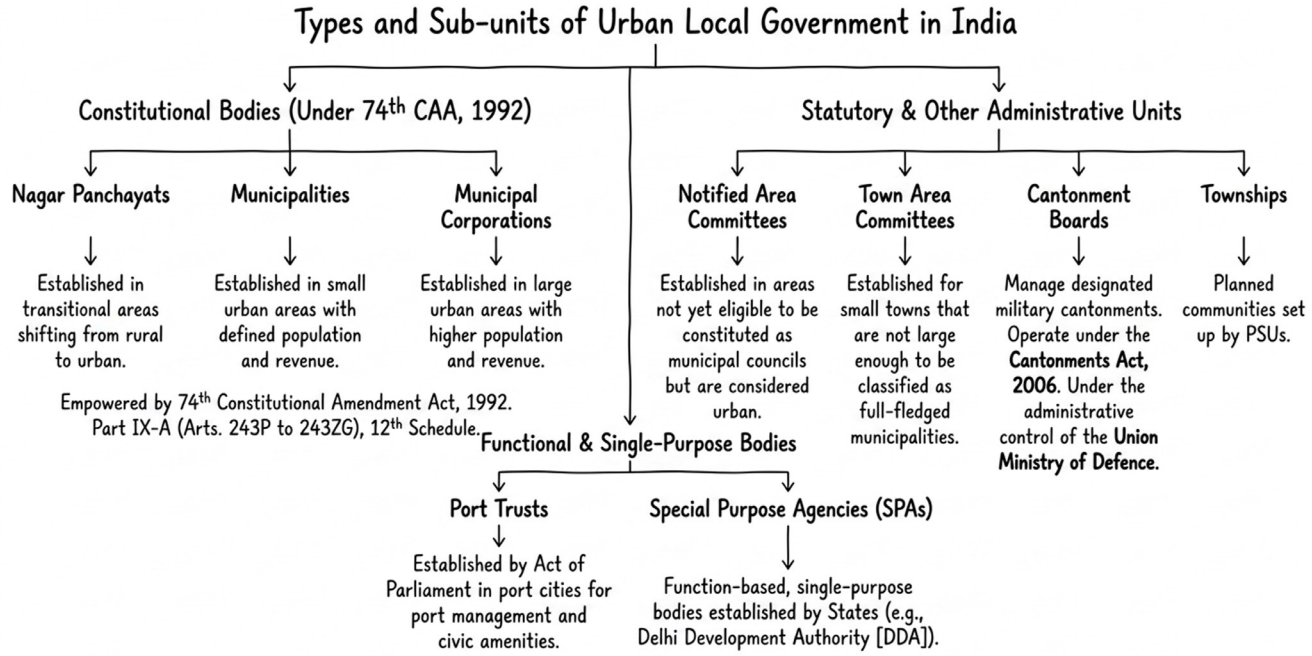
16.3. Urban Local Bodies

India is urbanising at a breakneck pace, with its urban population expected to cross 50% by 2050. To manage this massive demographic shift, the **74th Constitutional Amendment Act (1992)** inserted **Part IX-A** into the Constitution, giving constitutional status to municipalities. The goal was to transform chaotic urban sprawls into systematically planned, self-governing cities based on the **Principle of Subsidiarity**.

UPSC Prelims PYQs

1. Analyse the role of local bodies in providing good governance at a local level and bring out the pros and cons of merging the rural local bodies with the urban local bodies. **(2024).**
2. "The states in India seem reluctant to empower urban local bodies both functionally as well as financially." Comment. **(2023)**



16.3.1 The Constitutional Framework (Part IX-A)

Constitutional Provision	Explanation & Core Function
Types of ULBs (Article 243Q)	**1. Nagar Panchayat:** For a transitional area (rural to urban). **2. Municipal Council:** For a smaller urban area. **3. Municipal Corporation:** For a larger urban area (Metropolitan cities).
Wards Committees (Article 243S)	Mandatory in municipalities with a population of **3 lakhs or more**. It ensures that governance doesn't stop at the city level but reaches the neighbourhood/ward level.
Reservations (Article 243T)	Proportional reservation for SCs/STs. A minimum of **1/3rd** of total seats and mayoral positions are reserved for **Women**.
District Planning Committee (DPC - Article 243ZD)	A crucial body that consolidates the plans prepared by both Panchayats and Municipalities in a district to draft an integrated development plan.
Metropolitan Planning Committee (MPC - Article 243ZE)	It is mandatory for metropolitan areas (population >10 lakhs) to draft a unified development plan, ensuring urban and peri-urban areas are planned together.
The 12th Schedule (Article 243W)	Lists **18 subjects** (e.g., urban planning, public health, fire services, and solid waste management) to be devolved to the ULBs by the State Legislature.

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16.3.2 Challenges in Urban Governance

Dimension	Explanation and Impact
Funds Abysmal Revenue & The GST Impact	• **0.6% GDP Contribution:** According to the RBI's 2024 Municipal Finances Report, Indian ULBs generate only 0.6% of GDP in own-source revenue (compared to 6% in South Africa). • **Property Tax:** Due to poor GIS mapping and political reluctance, property tax collection is staggeringly low. • Untied vs tied grant rigidity: similar to PRIs, Central/State grants often come earmarked for specific schemes, limiting local flexibility. • **The Octroi Vacuum:** Post-GST, Octroi (a major local tax) was abolished. States promised compensation, but it has been irregular, leaving many ULBs in India severely cash-strapped.
Functions The Rise of Parastatal Bodies & SPVs	• **Bypassing the Elected Body:** State governments refuse to devolve the 18 subjects. Instead, they create unelected *parastatal bodies* (water boards, urban development authorities) that report to the State CM, not the local Mayor. Also elections are not held regularly. • **Smart City SPVs:** Under the Smart Cities Mission, parallel Special Purpose Vehicles (SPVs) run by bureaucrats were created, further sidelining the elected municipal council. • **Impact:** In Bengaluru, functions are split between the BBMP (elected), BDA, and BWSSB, leading to disastrous, uncoordinated urban flooding and traffic crises.
Functionaries	• **The Mayoral Figurehead:** In most Indian cities, the Mayor has a ceremonial 12 to 30 months' term with zero executive power. Real power lies with the Municipal Commissioner, an IAS officer appointed by and accountable to the State Government. • **Planning Deficit:** ULBs lack a dedicated cadre of urban planners, traffic engineers, and environmental experts, heavily relying on generalist state bureaucrats.
Dysfunctional DPCs and MPCs	• • **Unplanned Sprawl:** DPCs and MPCs are either not constituted or completely bypassed. Without them, urban planning is fragmented, resulting in illegal colonies, peri-urban slums, and the destruction of urban wetlands (e.g., Chennai floods).

16.3.3 Way Forward

To transform Indian cities from engines of chaos to engines of economic growth, the following structural reforms must be pursued:

Financial Empowerment:

- **GIS-Based Property Tax:** Aggressively utilise Geographic Information Systems (GIS) to map all urban properties, digitise records, and automate property tax collection, insulating it from local vote-bank politics.
- **Deepening the Municipal Bond Market:** Emulate the Pune and Indore models by mandating transparent, double-entry accounting in all ULBs to improve their credit ratings, allowing them to raise capital via Municipal Bonds for large infrastructure.
- **Value Capture Financing (VCF):** ULBs must be empowered to capture the increased value of private land generated by public infrastructure investments (e.g., levying a betterment charge near a newly built Metro line).

Functional Autonomy

- **Abolish Parastatal Encroachment:** Systematically absorb unelected parastatal bodies (Development Authorities, Water/Sewage Boards) into the elected Municipal Corporation under a unified command structure.
- **Operationalise MPCs and DPCs:** The Inter-State Council must penalise states that fail to constitute and empower Metropolitan and District Planning Committees. Urban planning must be integrated, not piecemeal.

Administrative Overhaul

- **The "Strong-Mayor" System:** Amend the 74th CAA to mandate a directly elected Mayor with a fixed 5-year term. The Mayor must have full executive control over the municipal budget, the Municipal Commissioner, and city departments (Police, Transport).
- **Specialised Municipal Cadre:** Create a dedicated, professional urban cadre comprising town planners, environmental engineers, and public health experts who report exclusively to the elected local government.

The 74th Amendment created the *structure* for urban governance, but state governments have actively starved it of *substance*. As India aims to become a $5 trillion economy, it cannot rely on cities governed by fragmented, unaccountable parastatal bodies and powerless mayors. True urban decentralisation requires instituting a "Strong-Mayor" framework, merging parallel agencies, and unlocking municipal financial markets to build resilient, world-class cities.

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16.4. Role of Local Bodies in Providing Good Governance

Good governance is characterised by participation, responsiveness, equity, and accountability. The 73rd and 74th Amendments institutionalised these pillars at the grassroots:

Governance Pillar	Role Played by Local Bodies (PRIs & ULBs)
Participatory & Inclusive	• **Institutionalized Inclusion: A** 33-50% reservation for women and proportional reservation for SC/STs ensure marginalised voices shape local policies. • **Direct Democracy:** Gram Sabhas and Ward Committees allow citizens to directly participate in decision-making, rather than just voting every 5 years.
Responsive & Effective	• **The Principle of Subsidiarity:** Local leaders understand micro-level issues better than state capitals. A Gram Panchayat is far more effective at identifying local beneficiaries for PM-AWAS or managing a village watershed than a distant state bureaucrat.
Accountable & Transparent	• **Social Audit:** The Gram Sabha holds the executive accountable by reviewing expenditure and issuing utilisation certificates. • **Triple Chain of Accountability:** Local bureaucrats (in an ideal setup) are accountable to the Sarpanch/Mayor, who is accountable to the ward/village, preventing administrative impunity.

16.5. Merging Rural and Urban Local Bodies

Dimensions	Pros of Merging Rural & Urban Bodies	Cons & Challenges of Merging
Spatial & Infrastructure Planning	**Integrated Development:** Allows for seamless planning of contiguous infrastructure like solid waste management plants, ring roads, and drainage networks without jurisdictional deadlocks.	**Urban Bias (Loss of Rural Voice):** Urban priorities (flyovers, commercial zoning) will inevitably overshadow rural agrarian needs (irrigation, livestock health). Rural voices will be outvoted in a merged council.
Resource Management	**Water & Land Equity:** Prevents the predatory relationship where cities extract groundwater and dump waste in neighbouring rural Panchayats. Ensures regional ecological balance.	**Taxation Shocks:** Rural residents, accustomed to low or negligible property taxes, would suddenly face harsh urban municipal tax rates, causing severe economic distress for small/marginal farmers.
Economic & Administrative Efficiency	**Economies of Scale:** Reduces the duplication of administrative machinery. A single Metropolitan Planning Committee (MPC) can manage regional transport efficiently.	**Loss of Targeted Grants:** PRIs receive specific constitutional grants (e.g., for MGNREGA or agricultural subsidies) that might be legally complicated to disburse or diluted in a merged "Rurban" entity.

16.6. Government Initiatives for Urban Local Bodies

Initiative	Objective	Impact/Data/Example
16th Finance Commission	The 16th FC prioritizes strengthening local financial autonomy, emphasizing the modernization of municipal accounting	The **₹3.56 lakh** crore allocated to ULBs is part of a larger **₹7.91 lakh crore package for all local bodies, representing a 116%** increase in absolute terms from the **Fifteenth Finance Commission**
15th Finance Commission (XV-FC) Grants	Shifted to **Tied Grants**. ULBs must meet entry conditions: publishing audited accounts online and notifying floor rates for property tax to receive funds.	**Data:** XV-FC allocated **₹1,21,058 crore** (2021-2026). Over 4,500 ULBs now publish financial data on MoHUA's **CityFinance.in** portal.
NITI Aayog's framework for million plus cities	The report identifies **persistent governance issues**, including weak and fragmented leadership structures, constrained fiscal capacity, and capacity gaps that limit service delivery and urban performance	**Key Recommendations** • **Strengthen Urban Leadership:** Introduce a directly elected Mayor with a fixed tenure, supported by an empowered Mayor-in-Council system. • **Integrate Urban Services:** Bring water supply, sanitation and public transport under city governments for better coordination and accountability. • **Enhance Municipal Finances:** Strengthen own-source revenues, ensure timely State Finance Commission transfers, and promote municipal bonds. • **Institutional Reforms:** Bring parastatal agencies under city government oversight with clearly defined roles and stronger coordination.

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Urban Challenge Fund	• ₹1 lakh crore fund (₹10,000 crore Budget 2025–26 allocation) to promote market-driven, reform-linked urban infrastructure and develop future-ready, economically competitive cities. • Credit Support: ₹5,000 crore Credit Repayment Guarantee Scheme to improve creditworthiness and facilitate market borrowing by Tier-II/III cities, Northeastern & hilly states, and smaller ULBs.	• **Challenge-based Funding:** Projects selected competitively and linked to reforms, milestones, KPIs and digital monitoring through a single portal. • **Market-led Financing:** At least 50% of project cost to be mobilised through municipal bonds, bank loans and PPPs, with the balance from States/UTs/ULBs. • **Reform Focus:** Incentivises reforms in urban governance, municipal finance, operational efficiency, urban planningand greater private sector participation. • **Coverage & Project Verticals:** Covers million-plus cities, all State/UT capitals and major industrial cities, focusing on Growth Hubs, Creative Redevelopment, and Water & Sanitation.
Municipal Bond Incentive Scheme	MoHUA, under the Atal Mission for Rejuvenation and Urban Transformation (AMRUT) scheme, provides an interest subsidy of ₹13 crore for every ₹100 crore raised by ULBs, encouraging entry into capital markets.	**Data:** Over 10 cities have raised >**₹3,840 crore**. **Pune** raised ₹200 crore for water; **Vadodara** issued Asia's first US Treasury-assisted municipal bond.
Property Tax linked to Circle Rates	The Dept of Expenditure mandates states to link property tax collections to prevailing state circle rates to qualify for additional state borrowing limits.	**Impact:** Forces political leadership to bypass local vote-bank politics and scientifically assess property taxes (the primary own-source revenue).
AMRUT 2.0 ***(Atal Mission for Rejuvenation & Urban Transformation)***	Focuses on making cities "water secure". Mandates **GIS-based master planning** for 500 cities to map all utility networks.	**Example:** Cities like **Hyderabad and Ahmedabad** utilised this to map underground utilities, drastically reducing water leakage (non-revenue water).
Swachh Bharat Mission - Urban (SBM-U 2.0)	Shifts focus from toilet construction to **100% processing of Municipal Solid Waste (MSW)** and remediating legacy dumpsites to create "garbage-free" cities.	**Data:** Urban MSW processing capacity jumped from 18% (2014) to over **77% today** (MoHUA Dashboard). **Indore** achieved a 7-star rating by monetising waste via bio-CNG.
National Urban Digital Mission (NUDM)	Creates a shared digital baseline (National Urban Innovation Stack) that any ULB can use to offer online civic services (taxes, certificates).	**Impact:** Drastically reduces IT expenditure for smaller Nagar Panchayats and Municipal Councils that cannot afford private tech contractors.
Smart Cities Mission & ICCCs	Mandated the creation of **Integrated Command and Control Centres (ICCCs)** to act as the digital nervous system for city administration	**Example:** Originally used as COVID war rooms (in **Surat and Pune**), ICCCs are now heavily utilized for real-time traffic management and flood monitoring.
TULIP ***(The Urban Learning Internship Program)***	A joint MoHUA and AICTE initiative to match fresh graduates (engineers, urban planners) with ULBs and Smart City SPVs for internships.	**Objective:** Directly addresses the acute bureaucratic "capacity deficit" by injecting fresh, tech-savvy human capital into outdated municipal administration.

While a complete political merger of PRIs and ULBs may unjustly dilute the rural agrarian voice, **administrative and spatial integration is non-negotiable**. The solution lies not in merging the bodies, but in strictly empowering the **District Planning Committees (DPCs)** and **Metropolitan Planning Committees (MPCs)** (mandated by Articles 243ZD and ZE) to enforce a unified regional development plan that respects both urban growth and rural sustainability.

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Separation of Powers Between Various Organs, Dispute Redressal Mechanisms and Institutions

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17 Separation of Powers

The doctrine of Separation of Powers, propounded by the **French political philosopher Montesquieu** in The **Spirit of the Laws (1748),** entails the division of the legislative, executive, and judicial functions of government among distinct organs. This structural demarcation **prevents the concentration of power, minimises the possibility of arbitrary governance,** and ensures that each organ acts as a check and balance on the others, thereby safeguarding constitutionalism and the rule of law.

UPSC Mains PYQs

1. Judicial legislation is antithetical to the doctrine of separation of powers as envisaged in the Indian Constitution. In this context, justify the filing of large number of public interest petitions praying for issuing guidelines to executive authorities. **(2020)**
2. Do you think the Constitution of India does not accept the principle of strict separation of powers rather it is based on the principle of 'checks and balances'? Explain.**(2019)**
3. Resorting to ordinances has always raised concerns on violation of the spirit of the separation of powers doctrine. While noting the rationales justifying the power to promulgate, analyse whether the decision of the Supreme Court on the issue have further facilitated resorting to this power.
   Should the power to promulgate the ordinances be repealed? **(2015)**

17.1 Constitutional Articles Underpinning Separation of Powers

Article	Key Provisions	Implication for Separation of Powers
Article 50	The State shall take steps to separate the judiciary from the executive in the public services.	Core Directive Principle ensuring the judiciary remains free from executive influence.
Articles 53 & 154	The executive power of the Union/State shall be vested in the President/Governor.	Establishes the distinct constitutional existence of the Executive branch.
Articles 121 & 211	No discussion shall take place in Parliament/State Legislature regarding the conduct of any Supreme Court or High Court Judge.	Protects judicial independence by insulating judges from political debates and legislative pressure.
Articles 122 & 212	Courts are barred from enquiring into the validity of any proceedings in Parliament/State Legislature.	Protects the sovereignty of the Legislature in its internal functioning and rule-making.
Article 361	The President or the Governor shall not be answerable to any court for the exercise and performance of their official powers	Grants immunity to the nominal executive head, ensuring they can act without fear of legal harassment.

17.2 Checks-and-Balances

Institution Exercising Check	Institution Being Checked	Checks and Balances Mechanism
Legislature (Parliament)	Executive	• Collective responsibility of the Council of Ministers to the Lok Sabha under Article 75(3) • Question Hour, Zero Hour, No-Confidence Motion, Censure Motion, Budgetary Control, Parliamentary Committees, approval of government policies and expenditure.
Legislature (Parliament)	Judiciary	Removal of judges through impeachment on grounds of proved misbehaviour or incapacity (Article 124(4)).
Legislature (Parliament)	President (Executive)	Impeachment of the President for violation of the Constitution.
Executive (President/ Council of Ministers)	Legislature	Summoning, proroguing, and dissolving the Lok Sabha; ordinance-making power when Parliament is not in session under Article 123.

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Executive (President/CoM)	Judiciary	Appointment of judges; power to grant pardons, reprieves, respites, and remissions under Article 72.
Judiciary	Legislature	Judicial review of laws, striking down unconstitutional legislation, and safeguarding the Basic Structure of the Constitution.
Judiciary	Executive	Judicial review of executive actions; issuance of writs against executive excesses and arbitrary actions.
Judiciary	Parliament & Executive	Power to enforce Fundamental Rights under Articles 32 and 226.
President	Parliament	Veto powers and returning ordinary Bills for reconsideration.
Union Government (Federal Check)	State Governments	Directions to states, legislative intervention in specified circumstances, and imposition of the President's Rule.

How do PILs address legislative vacuums and executive apathy?

- **The Governance Vacuum:** When the legislature fails to enact necessary laws on pressing social issues, or the executive fails to implement them, a vacuum is created that threatens the fundamental rights of citizens.
- **The Constitutional Safety Valve:** The judiciary steps in through PILs not to permanently usurp the lawmaking function but to provide immediate relief and protect constitutional values.
- **Example:** The Supreme Court laid down the Vishaka Guidelines to prevent sexual harassment at the workplace, serving as a temporary, necessary framework until the Parliament enacted a formal law years later.

Why are PILs necessary to protect the marginalised and voiceless?

- **Relaxing Locus Standi:** Under Articles 32 and 226, the traditional rule of locus standi (only the aggrieved party can sue) is relaxed, allowing public-spirited citizens to approach the courts on behalf of those who cannot afford legal recourse.
- **Defending the Vulnerable:** Under trials, bonded labourers, and impoverished communities often face executive negligence or police excesses but lack the awareness or resources to fight back.
- **Upholding Part III:** When courts entertain PILs on their behalf, they are not breaching the separation of powers; they are fulfilling their core constitutional duty to enforce Fundamental Rights and directing the executive to discharge its constitutional and statutory obligations.

How do PILs help in enforcing institutional accountability?

- **Executive Reluctance:** In cases involving massive political corruption, administrative paralysis, or severe environmental degradation, the executive is often perceived as compromised or deeply reluctant to investigate itself.
- **Court-Monitored Investigations:** Citizens utilise PILs to bypass this apathy and initiate independent, court-monitored investigations.
- **Upholding the Rule of Law:** In these instances, the courts issue directives compelling executive authorities to act in accordance with the law. This upholds the Rule of Law, which is itself the foundational bedrock of the separation of powers.
- **Examples:** Court intervention in the 2G spectrum allocation scam and the M.C. Mehta environmental protection cases.

17.3 Significance of the Separation of Powers

Aspect	Details
Prevention of Tyranny	Ensures that the immense power of the state to make, execute, and interpret laws does not consolidate in one individual or body, thereby preventing authoritarianism.
Protection of Liberty	Acts as a structural safeguard for Fundamental Rights. If the body making the laws also executes them, there is no defense against oppressive laws.
Functional Efficiency	The modern state is highly complex. Separation allows for institutional specialisation: The legislature specialises in debate, the executive in rapid administration, and the judiciary in legal fairness, at the same moment cooperating with each other.
Judicial Independence	By isolating the judiciary from the executive and legislature (Article 50), it ensures judges can strike down unconstitutional government actions without fear of political retaliation or loss of job security.
Rule of Law	Guarantees that the government itself is bound by the laws it creates. The executive cannot act outside legislative authority, and the judiciary enforces this boundary.

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17.4 Contemporary Issues and Challenges

Theme	Issues & Challenges
Judicial Overreach	The judiciary is crossing the line from "reviewing" law to "making" policy. • **Examples:** Imposing the Highway Liquor Ban, managing the cricket board (BCCI) case, etc.
Executive Dominance	Bypassing Parliamentary debate through frequent re-promulgation of Ordinances. • **Example:** Passing controversial, substantive legislation by labelling it as a "Money Bill" to bypass the Rajya Sabha.
Legislative Decline	Rushing bills without debate (e.g., **passing farm laws or criminal codes** amid opposition walkouts and limited Parliamentary scrutiny). Drastic reduction in the number of bills referred to Parliamentary Committees.
Tribunalisation of Justice	The Executive creating tribunals for specific issues (NGT, SAT) but retaining control over the appointment and tenure of tribunal members, compromising their independence.
Friction over Appointments	The ongoing tug-of-war between the Executive and Judiciary over the **Collegium system**, resulting in massive delays in judicial appointments and high pendency of cases.
Delegated Legislation	**Excessive delegation of rule-making** to the executive weakens legislative oversight, potentially diluting **parliamentary authority.**

Judiciary and Separation of Powers

Theme & Concept	Issue	Arguments	Landmark Case
Separation of Powers vs Checks & Balances - Functional Blending (Rejection of strict watertight compartments)	Does India have a strict separation of powers like the USA?	**No.** India uses a Parliamentary system that fuses the Executive and Legislature (ministers are MPs). Instead, it relies on **Checks and Balances**: Legislature questions Executive, Executive appoints Judges, Judiciary reviews both.	***Indira Nehru Gandhi vs Raj Narain (1975)*** (Established separation of power as a basic feature)
Ordinance-Making Power - Executive Usurpation of Legislature (Articles 123 & 213)	Does bypassing Parliament via ordinances violate separation of powers? Should it be repealed?	**Yes, it violates the spirit if misused.** Designed only for acute emergencies. Executives often abuse it by repromulgating without debate. **No to repeal:** Needed for national security/emergencies. **Solution:** Strict judicial review of the executive's intent.	**D.C. Wadhwa** (1987) (Banned routine repromulgation) **Krishna Kumar Singh (2017)** (Ordinances are subject to judicial review.)
SC Checking Parliament - Counter - Majoritarian Check (Article 368 vs Article 13)	How does the SC prevent Parliament from using majorities to become a tyrant?	By establishing that Parliament's amending power is **limited, not absolute**. The SC acts as the ultimate guardian, ensuring that majoritarian governments cannot alter or destroy the secular, democratic, and judicial core of the Constitution.	**Kesavananda** Bharati (1973) (Basic Structure) **Minerva Mills** (1980) (Limited amending power)
Judicial Independence - Prerequisite of Democracy (Rule of Law)	Why is independence a prerequisite?	Democracy is not just majority rule; it requires protecting individual rights against state tyranny. **The Constitution guarantees this via**: **Security of tenure** (strict impeachment), **non-votable salaries** (Consolidated Fund), and **contempt powers**.	NJAC Judgment / 4th Judges Case (2015)
Collegium System: India vs USA - Judicial Primacy vs Executive Nomination	Comparing how apex judges are appointed.	**India (Collegium):** Evolved via Three Judges Cases. **Pros:** More independence from politics. **Cons:** Opaque, oligarchic, lacks public accountability. **USA (Exec + Senate): Pros:** High democratic accountability and public hearings. **Cons:** Hyper-partisan, judges often selected for ideological loyalty.	**First Judges Case** (1981) (Executive primacy) **Second/Third Judges Cases** (1993/1998) (Created Collegium)

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Growth of PIL & SC Power - Relaxation of Locus Standi & Epistolary Jurisdiction	Why did PILs grow, and did it make the SC the "most powerful"?	**Growth:** Driven by mass poverty, illiteracy, and the courts dropping the rigid "only the aggrieved can sue" rule. **Most Powerful:** Yes, structurally. It recommends the appointment of its own judges, can strike down Unconstitutional amendments, and take suo motu control of executive policies.	**S.P. Gupta** (1981) (Relaxed locus standi) **Sunil Batra** (Epistolary jurisdiction)
PILs & Judicial Legislation - Transformative Constitutionalism vs Judicial Overreach	How to justify the SC making "laws" (guidelines) via PILs?	**The Justification:** Arises due to **Executive Vacuum/Apathy**. When legislatures fail to act on pressing crises (environment, harassment), the SC can intervene to protect **Article 21 (Life/Liberty)**. It acts as a transitional social catalyst until the State builds capacity.	**Vishaka vs State of Rajasthan** (1997) (Stipulated sexual harassment at workplace guidelines) **D.K. Basu** (1997) (Arrest guidelines)

17.5 How Checks and Balances Complement Separation of Powers

Aspect	Principle of Separation of Powers	Complimentary system of checks and balances	Application
Foundational Philosophy	**Compartmentalisation:** Rooted in Montesquieu's The Spirit of the Laws (1748), it dictates that powers (Legislative, Executive, Judiciary) must be strictly separated into distinct branches.	**Vigilance against Corruption:** Rooted in Lord Acton's premise that "absolute power corrupts absolutely," it ensures that separated powers actively monitor each other.	Without checks, an isolated branch could grow tyrannical. Checks and balances ensure that each branch exercises vigilance over the others to keep the whole system in balance.
Structural Setup	**Distinct Functions:** The Legislature makes laws, the Executive implements them, and the Judiciary interprets them. They are designed to be "coequal".	**Interlocking Mechanisms:** Provides tools for one branch to intervene in or halt the actions of another, preventing unilateral dominance.	The President may return an Ordinary Bill once (except Money and Constitutional Amendment Bills). If Parliament repasses it, assent is mandatory.
Executive & Legislative Overlap	**Strict Separation (Presidential System):** In the US, the Executive and Legislative branches are kept strictly apart to avoid conflict of interest.	**Oversight within Integration (Parliamentary System):** In India/the UK, the Executive emerges from the Legislature. Checks and balances legitimize this by ensuring the Executive relies on Legislative support.	The Vice President serves as the ex-officio Chairman of the Rajya Sabha (Art. 64), providing an institutional link between the Executive and the Legislature.
Financial Control vs. Gridlock	**Independent Mandates:** The Executive determines governance and spending needs, while the Legislature holds the "power of the purse".	**Mutual Dependency:** The Executive cannot spend money without Legislative sanction, forcing cooperation.	**Government Shutdowns:** Strict separation without compromise leads to gridlock. For example, the 43-day US government shutdown (Oct-Nov 2025) occurred when the legislature refused to sanction executive expenditure.
Role of the Judiciary	**Independent Functioning:** The Judiciary operates entirely independent of Executive or Legislative pressure to ensure fair trials.	**Judicial Review:** Empowers the Supreme Court to act as the "guardian and protector of the Constitution" by striking down unconstitutional acts of the other two branches.	**Tribunal Reforms Act, 2021:** The Supreme Court checked the Executive and Legislature by striking down provisions of this Act because it allowed excessive Executive control over tribunal appointments, which violated the separation of powers.
Final Constitutional Authority	**Limits on Lawmaking:** The Legislature cannot pass arbitrary laws, nor can the Executive issue overriding ordinances unconditionally.	**Arbitration of Meaning:** The courts ensure that laws and executive actions align with constitutional arrangements.	**The Constitution is what the Court says it is:** The Supreme Court acts as the final arbiter, preventing "legislative/executive overrides" of binding judicial judgements.

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17.6 Way Forward

Theme	Way Forward	Key Cases & Committee Recommendations	Contemporary Examples
Judicial Overreach vs. Restraint	The judiciary must exercise **self-restraint** and adhere to the **"Doctrine of Deference"**, respecting the policy domain of the executive and the law-making domain of the legislature. PILs should be heavily screened to prevent **"Policy by Judiciary."**	• **2nd ARC:** Emphasised that courts should not cross the boundary of judicial review to assume executive functions. • **Supreme Court (State of Rajasthan v. Union of India):** Courts cannot run the government; they must respect coordinate branches.	**Example:** The SC taking suo motu cognisance of the Kolkata RG Kar case, while necessary for justice, often reignites debates on judicial intervention in executive law-and-order domains.
Executive Dominance (Ordinance & Money Bill Route)	The executive must limit the use of **Ordinances (Article 123)** only to extreme, unforeseen emergencies. The Speaker's certification of a **"Money Bill" (Article 110)** should not be used as a political tool to bypass the Rajya Sabha and should be subject to strict judicial scrutiny.	• **D.C. Wadhwa Case (1987) & Krishna Kumar Singh Case (2017):** Re-promulgation of ordinances is a "fraud on the Constitution" and is subject to Judicial Review. • **Aadhaar Case (2018):** SC upheld the Aadhaar Act as a Money Bill but laid down strict parameters for future scrutiny.	A 7-judge Constitutional bench of the Supreme Court is currently reviewing the scope of the Speaker's power to classify legislation as a **"Money Bill" (arising from the Finance Act, 2017, tribunal rules).**
Arresting Legislative Decline	Parliament must reclaim its supreme deliberative role. Rushing complex legislation without debate undermines the checks on the executive. Pre-legislative scrutiny must be institutionalised.	• **NCRWC (Venkatachaliah Commission):** Recommended that it should be made mandatory for all major Bills to be referred to Departmentally Related Standing Committees (DRSCs). • **Pre-Legislative Consultation Policy (2014):** Mandates a 30-day public consultation for all bills (poorly implemented).	The passage of the three new criminal codes (BNS, BNSS, BSA) and the Telecommunications Act, 2023 saw limited debate due to opposition suspensions. Strengthening DRSCs is the most cited "way forward" by constitutional experts today.
Reforming Tribunalisation	To prevent the executive from acting as a "judge in its own cause", the administrative and financial control of tribunals must be completely decoupled from their parent, sponsoring ministries.	• **74th Parliamentary Standing Committee & 272nd Law Commission:** Strongly recommended the creation of an independent National Tribunals Commission (NTC) to oversee appointments, infrastructure, and administration of tribunals. • **L. Chandra Kumar Case (1997):** Tribunals can supplement, but not supplant, the High Courts.	The **Tribunal Reforms Act, 2021** saw friction when the Executive reintroduced provisions (regarding tenure and age of members) that the Supreme Court had previously struck down in the *Madras Bar Association* cases, showing an ongoing tug-of-war.
Resolving Appointments Friction	The friction over the Collegium system must be resolved through mutual compromise. The Collegium needs to be more transparent, and the Executive must clear recommended names within a fixed timeline.	• **2nd ARC & NCRWC:** Supported a National Judicial Appointments Commission (NJAC) model (which was later struck down in 2015). • **Finalization of MoP:** A mutually agreed Memorandum of Procedure (MoP) for judicial appointments	The Supreme Court has started publishing the "reasons" for its Collegium resolutions on its website to counter allegations of opacity. However, friction remains over the Executive returning or sitting on reiterated names.

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Necessity of Coordination Between Legislature, Executive, and Judiciary

While the doctrine of Separation of Powers is essential to prevent the concentration of authority, a strict, watertight compartmentalisation is practically impossible in a modern welfare state. The Indian Constitution embodies a **"Doctrine of Checks and Balances"**, requiring a functional overlap where the three organs act as partners in governance rather than adversaries. Effective administration demands harmonious coordination to achieve constitutional goals.

1. **Enhancing Legislative Efficacy (Effective Lawmaking)**
   - **Concept:** The judiciary's interpretation of existing statutes frequently exposes loopholes, ambiguities, or constitutional gaps. This judicial feedback is vital for the legislature to craft precise, future-ready laws.
   - **Example:** The Supreme Court's landmark Puttaswamy Judgement (2017) recognising the Right to Privacy provided the essential legal scaffolding for the legislature to eventually draft the Digital Personal Data Protection Act.
2. **Ensuring Seamless Execution (Smooth Implementation & Delegated Legislation)**
   - **Concept:** Clear communication and shared understanding between the executive machinery and the judiciary minimise friction, reduce unnecessary litigation, and ensure legislative intent is translated into action on the ground. Furthermore, the system of delegated legislation explicitly relies on the executive's administrative expertise to implement broad legislative mandates.
   - **Example:** Collaborative workshops for bureaucrats and judicial officers on newly enacted laws (e.g., new labour codes or criminal laws) foster a uniform understanding and better enforcement.
3. **Upholding 'Constitutional Objectivity' & Public Trust**
   - **Concept:** As emphasised by the Supreme Court, the principle of "Constitutional Objectivity" requires each branch to operate within its designated sphere while cooperating to prevent the absolute accumulation of power. This mutual respect fosters public trust in the rule of law.
   - **Example:** Collaborative and timely efforts between the Executive and the Judicial Collegium to fill judicial vacancies are critical to reducing case pendency and maintaining citizen confidence in the justice system.
4. **Bridging Governance Deficits through Institutional Synergy**
   - **Concept:** In instances of executive inaction or legislative delay regarding critical social issues, coordination is seen when the judiciary steps in via Public Interest Litigations (PILs) to protect Fundamental Rights until the legislature can formulate a permanent law.
   - **Example:** The Supreme Court issued the Vishaka Guidelines to prevent sexual harassment at the workplace, which seamlessly acted as the law of the land until the legislature enacted the POSH Act in 2013.
5. **Facilitating Crisis Management (Swift Action on Critical Issues)**
   - **Concept:** National emergencies, disasters, or pandemics demand a synchronised response where executive swiftness is carefully balanced with judicial oversight to ensure due process is not entirely discarded.
   - **Example:** During the COVID-19 pandemic, the executive implemented strict lockdown measures under the Epidemic Diseases Act and Disaster Management Act, while the judiciary expedited hearings to ensure these measures did not arbitrarily violate fundamental rights, balancing public health with individual liberty.
6. **Tackling Transnational Challenges (Globalized World)**
   - **Concept:** In an interconnected world, modern threats such as cyber-terrorism, cross-border financial fraud, and environmental degradation require a united institutional front.
   - **Example:** Framing effective extradition treaties, adopting international environmental agreements, and establishing cybercrime jurisdictions require the executive to negotiate, the legislature to ratify, and the judiciary to enforce them consistently.

Ultimately, the doctrine of Separation of Powers in the Indian Constitution is not meant to create isolated, watertight compartments, but rather a dynamic system of **checks and balances**. While the core objective remains the prevention of concentrated power and the protection of liberty, the Constitution envisions a functional overlap to ensure mutual accountability. The success of this democratic framework relies heavily on **'Constitutional Comity'** where the Legislature, Executive, and Judiciary exercise institutional self-restraint, respect each other's constitutional domains, and work collaboratively to uphold the Rule of law."

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18 Dispute Redressal Mechanisms (Tribunals, ADRs and Lok Adalats)

Dispute Redressal Mechanisms (DRMs) are institutional frameworks created outside the traditional, formal judicial hierarchy (courts) to resolve disputes efficiently, cost-effectively, and with specialised expertise. They act as "**safety valves**" for an overburdened judiciary.

- **Tribunals:** Quasi-judicial bodies established to deal with specific problems such as tax, administrative, or environmental disputes. They blend judicial fairness with administrative expertise. They are not bound by the strict rules of the **Civil Procedure Code (CPC)** but are guided by the **Principles of Natural Justice.**
- **Alternative Dispute Resolution (ADR):** Techniques for resolving conflicts outside the courtroom. The main types are:
  - **Arbitration**: A neutral third party renders a binding decision.
  - **Mediation:** A neutral third party facilitates a negotiated settlement (non-binding until an agreement is signed).
  - **Conciliation:** Similar to mediation, but the conciliator plays a more active role in proposing solutions.
- **Lok Adalats (People's Courts):** A forum where disputes/cases pending in the court of law or at the pre-litigation stage are settled/compromised amicably.

UPSC Mains PYQs

1. Comment on the need of administrative tribunals as compared to the court system. Assess the impact of the recent tribunal reforms through rationalisation of tribunals made in 2021. **(2025)**
2. Explain and distinguish between Lok Adalats And Arbitration Tribunals. Whether they entertain civil as well as criminal cases? **(2024)**
3. Who are entitled to receive free legal aid? Assess the role of National Legal Services Authority (NALSA) in rendering free legal aid in India. **(2023)**
4. How far do you agree with the view that tribunals curtail the jurisdiction of ordinary courts? In view of the above, discuss the constitutional validity and competency of the tribunals in India? **(2018)**
5. What are the major changes brought in the Arbitration and Conciliation Act, 1996 through the recent Ordinance promulgated by the President? How far will it improve India's dispute resolution mechanism? Discuss. **(2015)**

18.1 Tribunals

Dimension	Details, Data & Examples	Issues & Challenges	Way Forward, Committees & Recent Updates
Foundation & Mandate	**Origin:** Added via the 42nd Amendment (Swaran Singh Committee). • **Art 323A:** Administrative Tribunals (CAT, SAT). • **Art 323B:** Other Tribunals (Tax, NGT, Elections, etc.).	• **Violation of Separation of Powers:** Parent ministries often act as the sponsor, rule-maker, and primary litigant, compromising the tribunal's independence.	• **National Tribunals Commission (NTC):** The Supreme Court and 74th Parliamentary Committee strongly recommended setting up an independent NTC to oversee all tribunals.
Data & Efficacy	• **Data:** As of recent estimates, over 3-4 lakh cases are pending across major tribunals like ITAT (Income Tax), NCLT (Company Law), and NGT. • **Example:** NGT has revolutionised environmental jurisprudence with domain experts sitting alongside judges.	• **High Vacancies & Pendency:** Severe delay in appointments by the executive has rendered many tribunals non-functional (e.g., Debt Recovery Tribunals often lack presiding officers).	• **Strict Timelines:** The Supreme Court has repeatedly emphasised timely appointments.

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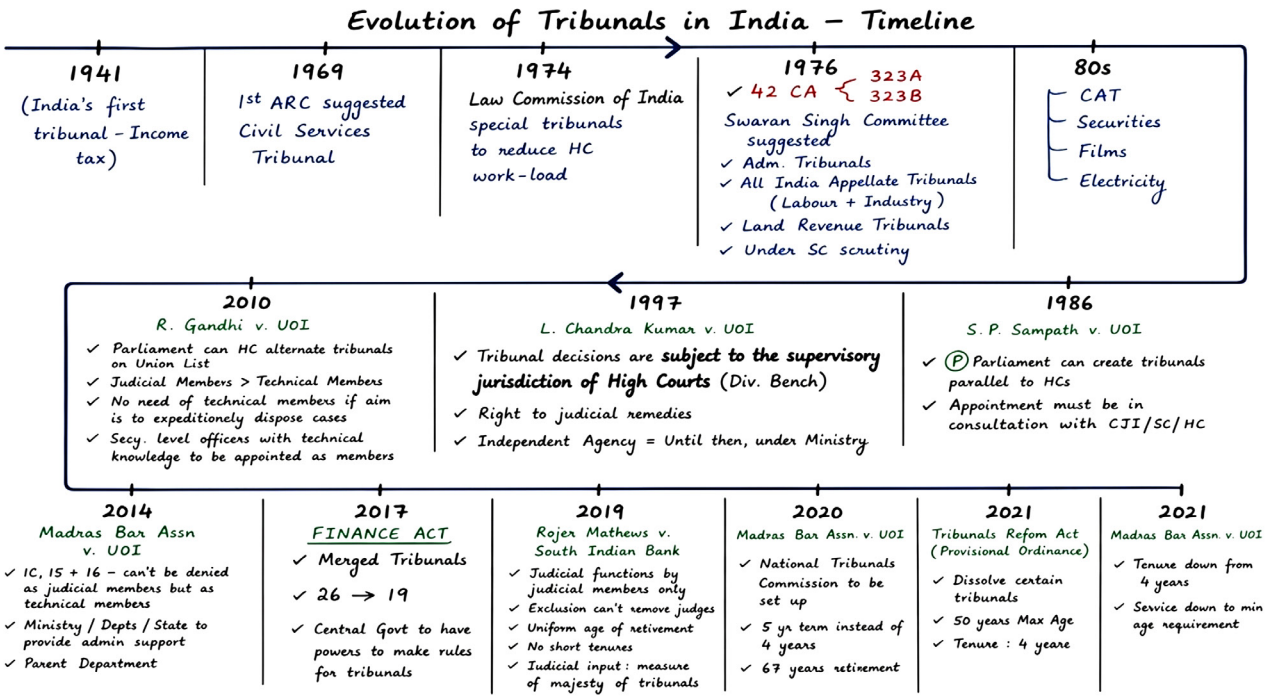
Legal & Structural Issues	• **Appeal Mechanism:** Under the *L. Chandra Kumar Case (1997)*, tribunal orders are subject to the writ jurisdiction of High Courts.	• **Appellate Bottlenecks:** Because tribunal decisions can be appealed in HCs, they fail in their primary goal of decongesting the formal judiciary. It merely adds another tier of litigation.	• **Tribunal Reforms Act, 2021):** Sparked massive friction. The Act abolished several appellate tribunals and transferred their jurisdiction to HCs. The SC struck down provisions regarding the 4-year tenure of members, mandating a 5-year tenure for independence.



Traditional Courts vs Administrative Tribunals

Dimension	Traditional Courts	Administrative Tribunals
Pendency & Workload	Burdened by large case backlogs, causing delays in justice delivery.	• Created to reduce court burden by handling specialised disputes (e.g., CAT, NCLT, NGT). • However, vacancies have led to growing pendency in many tribunals.
Bench Composition & Expertise	Presided over by legally trained judges with broad judicial expertise.	• Comprise judicial and technical members, providing sector-specific expertise. • Concerns exist regarding appointments of non-specialists in some tribunals.
Procedure & Flexibility	Follow strict procedures under procedural and evidentiary laws, ensuring legal rigour.	More flexible procedures; not strictly bound by the Code of Civil Procedure or Evidence Act, enabling faster disposal of cases.
Accessibility & Cost	Litigation is often expensive and time-consuming, especially in higher courts.	Intended to provide quicker and cheaper dispute resolution through specialised and decentralised forums. Infrastructure and staffing issues sometimes limit effectiveness.
Specialization	Deal with a wide range of civil and criminal matters.	Focus on specialised areas such as service matters, taxation, environment, telecom, securities, and insolvency.
Consistency in Sectoral Regulation	Limited specialisation may affect uniformity in complex regulatory sectors.	Develop specialised jurisprudence and institutional expertise, enhancing predictability in sector-specific disputes.

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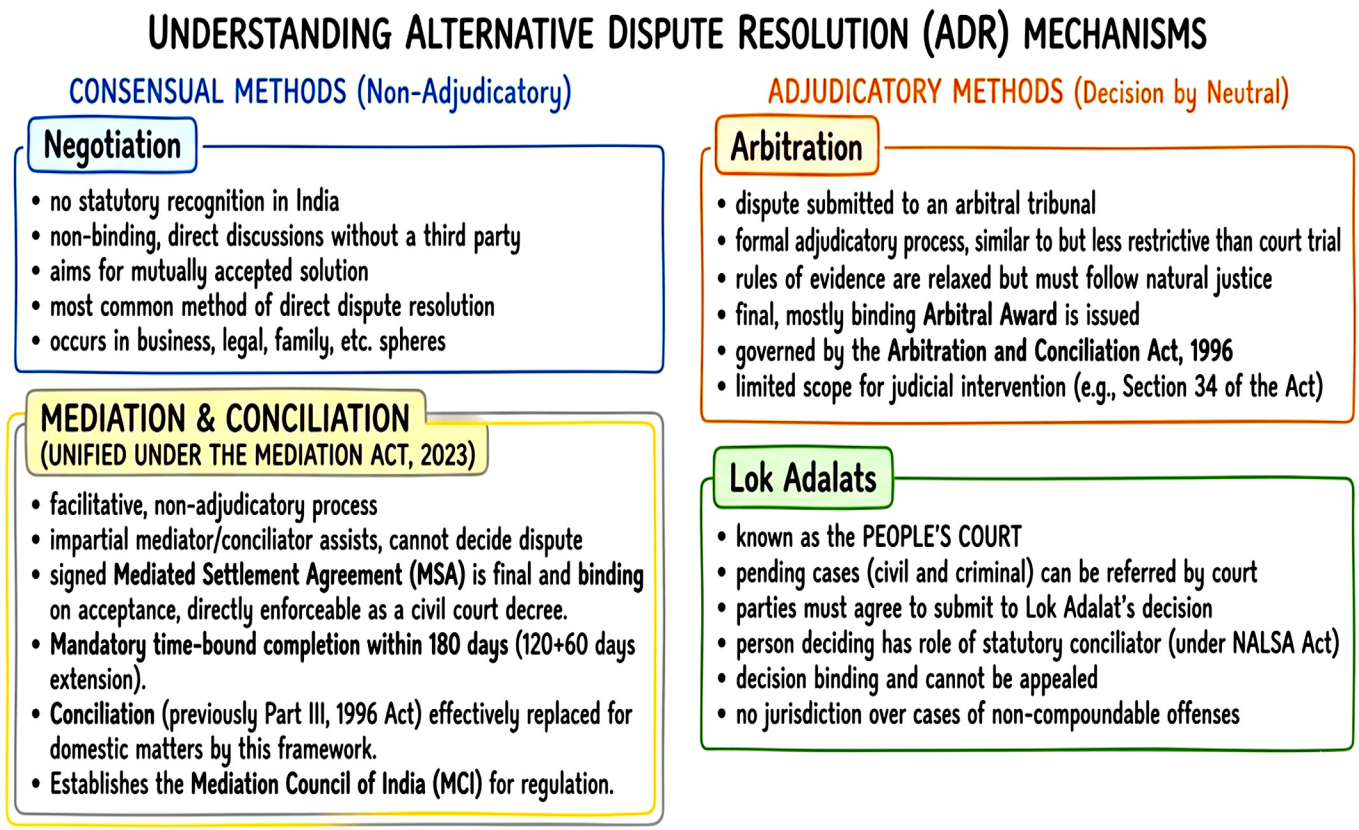
Independence Concerns	Strong Constitutional safeguards for judicial independence.	Concerns have been raised regarding executive influence in appointments and administration of tribunals.

18.2 Alternative Dispute Resolution

Aspect	Details
Legal & Statutory Backing	• **Article 39A** → Mandates equal justice and free legal aid, acts as the Constitutional cornerstone for Alternative Dispute Resolution (ADR) mechanisms in India. • **Section 89 of CPC:** Mandates courts to refer pending disputes to ADR if settlement elements exist. • **Arbitration & Conciliation Act, 1996:** Governs domestic and international arbitration. • **Mediation Act, 2023:** Provides statutory backing specifically for mediation.
Data & Examples	• **Data:** India historically ranks low in "Enforcing Contracts". High-stakes corporate disputes (e.g., Vodafone, Amazon-Future Retail) often prefer Singapore (SIAC) or London (LCIA) over India. • **Examples:** India International Arbitration Centre (IIAC) and the emerging GIFT City Arbitration centre.
Issues & Challenges	• **Over-judicialisation:** Indian arbitration has become almost as formal, expensive, and lengthy as regular court proceedings, defeating its core purpose. • **Judicial Interference:** Section 34 of the Arbitration Act is frequently misused by losing parties to challenge arbitral awards in regular courts, stalling finality. • **Lack of Professionals:** A severe shortage of dedicated, globally recognised professional arbitrators (the space is currently dominated by retired judges).
Way Forward & Committees	• **B.N. Srikrishna Committee:** Recommended minimising court intervention and creating specialised arbitration bars to make India an international arbitration hub. • **Institutional Shift:** Moving away from ad-hoc arbitration toward institutional arbitration with strict timelines and professional grading.
Recent Updates	• **Mediation Act, 2023:** A landmark update that encourages institutional mediation, mandates pre-litigation mediation in commercial cases, and makes mediated settlement agreements enforceable by law. • **Arbitration Council of India (ACI):** Although it was enacted into law as an independent statutory body via the Arbitration and Conciliation (Amendment) Act of 2019, the Union government has faced significant delays in fully forming the council.



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Arbitration & Conciliation (Amendment) Act, 2021

The 2021 Amendment (the third amendment to the original 1996 Act) aimed to promote a pro-arbitration regime. However, it inadvertently introduced provisions that experts argue might delay enforcement.

Area of Concern	Description	Impact
Automatic Stays	Introduced unconditional/automatic stays on arbitral awards if the court is satisfied prima facie that the contract/award was induced by "fraud or corruption".	Encourages the losing party to file frivolous allegations just to delay the enforcement of the award.
Ambiguous Terms	Broad, undefined terms like "fraud" and "corruption" are left to judicial interpretation.	Increases judicial intervention, defeating the core purpose of arbitration (which is keeping disputes out of court).
Evidence Threshold	Lack of statutory clarity on what constitutes prima facie evidence needed for fraud claims.	Leads to prolonged preliminary hearings (applications under Section 36(2)), increasing costs and burdening courts.
Arbitrator Qualifications	The amendment deleted Schedule 8 (which specified strict qualifications for arbitrators), transferring the power to frame regulations to the executive/ACI.	Removing statutory clarity could dilute the quality and independence of arbitrators if not strictly regulated.
Investor Confidence	Weak/delayed enforcement of contracts due to prolonged stays.	Negatively impacts foreign direct investment (FDI) and global commercial trust in Indian jurisdictions.

Arbitration and Conciliation (Amendment) Bill, 2024 (Draft)

Aim: Designed to rectify past anomalies, boost institutional arbitration (moving away from ad-hoc arbitration), reduce court intervention, and ensure timely resolution to make India a global arbitration hub.

Key Features & Reforms:

1. **Renaming the Act (Omission of Conciliation):**
   - The Act is to be renamed from the *Arbitration and Conciliation Act, 1996* simply to the **Arbitration Act, 1996**.
   - *Reason:* Provisions related to conciliation have been integrated into the newly enacted **Mediation Act, 2023**, streamlining the legal framework.
2. **Emergency Arbitrator:**
   - Introduces the concept of an "Emergency Arbitrator" to grant urgent interim relief to parties even *before* the formal arbitral tribunal is fully constituted.
3. **Institutional Focus over Ad Hoc:**
   - Shifts the preference toward institutional arbitration (where disputes are managed by specialized arbitration institutions) rather than ad-hoc arbitration (where parties arrange proceedings themselves), aiming to improve procedural efficiency, consistency, and institutional oversight.
4. **Empowering the Arbitration Council of India (ACI):**
   - The Draft Bill strengthens institutional governance mechanisms and provides for recognition and regulation of arbitral institutions, while revisiting the role envisaged for the Arbitration Council of India under earlier amendments.
5. **Virtual Proceedings (Tech Integration):**
   - Officially permits and legally recognizes video conferencing and virtual arbitration proceedings, accommodating global parties and reducing travel logistics/costs.
6. **Appellate Arbitral Tribunal:**
   - Proposes the creation of an internal appellate mechanism to hear appeals against arbitral awards, minimizing the need for parties to immediately drag the dispute into traditional High Courts.
7. **Recognition of Electronic Arbitration Agreements**
   - Arbitration agreements can be concluded electronically.
   - Digital signatures and electronic records are expressly recognised.
8. **Reduced Court Intervention**
   - Courts are encouraged to defer to arbitral tribunals on interim measures and procedural issues.
9. **Time-bound Jurisdictional Decisions**
   - Arbitral tribunals must decide jurisdictional objections within prescribed timelines.
10. **Remand of Awards**
    - Courts may remit awards back to tribunals to cure defects instead of outright setting them aside.

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18.3 Lok Adalats

An informal, people-centric forum where disputes are resolved by consensus, not contest, ensuring accessible, compassionate, and timely justice.

18.3.1 Core Philosophy & Features

- **Consensus over Contest:** Operates on a conciliation model. The effort is not to decide who is right/wrong, but to find a practical, fair, and quick resolution. There are no winners or losers.
- **Cost-Effective:** No court fee is payable. Furthermore, if a pending court case is settled in a Lok Adalat, the already paid court fee is refunded.
- **Binding Nature:** The award of a Lok Adalat is final, binding, and deemed to be a decree of a civil court. No appeal is permitted, ensuring quick finality.

18.3.2 Variants of Lok Adalats & their Mandates

Variant	Operational Framework & Mandate
National Lok Adalats (NLAs)	• **Mission-Mode Delivery:** Simultaneous, nationwide sittings held on a single day across all court levels based on an annual NALSA calendar. • **Process:** Extensive pre-Lok Adalat sittings are held to scope out settlements. Disposed cases are immediately updated on the National Judicial Data Grid (NJDG). • **Scale:** They resolve millions of pre-litigation and pending cases in a single day.
Permanent Lok Adalats (PLAs)	• **Focus:** Dedicated entirely to Public Utility Services (transport, telecommunications, electricity, water, and postal). • **Jurisdiction & Composition:** Pecuniary jurisdiction up to ₹1 crore. The bench comprises a Chairperson and 2 domain experts. • **Unique Power:** Unlike regular Lok Adalats, which just return the case if conciliation fails, PLAs have the statutory authority to decide the dispute on merits (adjudication), ensuring closure.
E-Lok Adalats	• **Digital Adaptation:** Born out of the COVID-19 necessity, these allow remote participation through video conferencing, bringing justice directly into people's homes and drastically cutting travel time/costs.

18.3.3 Issues & Way Forward

Dimensions	Details
Issues & Challenges	• • **Quality vs. Quantity:** In the rush to show high disposal statistics during National Lok Adalats, poor litigants are sometimes pressured to accept subpar settlements. • • **Imbalance of Power:** In disputes involving banks (loan recovery) or insurance companies, the individual is at a severe negotiating disadvantage against corporate giants. • • **Lack of Adjudication (in regular Lok Adalats):** If parties fail to compromise, regular Lok Adalats cannot decide the case; they merely return it to the regular court, causing delays.
Way Forward	• • **Strict Pre-counselling:** Institutionalise rigorous pre-Lok Adalat counselling to ensure consent is genuine and not obtained through pressure or ignorance of legal rights. • • **Expand PLAs:** Promote awareness and utilisation of Permanent Lok Adalats, as their ability to adjudicate public utility disputes provides guaranteed finality.

18.3.4 NALSA (National Legal Services Authority)

The apex statutory body was constituted to provide free and competent legal services to the weaker sections and coordinate Lok Adalats nationwide.

Aspect	Details
Foundation & Hierarchical Architecture	• **Origin:** Constituted under the **Legal Services Authorities Act, 1987**; came into force on 9th November 1995 to fulfil the mandate of *Articles 39A, 14, and 22(1).* • **National (NALSA):** The Patron-in-Chief is the Chief Justice of India, and the Executive Chairman is the senior-most Judge of the Supreme Court. • **State (SLSA):** The Patron-in-Chief is the Chief Justice of the respective High Court, with the senior-most HC Judge as Executive Chairman. • **District & Taluka (DLSA/TLSC):** DLSAs are chaired by the District Judge and operate directly from the District Court Complexes to ensure grassroots access.

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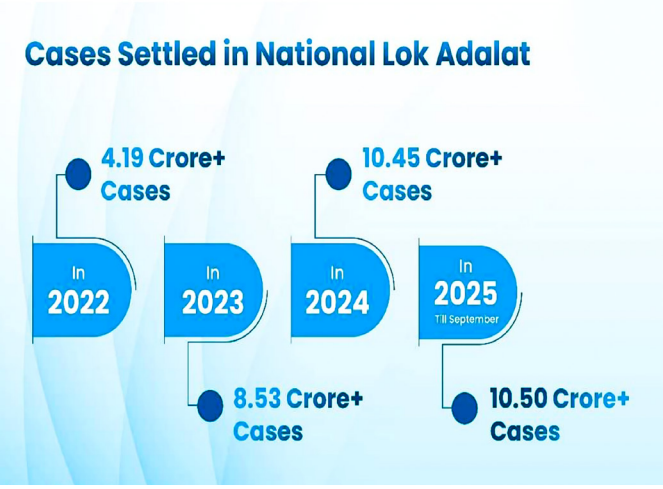
Mandate & Beneficiaries (Section 12 of LSA Act)	• **Target Groups:** Women, children, SC/STs, industrial workmen, and persons in custody (including juvenile homes and psychiatric hospitals). • **Disaster Victims:** Explicitly covers victims of mass disasters, ethnic violence, caste atrocities, floods, droughts, and earthquakes. • **Income Ceiling Limits:** The annual income limit for availing free legal aid has been strictly defined - revised up to ₹5,00,000 for matters before the Supreme Court and ₹1,00,000 for High Court matters. • Income caps are entirely waived if you belong to certain categories. *Anyone who is a woman, a child, or a member of SC/ST automatically qualifies for free legal aid, regardless of their income.*
Scope of Services & Key Initiatives	• **Beyond Representation:** Free legal aid includes payment of process fees, witness expenses, drafting of legal documents (like Special Leave Petitions), and supplying certified copies of judgements. • **Social Justice Litigation:** NALSA actively files Public Interest Litigations (PILs) **for matters of special concern**, like prison reforms, human rights, etc. • **Infrastructure Setup:** Expanding access by appointing "Legal Aid Counsel" in all Magistrate courts, establishing Counseling & Conciliation Centers in all districts, and setting up legal aid facilities inside jails. • **Publication:** Drives legal literacy through its official newsletter, "**Nyaya Deep**".
Issues & Challenges	• **Awareness Deficit:** The most marginalised sections (tribals, undertrials, bonded labourers) remain completely unaware of their statutory right to free legal aid. • **Quality of Representation:** Empaneled legal aid lawyers are often inexperienced, underpaid, or lack motivation, leading to the critique that "free legal aid often becomes poor legal aid". • **Apathy at Grassroots:** District and Taluka-level committees often suffer from poor infrastructure, delayed funding disbursements, and administrative bottlenecks.
Way Forward	• **NALSA Centre for Citizen Services:** A dedicated central facility recently set up at Jaisalmer House, New Delhi, to streamline public access and grievances must be expanded pan-India. • **Tele-Law & Digital Access:** Leveraging Common Service Centres (CSCs) at the Panchayat level to connect marginalised communities with panel lawyers via video conferencing. • **Engaging Senior Counsel:** NALSA is actively pushing to integrate Pro Bono Legal Services (via the Nyaya Bandhu App), encouraging senior advocates to take up cases to ensure high-quality representation for the poor.



Lok Adalats have transformed from scattered initiatives into India's most trusted alternative dispute resolution mechanism. By combining the statutory robustness of the LSA Act, 1987, with a deeply humane model of justice, they prove that justice need not be distant or intimidating. They successfully substitute courtroom drama with conversation and negotiation, transforming ordinary court complexes into bustling centres of resolution and rebuilding trust between the citizen and the system.

18.3.5 Gram Nyayalayas

The Law Commission of India, in its 114th Report, had suggested the establishment of Gram Nyayalayas for providing affordable and quick access to justice to the citizens at their doorsteps. The Gram Nyayalayas Bill was passed by the Parliament on 22nd December 2008, and the Gram Nyayalayas Act came into force with effect from 02nd October 2009. The Act extends to the whole of India, except to the States of Nagaland, Arunachal Pradesh and Sikkim and to the tribal areas specified in Parts I, II, IIA and III of the paragraph 20 of the Sixth Schedule to the Constitution of India within the States of Assam, Meghalaya, Tripura and Mizoram, respectively.

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Core Foundation: What are Gram Nyayalayas?

- **Philosophy:** They embody the constitutional mandate of Article 39A (Free Legal Aid) and the democratic decentralisation envisaged by the 73rd Amendment.
- **Nature:** They are mobile courts that hold proceedings at the headquarters of the intermediate Panchayat and also periodically visit villages to hear cases directly at the grassroots.
- **Aim:** To provide speedy, inexpensive, and substantial justice to the rural population.

Dimension	Details
Statutory Backing	Established under the **Gram Nyayalayas Act, 2008** (came into force on October 2, 2009). Established by the State Government in consultation with the respective High Court.
Presiding Officer	• Headed by a **Nyayadhikari**, who is strictly a judicial officer equivalent to a **Judicial Magistrate of the First Class (JMFC)**. • Appointed by the State Government in consultation with the High Court. • The Nyayadhikari shall periodically visit villages and may hear the parties and dispose of the cases at the place other than its headquarters
Seat	The seat of the Gram Nyayalayas shall be located at the headquarters of the intermediate Panchayat.
Guided by PNJ	The Gram Nyayalaya shall not be bound by the rules of evidence provided in the Indian Evidence Act, 1872, but shall be guided by the principles of natural justice subject to any rule made by the High Court.
Dual Jurisdiction	Gram Nyayalayas have jurisdiction over both Civil and Criminal cases. • **Criminal :** Offences not punishable with death, life imprisonment, or imprisonment > 2 years (follows summary trial procedure). • **Civil:** Property disputes, minimum wages, domestic violence, etc.
Appeal Mechanism	• **Criminal Appeals:** Go to the Court of Session. • **Civil Appeals:** Go to the District Court. • **Crucial Detail:** Appeals must be filed and disposed of within a strict timeline of six months.

Issues and Challenges

Challenge	Details
Reluctance of Stakeholders	**Lawyers & Police:** Advocates are reluctant to travel to remote villages to practice in these courts due to low fees. Police officials often do not file charge sheets before Gram Nyayalayas, preferring regular district courts.
Concurrent Jurisdiction Overlap	The jurisdiction of Gram Nyayalayas runs parallel to regular courts. Since litigants (and lawyers) are more accustomed to regular courts, they bypass the Gram Nyayalaya, leaving it underutilised.
Funding & Infrastructure	States complain of a severe lack of funds to build infrastructure (courtrooms, vehicles for mobile courts, and staff salaries). The central assistance provided is often deemed insufficient. • In the recent National Federation of Societies for Fast Justice case, the argument was provided that only about five to six per cent of Gram Nyayalayas have been set up till now.
Lack of Awareness	Rural populations remain largely unaware of the existence of Gram Nyayalayas or their power to hear and decide cases locally.

Way Forward

Theme	Detailed Way Forward	Example
Judicial Intervention	The Supreme Court must strictly enforce the operationalisation of the 2008 Act. States must be given hard deadlines to notify and fund these courts.	The Supreme Court (in *National Federation of Societies for Fast Justice vs UoI*) frequently pilled up State Governments and High Courts, issuing notices for their failure to establish Gram Nyayalayas, calling it a "farce" of the 2008 Act.
Financial Re-structuring	The Central Government needs to increase its one-time infrastructural grant and recurring salary assistance to incentivise states.	**Centrally Sponsored Scheme (CSS):** The scheme for infrastructural facilities for the judiciary now includes specific, extended funding provisions for Gram Nyayalayas up to 2026. It should be made a permanent feature of the justice system at the grassroots level.

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Exclusive Jurisdiction	To solve the overlap issue, certain petty civil and criminal matters should be made the *exclusive* domain of Gram Nyayalayas at the first instance, forcing lawyers and police to utilise them.	**Recommendation:** Various legal experts suggest amending the Act to remove ***concurrent jurisdiction*** with regular district and sessions courts.
Digital Integration	Integrate Gram Nyayalayas with the **e-Courts project** and Common Service Centres (CSCs) to track case pendency and facilitate virtual hearings where physical mobility is an issue.	Deploying robust, high-speed broadband or satellite-based internet to ensure rural mobile courts and block-level Nyayalayas can upload data to the e-Courts Services platform in real-time

18.4. Designing Innovative Solutions for Holistic Access to Justice (DISHA Scheme)

Modern technology is helping people access the legal system easily and affordably, too. About 2.10 crore people (as on February 28, 2025) were given pre-litigation advice, pro bono services, and legal representation and awareness through the DISHA scheme, which has been implemented from 2021-2026. It is funded by the Government of India and has an outlay of Rs. 250 crore.

DISHA SCHEME COMPONENTS

Tele-Law

Tele-Law connects the poor and marginalized sections of society through a dedicated pool of panel lawyers via **video conferencing or telephonic facilities** available at Common Service Centers (CSCs) and directly through the Tele-Law Mobile App. A toll-free number **14454** is also available.

1,11,79,560 people got legal advice (as on July 31, 2025)

Nyaya Bandhu (Pro Bono Legal Services)

Nyaya Bandhu is a nationwide program that uses a mobile app to **connect volunteer lawyers** with people who need free legal help.

4,705 cases
9,433 advocates
109 law schools
23 High Courts
(as on August 18, 2025)

Legal Literacy and Legal Awareness

Pan India Legal Literacy and Legal Awareness **educates** vulnerable communities about their **legal rights and entitlements**. This makes the justice system more accessible and citizen-friendly.

14,96,72,607 people attended programs from 2022-23 to 2024-25

An effective dispute redressal mechanism must ensure that justice is not only fair but also timely and enforceable. Strengthening institutional independence, ensuring time-bound adjudication, and leveraging technology can enhance public trust and uphold the rule of law.

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Parliament and State Legislatures - Structure, Functioning, Conduct of Business, Powers & Privileges and Issues Arising Out of These

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19 Indian Parliament

The Parliament at the Union level and the State Legislatures at the State level form the bedrock of India's representative democracy. Operating on the Westminster model of parliamentary democracy, they are not merely law-making bodies but the primary instruments of ensuring executive accountability, financial oversight, and national deliberation.

→ **Parliament:** Part V (Articles 79–122) → **State Legislatures:** Part VI (Articles 168–212)

UPSC Mains PYQs

1. Explain the structure of the Parliamentary Committee system. How far have the financial committees helped in the institutionalisation of Indian Parliament? **(2023)**
2. Discuss the role of the Vice President of India as the chairman of Rajya Sabha. **(2022)**
3. Explain the constitutional provisions under which Legislative Councils are established. Review the working and current status of Legislative Councils with suitable illustrations. **(2021)**
4. 'Once a Speaker, Always a Speaker'! Do you think this practice should be adopted to impart objectivity to the office of the Speaker of Lok Sabha? What could be its implications for the robust functioning of parliamentary business in India? **(2020)**
5. Rajya Sabha has been transformed from a 'useless stepney tyre' to the most useful supporting organ in past few decades. Highlight the factors as well as the areas in which this transformation could be visible. **(2020)**
6. Why do you think the committees are considered to be useful for parliamentary work? Discuss, in this context, the role of the Estimates Committee. **(2018)**
7. The Indian Constitution has provisions for holding a joint session of the two houses of the Parliament. Enumerate the occasions when this would normally happen and also the occasions when it cannot, with reasons thereof. **(2017)**
8. The 'Powers, Privileges and Immunities of Parliament and its Members' as envisaged in Article 105 of the Constitution leave room for a large number of uncodified and unenumerated privileges to continue. Assess the reasons for the absence of legal codification of the 'parliamentary privileges'. How can this problem be addressed? **(2014)**

19.1 Structure, Membership, and Elections

The Indian Parliament is designed to balance direct popular representation (Lok Sabha) with the federal representation of the States (Rajya Sabha).

Dimension	Lok Sabha	Rajya Sabha
System of Elections	**Direct Elections** using the First-Past-The-Post (FPTP) system based on Universal Adult Suffrage	**Indirect Elections** through Proportional Representation by means of Single Transferable Vote (STV) by State MLAs.
Current Strength	**543 elected members.** (The provision for 2 nominated Anglo-Indian members was discontinued by the **104th Amendment Act**). *(Articles 81, 331)*	**245 members** (233 elected and 12 nominated by the President). *(Article 80)*
Duration of House	**5 Years** from the first sitting. Can be extended during a National Emergency for 1 year at a time *(Article 83)*	**Permanent Body** (Not subject to dissolution). **1/3rd** of its members retire every 2 years.

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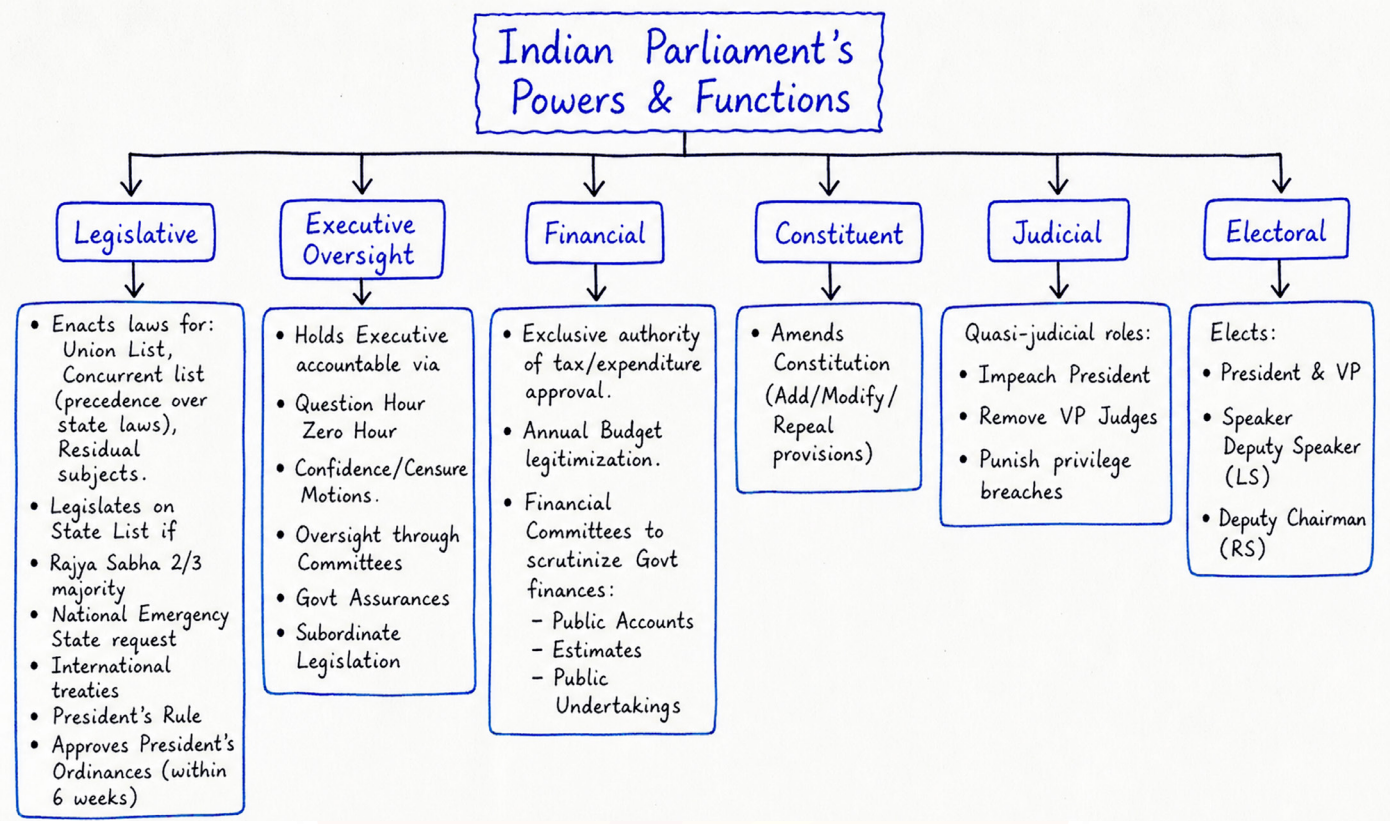
Qualifications	Minimum age **25 years**; must be an Indian citizen *(Article 84)*.	Minimum age **30 years**; must be an Indian citizen *(Article 84)*.
Disqualifications	Disqualified under **Article 102**, the **10th Schedule** (Anti-Defection), or the RPA 1951 (holding an office of profit, unsound mind, or insolvency).	The same disqualification criteria apply as in the case of the Lok Sabha.



19.2 Why do we need Rajya Sabha?

Bicameralism ensures checks and balances. The Rajya Sabha was explicitly designed not to rival the Lok Sabha but to complement it through federal balance and mature deliberation.

Rationale	Explanation	Example
Federal Balance	**Article 80(1):** Allocates seats to states/UTs based on population. It protects state interests in national legislation.	In 2015, the Rajya Sabha blocked the Land Acquisition Bill (which states opposed), forcing the government to revise it.
Check on Hasty Legislation	**Article 107:** Acts as a revising chamber to prevent rushed or populist decisions by the Lok Sabha.	Both houses must pass ordinary bills, ensuring double scrutiny.
Continuity & Stability	**Article 83(1):** It is a permanent house, ensuring legislative continuity even when the Lok Sabha is dissolved.	Important for national continuity during sudden falls of the Union government.
Expertise & Experience	**Article 80(3):** Twelve members are nominated by the President for special knowledge in arts, science, literature, and social service.	Sachin Tendulkar (nominated in 2012) advocated for sports reforms.
Prevents Autocracy	Prevents the absolute majority dominance of a single party that sweeps the Lok Sabha, protecting minority and regional interests.	Forces coalition-building and cross-party consensus on major legislative overhauls.

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19.3 Comparison of Powers: Lok Sabha vs. Rajya Sabha

While both houses share identical powers in constitutional amendments and impeachments, the Lok Sabha heavily dominates financial matters and executive accountability.

Category of Power	Constitutional Articles	Dominance
Equal Powers	**Article 107:** Non-money bills require approval from both. **Article 368:** Equal power to amend the Constitution. **Articles 54 & 66:** Equal electoral powers (President/VP). **Articles 61 & 124(4):** Equal impeachment powers (President/Judges).	**Absolute Equality.** Neither house can override the other.
Unequal Status (Lok Sabha Dominance)	**Article 109 (Money Bills):** LS has exclusive power to introduce Money Bills. RS has only 14 days to suggest non-binding changes. **Article 75(3): The** Council of Ministers is collectively responsible only to the LS (No-Confidence Motion). **Article 352:** Only the LS can pass a resolution to disapprove a National Emergency. **Article 108:** In Joint Sessions, LS dominates due to numerical superiority (543 vs 245).	**Lok Sabha Dominates.** The "will of the people" overrides the federal chamber in finance and government survival.
Special Powers of Rajya Sabha	**Article 249:** Can authorise Parliament to legislate on the State List only if the RS passes a resolution declaring it necessary in the national interest. (requires a 2/3rd majority of members present and voting). **Article 312:** Can create new All-India Services (requires a 2/3rd majority of members present and voting). **Article 67(b):** Exclusively initiates the removal of the Vice President.	**Rajya Sabha Exclusive.** Grants it unique federal vetoes.

19.4 Functioning and Conduct of Business

The daily operations, passage of bills, and scrutiny of the government rely on specific rules of procedure and the committee system.

Dimension	Constitutional Articles	Examples	Contemporary Issues
Sessions & Sittings	**Article 85:** The President summons the Houses. The max gap between two sessions cannot exceed 6 months.	According to PRS Legislative Research, the 17th Lok Sabha held only **274 sittings**, the lowest for any full-term Lok Sabha in Indian history.	**Issue (Declining Deliberation):** The NCRWC recommended at least sittings of 120 days for the Lok Sabha and 100 days for the Rajya Sabha annually, but this has not been implemented, leading to rushed legislation.
Presiding Officers	**Article 93:** Speaker & Deputy Speaker (LS). **Article 89:** Chairman & Deputy Chairman (RS).	The Speaker certifies Money Bills and maintains order.	**Issue (Convention Broken):** In the 17th Lok Sabha (2019-2024), the post of Deputy Speaker (traditionally given to the opposition) was left vacant for the entire 5-year term, violating the spirit of **Article 93**.
Departmental Related Standing Committees (DRSCs)	**Article 118:** Rules of Procedure. There are 24 DRSCs acting as "mini-parliaments".	Committees ensure bipartisan, technical scrutiny of bills away from the political grandstanding of the main House.	**Data Update:** Massive decline in scrutiny. While the 15th LS referred **71%** of bills to committees, the 17th LS referred merely **16%** (PRS Data). Crucial bills like the Three New Criminal Codes saw limited debate.
Legislative Process	**Articles 107-109** (Ordinary & Money Bills), **Article 111** (President's Assent).	**Joint Sitting (Art 108):** Used only three times in history (e.g., POTA 2002) to resolve deadlocks over ordinary bills.	**Issue:** Passing major, complex bills via the "Voice Vote" mechanism amid din or mass suspensions of opposition MPs (e.g., 146 MPs suspended in the 2023 Winter Session).

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19.5 Powers and Executive Accountability

The Parliament exercises control over the executive (Council of Ministers) primarily through financial powers and Parliamentary devices.

Dimension	Constitutional Article	Example	Contemporary Issues
Executive Accountability	**Article 75(3):** The Council of Ministers is collectively responsible to the Lok Sabha.	Enforced via Question Hour, Zero Hour, Adjournment Motions, and No-Confidence Motions.	Frequent disruptions and the occasional cancellation of Question Hour (e.g., during the 2020 COVID session) dilutes the opposition's primary tool to hold ministries accountable on a daily basis.
Financial Control (The Budget)	**Article 112** (Annual Financial Statement), **Article 114** (Appropriation Bill), **Article 265** (No tax without authority).	Parliament controls the national purse. The PAC (Public Accounts Committee) audits government spending post-facto.	In recent years, due to lack of time, up to **70-80% of the Union Budget demands** for various ministries have been passed via the "Guillotine" (put to vote directly without any discussion).
The Money Bill Controversy	**Article 110:** Defines a Money Bill. **Article 109:** Rajya Sabha cannot reject it	Classifying the Aadhaar Act and Tribunal Reforms Act as Money Bills to bypass the Rajya Sabha's scrutiny.	A 7-judge Constitutional Bench of the Supreme Court is currently reviewing the scope of the Speaker's final authority to classify a bill as a Money Bill under Article 110(3).

19.6 Privileges and Judicial Interventions

Parliamentary privileges are special rights and exemptions enjoyed by the two Houses and their members, necessary to secure their independence. Article 105 of the Constitution was designed to grant Members of Parliament the necessary immunities to discharge their duties fearlessly, free from executive intimidation or civil litigation.

19.6.1 The Dual Nature of Privileges (Article 105 & 194)

Dimension & Constitutional Basis	Key Features	Landmark Cases / Examples	Criticism
Meaning, Purpose & Scope (Articles 105 & 194)	Special rights, immunities and exemptions enjoyed by the Houses, committees and members to ensure legislative independence, dignity and effective functioning.	Derived from British parliamentary traditions and conventions.	Broad and undefined scope creates ambiguity and potential misuse.
Freedom of Speech in the House [Articles 105(1), 105(2), 194(1) & 194(2)]	MPs/MLAs enjoy absolute freedom of speech in the House, *subject to House rules.* No legal proceedings for anything said or any vote given in the House or its committees.	Parliamentary debates, committee proceedings and voting.	Distinct from Article 19(1)(a); debate continues on balancing privilege with accountability.
Immunity from Court Proceedings [Article 105(2)]	Complete immunity for speeches, votes and authorised parliamentary publications. Protection is confined to legislative functions.	Members cannot be sued for statements made inside Parliament.	Does not extend to acts outside legislative functions.
Bribery & Parliamentary Immunity [Article 105 – Judicial Interpretation]	Parliamentary privilege cannot shield corrupt acts linked to legislative functions.	**Sita Soren v. Union of India (2024):** MPs/MLAs can be prosecuted for accepting bribes related to speeches or votes, overruling *the P.V. Narasimha Rao case (1998).*	Strengthened accountability and reinforced that privilege is not a shield against corruption.

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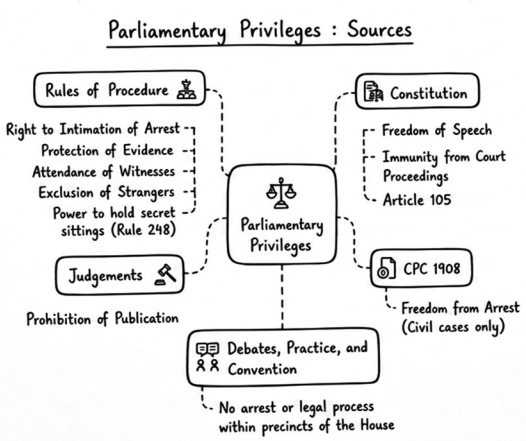
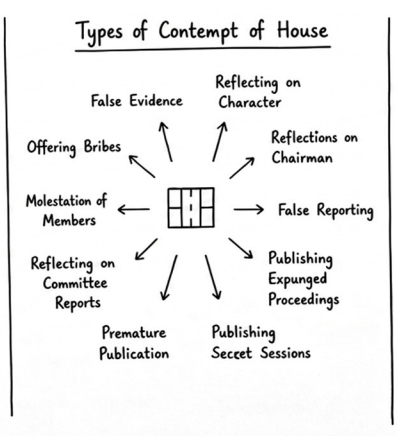
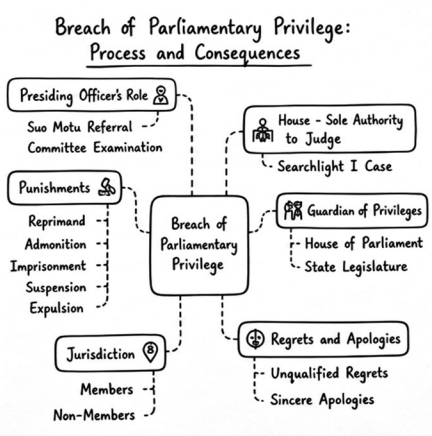
Freedom from Arrest & Court Attendance [Section 135A, CPC]	Immunity from arrest in civil cases during a session and 40 days before and after it; exemption from appearing as a witness during a session.	Ensures uninterrupted participation in legislative business.	No immunity in criminal cases or preventive detention.
Collective Privileges of the House [Articles 105(3) & 194(3)]	Right to regulate internal proceedings, exclude strangers, hold secret sittings, publish/prohibit publication of proceedings, and punish for contempt or breach of privilege.	Secret sittings, privilege motions and disciplinary proceedings.	Can generate tensions with transparency and media freedom.
Breach of Privilege & Contempt of House [Articles 105 & 194; Parliamentary Rules]	Any act obstructing a member or the House in performing its functions may amount to a breach of privilege or contempt. Houses may reprimand, suspend, imprison or expel offenders.	Privilege proceedings against members, officials or journalists.	Lack of codification creates uncertainty regarding scope and punishment.
Committee of Privileges [Lok Sabha Rule 222; Rajya Sabha Rule 187]	Investigates privilege complaints and recommends action to the House.	Examination of privilege notices and breach allegations.	Criticised at times for politicisation and inconsistent standards.
Judicial Review vs Parliamentary Autonomy [Articles 122 & 212]	Courts generally cannot question parliamentary proceedings on procedural irregularities, but constitutional violations remain reviewable.	**Raja Ram Pal v. Lok Sabha (2007):** Privilege powers are subject to judicial review in cases of illegality, mala fides or constitutional violations.	Ongoing tension between parliamentary autonomy and constitutional supremacy.
Uncodified Nature of Privileges [Articles 105(3) & 194(3)]	Parliament has the power to define privileges by law, but most remain uncodified and continue to rely on conventions.	Continued reliance on British parliamentary precedents.	Leads to uncertainty, selective interpretation and possible misuse.
Conflict with Fundamental Rights [Articles 105, 194 vis-à-vis Articles 19 & 21]	Privileges protect legislative autonomy, while Fundamental Rights protect citizens and media. Courts seek a constitutional balance between the two.	Searchlight Case, 1959: SC held that legislative privileges can prevail over freedom of speech and expression under Article 19(1)(a) in certain circumstances.	Concerns that uncodified privileges may chill free speech and democratic scrutiny.
Reforms & Way Forward (NCRWC, 2nd ARC Recommendations)	Codification of privileges, clearer definition of breach of privilege, stronger ethics mechanisms and harmonisation with Fundamental Rights.	Repeated recommendations by constitutional reform bodies.	Need to balance legislative independence with accountability, transparency and constitutionalism.







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Assessing the reasons for non-codification

The Constitution (Article 105(3)) explicitly instructed Parliament to define its privileges "by law." Seven decades later, no such law exists. Why?

1. **The Fear of Judicial Review (The Primary Reason):** If Parliament enacts a comprehensive "Privileges Act", it will be classified as a **"Law" under Article 13**.
    - Consequently, this codified law would be strictly subject to Fundamental Rights, especially the **Right to Free Speech [Art 19(1)(a)]** and the **Right to Life/Liberty [Art 21]**.
    - Currently, because they are un-codified Constitutional conventions, the Supreme Court (in the *Searchlight Case, 1959*) ruled that parliamentary privileges can override Article 19(1)(a). Parliament refuses to codify them to maintain this supremacy over the press and citizens.
2. **Desire for Absolute Flexibility:** Codification rigidly defines what constitutes "contempt of the house". By keeping it uncoded, Parliament retains the flexible power to decide on a case-by-case basis what offends its dignity.
3. **The "British Legacy" Argument:** Legislators argue that since the UK House of Commons has not codified its privileges and relies on evolving conventions, India should do the same to maintain parliamentary sovereignty.

The Consequences of Ambiguity

Why is this a problem for democracy?

- **Chilling Effect on the Press:** Journalists operate in constant fear. Reporting on parliamentary proceedings or criticising the Speaker can arbitrarily invite a "Breach of Privilege" notice, stifling journalistic freedom (e.g., the *Hindu* journalists' case in Tamil Nadu).
- **Violation of Natural Justice:** In privilege cases, Parliament acts as the victim, the prosecutor, and the judge. This violates the core legal principle of *Nemo judex in causa sua* (no one should be a judge in their own case).
- **Institutional Hubris:** State legislatures often misuse these powers to settle political scores or arrest critics, wasting legislative time on perceived slights rather than law-making.

How can this be addressed?

1. **Implement the NCRWC Recommendations:** The National Commission to Review the Working of the Constitution (Venkatachaliah Commission) explicitly recommended that privileges should be defined and delimited for the free functioning of democracy.
2. **Statutory Codification (The Ultimate Solution):** Parliament must enact a "Parliamentary Privileges Act." This act must:
    - Exhaustively define what specific acts constitute "contempt".
    - Remove the archaic power to punish citizens for simply criticising the House outside its walls.
    - Formally subject the penal powers of the House to the Fundamental Rights of citizens.
3. **The Australian Model:** India can adopt the *Parliamentary Privileges Act 1987 of Australia*, which successfully codified privileges, defined contempt strictly as actions that cause "substantial interference" with the House's work, and removed the power to punish for defamatory words against Parliament

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19.7 Systemic Issues & Democratic Deficits

Beyond procedural rules, the institutional integrity of the Parliament is facing severe systemic threats. The transition from a "Deliberative Democracy" to "Executive Dominance" requires urgent institutional reforms.

DECLINE IN PARLIAMENTARY PRODUCTIVITY

Lok Sabha Speaker called frequent disruptions undemocratic.

KEY DATA

- **17th Lok Sabha:** **88%** productivity; Rajya Sabha **73%** (PRS).
- **18th Lok Sabha (Winter 2024):** Dropped to **54.5%** (LS), **40%** (RS).
- **State Legislatures (2025):**
  - Sitting days fell from **28** (2017) to **20** (2024).
  - **51%** of bills passed in a day; only **4%** referred to committees.
  - **8** states lack Deputy Speaker (Article 178).
  - **18%** bills took over 3 months for assent.

REASONS FOR DISRUPTION

SUBSTANTIVE

- Triggered by major issues (e.g., Hindenburg case).
- Opposition uses disruptions for visibility.
- Anti-defection law forces MPs to follow party line, curbing debate.

STRUCTURAL

- More parties = less debate time.
- No clear schedule for legislative business.

IMPACTS

- Weakens scrutiny, leads to rushed laws.
- Erodes public trust; high cost (₹2.5 lakh/min; ₹133 cr lost in 2021).
- Wastage of public money and time.

MEASURES TO ADDRESS PARLIAMENTARY DISRUPTIONS

- **Raise Motion Thresholds:** Require 20–30% MP backing for major motions.
- **Opposition Time:** Reserve fixed days for opposition debates (like UK's "Opposition Days").
- **More Sitting Days:** NCRWC suggested minimum sittings in a year for Lok Sabha (120), Rajya Sabha (100), state legislatures (smaller–50, larger–90).
- **Consensus-Building:** Encourage govt–opposition cooperation in policymaking.
- **Define Disruptions:** Clearly distinguish disruptions vs. interruptions in rules.
- **Strengthen Ethics Committees:** Empower them to ensure MP accountability.

CONCLUSION

As Ambedkar said, even a sound Constitution is futile if those who work it act irresponsibly, hence, reforms like a code of conduct and fixed sitting days are essential.

Challenge	Description	Way Forward
Criminalization of Politics	**Source: ADR (Association for Democratic Reforms)** • 46% of MPs in the 18th Lok Sabha (2024) declared criminal cases, up from 34% (2014). • This severely impacts the moral authority of the supreme law-making body and the purity of the electoral process.	**Election Commission (EC) & SC:** • Amend the Representation of the People Act (RPA) to disqualify politicians upon the framing of charges for heinous crimes (not waiting for conviction). • Fast-track special courts for trying MPs/MLAs.

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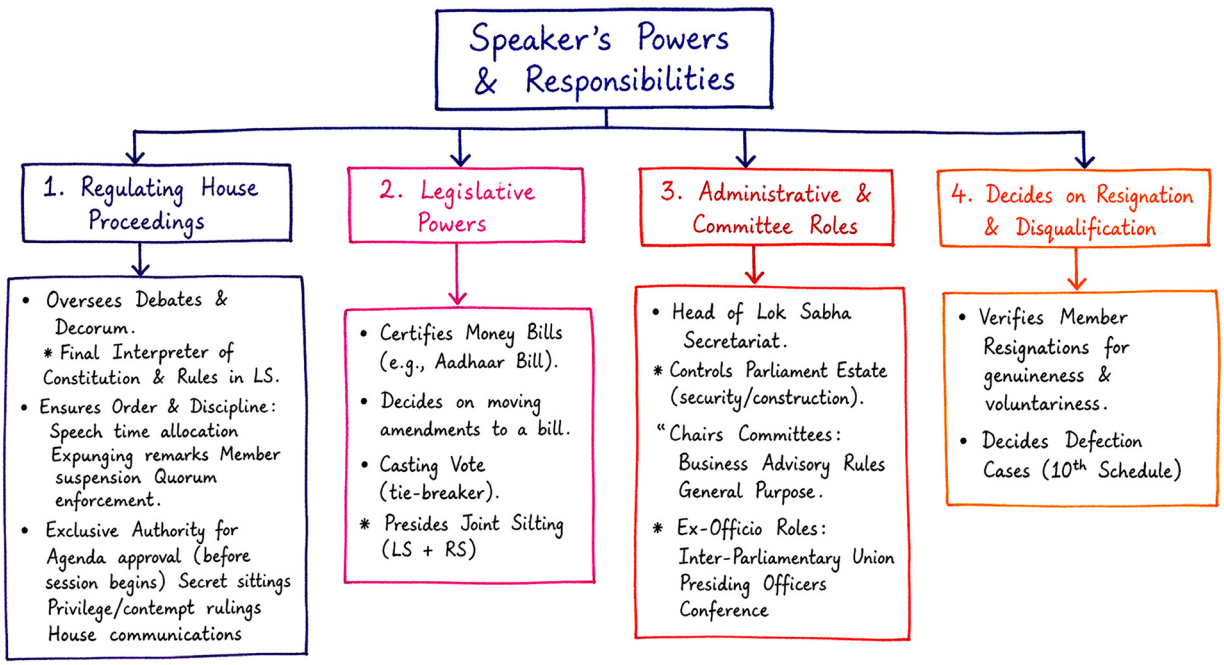
Shrinking Sittings & Rushed Legislation	**Source: PRS Legislative Research** • The 17th Lok Sabha held only 274 sittings, the lowest for any full-term LS. • Use of "Guillotine": 70-80% of the Union Budget demands are passed without any debate due to lack of time.	**NCRWC (Venkatachaliah Commission):** • Mandate a minimum of 120 days of sitting for Parliament (and 90 for large state assemblies). • Establish a pre-fixed annual parliamentary calendar.
Bypassing Parliamentary Committees	**Source: PRS Legislative Research** • Massive decline in technical scrutiny. The 15th LS referred 71% of bills to committees, but the 17th LS referred merely 16%. • Bills like the three new Criminal Codes saw limited opposition, debate and scrutiny.	**Pre-Legislative Scrutiny:** • Make the referral of complex, substantive bills to Departmentally Related Standing Committees (DRSCs) mandatory rather than discretionary.
Anti-Defection (10th Schedule)	• Parties issue a 'whip' for almost every vote, stifling intra-party dissent and reducing MPs to mere voting numbers rather than deliberating representatives. • Speakers act as partisan tribunals in defection cases.	**Dinesh Goswami Committee / Law Commission:** • Restrict the issuance of whips only to no-confidence motions or Money Bills (matters of government survival). • **SC (Keisham Meghachandra 2020):** Transfer defection disqualification powers from the Speaker to an independent permanent tribunal.
The "Money Bill" Route	• The Executive classifies controversial, substantive legislation as "Money Bills" (Article 110) to completely bypass the Rajya Sabha's voting power, defeating bicameralism.	**Strict Judicial Review:** • The Speaker's certification under Article 110(3) must not be absolute. A 7-judge Constitutional Bench of the SC is currently reviewing this practice to establish strict boundaries for what constitutes a Money Bill.
Ordinance Raj	**Source: SC (D.C. Wadhwa & Krishna Kumar Singh)** • Misusing Article 123 to pass substantive laws without parliamentary debate. Intended for unforeseen emergencies, it is used as a parallel, convenient law-making tool.	**Enforcing Accountability:** • Treat re-promulgation of ordinances strictly as a "fraud on the constitution". • Make it mandatory for the government to lay down a detailed statement of the "extraordinary circumstances" that necessitated the ordinance before the House.

19.8 Office of the Speaker

The Office of the Speaker, enshrined in Article 93, is designed to be the Constitutional embodiment of Parliamentary dignity and absolute impartiality.



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Theme	Constitutional Provisions & Key Features	Contemporary Issues / High-Value Cases
Nature of Office & Appointment	**Art. 93:** Lok Sabha elects the Speaker. Presiding officer, custodian of House privileges, interpreter of rules, and representative of the House. Expected to function impartially despite party affiliation.	Debate over the political neutrality of the Speaker in a highly polarised parliamentary environment.
Election & Vacancy Rules	**Arts. 93–95:** Elected by the Lok Sabha; removed by a resolution passed by a majority of all then members after 14 days' notice. Continues in office until the first sitting of the next Lok Sabha.	**The deputy speaker's post remained vacant throughout the 17th Lok Sabha (2019–24),** raising concerns over Article 93's requirement to elect one "as soon as may be".
Legislative Powers & Scrutiny	**Arts. 108 & 110:** Presides over proceedings, decides admissibility of motions, refers bills to committees, certifies money bills, and presides over joint sittings.	**The Aadhaar Act (2016)** and **Finance Acts** triggered controversy over money bill certification. **Rojer Mathew (2019)** case questioned the scope of the speaker's certification power.
Discipline & Disqualification	**Tenth Schedule (Para 6), Art. 118:** Maintains order, suspends disorderly members, and decides anti-defection petitions.	**Kihoto Hollohan (1992):** Speaker's decisions subject to judicial review. **Nabam Rebia (2016)** and **Subhash Desai (2023)** highlighted concerns over delays and neutrality in disqualification proceedings.
Impartiality & Voting	**Art. 100(1):** Speaker ordinarily does not vote; exercises a casting vote in case of a tie. Conventionally used to maintain the status quo.	Debate on adopting the **UK model**, where the Speaker resigns from party affiliation to strengthen neutrality.

What is the 'Once a Speaker, Always a Speaker' Convention?

In the UK (Westminster system), the moment an MP is elected as Speaker, s/he formally resigns from his/her political party. S/he completely severs all political affiliations to ensure absolute neutrality. In return for this sacrifice, a healthy political convention exists: major political parties do not field candidates against the Speaker in subsequent general elections, ensuring their unopposed return to the House.

Why is it needed in India?

In India, the Speaker rarely resigns from their party (Neelam Sanjiva Reddy being a rare exception). This creates severe conflicts of interest:

- **The Anti-Defection Tribunal:** Under the 10th Schedule, the Speaker acts as a tribunal to disqualify defecting MLAs/MPs. Partisan Speakers routinely sit on disqualification petitions of opposition members who defect to the ruling party, paralysing justice.
- **Arbitrary Classification of Bills:** The Speaker's decision on whether a bill is a "money bill" (Article 110) is final. Partisan Speakers have been accused of classifying controversial ordinary bills as Money Bills to bypass the Rajya Sabha (e.g., the Aadhaar Act controversy).
- **Stifling the Opposition:** Disproportionate suspension of opposition MPs, biased allocation of time during debates, and refusal to admit Adjournment Motions create a massive trust deficit.

If India were to aggressively adopt this British convention, what would be the impact on our parliamentary business?

Dimensions	Positive Implications	Challenges
Disciplinary Action & Decorum	**Reduced Disruptions:** If the Speaker is truly neutral, the opposition will trust their rulings. The need to storm the well or disrupt proceedings out of frustration will drastically decrease, increasing parliamentary productivity.	**Lack of Political Culture:** Indian political parties lack the maturity to not field candidates against a sitting Speaker. Without this guarantee, a Speaker who resigns from their party risks political suicide in the next election.
Adjudicating Defections (10th Schedule)	**Swift Justice:** A neutral Speaker would adjudicate disqualification petitions impartially and swiftly, preventing the "horse-trading" of elected representatives and ensuring the stability of governments.	**The SC's Alternative:** The Supreme Court (in *Keisham Meghachandra Singh, 2020*) noted that expecting a Speaker to be neutral is unrealistic. They suggested stripping the Speaker of this power entirely and creating an independent tribunal.

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Legislative Scrutiny	**Empowering Committees:** An objective Speaker would prioritise rigorous legislative scrutiny, referring more bills to Department-Related Standing Committees (DRSCs) rather than allowing the ruling party to bulldoze bills through voice votes amid the din.	**Coalition Vulnerabilities:** In eras of coalition governments, a completely independent Speaker might be viewed as a threat by a weak ruling coalition, leading to frequent attempts to remove them via No-Confidence motions.

Challenges Affecting the Speaker's Office

Despite constitutional protections, the office currently faces several functional and perceptional challenges:

- **Politicisation:** Increasing perception of partisan conduct, especially concerning the disqualification of MLAs/MPs under the Tenth Schedule (Anti-Defection Law) and the certification of controversial bills as Money Bills.
- **Procedural Deadlocks:** Frequent confrontations between the ruling party and the Opposition erode trust, making consensus-building difficult and leading to parliamentary paralysis.
- **Weakening Conventions:** Unwritten parliamentary norms that once guaranteed impartial conduct are gradually being overshadowed by tactical, competitive political considerations.

The Procedure for Removal of the Speaker

Aspect	Constitutional & Procedural Details
Constitutional Provision	Governed by **Article 94(c) of** the Indian Constitution.
Procedural Rules	Laid down in Rules 200 to 203 of the Rules of Procedure and Conduct of Business in Lok Sabha.
Notice Period	A minimum of 14 days' written notice must be submitted to the Secretary-General of the Lok Sabha.
Admission in House	Requires the support of at least 50 members for the motion to be admitted and proceed for discussion.
Grounds	The resolution must clearly state the specific charges against the Speaker.
Voting Majority Required	Must be passed by a majority of all the then members of the Lok Sabha (Effective Majority), not merely those present and voting.
Speaker's Rights during Motion	The Speaker can participate in the debate as a regular member and can vote in the first instance, but cannot cast a tie-breaking vote.
Historical Precedents	Extremely rare. Attempted only thrice: 1954 (G.V. Mavalankar), 1966 (Hukam Singh), and 1987(Balram Jakhar). All three motions failed.

Institutional Challenges and The Way Ahead

Core Challenge	Way Ahead
Erosion of Impartiality	**Reinforce Institutional Conventions:** Political parties must collectively reaffirm the unwritten tradition that the Speaker strictly acts above party lines once elected.
Allegations of Bias in Rulings	**Enhance Transparency:** Provide clear, reasoned explanations for major decisions (e.g., rejecting discussion requests, certifying Money Bills) to reduce perceptions of partisanship.
Parliamentary Deadlocks	**Encourage Structured Dialogue:** Foster continuous, structured consultations between the government and the Opposition regarding procedures to reduce confrontations and boost productivity.
Ambiguity in Discretionary Powers	**Codify Best Practices:** While parliamentary flexibility is needed, codifying guidelines regarding the Speaker's discretionary powers (like Anti-Defection rulings) can minimise disputes.

While procedural disruptions and executive dominance pose contemporary challenges, the Indian Parliament remains a highly resilient institution. Its future lies not in resisting rapid governance but in modernising its oversight mechanisms. By embracing digital integration (like e-Vidhan), data-driven committee scrutiny, and codified privileges, Parliament is poised to evolve from a traditional deliberative body into a dynamic, 21st-century legislative hub - perfectly balancing executive agility with democratic accountability."

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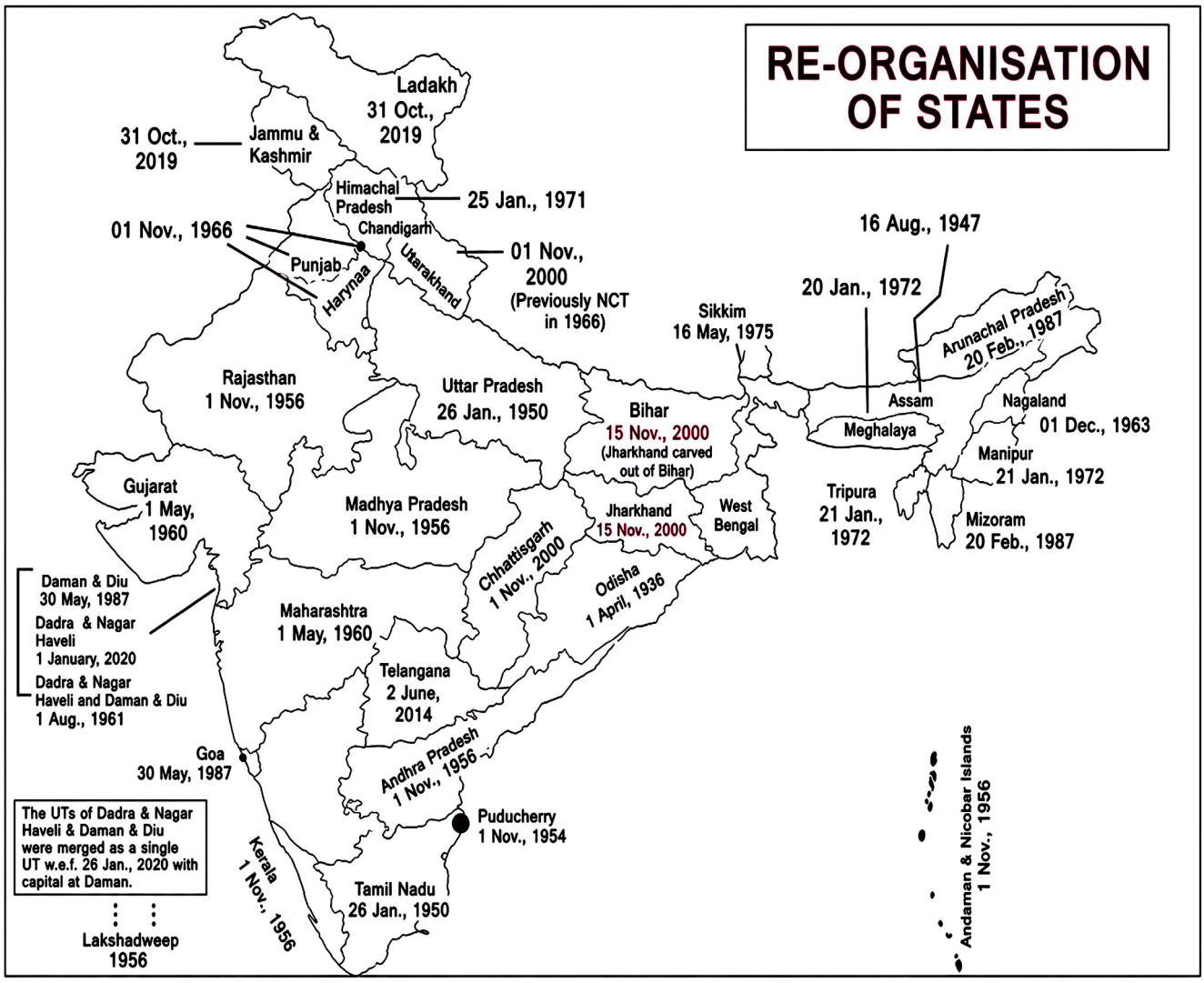
20 State Legislature

Established under **Part VI (Articles 168 to 212)**, the State Legislature is the primary law-making and deliberative body at the state level in India. While it mirrors the Westminster model of the Union Parliament, it operates with significant federal nuances. Currently, most states have a unicameral legislature (Legislative Assembly), while **six states** (Andhra Pradesh, Telangana, Uttar Pradesh, Bihar, Maharashtra, and Karnataka) operate a bicameral system.

UPSC Mains PYQs

1. Discuss the role of Presiding Officers of state legislatures in maintaining order and impartiality in conducting legislative work and in facilitating best democratic practices. **(2023)**



20.1 Structure, Membership, and Elections

Dimension	Legislative Assembly	Legislative Council
System of Elections	Direct Elections (FPTP) based on Universal Adult Suffrage from territorial constituencies.	**Indirect Elections & Nominations (STV).** • 1/3 by Local Bodies (Panchayats/Municipalities). • 1/3 by MLAs. • 1/12 by Graduates (3 years standing). • 1/12 by Teachers (Secondary level+). • 1/6 Nominated by the Governor.

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Current Strength	**60 to 500 members** depending on population. (Exceptions: Goa, Mizoram and Sikkim have fewer than 60.	**A minimum of 40** to a maximum of 1/3rd of the Assembly's strength. **(Article 171)**
Duration of House	5 Years from the first sitting. Can be extended during a National Emergency for 1 year at a time.	Permanent Body. **1/3rd of its members retire every 2 years.**
Qualifications	Minimum age **25 years;** must be an Indian citizen and registered voter in the state.	Minimum age **30 years;** must be an Indian citizen.

20.2 The Bicameralism Debate (Article 169)

Unlike the Rajya Sabha (a federal necessity), the Legislative Council is entirely at the mercy of the Assembly.

Dimension	Details
The Article 169 Mechanism	The creation/abolition of a Council requires a Special Majority in the State Assembly (2/3rd present & voting + absolute majority), followed by a **Simple Majority** in Parliament.
The Utility (Importance of Legislative Council)	1. **Check on Hasty Legislation:** Acts as a reviewing chamber against populist Assembly decisions. 2. **Expertise & Representation:** Accommodates teachers, graduates, and Governor's nominees (literature, science, art, cooperative movement) who have fewer chances to be elected from electoral politics. 3. **Nurturing Future Leadership** - The Council often acts as a training ground for young or inexperienced politicians, allowing them to understand legislative procedures and debates before they dive into the turbulent waters of the Legislative Assembly. 4. **Accommodating Diversity & Minorities:** Political parties often use the Upper House to provide representation to unrepresented minorities, marginalised communities, or specific linguistic groups.

Issue (Article)	Description	Reforms / Way Forward
Weak Legislative Powers (Articles 197 & 198)	The Council can only delay ordinary bills (up to 4 months) and has merely recommendatory powers over Money Bills.	Strengthen its role as a revisory chamber through mandatory scrutiny of major bills.
Subordinate Status to Assembly (Articles 197–199)	Unlike the Rajya Sabha, the Council cannot effectively check the Lower House and remains constitutionally weaker.	Recast the Council as an expert deliberative body rather than a rival chamber.
Financial Burden	Maintaining an additional chamber entails expenditure on salaries, staff and infrastructure despite limited powers.	Improve legislative output and committee scrutiny to justify costs.
Political Rehabilitation Centre (Article 171)	Often used to accommodate defeated politicians, ministers without electoral mandates and party loyalists (***backdoor entry***).	Make nominations merit-based, focusing on experts in literature, science, art, social service and public affairs.
Elite and Narrow Representation (Article 171)	Teacher and graduate constituencies represent limited groups and may not reflect contemporary social realities.	Review composition and broaden representation to newer professional and social sectors.
Indirect Democratic Legitimacy (Article 171)	Most members are indirectly elected, weakening democratic accountability.	Reform electoral composition to improve representativeness and accountability.
Lack of Visibility and Accountability	Proceedings often receive limited public attention, and policy impact remains low.	Improve transparency through live streaming, research support and public outreach.
Uncertain Existence (Article 169)	Creation or abolition depends on Assembly resolutions and Parliamentary approval, often driven by political considerations.	Develop objective criteria for the creation or abolition of Councils.
Declining Deliberative Quality	Intended as a House of revision but often underutilised and affected by disruptions.	Strengthen committee systems, research support and member capacity-building.

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Rajya Sabha vs Legislative Council

Dimension	Rajya Sabha (Council of States)	Legislative Council (Vidhan Parishad)
Status	Upper House of Parliament.	Upper House of a State Legislature.
Constitutional Articles	**Articles 79–122** (especially Articles 80, 83, and 84).	**Articles 168–212** (especially Articles 169, 171, 172).
Purpose	Represents the States in the Union and acts as a revising chamber.	Acts as a revising chamber at the state level and provides representation to special interest groups.
Creation	Permanent constitutional body; cannot be abolished.	Created or abolished by Parliament under **Article 169** on the recommendation of the State Legislative Assembly.
Maximum Strength	**250 members** (currently 245).	Cannot exceed **1/3rd** of the strength of the Legislative Assembly and cannot be less than **40 members** (except in certain states).
Composition	Elected members represent States and UTs; 12 members are nominated by the President for special contributions in art, literature, science and social service.	Members elected by local bodies, graduates, teachers, and MLAs; some nominated by the Governor for special knowledge or practical experience.
Method of Election	Elected by elected MLAs through proportional representation by single transferable vote (STV).	Indirect election through multiple electoral colleges; some nominated by Governor.
Tenure	Permanent House: 1/3rd of members retire every two years; term = 6 years.	Permanent House: 1/3rd of members retire every two years; term = 6 years.
Representation	Represents States in the federal structure.	Represents local bodies, teachers, graduates and eminent persons within a State.
Role in Ordinary Bills	Equal powers with Lok Sabha; can amend, reject or delay bills. Deadlocks may lead to a Joint Sitting (**Article 108**).	Can only delay Ordinary Bills for a maximum of **4 months** (**Article 197**); Assembly ultimately prevails.
Role in Money Bills	Can only recommend amendments within **14 days**; Lok Sabha may accept or reject them (**Article 109**).	Can only recommend amendments within **14 days**; Assembly may accept or reject them (**Article 198**).
Role in Constitutional Amendments	Equal powers with the Lok Sabha; must approve Constitutional Amendment Bills. No Joint Sitting permitted.	No role in Constitutional Amendments, as amendments are passed by Parliament.
Role in Executive Accountability	Ministers are collectively responsible only to Lok Sabha, but Rajya Sabha can question and scrutinise the government.	The Council of Ministers is responsible only to the Legislative Assembly, but the Council can question and scrutinise the government.
Special Powers	**Article 249:** Can authorise Parliament to legislate on State List subjects. **Article 312:** Can create All India Services.	No comparable special constitutional powers.
Federal Significance	Key pillar of Indian federalism.	Not a federal institution; primarily a state-level revisory chamber.
Presiding Officer	The Vice-President of India is the ex officio Chairman (**Articles 64 & 89**). He is not a member of Rajya Sabha.	Chairman elected by the Council (**Article 182**). Chairman is a member of the house.
Dissolution	Cannot be dissolved.	Cannot be dissolved, but the entire Council itself can be abolished under **Article 169**.

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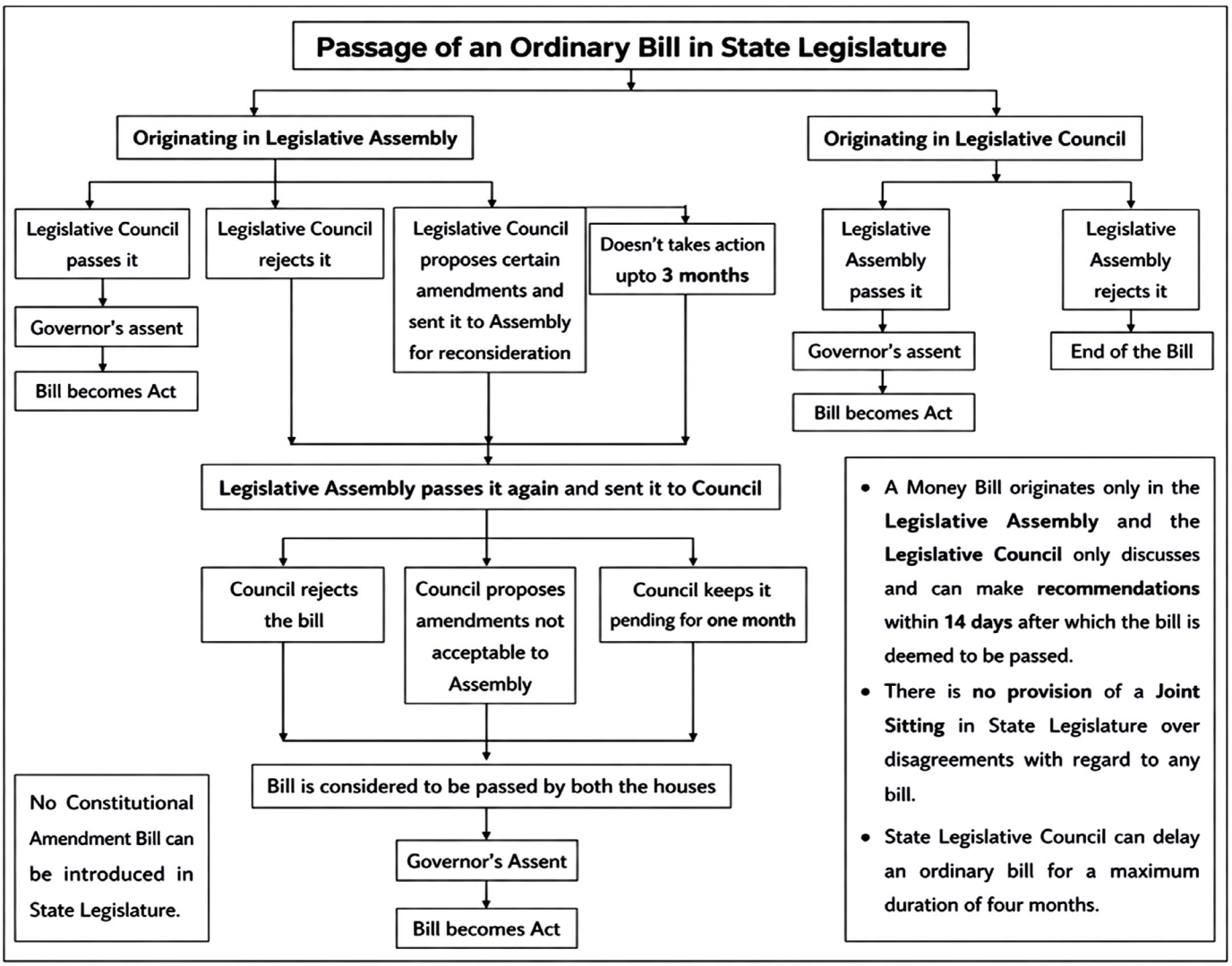
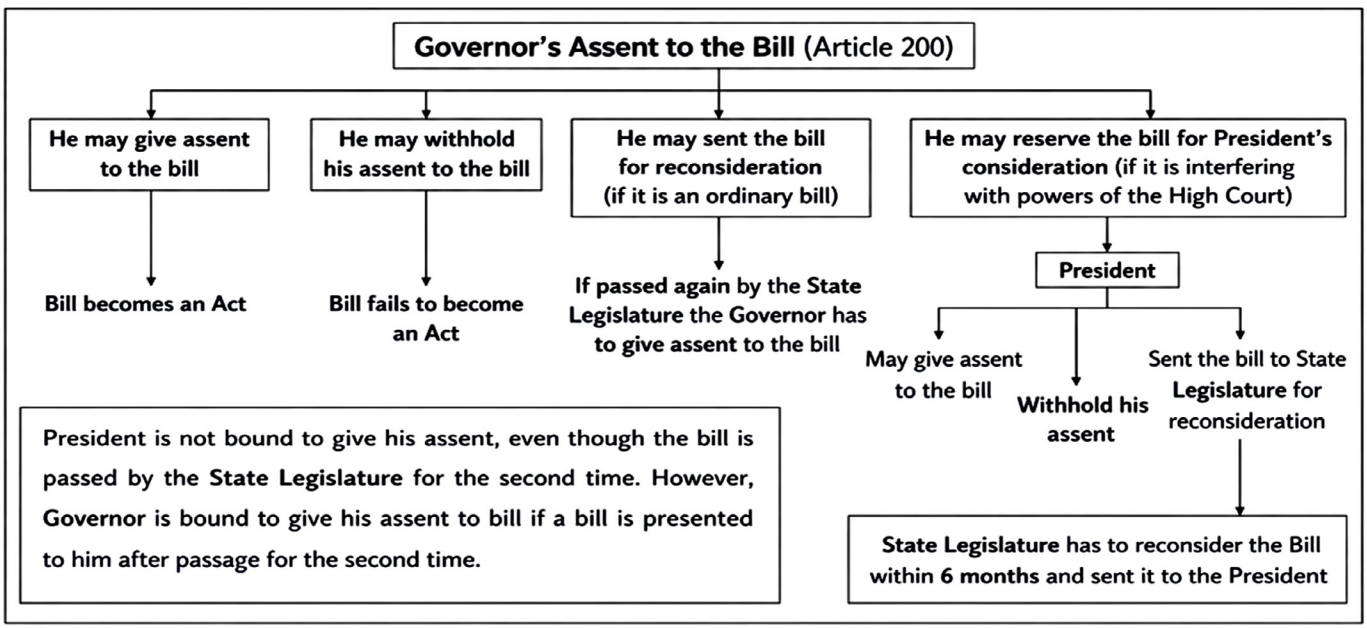
20.3 Legislative Process and Federal Friction

The most critical contemporary issue in state polity is the friction between the elected legislature and the Centre-appointed Governor.





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Governor and the State Legislature: Legislative Processes and Contemporary Issues

Dimension	Constitutional Articles	Contemporary Issues
Sessions & Sittings	**Article 174:** The Governor summons/prorogues. The max gap is 6 months.	**Severe Decline:** State assemblies meet for an average of just 21-25 days a year (PRS Data). True deliberation is practically non-existent.
The Governor's Assent	• **Article 200:** The Governor can assent, withhold, return, or reserve the bill.	**Issue:** Judicial review of Governor's delay in assenting to bills. • Tamil Nadu approached the Supreme Court, alleging that the Governor's prolonged inaction on several Assembly-passed bills stalled governance and undermined democracy, prompting the Court to examine the Governor's duties under Article 200. • The **Nov 2025 Presidential Reference** clarified Governors do retain genuine discretion (not bound by aid/advice in all Art. 200 situations), that courts cannot impose binding timelines, and that "deemed assent" is unconstitutional - while leaving the TN bills' operative outcome undisturbed.
	Supreme Court Opinion on Governor's Assent to Bills (Presidential Reference No. 1 of November 2025) • **No Judicial Timelines:** The Supreme Court held that courts cannot prescribe fixed timelines for Governors or the President to decide on State Bills and overturned the timelines laid down in the Tamil Nadu Governor Case (2025). • **No Deemed Assent:** A Bill cannot be treated as automatically approved merely because the Governor or President delays taking a decision. • **Limited Mandamus Allowed:** In cases of prolonged, unexplained, and indefinite delay, courts may issue a limited mandamus directing the Governor to decide the matter within a reasonable time. • **Governor's Powers Generally Non-Justiciable:** The exercise of discretionary powers under Article 200 - granting assent, withholding assent, or reserving a Bill for the President- is generally beyond judicial review. • **Separation of Powers Upheld:** The judiciary cannot assume or exercise constitutional functions specifically entrusted to the Governor or the President.	
Significance of the SC opinion on Governor's Assent to Bill	• **Reaffirmed the doctrine of Separation of Powers** by holding that courts cannot usurp the constitutional functions of the Governor or President by prescribing mandatory timelines or granting deemed assent. • **Clarified the scope of Article 200,** recognising that the Governor possesses limited constitutional discretion and is not bound by the aid and advice of the Council of Ministers in every situation. • **Rejected the doctrine of deemed assent,** holding that a Bill cannot become law merely because of executive inaction or delay. • **Recognised limited judicial review,** permitting courts to issue a limited mandamus in cases of arbitrary, unexplained, or indefinite delay without directing the outcome of the Governor's decision. • **Preserved the constitutional role of the Governor and President,** making their discretionary powers under Articles 200 and 201 generally non-justiciable. • **Highlighted the importance of constitutional morality and cooperative federalism,** as the absence of constitutional timelines requires constitutional authorities to act reasonably and in good faith. • **Provides long-term constitutional clarity by balancing judicial accountability of constitutional authorities** with respect for their institutional autonomy, thereby reducing future Centre–State constitutional conflicts.	
Reservation of Bill for President Assent	**Article 201:** If reserved, the President can assent, withhold, or direct the Governor to return it.	**Federal Friction:** States complain that the Centre uses Article 201 through the Governor to kill state legislation indefinitely, as there is no constitutional time limit for the President to act.
Address and Messages to Legislature	**Articles 175 & 176:** Right to Address and Send Messages and Special Address by the Governor.	Controversies over Governors' addresses, omissions of state government-prepared texts, and disputes between elected governments and Governors.

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20.4 Speaker of the State Legislative Assembly

The Speaker is the constitutional head and presiding officer of the State Legislative Assembly, responsible for maintaining order, ensuring impartial conduct of legislative business, protecting the privileges of the House, and acting as the adjudicating authority under the Anti-Defection Law. The office is central to legislative autonomy and parliamentary democracy.

Constitutional Provisions

- **Article 178** - Election of Speaker and Deputy Speaker.
- **Article 179** - Vacation, resignation and removal (effective majority; 14 days' notice).
- **Article 180** - Deputy Speaker performs duties during vacancy/absence.
- **Article 181** - Speaker cannot preside during proceedings for own removal.
- **Article 199** - Speaker certifies whether a Bill is a Money Bill.
- **Article 208** - Rules of Procedure of the State Legislature.
- **Article 212** - Courts cannot question legislative proceedings on grounds of procedural irregularity.
- **Tenth Schedule (Para 6)** - Speaker acts as adjudicating authority under the Anti-Defection Law.

Aspect	Key Points
Election & Tenure	• Elected by Assembly members from among themselves by simple majority. • Usually elected immediately after the general election. • Holds office till dissolution but continues until successor assumes office. • May resign to the Deputy Speaker.
Removal	• Removed by an effective majority (majority of all then members). • Requires 14 days' prior notice (Art. 179). • Cannot preside over proceedings concerning own removal (Art. 181).
Major Powers & Functions	• **Legislative:** Presides over House, maintains order, decides admissibility of motions/questions, regulates debates. • **Procedural:** Certifies Money Bills (Art. 199). • **Disciplinary:** Suspends disorderly members, exercises casting vote in case of tie. • **Administrative:** Head of Assembly Secretariat and controls establishment matters. • **Quasi-Judicial:** Decides disqualification petitions under the Tenth Schedule. • **Custodial:** Protects privileges, dignity and rights of the House.
Landmark Judgments	• **Kihoto Hollohan (1992):** Speaker acts as Tribunal; decisions subject to judicial review. • **Ravi S. Naik (1994):** Voluntarily giving up membership may be inferred from conduct. • **Rajendra Singh Rana (2007):** Speaker's inaction cannot protect defectors. • **Nabam Rebia (2016):**Speaker cannot decide disqualification while removal motion is pending (issue referred to larger Bench). • **Keisham Meghachandra Singh (2020):** Decisions ordinarily within 3 months; suggested independent tribunal. • **Subhash Desai (2023):** Criticised delay in Maharashtra case; larger Bench to revisit Nabam Rebia. • **Padi Kaushik Reddy (2025):** Speaker is a Tribunal; Article 212 immunity unavailable for quasi-judicial functions; directed disposal within 3 months.
Why the Office is Criticised?	• Speaker usually belongs to ruling party and contests future elections on party ticket. • No mandatory timeline enables strategic delays in deciding disqualification petitions. • Defectors continue as legislators/ministers during prolonged pendency. • Judicial review generally begins only after the Speaker's decision, allowing prolonged inaction.
Way Forward	• **Institutional:** Constitutionally mandate strict timelines for disposal of defection cases. • **Structural:** Transfer adjudication to an independent tribunal/ECI. • **Political:** Adopt British convention of political neutrality. • **Legislative:** Restrict whip to survival of government. • **Judicial:** Continue strict judicial supervision against prolonged inaction. • **Administrative:** Public disclosure of pending disqualification petitions and reasons for delay.

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20.5 Major Issues and Way Forward

Challenge	Description	Way Forward
Defections	**Source:** 10th Schedule Evasions To bypass anti-defection disqualification, ruling coalition MLAs are induced to simply resign, causing the government to fall. They then immediately fight by-elections on the new ruling party's ticket (e.g., Madhya Pradesh and Karnataka).	**Election Commission Suggestion:** Amend the RPA/10th Schedule so that any legislator who resigns mid-term is barred from contesting any by-election for the remainder of that assembly's tenure.
Ordinance Raj at State Level	**Source: Article 213** State governments bypass the assembly entirely by issuing and re-promulgating ordinances, using it as a parallel legislative tool.	**SC (D.C. Wadhwa Case):** Re-promulgation of ordinances without placing them before the assembly is a "fraud on the Constitution" and must be struck down.
The Partisan Speaker	**Source: Anti-Defection Adjudication** Speakers delay disqualification decisions of defecting MLAs for years to protect the ruling government.	**SC (Keisham Meghachandra Case): The SC suggested** transferring defection disqualification powers from the Speaker to an Independent Permanent Tribunal headed by a retired judge.
Criminalization of State Politics	**Source: ADR** State assemblies often have a significantly higher percentage of MLAs with serious criminal records compared to Parliament.	**Election Commission:** Disqualification upon the framing of charges for heinous crimes by a court of law, rather than waiting for final conviction.
Lack of Financial Accountability	**Source: CAG Reports:** State budgets are passed via a "Guillotine". Furthermore, the convention of offering the Public Accounts Committee (PAC) chairmanship to the Opposition is often bypassed.	**NCRWC Recommendation:** Mandate a minimum of 90 days of sitting for large state assemblies and strictly empower the Opposition in financial committees.

Despite contemporary challenges like executive aggrandisement and federal friction, state legislatures remain the bedrock of grassroots democracy. Their evolution relies on embracing technological integration (like e-Vidhan) and structural reforms (such as independent tribunals and mandated sitting calendars). Ultimately, by transitioning from political battlegrounds to modern, data-driven deliberative chambers, state assemblies will truly drive the cooperative federalism essential for a 'New India'.

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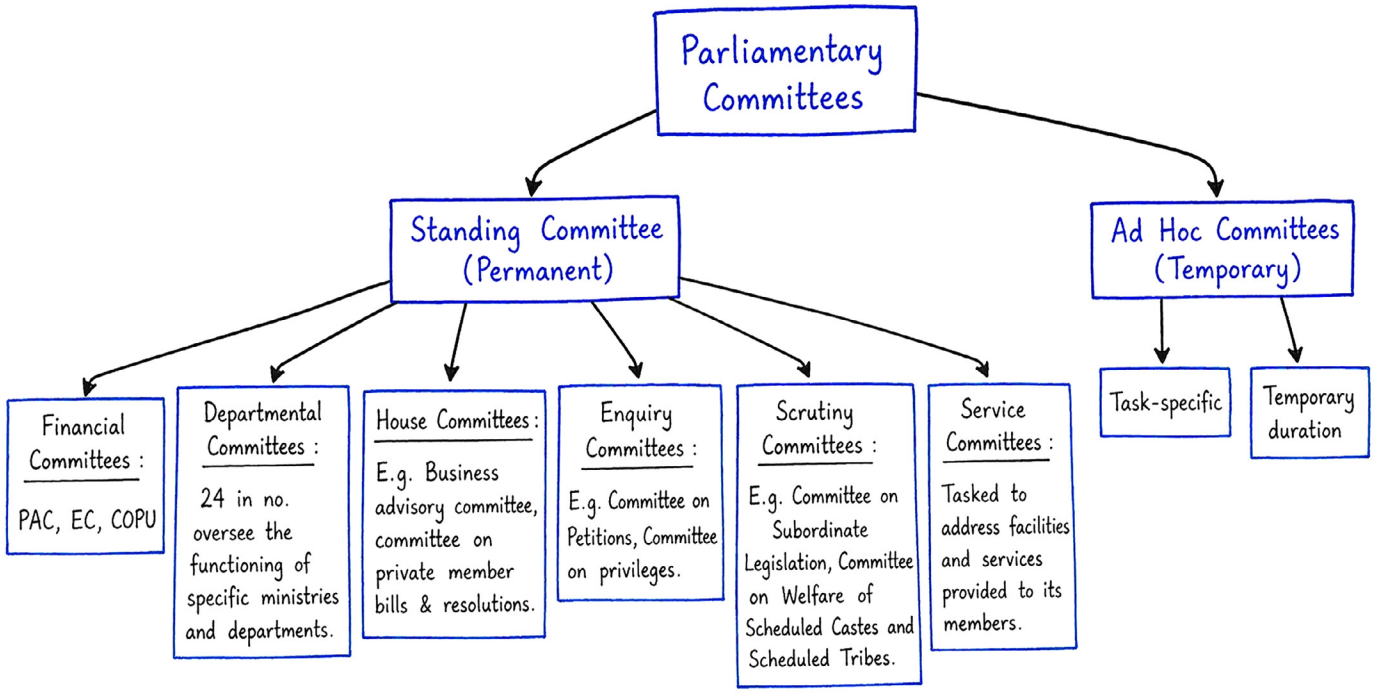
21 Parliamentary Committees

Parliamentary Committees are institutional extensions of the legislature, drawing their authority from **Article 105** (Privileges) and **Article 118** (Rules of Procedure). Given the sheer volume of legislation and the highly politicised nature of the open House, Parliament cannot effectively scrutinise every policy detail. Committees serve as the vital "deliberative core" of India's democracy.



21.1 Significance of Parliamentary Committees

Dimension	Explanation
The Absence of the "Whip"	In the open House, the Anti-Defection Law forces MPs to vote on party lines. In closed-door committees, whips do not apply. This fosters genuine **bipartisan consensus** and objective analysis.
Domain Expertise	Parliamentarians are generalists. Committees have the power to summon domain experts, civil society members, and bureaucrats to provide technical evidence before finalising laws.
Micro-Scrutiny	Parliament is currently sitting for less than 70 days a year. Committees work year-round, performing the heavy lifting of micro-scrutinising complex bills and budgets, saving the floor time of the House.
Executive Accountability	Committees routinely summon high-ranking bureaucrats (Secretaries) to answer for administrative lapses, ensuring the executive remains accountable even when Parliament is not in session.

21.2 Structure of the Committees

The committees are broadly divided into two categories: **Ad Hoc Committees** (temporary, formed for a specific task like investigating a financial scam or a specific bill) and **Standing Committees** (permanent, reconstituted annually). The Standing Committees are the backbone of the system.

The Standing Committee Structure:

1. **Financial Committees** (PAC, Estimates, CoPU) - Scrutinise the national purse.
2. **Departmentally Related Standing Committees (DRSCs)** - 24 committees mapping specific ministries.
3. **Committees to Inquire** (Privileges, Petitions).
4. **Committees to Scrutinize & Control** (Govt. Assurances, Subordinate Legislation).
5. **Housekeeping Committees** (Rules, Business Advisory).

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21.3 The Big Three Financial Committees

Committee	Composition	Role
Public Accounts Committee (PAC)	**22 Members (15 LS + 7 RS).** **Convention**: Chaired by a member of the Opposition (convention since 1967).	**Role:** The ultimate auditor. It examines the CAG reports to ensure money was spent legally, efficiently, and for the intended purpose. **Accountability:** It establishes accountability by exposing systemic financial irregularities (e.g., exposing the 2G and Coalgate anomalies). CAG acts as the "friend, philosopher, and guide" to the Public Accounts Committee (PAC). CAG assists parliamentarians by preparing a prioritised list of the most urgent financial matters that demand the committee's attention.
Estimates Committee	**30 Members (ALL from LS).** **Convention:** Chaired by the Ruling Party.	**Role:** The "Continuous Economy Committee". It examines budget estimates to suggest alternative, cost-effective policies. **Utility:** Unlike PAC's post-mortem, it looks at current estimates. It forces the administration to justify its structural efficiency, preventing wasteful expenditure before it becomes a habit.
Committee on Public Undertakings (CoPU)	22 Members (15 LS + 7 RS).	**Role:** Examines the reports and accounts of PSUs (Public Sector Undertakings) to ensure they are managed following sound business principles, protecting the taxpayer's investment.

While financial committees suffer from the inherent limitation of conducting 'post-mortem' analyses of expenditures, their true value lies in their deterrent effect. By institutionalising a culture of rigorous, bipartisan financial auditing, the PAC and Estimates Committee serve as the democratic conscience of the nation. Strengthening their mandate with real-time auditing capabilities will ensure that executive financial accountability remains absolute.

21.4 Department-Related Standing Committees

Introduced in 1993, there are currently **24 DRSCs** (each with 31 members: 21 LS, 10 RS). They act as shadow mechanisms for every government ministry.

Dimension	Importance
Legislative & Financial Scrutiny	• Conducts clause-by-clause examination of Bills referred to it, improving drafting quality; • Examines ministry-wise Demands for Grants during Budget session recess, strengthening Parliament's power of the purse
Executive & Administrative Accountability	• Requires ministries/officials to explain policy, expenditure, and implementation; provides continuous oversight even when Parliament is not in session, since DRSCs sit year-round
Policy Evaluation & Technical Expertise	• Reviews Annual Reports and Action Taken Reports (ATRs); • Consults experts, academics, industry bodies, and civil society for evidence-based recommendations
Bipartisan, In-Camera Deliberation	• Closed-door proceedings reduce political grandstanding and encourage consensus-building across party lines; • DRSC chairs are not reserved for opposition (unlike PAC), drawn from various parties by negotiation
Institutional Continuity, Capacity-Building & Transparency	• Builds MPs' sector-specific expertise over time; • Committee reports are tabled in both Houses, creating a permanent public record of legislative scrutiny

DRSCs: Major Challenges

Challenge	Illustration
Declining Referral of Bills (Bypass Trend)	Share of Bills referred to DRSCs fell sharply from 71% in the 15th Lok Sabha to ~16% in the 17th Lok Sabha (PRS data) - though the **18th Lok Sabha shows some renewal, with the Waqf (Amendment) Bill and Simultaneous Elections Bills referred to Joint Parliamentary Committees**
Absence of Mandatory Referral	No constitutional or legal requirement to refer Bills to DRSCs.

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Lack of Teeth	Recommendations are advisory and not binding on the government. Ministries do not always implement recommendations or ATRs effectively.
Dependence on Bureaucracy	Committees often rely on information supplied by the same ministries they scrutinise. Lack of dedicated professional researchers and domain experts.
Chronic Absenteeism	Low attendance affects deliberative quality and effectiveness.
Short Tenure & Frequent Rotation	One-year tenure limits institutional memory and subject specialisation.
Executive Dominance	Strong parliamentary majorities can reduce responsiveness to committee observations.
Limited Public Visibility	Committee reports receive relatively little media and public attention.

21.5 Parliamentary Committees International Comparison

Country	Structure and Membership	Roles and operations
United Kingdom	**Types:** Select, Joint, General, and Grant Committees. **Size:** 10 to 50 members.	**Roles:** Report on departments, scrutinise proposed laws, and handle regional questions (Scotland, Wales, and North Ireland). **Operations:** Allow public hearings and televised meetings.
United States	**Types:** Senate, House, Joint, and sub-committees. **Size:** Senate (7–30 members), House (9–62 members).	**Roles:** Scrutinise laws, confirm government appointees, and investigate officials. **Operations:** Hold hearings to gather testimony from outside experts. U.S. Congressional Committees possess much stronger investigative powers than Indian committees.
Canada	**Types:** Standing, Joint, Legislative, Special, and Committee of the Whole. **Size:** Most have 11 to 15 members	**Roles:** Study department operations, draft/review legislation, and examine Appropriation Bills. **Operations:** Generally follow less formal rules.

21.6 Issues and Proposed Reforms

To transform Parliamentary Committees from "advisory bodies" to true "engines of accountability", critical structural reforms are necessary.

Challenge	Way Forward
Short, Non-Renewable Tenure Limits Expertise	• Members' tenure is currently just 1 year, preventing MPs from developing deep domain mastery before rotation. • **Increase tenure to 2–3 years** with continuity of membership, ensuring institutional memory and specialization (**2nd ARC**)
No Public/Stakeholder Consultation Mechanism	• **Institutionalize a systematic public hearing mechanism**, including publishing executive summaries of Bills in regional languages, to widen the base of stakeholder feedback beyond invited experts alone. - **2nd ARC**
No Post-Enactment Review of Laws	• **Mandate post-implementation legislative impact assessments** (e.g., 5 years after enactment) so committees evaluate real-world outcomes of laws, not just pre-passage drafting quality - closing the loop between scrutiny and consequence. -**2nd ARC**
Executive Bypasses Committees via Voice-Vote Passage	• Several Bills with major civil-liberties implications - e.g., the UAPA (Amendment) Act, 2019 and RTI (Amendment) Act, 2019 - were passed without DRSC reference. • **Amend House Rules of Procedure to mandate referral of all non-Money Bills unless the presiding officer records specific**, publicly stated reasons for exemption (converting an unwritten convention into an enforceable procedural rule).- PRS Legislative Research
Low Parliamentary Sitting Days Reduce Committee-Floor Linkage	• **NCRWC recommended a constitutionally/statutorily mandated minimum of 120** sitting days for Lok Sabha and 100 for Rajya Sabha - more sitting days create more legislative business requiring committee-stage scrutiny, and more floor time to debate committee reports and ATRs.
Committees Lack Coercive Power to Compel Testimony	• NCRWC recommended **strengthening committees' powers to summon officials** and enforce attendance, since currently non-cooperation by ministries/officials faces limited real consequence.

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No Institutionalized Pre-Legislative Consultation Policy	• India already has a 2014 Pre-Legislative Consultation Policy requiring draft Bills to be published for public feedback for a minimum period before introduction - but compliance is inconsistent. • **Make this policy legally binding** (not merely an executive guideline) with judicial review available for non-compliance.
Weak Research Infrastructure for MPs	• **Provide additional budgetary support to LARRDIS (Library and Reference, Research, Documentation and Information Service)** so DRSCs can employ dedicated subject-matter research staff - mirroring the **House of Commons Library model in the UK,** where select committees have permanent specialist staff independent of the civil service.
Opaque Committee Proceedings Reduce Public Accountability	• **Televise select committee hearings** (excluding sensitive national security/defence matters), similar to televised US Congressional committee hearings, to build public accountability pressure without compromising the benefits of in-camera deliberation on genuinely sensitive matters.
No "Opposition Day" or Dedicated Oversight Agenda-Setting Time	• Introduce a **Westminster-style "Opposition Day"** - designated sitting days where the Opposition sets the floor agenda - allowing structured escalation of unresolved committee findings to full House debate, rather than committee reports simply being tabled and forgotten.

The Department-Related Standing Committees were designed to act as the institutional bulwark against executive overreach, keeping the administration perennially on its toes. However, their increasing marginalisation through bypassed referrals and chronic absenteeism threatens to reduce them to paper tigers.

To restore reverence for parliamentary control, it is imperative to mandate pre-legislative scrutiny, ensuring that Parliament remains a rigorous deliberative democracy rather than a mere majoritarian clearinghouse.

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22 Disqualification of Members of Parliament (MPs)

In the Indian constitutional scheme, the disqualification of an MP is primarily governed by three frameworks to ensure legislative probity and political stability:

1. Constitutional Provisions **(Article 102(1))**
2. Statutory Provisions **(The Representation of the People Act, 1951)**
3. Anti-Defection Law **(Tenth Schedule / Article 102(2))**

UPSC Mains PYQs

1. The role of individual MPs (Members of Parliament) has diminished over the years and as a result healthy constructive debates on policy issues are not usually witnessed. How far can this be attributed to the anti-defection law which was legislated but with a different intention? **(2013)**

Constitutional Grounds (Article 102(1))

The Constitution lists fundamental grounds under which a person shall be disqualified for being chosen as, and for being, a member of either House of Parliament.

- **Office of Profit:** If they hold any office of profit under the Union or State government (other than an office exempted by Parliament by law).
- **Unsound Mind:** If they are of unsound mind and stand so declared by a competent court.
- **Undischarged Insolvent:** If they are an undischarged insolvent (financially bankrupt).
- **Citizenship Issues:** If they are not a citizen of India, or have voluntarily acquired the citizenship of a foreign State, or are under any acknowledgement of allegiance or adherence to a foreign State.
- **Parliamentary Law:** If they are disqualified by or under any law made by Parliament (this paved the way for the RPA, 1951).

Parameter	Constitutional Grounds (Article 102(1))	Statutory Grounds (RPA, 1951)	Anti-Defection Law (Tenth Schedule / Art 102(2))
Primary Objective	Ensure basic eligibility and mental/financial soundness and prevent conflict of interest.	Criminalise electoral offenses and keep criminals out of politics.	Prevent political opportunism and horse-trading and enforce party discipline.
Source of Law	Constitution of India	Act of Parliament (Legislation)	Constitution (Added via 52nd Amendment, 1985)
Key Grounds	Office of profit, unsound mind, insolvency, and loss of citizenship.	Criminal conviction (2 yrs +), corrupt electoral practices, failure to lodge election accounts.	Violating the party whip, voluntarily leaving the party, independently joining a party, and nominated member joining after 6 months.
Deciding Authority	President of India	President of India	Presiding Officer (Speaker / Chairman) of the House
Role of ECI	President acts on the binding advice of the Election Commission.	President acts on the binding advice of the Election Commission.	No role for the Election Commission.
Timeframe / Limit	Instantaneous upon occurrence/declaration.	Disqualified for the period of imprisonment + 6 further years.	The disqualification lasts from the date of the decision until the remaining term of the House expires or until the member is re-elected (91st CAA), whichever is earlier.
Judicial Review	Subject to judicial review.	Subject to judicial review.	Subject to judicial review only after the Speaker/Chairman makes a final decision (Kihoto Hollohan).

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22.1 Tenth Schedule

The Tenth Schedule was inserted into the Constitution by the **52nd Amendment Act (1985)** to combat the evil of political defections ("Aya Ram Gaya Ram" syndrome) that caused extreme instability in governments.

It aims to ensure that legislators remain loyal to the party ticket on which they were elected, thereby honouring the voters' mandate. It was later modified by the **91st Amendment Act (2003)** to plug certain loopholes.

UPSC Mains PYQs

1. The role of individual MPs (Members of Parliament) has diminished over the years and as a result healthy constructive debates on policy issues are not usually witnessed. How far can this be attributed to the anti-defection law which was legislated but with a different intention? **(2013)**

Who Gets Disqualified and How?

Category	Provision / Rule	Explanation
Grounds: Political Party Members	**1. Voluntarily Giving Up Membership**	Disqualified if a member formally resigns from their party. • **Judicial Stance:** The Supreme Court has ruled that "voluntarily giving up" can be inferred from conduct (e.g., publicly campaigning for a rival party or attending opposition rallies) even without a formal resignation letter.
	2. Defying the Party Whip	Disqualified if a member votes or abstains from voting in the House contrary to the directions (whip) issued by their political party. • **Exception:** The disqualification does not apply if the member obtained prior permission or if the party condones the act within 15 days.
Grounds: Independent Members	**Joining a Party**	An independently elected member becomes disqualified if they join any political party after the election.
Grounds: Nominated Members	**Joining a Party After 6 Months**	A nominated member (e.g., to the Rajya Sabha) is allowed to join a political party within the first six months of taking their seat. They are disqualified if they join a party after the expiry of six months.
Exceptions (No Disqualification)	**1. Merger of Parties**	A member is not disqualified if their original political party merges with another party, provided that at least two-thirds (2/3rds) of the members of the legislature party agree to the merger. • **(Note:** The 91st Amendment Act, 2003, deleted the earlier provision that allowed an exemption for a "split" by 1/3rd of the members).
	2. Presiding Officers	A member elected as the Presiding Officer (Speaker, Deputy Speaker, Chairman, or Deputy Chairman) is exempted if they voluntarily give up their party membership to maintain neutrality and rejoin the party after ceasing to hold that office.
Procedure & Authority	**Deciding Authority**	The Presiding Officer of the House takes the final decision on defection petitions.
	Initiation of Process	The Presiding Officer cannot take suo motu (on their own) action. The defection process is initiated only when another member of the House submits a petition regarding the defection.
Scope of Judicial Intervention	The **Tenth Schedule** originally barred court intervention. The SC struck this down, allowing Judicial Review of the Speaker's decision on grounds of mala fides, perversity, or violation of natural justice. • **Limitation:** Courts cannot intervene before the Presiding Officer gives a final decision.	
Consequences of Defection	**The 91st Amendment Act (2003)**	A disqualified defector is subject to severe constitutional penalties until they get re-elected: • **Article 75(1B) / 164(1B):** Cannot be appointed as a Minister at the Centre or in the States. • **Article 361B:** Cannot hold any remunerative political post (e.g., Chairman of a Board/Corporation with a government salary).

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Remedies Against Disqualification of Legislators

Type of Disqualification	Remedies Available	Key Judgments / Principles
General Constitutional Disqualification (MPs & MLAs) **Arts. 102–103 (MPs); Arts. 191–192 (MLAs)**	• Question decided by President/Governor on the binding opinion of the Election Commission. • Aggrieved members may file writ petitions under **Art. 226/32** challenging illegality, arbitrariness, mala fide, or violation of natural justice. • Particularly relevant in the office of profit disputes.	• **Election Commission v. Saka Venkata Subba Rao** - ECI opinion binding. • **Consumer Education & Research Society (2009)** - President acts in a quasi-judicial capacity; decision is amenable to judicial review.
Statutory Disqualification (Representation of the People Act, 1951) **Sections 8, 8A, 9, 9A, 10A & 11**	• Appeal against conviction.• • Obtain stay of conviction(mere stay of sentence is insufficient). • Writ petition against disqualification order. • Seek removal/reduction of disqualification under Section 11 (where applicable). • Election Petition before HC against improper acceptance/rejection of candidature.	• **Lily Thomas (2013)** - Immediate disqualification; struck down Sec. 8(4). • **Lok Prahari (2018)** - Stay of conviction removes disqualification; speedy disposal of criminal cases.• • **K. Prabhakaran (2005)** - Upheld Sec. 8(3) of RPA, 1951 • **Public Interest Foundation (2018)** - Mandatory disclosure of criminal antecedents.
Defection-Based Disqualification (Tenth Schedule) **Paras 2, 6–8, Tenth Schedule**	• Speaker/Chairman's decision subject to judicial review on limited grounds (mala fide, perversity, natural justice, jurisdictional error).• • Courts can intervene against unreasonable delay and direct expeditious disposal.• • Speaker cannot review own decision; remedy lies only before constitutional courts.	• **Kihoto Hollohan (1992)** - Judicial review preserved; Para 7 struck down. • **Keisham Meghachandra (2020)**- Ordinarily decide within 3 months. • Rajendra Singh Rana (2007) - Inaction reviewable. • **Subhash Desai (2023)** - Speaker remains competent authority; subject to judicial review. • **Padi Kaushik Reddy (2025)** - Enforceable 3-month timeline; contempt possible for non-compliance. • **Ravi S. Naik (1994)** - "Voluntarily giving up" inferred from conduct. • **Kashinath G. Jalmi** - Speaker has no power of review.

22.2 Judicial Evolution and Landmark Judgements

Landmark Case	SC's Ruling/Impact
Kihoto Hollohan vs. Zachillhu (1992)	**The Bedrock Judgement.** 1. Upheld the constitutional validity of the 10th Schedule. 2. Ruled that the Speaker acts as a "Tribunal" while deciding cases. 3. Consequently, the Speaker's decision is subject to **Judicial Review** (on grounds of mala fides, perversity, or violation of natural justice).
Keisham Meghachandra Singh (2020)	**The "Independent Tribunal" Fix.** • Noted that Speakers are acting partisanly. The SC recommended Parliament amend the Constitution to strip the Speaker of this power and vest it in an Independent Permanent Tribunal headed by a retired SC/HC judge. • It also ruled that Speakers must decide disqualification petitions within a "reasonable time" (ideally 3 months).
Subhash Desai vs. Principal Secy (2023) (Maharashtra Crisis)	**The "Whip" Clarification.** The SC ruled that the "Whip" must be appointed by the Political Party, not just the Legislature Party (the group of MLAs). An internal faction cannot arbitrarily appoint its own whip to claim a merger or split.

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22.3 How the Law is Bypassed & Misused

Despite the law, political engineering continues unabated. The 10th Schedule has largely failed to prevent defections while successfully destroying intra-party democracy.

Issue	Description
The "Resign & Re-elect" Circumvention	• Instead of defecting and facing disqualification, MLAs are induced to simply resign from the House. • This lowers the total strength of the House, causing the ruling government to fail the floor test. The resigned MLAs then immediately fight by-elections on the new ruling party's ticket.
The Tyranny of the Whip	• The law forces legislators to vote exactly as the party bosses dictate on every single bill. • **Impact:** It has reduced MPs/MLAs to mere "headcounts". They cannot vote according to their conscience or the specific interests of their constituency, killing **'Deliberative Democracy'.**
Delay in Decision Making by Speaker	• The Tenth Schedule **sets no time limit** for the Speaker to decide a disqualification petition. • Speakers deliberately sit on petitions against defectors who joined the ruling party until the assembly's term naturally expires.
The "Merger" Fiction	• The 2/3rd exception assumes that mass defections represent an ideological shift rather than greed. In reality, it simply means "retail defection is illegal, but wholesale defection is perfectly legal."

22.4 Way Forward

To salvage the true intent of the anti-defection law, several committees have proposed concrete reforms.

Issue Addressed	Proposed Reform
Addressing Speaker's Bias	**NCRWC** (Venkatachaliah Commission). • Transfer the power to decide disqualification from the Speaker to the **President/Governor**, who shall act *strictly* on the binding advice of the **Election Commission of India** (similar to Article 103 for holding an Office of Profit).
Curbing Whip Tyranny	**Dinesh Goswami Committee & Law Commission.** • Limit the issuance of the "Whip" **only to matters threatening government survival** (e.g., No-Confidence Motions, Money Bills). For all other ordinary legislation, allow MPs to vote freely.
Closing the "Resignation" Loophole	**2nd ARC** • Amend the Representation of the People Act (RPA). Any legislator who is disqualified or resigns mid-term should be **barred from holding any ministerial post** or contesting any by-election for the remainder of that assembly's tenure.
Fixing a Time Limit	**Supreme Court** (Suggested in various rulings). • SC suggested amending the 10th Schedule to legally bind the Speaker to decide defection petitions within a maximum of **3 months** in the Keisham Meghachandra Singh case.

Provision	Main reforms suggested/ recommended
Coverage	▪ Political parties should limit issuance of whips to instances only when the government is in danger. ▪ Disqualification should be limited to cases where (a) a member voluntarily gives up the membership of his political party, (b) a member abstains from voting, or votes contrary to the party whip in a motion of vote of confidence or motion of no-confidence. ▪ Provisions which exempt mergers from disqualification should be deleted.
Definitions	▪ The words 'voluntarily giving up membership of a political party' should be comprehensively defined. ▪ The term political party should be defined clearly. For example, pre-poll electoral fronts could be treated as political parties under the law.

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Decision making	▪ The issue of disqualification should be decided by the President/ Governor on the advice of the Election Commission. ▪ The Speaker must rule on a dispute under the Tenth Schedule as expeditiously as possible. For this, a period of six months for disposal of the petition has been recommended.
Implications of defecting	▪ Restrictions like prohibition on joining another party or holding offices in the government should be imposed on expelled members. ▪ Defectors should be barred from holding public office or any remunerative political post for the duration of the remaining term of the legislature. ▪ The vote cast by a defector to topple a government should be treated as invalid.

Sources: Law Commission, 1999; National Constitution Review Commission, 2002; Law Commission Report, 2015; Law Commissioe Draft Report, 2018; Dinesh Goswami Committee on electoral reforms, 1990, Halim Committee on anti-defection law, 1998 (from R. Kothandaraman Ideas for an alternative Anti-Defection law, 2006); PRS.

The Tenth Schedule was a historic first step toward political stability, yet it now requires a 21st-century upgrade to perfectly balance 'government stability' with 'legislative conscience'. By embracing structural reforms, such as transferring adjudicatory powers to the Election Commission and barring mid-term defectors from by-elections, India can effectively close existing loopholes.

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Structure, Organisation and Functioning of the Executive and the Judiciary – Ministries and Departments of the Government; Pressure Groups and Formal/ Informal Associations and Their Role in the Polity.

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23 The Executive – President, PM, Governor, CoM

India's dual-executive structure operates at both the Union and State levels to ensure institutional synergy. While the President and PM represent sovereign democratic will, the Governor uniquely acts as both a constitutional head and a federal link, balancing state autonomy with national integration.

23.1 The President

Enshrined in **Part V (Articles 52-62)**, the President of India is the Head of the State and the symbol of national solidarity. By adopting the Westminster model, the Constitution deliberately designed the Presidency not as an independent centre of power (like the US President), but as a **de jure head**. The President embodies the sovereign dignity of the State, while the real executive machinery is driven by the Prime Minister and the Council of Ministers.

UPSC Mains PYQs

1. Compare and contrast the President's power to pardon in India and in the USA. Are there any limits to it in both countries? What are 'preemptive pardons'? **(2025)**

23.1.1 The Evolution of Article 74 (Aid and Advise)

Constitutional Phase	Impact
Original Constitution (1950)	• **Article 74:** "There shall be a CoM with the PM at the head to aid and advise the President." • **Shamsher Singh v. State of Punjab (1974): The** SC ruled that the President is merely a formal head and must act on the advice of the CoM in almost all matters. • **Ambiguity:** It did not explicitly state whether this advice was legally binding.
The 42nd Amendment (1976)	• **Article 74 was amended** to explicitly state that the **President shall act in accordance with such advice.** • **Impact:** Legally stripped the President of any Constitutional wiggle room. • Cemented the absolute supremacy of the Executive over the de jure head during the Emergency.
The 44th Amendment (1978)	• **Added a crucial proviso:** The President can require the CoM to reconsider such advice once. If sent back, the President must accept it. • **Impact:** Empowered the President to act as a "Constitutional Brake". Returning advice sends a powerful, public moral message against hasty or unconstitutional executive actions. • **Example (1997):** President K.R. Narayanan returned the Gujral cabinet's advice to impose President's Rule in UP. The cabinet reconsidered and dropped the move.

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PRESIDENT OF INDIA
POWERS & FUNCTIONS

1. EXECUTIVE POWERS

All executive actions of the Government of India are formally taken in the President's name.

- Art. 53 : Executive power of the Union vested in the President; exercised either directly or through officers.
- Art. 74 : President acts on the aid and advice of the Council of Ministers (headed by the PM).
- Art. 75 : Appoints the Prime Minister and other ministers on PM's advice.
- Art. 76 : Appoints the Attorney General of India and determines remuneration.
- Art. 77 : Makes rules for the convenient transaction of Govt. of India business.
- Appointments (Various Articles) : Appoints key constitutional functionaries like CAG (Art.148), CEC & other ECs (Art.324), Chairman & members of UPSC (Art.316), State Governors (Art.155)
- Art. 239 : Administers Union Territories through administrators appointed by the President.

2. LEGISLATIVE POWERS

- Art. 79 : President is an integral part of the Parliament of India.
- Art. 85 : Summons / prorogues Parliament and dissolves Lok Sabha.
- Art. 86 : Right to address either House or both Houses & to send messages to Parliament.
- Art. 87 : Addresses Parliament at the commencement of 1st session after each general election & the 1st session of each year (Special Address).
- Art. 108 : Summons joint sitting of both Houses in case of deadlock over an ordinary bill.
- Art. 111 (Assent to Bills) : Gives assent, withholds assent (veto), or returns the bill (if not a Money Bill) for reconsideration.
- Art. 123 (Ordinance Making Power) : Promulgates Ordinances when Parliament is not in session. They have the same force as an Act but must be approved by Parliament within 6 weeks of reassembly.

3. FINANCIAL POWERS

- Art. 110 : Money Bills can be introduced only with President's prior recommendation.
- Art. 112 : Causes the Annual Financial Statement (Union Budget) to be laid before Parliament.
- Art. 113 : No demand for a grant can be made except on President's recommendation.
- Art. 267 : Can make advances out of the Contingency Fund of India to meet unforeseen expenditures.
- Art. 280 : Constitutes a Finance Commission every five years to recommend distribution of revenues between Centre and States.

4. JUDICIAL POWERS

- Art. 72 (Pardoning Power) : Can grant pardons, reprieves, respites, remissions of punishment, or suspend, remit, or commute the sentence of any person convicted of an offense (especially in cases of court-martial, offenses against Union law, and death sentences).
- Arts. 124 & 217 : Appoints the Chief Justice and judges of the Supreme Court and High Courts.
- Art. 143 (Advisory Jurisdiction) : Can seek advice from the Supreme Court on any question of law or fact of public importance. (Advice is not binding on the President.)

5. MILITARY POWERS ☆☆☆

- Art. 53(2) : The Supreme Command of the Defence Forces of the Union is vested in the President.
- Appoints the chiefs of the Army, Navy and Air Force.
- Can declare war or conclude peace, subject to the approval of Parliament.

6. DIPLOMATIC POWERS

- International treaties and agreements are negotiated and concluded on behalf of the President (subject to the approval of Parliament).
- Represents India in international forums and affairs.
- Sends and receives diplomats like ambassadors and high commissioners.

7. EMERGENCY POWERS

Extraordinary powers to deal with emergencies :

- Art. 352 (National Emergency) : Can declare national emergency due to war, external aggression, or armed rebellion.
- Art. 356 (President's Rule) : Can declare state emergency (President's Rule) if there is a failure of constitutional machinery in a state.
- Art. 360 (Financial Emergency) : Can declare financial emergency if financial stability or credit of India or any part of its territory is threatened.

Note : The President acts on the aid and advice of the Council of Ministers (Art. 74), except in matters where the Constitution requires the President to exercise discretion.

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23.1.2 Discretionary Powers (Situational)

Situational Vacuum	The President's Action	Conventions / Guiding Principles
Hung Parliament (No party has a clear majority in Lok Sabha)	Discretion to appoint the Prime Minister. The President must find a leader capable of commanding a stable majority.	**Sarkaria Commission Guidelines:** 1. Pre-poll alliance leader. 2. Largest single party making a claim with others. 3. Post-electoral coalition.
Loss of Confidence	Discretion to dismiss the Council of Ministers if they lose the majority in the Lok Sabha and refuse to resign.	Prevents an illegitimate government from clinging to power.
Dissolution of Lok Sabha	Discretion to dissolve the Lok Sabha if a government loses its majority and no alternative government can be formed.	If a PM who has already lost majority advises dissolution, the President is not bound by that advice and can explore other government formations.

23.1.3 The Pardoning Power and the Delay Debate

Under **Article 72**, the President has the power to grant pardons, reprieves, respites, or remissions of punishment. This is not an act of private grace but an act of Constitutional duty performed on the "aid and advice" of the council of ministers mainly through the Ministry of Home Affairs (MHA).

The Core Issue: Presidents have historically kept mercy petitions pending for years (sometimes over a decade). This delay has triggered a massive debate on whether a constitutional time limit must be imposed.

Arguments FOR Specifying a Time Limit (Why delay is a denial of justice)	Arguments AGAINST Specifying a Time Limit (Why a rigid clock is dangerous)
Violation of Article 21 (Right to Life): Keeping a convict in constant suspense about their execution is a form of psychological torture, internationally recognised as the **"Death Row Phenomenon".**	**Complexity of Scrutiny:** The President acts as the absolute last resort to correct judicial errors. Imposing a strict deadline might force the MHA to hurriedly process files, leading to a hasty, mechanical **rejection** of mercy, defeating the very purpose of Article 72.
Defeats the Purpose of Justice: Penology states that punishment should be swift to be an effective deterrent. An unexplained delay of 8-10 years mocks the criminal justice system and erodes public faith.	**Executive Prerogative:** The power under Article 72 is an executive clemency dependent on political, social, and national security inputs (gathered by various ministries), which take time to compile. A rigid constitutional clock undermines this executive flexibility.
Political Motives: Delay is often not due to complex scrutiny but political expediency. Governments delay deciding on high-profile terrorists or political assassins to avoid electoral backlash.	**The Supreme Court's Solution:** The SC has already provided a judicial remedy. Fixing a time limit in the Constitution is unnecessary when the judiciary has empowered itself to commute sentences if the delay is deemed unreasonable.

The Supreme Court's Interventions:

1. **Shatrughan Chouhan vs Union of India (2014):** The Supreme Court ruled that an inordinate and unexplained delay by the President in deciding mercy petitions causes excruciating mental agony, **violating Article 21**. Therefore, such delay is a valid ground for the Supreme Court to commute the death sentence to life imprisonment.
2. **Epuru Sudhakar Case (2006):** The SC ruled that the President's pardoning power is not absolute and is subject to **Judicial Review if exercised with mala fide intent or on political grounds.**
3. **Kehar Singh v. Union of India (1989):** The Supreme Court addressed whether the President's rejection of a mercy petition is open to judicial review.
    a. While the Court reaffirmed that it can review the President's decision to ensure it doesn't violate constitutional bounds (as established in Maru Ram), it clarified that the President is not a higher appellate court.
    b. The President can examine the evidence and form a different conclusion on the merits of a case, but the executive clemency process cannot be transformed into a judicial retrial.
4. **Maru Ram v. Union of India (1980):** The Supreme Court ruled that the President's (Article 72) and Governors' (Article 161) *powers of pardon and remission are not absolute*, unfettered personal discretions.
    a. They must be *exercised with the aid and advice of the federal or state Council of Ministers*.
    b. Furthermore, these executive powers remain subject to judicial review to prevent arbitrary or irrational decisions.

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23.1.4 Veto Powers of the President (Article 111 & 201)

The Veto power is not designed to make the President a dictator but rather to prevent hasty, ill-considered legislation and to stop unconstitutional bills from becoming law.

Type of Veto	Scope & Constitutional Limitations	Significance & Examples
Absolute Veto	• **Withholding assent completely, causing the bill to die.** • **Limits:** Used for Private Member Bills OR if the cabinet resigns after passing the bill but before the President signs it (and the new cabinet advises withholding assent).	• **Significance:** Prevents legislation that does not have the backing of the current executive. • **Example:** Dr. Rajendra Prasad withheld assent to the PEPSU Appropriation Bill (1954) because President's Rule was revoked before he could sign it.
Suspensive Veto	• Returning an ordinary bill for reconsideration. If Parliament passes it again (with or without amendments), the President must sign it. • **Limits:** Cannot be used for Money Bills or Constitutional Amendment Bills (24th Amendment Act made assent mandatory for the latter).	• **Significance:** Acts as a moral and political brake. Returning a bill forces a public debate and forces the government to rethink. • **Example:** APJ Abdul Kalam returned the Office of Profit Bill (2006).
Pocket Veto	• The Constitution sets no time limit for the President to decide. They can simply keep the bill pending indefinitely. • **Limits:** The US President has a 10-day limit; the Indian President's pocket is "larger".	• **Significance:** A massive silent weapon against controversial legislation that threatens fundamental rights. • **Example:** Gyani Zail Singh used the pocket veto on the controversial Indian Post Office Amendment Bill (1986), which threatened press freedom.
The Federal Veto (Article 201 - State Bills)	• Under Article 200, a Governor can reserve a state bill for the President's consideration. • Under Article 201, the President can direct the Governor to return the bill. However, even if the State Assembly passes it a second time, **the President is NOT bound to give assent**.	• **Acts as a Union check on Unconstitutional state laws.** • **Federal Friction:** The Union Executive exercises veto over state legislatures, often delaying assent indefinitely (e.g., NEET exemption bills).

Comparison of Pardon Powers: India vs. USA

Features	Indian President	USA President
Constitutional Source	Article 72 of the Indian Constitution.	Article II, Section 2 of the U.S. Constitution.
Jurisdiction	Applies to offenses under Union law, court-martial sentences, and all death sentences.	Applies strictly to federal offenses against the United States.
State Offenses & Death Penalty	Can pardon death sentences even if imposed under State laws.	Cannot pardon state crimes; this power operates upon offenses against the United States as distinguished from offenses against the states.
Executive Discretion	Bound by the aid and advice of the Council of Ministers.	Exercises independent and plenary authority.
Judicial Review	Subject to limited judicial review for arbitrariness, mala fide intent, or improper considerations.	Generally not subject to legislative control, and Congress cannot substantively constrain the President's pardon authority through legislation.
Limits	• The President is bound by the advice of the Council of Ministers and cannot exercise pardon powers independently (Maru Ram v. Union of India, 1981). • Pardon decisions are subject to limited judicial review if found arbitrary, mala fide, or based on irrelevant considerations (Epuru Sudhakar v. Govt. of A.P., 2006).	• **Impeachment Exception:** The U.S. President cannot grant pardons in impeachment cases. • **Federal Jurisdiction Only:** Pardon power applies only to federal offences, not state crimes.

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Preemptive Pardons: A preemptive pardon is an act of clemency issued by a head of state before any trial, conviction, or formal judgment takes place.

Application in the USA:

- Preemptive pardons are legally recognized and constitutionally permitted in the United States for past actions.
- In the 1866 case Ex parte Garland, the U.S. Supreme Court ruled that a pardon may be exercised either before legal proceedings are taken, during their pendency, or after conviction and judgment.

Application in India:

- Preemptive pardons are not permitted under the Indian constitutional framework.
- Under Article 72, the constitutional language explicitly states that the President has the power to grant pardons to any person "convicted of any offence".
- This specific phrasing mandates that a formal legal process must conclude and result in a conviction before a pardon can be legally granted.

23.1.5 Ordinance-Making Power (Article 123)

Article 123 grants the President the power to promulgate Ordinances during the recess of Parliament. This is the most extraordinary power, as it vests legislative authority in the Executive.

1. **Constitutional Scope and Limitations**

- **Condition:** Can only be promulgated when either one House or both Houses of Parliament are not in session.
- **Rationale:** To handle "unforeseen emergencies" that require immediate action when Parliament cannot deliberate.
- **Co-extensive Power:** An ordinance can only be issued on subjects Parliament can legislate on, and it is subject to the same constitutional limitations (it cannot violate Fundamental Rights).
- **Lifespan:** Must be approved by Parliament within 6 weeks of its reassembly. The maximum theoretical life is 6 months + 6 weeks.

Ordinances were meant to be an exception, but they are frequently used as a routine tool to bypass parliamentary debate, bypassing the Rajya Sabha or escaping opposition scrutiny.

Landmark Case	Key Constitutional Principle Established
R.C. Cooper v. Union of India (1970) (Bank Nationalization Case)	• **Judicial Review of Intent:** The Supreme Court ruled that the President's decision to promulgate an ordinance is not absolute. • If an ordinance is passed in a circumstance that clearly does not require 'immediate action', it can be challenged in a court of law to test its constitutionality and check for mala fide intent.
44th Constitutional Amendment Act (1978)	• **Legislative Affirmation:** Reaffirmed the R.C. Cooper stance. It clarified that the satisfaction of the President (**Article** 123) and Governor (**Article** 213) to issue an ordinance is subject to judicial review and is not final or conclusive.
Dr. D.C. Wadhwa v. State of Bihar (1987)	• **Fraud on the Constitution:** The Court struck down the practice of "mechanical re-promulgation" of ordinances without seeking the legislature's approval. It ruled that bypassing the legislature is unconstitutional unless there is a genuine emergency or extreme paucity of time.
Krishna Kumar Singh v. State of Bihar (2017) (7-Judge Constitution Bench)	**Mandatory Legislative Oversight:** • It is absolutely mandatory to place the ordinance before the Legislature; failure to do so is a constitutional infraction. • **Enduring Rights Theory:** If an ordinance lapses or ceases to operate, any act, right, privilege, or liability created by it will only survive if it passes three strict tests: 1. The effect of the ordinance is completely irreversible. 2. Reversing the consequences of the ordinance is highly impractical. 3. There is a compelling public interest to continue the effect of the ordinance.

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Ordinance-Making Power: President vs Governor

Dimension	President (Article 123)	Governor (Article 213)
Legislative Recess	Can promulgate an ordinance when either one or both Houses of Parliament are not in session.	Can promulgate an ordinance when the Legislative Assembly (or both Houses in a bicameral legislature) are not in session.
Condition	Immediate action must be necessary.	Immediate action must be necessary.
Legislative Scope	Can legislate only on subjects within Parliament's legislative competence.	Can legislate only on subjects within the State Legislature's competence.
Legal Status	Has the same force and effect as an Act of Parliament.	Has the same force and effect as an Act of the State Legislature.
Validity	Invalid if Parliament itself lacks competence to enact such a law.	Invalid if the State Legislature lacks competence to enact such a law.
Withdrawal	May withdraw the ordinance at any time.	May withdraw the ordinance at any time.
Nature of Power	Exercised on the aid and advice of the Union Council of Ministers.	Exercised on the aid and advice of the State Council of Ministers.
Legislative Approval	Must be laid before both Houses of Parliament.	Must be laid before the State Legislature.
Duration	Ceases after **6 weeks** from reassembly of Parliament unless approved earlier.	Ceases after **6 weeks** from the reassembly of the State Legislature unless approved earlier.
Prior Approval Requirement	No prior approval required.	Must obtain **the President's instructions** if a similar Bill would require Presidential sanction, reservation for the President, or Presidential assent.

Contemporary Issues

Contemporary Issue	Example	Description
Bypassing Parliament	Three Farm Laws Ordinances (2020)	Bypassed detailed Parliamentary/Committee scrutiny; later repealed (2021), highlighting the risks of legislating without broad consensus.
Separation of Powers	Government of NCT of Delhi (Amendment) Ordinance, 2023	Overturned the SC Constitution Bench verdict on Delhi Services by creating the National Capital Civil Service Authority, raising concerns over executive overreach.
Repromulgation	Securities Laws (Amendment) Ordinance (2013–14), Indian Medical Council (Amendment) Ordinance (2010), Land Acquisition (Amendment) Ordinance (2014–15), Commission for Air Quality Management Ordinance (2020–21)	Re-promulgated multiple times despite judicial censure (D.C. Wadhwa), undermining parliamentary supremacy and democratic accountability.
Federal Concerns	Jammu & Kashmir Reservation (Amendment) Ordinance (2019)	Politically significant ordinance affecting Centre–State/UT relations, raising concerns over federal balance.
Legitimate Emergency Use	Manipur GST (Amendment) Ordinances (2025)	Used during President's Rule to ensure continuity of GST administration, illustrating that ordinances remain a valid emergency governance tool when immediate legislative action is necessary.

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23.1.6 Procedure for Impeachment of the President (Article 61)

Aspect	Details
Ground for Removal	**Violation of the Constitution'** (Note: The term is nowhere defined in the Constitution).
Initiation	Can be initiated by **either House** of the Parliament (Lok Sabha or Rajya Sabha).
Notice Period	A **14-day advance notice** must be given to the President.
Condition for Notice	The resolution containing charges must be signed by at least **1/4th members** of the initiating House.
Passage in First House	Requires a special majority: **2/3rd of the total membership** of that House.
Role of Second House	Acts as the investigating body. Investigates the charges or constitutes a committee to do so. The President has the right to appear and defend themselves.
Final Passage & Removal	If the Second House sustains the charges and passes the resolution by **2/3rd of its total membership**, the President stands impeached from that date.

Ultimately, the Indian President is not a mere titular head but the indispensable **'conscience-keeper'** of the Constitution. By balancing executive advice with moral authority, the office acts as a vital brake against hasty governance. Moving forward, the Presidency remains the ultimate symbol of national unity and democratic resilience, ensuring that India's governance is continuously guided by constitutional propriety rather than mere political expediency.

23.1.7 Vice President

Modelled broadly on the American lines, the office of the Vice-President (Article 63) is the second-highest constitutional office in India. However, unlike the US Vice-President who ascends to the Presidency for the *unexpired* term if the office falls vacant, the Indian Vice-President merely acts as a temporary stopgap.

The true, everyday essence of this office lies in **Article 64**, which mandates the Vice-President to act as the *ex-officio* Chairman of the Rajya Sabha, serving as the custodian of dignity and federal debate in the Upper House.

Aspect	Details	Value Addition
Electoral College	Consists of all members of Lok Sabha and Rajya Sabha (both elected and nominated). MLAs are not included.	**Constitutional Rationale (Dr Ambedkar):** The President represents the whole nation (hence MLAs vote), but the VP's primary role is presiding over the Council of States. Thus, only Parliament's mandate is required. **Comparison:** Unlike the President's election, nominated MPs participate here.
System of Election	Proportional Representation (PR) by means of a Single Transferable Vote (STV) via Secret Ballot.	**Analytical Insight:** Ensures the winner has an absolute majority (consensus) rather than just a relative majority (as in First-Past-The-Post). The secret ballot ensures MPs vote on conscience, not party lines.
Qualifications	Citizen of India, 35+ years of age, eligible for Rajya Sabha, no Office of Profit.	**Why Rajya Sabha eligibility?** Because the VP serves as the ex-officio Chairman of the Rajya Sabha. **Exception:** Sitting President, VP, Governors, and Ministers are legally exempt from the "Office of Profit" disqualification.
Value of Votes	Every MP's vote has the same value: 1.	**Comparison:** In the Presidential election, an MP's vote value is derived from the total population of States, reflecting federal parity. For the VP, it is a straightforward parliamentary parity.
Nomination & Deposit	Requires 20 Proposers and 20 Seconders. Security deposit of ₹15,000 (forfeited if less than 1/6th of votes are secured).	**Democratic Check:** Increased from earlier numbers (5 proposers/ seconders) via amendment to the 1952 Act to deter non-serious, frivolous candidates and maintain the dignity of the constitutional office.
Whip & Defection Law	Political parties cannot issue whips. **The Anti-Defection Law (10th Schedule)** does not apply.	Upholds the independence of the Constitutional mechanism. It ensures the election is driven by the candidate's stature and cross-party acceptability, immune from partisan disciplinary action.
Winning Quota	$\frac{\text{Total Valid Votes}}{2} + 1$	**Significance:** In a fractured parliament, this quota forces political parties to build consensus and alliances, preventing a polarised or minority-supported candidate from winning.

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Election Disputes	Challenged only in the Supreme Court by a candidate or 10+ electors, within 30 days of the result.	**Constitutional Safeguard (Article 71):** Vests exclusive original jurisdiction in the Supreme Court. **11th Amendment Act (1961):** Crucially established that the VP's election cannot be challenged on the ground of any vacancy in the electoral college (e.g., if a Lok Sabha seat is vacant).
Term & Vacancy	5-year term. Continues to hold office until a successor takes over. No formal line of succession.	**Constitutional Gap vs. the US:** Unlike the US Vice-President who automatically becomes President for the remainder of the term if the office falls vacant, the Indian VP merely acts as President for a maximum of 6 months until a new President is elected.

Role of the Vice President as Chairman of Rajya Sabha

VICE PRESIDENT OF INDIA

Ex-officio Chairman of the Rajya Sabha

Constitutional Basis : Article 64 & Article 89
Role modelled on the Speaker of the Lok Sabha.

1. PROCEDURAL AUTHORITY (REGULATING THE HOUSE)

- **Maintaining Order & Decorum :** Ultimate authority to maintain discipline. Can direct a member to withdraw or suspend a member for disorderly conduct or for disregarding the authority of the Chair.

- **Quorum Management (Art. 100) :** Quorum = $1/10^{th}$ of total members (i.e., 25 members). If no quorum, Chairman must adjourn or suspend the meeting till quorum is present.

- **The Casting Vote :** Chairman does not vote in the first instance. In case of an absolute tie on a bill or motion, exercises casting vote to break the deadlock.

2. CONSTITUTIONAL INTERPRETATION (WITHIN THE HOUSE)

- **Final interpreter** of the Constitution and Rules of Procedure within the Rajya Sabha.
- Rulings on how constitutional provisions apply to parliamentary proceedings, motions and debates are final and binding within the House.
- Under Article 122, validity of any proceedings in Parliament cannot be questioned in a court of law on the grounds of alleged irregularity of procedure.

☆ **Nuance :** Supreme Court is the ultimate interpreter of the Constitution at large, but within the Rajya Sabha, the Chairman's interpretation is final.

3. PROTECTION OF PARLIAMENTARY PRIVILEGES

- **Guardian of Privileges :** Ensures that members can speak freely (Art. 105) without fear of legal action.

- **Enforcing Orders :** Can issue warrants to enforce the orders of the House, including summoning individuals who have breached the privileges of the Rajya Sabha or committed contempt of the House.

- **Committee of Privileges :** If a member raises a question involving breach of privilege, Chairman decides whether to give consent to raise it. If consent is given, matter is often referred to the Privilege Committee for investigation.

4. DISQUALIFICATION POWERS (THE 10TH SCHEDULE)

- **Tribunal Role :** Under the Anti-Defection Law (10^{th} Schedule), the Chairman acts as a legal tribunal.
- Has the sole power to decide on questions regarding disqualification of a Rajya Sabha member on grounds of defection.

☆ **Note :** As per Kihoto Hollohan case (1992), the Chairman's decision is subject to judicial review, but courts cannot intervene before the Chairman has made a final ruling.

5. CEREMONIAL AND REPRESENTATIVE ROLE

- **Principal Spokesperson :** Formal representative and principal spokesperson of the Rajya Sabha in its relations with the President, the Lok Sabha and external authorities.

- **Global Representation :** Represents the Rajya Sabha at national and international parliamentary forums such as Inter-Parliamentary Union (IPU) and Commonwealth Parliamentary Association (CPA) events.

6. NOMINATIONS AND APPOINTMENTS

- **Parliamentary Committees :** Nominates members to various crucial Parliamentary Committees (e.g., Business Advisory Committee, Rules Committee, General Purposes Committee) and appoints their Chairpersons.

- **Statutory and Educational Bodies :** Empowered to nominate Rajya Sabha members to serve on various external boards and councils, including:
  - The Central Haj Committee
  - The Institute of Constitutional and Parliamentary Studies (ICPS)
  - The Courts/Governing Councils of Central Universities (e.g., JNU, AMU, etc.)

The Vice President, as Chairman, ensures the smooth functioning, dignity and independence of the Rajya Sabha while upholding the spirit of the Constitution and parliamentary democracy.

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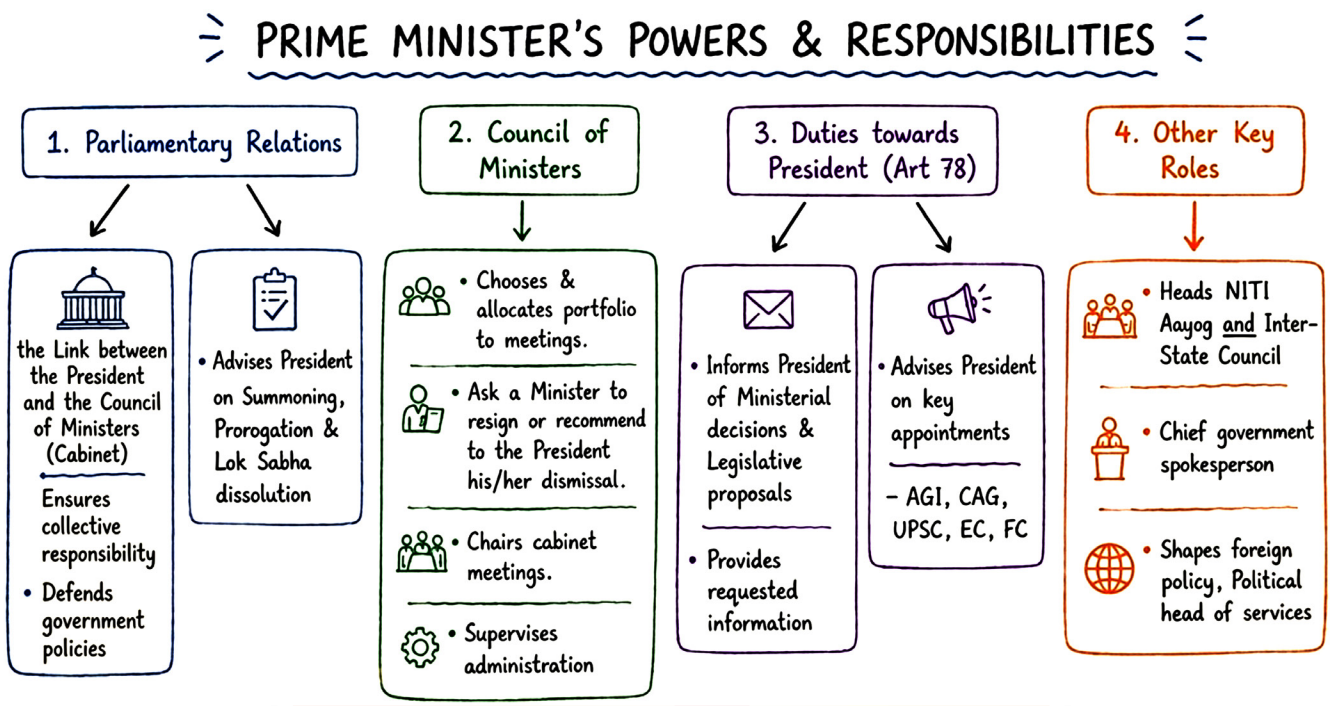
23.2. Prime Minister

While Article 52 vests the executive power in the President, **Articles 74, 75, and 78** establish the Prime Minister as the real, *de facto* executive of the Indian Republic. The framers of the Constitution envisioned the PM as *primus inter pares (first* among equals) within the Cabinet. However, the Prime Minister is not merely a coordinator; they are the central gravitational force of the government.



23.2.1 Presidentialisation of Indian PM

The Core Debate: Is the shift toward a highly centralised, personality-driven executive a necessary evolution for modern governance or a dangerous erosion of India's parliamentary democracy?

Evaluating the Presidentialisation of the PM

Dimension of Governance	Arguments FOR Presidentialisation (The Benefits / Administrative Necessity)	Arguments AGAINST Presidentialisation (The Democratic Deficits)
Executive Decisiveness vs. Deliberative Governance	**FOR:** A strong, dominant PM ends **"Policy Paralysis."** Complex modern challenges (like national security or economic reforms) require swift, decisive action. A highly centralised executive cuts through bureaucratic red tape and inter-departmental turf wars.	**AGAINST:** It dilutes **"Collective Responsibility."** The Cabinet is reduced from a supreme deliberative body to an executive rubber stamp. Sweeping national decisions are taken unilaterally by a tight inner circle, bypassing rigorous multi-stakeholder scrutiny.
Electoral Clarity vs. Erosion of the MP's Role	**FOR:** It provides the electorate with a clear, identifiable national leader, ensuring a decisive political mandate and government stability (curing the instability of the 1990s coalition era). Voters know exactly who is in charge of the nation's trajectory.	**AGAINST:** It turns general elections into a **"Personality Cult"** plebiscite. Local constituency issues are completely ignored, and MPs are reduced to mere "ticket-holders" of the PM's brand, destroying their independent legislative relevance.
Institutional Synergy vs. The Unaccountable PMO	**FOR:** The rise of the PMO as a "Super-Cabinet" is a modern administrative necessity. It provides vital inter-ministerial coordination and fast-tracks national infrastructure projects that a fragmented Cabinet finds difficult to efficiently manage.	**AGAINST:** It shifts policy-making power from elected Cabinet Ministers to **unelected bureaucrats** within the PMO. Because PMO officials are generally shielded from direct parliamentary questioning, it severely undermines the daily accountability of the executive to the legislature.

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Global Diplomacy vs Centralisation of Credit	**FOR:** In a highly globalised world, foreign policy is universally centralised around the Head of Government. A "Presidential" PM projects a strong, unified national image on the global stage, crucial for strategic negotiations.	**AGAINST:** It leads to an extreme **"centralisation of credit".** All welfare schemes and government achievements are heavily branded around the PM's individual persona, bypassing traditional party structures and creating a patron-client relationship with voters.

The 'presidentialisation' of the Indian Prime Minister reflects the complex demands of 21st-century governance, where electoral stability and rapid executive decisiveness are highly prized. However, this efficiency must not come at the cost of constitutional checks and balances. To ensure the survival of true parliamentary democracy, a delicate institutional equilibrium must be restored: the Prime Minister must utilise the PMO as a strategic facilitator while actively reviving the Cabinet as the supreme, rigorous deliberative body it was constitutionally envisioned to be.

23.3 The Council of Ministers

India's Westminster model replicates the exact same parliamentary structure at the Union and State levels, with one massive constitutional exception regarding discretionary power.

Feature	Union	State	Analytical Difference
Aid and Advice	**Article 74:** There shall be a CoM with the PM at the head to aid and advise the President. The President **shall** act in accordance with such advice.	**Article 163:** There shall be a CoM with the CM at the head to aid and advise the Governor, **except** in so far as he is required to exercise his functions in his **discretion**.	**The Exception:** The Constitution explicitly grants discretionary power to the Governor, but NOT to the President. If a conflict arises on whether a matter falls under discretion, the Governor's decision is final.
Appointment and responsibility	**Article 75:** PM is appointed by President; other Ministers appointed by President on PM's advice. CoM is collectively responsible to the **Lok Sabha**.	**Article 164:** CM is appointed by Governor; other Ministers appointed by Governor on CM's advice. CoM is collectively responsible to the **Legislative Assembly (Vidhan Sabha)**.	***(Identical Principle)*** At both levels, the executive is daily accountable to the directly elected lower house.
Duty to Communicate	**Article 78:** It is the duty of the PM to communicate all decisions of the CoM relating to administration and legislation to the President.	**Article 167:** It is the duty of the CM to communicate all decisions of the CoM relating to administration and legislation to the Governor.	**The Link:** The PM/CM acts as the principal Constitutional channel between the titular Head of State and the real executive machinery.
Strength	**Article 75(1A):** Specifically mandates the 15% maximum limit based on the total strength of the Lok Sabha	**Article 164(1A):** Specifically mandates the 15% maximum limit (based on the Legislative Assembly's strength) and the 12-member minimum limit	Identical principles at both levels. This ceiling is enforced by the 91st Constitutional Amendment Act, 2003.

23.4 Has the Cabinet Marginalised Parliament?

In the classical Westminster model, Parliament is supreme and holds the Cabinet accountable. However, modern political realities have inverted this relationship, leading to what constitutional expert Ramsay Muir called **"Cabinet Dictatorship".**

Mechanisms of Marginalization (How the Cabinet Dominates)	The Retained Supremacy (How Parliament still fights back)
The Tyranny of the Whip (10th Schedule): The Cabinet decides the policy, issues a whip, and MPs are generally expected to follow the party whip on important votes, and defiance may attract disqualification under the Tenth Schedule.	**The Ultimate Sanction:** The Cabinet survives only as long as it enjoys the confidence of the Lok Sabha. A **no-confidence motion** remains the ultimate weapon of parliamentary supremacy (e.g., the fall of the government in 1999).

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Control over the Legislative Agenda: The Cabinet dictates *when* Parliament meets, *what* bills are introduced, and *how much* time is allotted. Controversial bills are frequently passed via the **"Guillotine"**. Critics have argued that some legislation has been classified as Money Bills to reduce Rajya Sabha scrutiny.	**Committee Scrutiny:** While the floor of the House is dominated by the Cabinet, the **Public Accounts Committee (PAC)** and **DRSCs** require ministries and senior officials to explain expenditure, policies and implementation.
Ordinance Raj (Article 123): The Cabinet frequently uses the President's ordinance-making power to implement laws immediately, presenting Parliament with a *fait accompli* (a done deal) and bypassing prior legislative deliberation.	**Question Hour & Daily Accountability:** Despite disruptions, mechanisms like Question Hour, Zero Hour, and Adjournment Motions force Cabinet Ministers to publicly defend their administrative actions on a daily basis.
Delegated Legislation: Modern laws are passed by the Cabinet merely as "skeletons". The actual rules, regulations, and implementation details are crafted later by the Cabinet-controlled bureaucracy, receiving comparatively less parliamentary scrutiny than primary legislation.	**Judicial Checks on Executive Aggrandisement:** The Supreme Court increasingly acts as a check on the Cabinet's attempts to bypass Parliament (e.g., striking down repeated ordinances in *Krishna Kumar Singh*, 2017).

The growing centralisation of executive power has undoubtedly enhanced decisiveness and administrative efficiency, but it also raises concerns about weakening collective responsibility, Cabinet government, and parliamentary accountability. The constitutional challenge is to preserve an effective executive while reinforcing institutional checks, ensuring that **efficiency operates within the framework of constitutional morality and parliamentary democracy**.

23.5 Governor

Enshrined in **Part VI (Articles 153-167)**, the Governor is designed to be the titular head of the state executive. Unlike the President, the Governor is not elected but appointed by the Union. This creates a highly complex **Dual Role**:

1. **The Constitutional Head of the State:** Bound by the 'aid and advice' of the State Council of Ministers (Article 163).
2. **The Federal Sentinel (Link to the Centre):** Acting as the Union's representative to ensure the state government functions strictly within the bounds of the Constitution (Article 355/356).

The conflict arises when the "Federal Sentinel" begins acting as the "Political Agent" of the ruling party at the Centre.

Office of Governor

The Governor is the constitutional head of a state in India, appointed by the President to represent the Union in states.

Constitutional Provisions related to Governor

Article 153:	Article 163:	Article 200:	Article 213:	Article 356:
Establishes the office of Governor for each state (some Governors can have additional charge of two or more States).	Governor acts on aid/advice of Council of Ministers, except in discretionary powers.	Governor's assent to state bills (can withhold or refer to President)	Power to promulgate ordinances during assembly recess	Recommends President's Rule in case of constitutional breakdown in the state

Roles and Powers

Executive	Legislative	Judicial	Discretionary Powers	Financial
• Appoints Chief Minister, Council of Ministers, Advocate General, and State Election Commissioner; • oversees state administration	• Summons/dissolves state assembly, • addresses sessions, • gives assent to bills, • reserves bills for President's consideration	• Grants pardons, reprieves, or commutations (Article 161); • appoints judges to subordinate courts in consultation with High Court	• Acts without ministerial advice in specific cases, e.g., appointing Chief Minister post-elections, recommending President's Rule, reserving bills	• Ensures state budget presentation; prior recommendation required for money bills

Judicial Pronouncements related to office of governor

Shamsher Singh vs. State of Punjab (1974)	S.R. Bommai vs. Union of India (1994)	State of Tamil Nadu v. The Governor of Tamil Nadu (2023)
Clarified Governor acts on aid/advice of Council of Ministers, except in limited discretionary areas.	Restricted misuse of Article 356; President's Rule subject to judicial review; Governor's report must be objective.	Supreme Court emphasized Governors' neutrality in giving assent to state bills in a time bound manner.

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23.5.1 Discretionary Powers

Unlike the President, Article 163 expressly recognises limited areas where the Governor may act at his/her discretion.

Type of Discretion	Constitutional Provision / Situation	Contemporary Misuse & Friction Points
Constitutional (Article 200)	**Reservation of Bills:** Reserving a state bill for the President's consideration (mandatory if it threatens the High Court; discretionary for others).	**Friction:** Used to delay state legislation (e.g., Tamil Nadu NEET exemption bill) as the President has no time limit to decide under **Article** 201
Constitutional (Article 356)	**Report for President's Rule:** Recommending the dismissal of the state government due to the failure of constitutional machinery.	**Friction:** Historically misused as a political weapon to topple opposition-ruled state governments (largely curbed post-*SR Bommai* judgement).
Situational (Hung Assembly)	Appointing the Chief Minister when no party commands a clear majority in the Assembly.	**Friction:** A partisan description. Governors have frequently ignored the single largest party or pre-poll alliance and invited the ruling party to form the government (e.g., the Goa and Karnataka government formations).
Situational (Floor Test)	Ordering the CM to prove their majority on the floor of the House if the Governor feels the government has lost confidence	**Friction:** Disputes often arise regarding the timing and circumstances under which Governors direct floor tests, particularly during periods of political instability and defections.
Constitutional (Sixth Schedule)	Governor enjoys special discretionary responsibilities in certain tribal areas of Assam, Meghalaya, Tripura and Mizoram.	Debate over balancing tribal autonomy with democratic accountability.

23.5.2 Ordinance by Governor

Under **Article 213**, the Governor possesses extraordinary legislative powers to promulgate ordinances. However, this is not a parallel power of legislation but a "conditional" power meant strictly for unforeseen emergencies.

Essential Conditions for Promulgating an Ordinance

Condition	Description
Absence of Session	Can only be promulgated when the Legislative Assembly (or both Houses, in bicameral states) is **not in session**.
Subjective Satisfaction	The Governor must be "satisfied" that circumstances exist rendering **immediate action** necessary. *(Note: This satisfaction is based on the aid and advice of the CoM, which is not completely immune from judicial review.).*
Co-extensive Jurisdiction	Ordinances can only be issued on subjects the State Legislature is competent to make laws on (State List and Concurrent List).
Presidential Restraint	The Governor **cannot** issue an ordinance without prior instructions from the President if a similar Bill would have required the President's previous sanction (e.g., affecting inter-state trade) or if the Governor would have deemed it necessary to reserve it under Article 200 (e.g., affecting the High Court).

23.5.3 Evaluating the Governor: Roles, Issues and Institutional Fixes

Role	Contemporary Issue	Supreme Court Intervention	The Way Forward
Appointment & Tenure (Articles 155 & 156) Appointed by the Centre; serves during the "pleasure of the President."	**Partisan Appointments & Arbitrary Removal:** Politicians aligned with the Centre are appointed. Regimes frequently dismiss Governors arbitrarily upon coming to power at the Centre.	**B.P. Singhal Case (2010):** The SC ruled that the "pleasure doctrine" is not absolute. A Governor cannot be removed arbitrarily, capriciously, or merely because the Centre's ruling party changed.	**Sarkaria Commission:** Must be an eminent person from outside the state; CM must be consulted. **Punchhi Commission:** Give them a fixed 5-year tenure with their removal based on an impartial process rather than the discretion of the Central Government.

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Government Formation (Article 164 - Situational Discretion) Appoints the CM when there is a hung assembly.	**Partisan Discretion:** Ignoring pre-poll alliances to invite the Centre's ruling party, thereby facilitating "Operation Lotus" (poaching MLAs).	**S.R. Bommai Case (1994):** The SC ruled that a majority is tested only on the floor of the House, not in the subjective confines of the Raj Bhavan.	**Sarkaria Commission:** Established a strict order of preference: 1. Pre-poll alliance → 2. Largest single party → 3. Post-poll coalition.
Assent to State Bills (Article 200 - Constitutional Discretion) Grant assent, return, or reserve bills for the President.	**Weaponising assent to bills:** Indefinitely sitting on bills passed by the assembly, effectively paralysing the elected government's legislative mandate (recently Tamil Nadu & Kerala Governors held assent to state bills).	**State of Punjab vs Principal Secy (2023):** The SC ruled that Governors cannot "veto" bills by sitting on them indefinitely. If they withhold assent, they must return the bill "as soon as possible".	**Punchhi Commission:** Amend Article 200 to establish a strict time limit of six months within which the Governor must decide on a bill.
Summoning the Assembly (Article 174) Summons/prorogues the House on the aid and advice of the CoM.	**Executive Overreach:** Refusing the State Cabinet's advice to summon the assembly if it is perceived to politically disadvantage the opposition.	**Nabam Rebia Case (2016):** The SC unequivocally ruled that the Governor cannot refuse the CM's advice to summon the House as long as the CM enjoys a majority.	**Punchhi Commission:** Article 163 (Discretion) is not a general power. It must be strictly limited to choices explicitly mentioned in the Constitution.
Promulgating Ordinances (Article 213) Issuing emergency laws when the assembly is not in session.	**Bypassing the Legislature:** State governments using the Governor to continually re-promulgate ordinances without ever placing them before the assembly for a vote.	**Krishna Kumar Singh (2017):** Placing an ordinance before the legislature is a Constitutional obligation. Successive re-promulgation is a "fraud on the Constitution".	The SC in the D.C. Wadhwa case famously stated that the power to promulgate ordinances is to be used in exceptional circumstances, not as a substitute for the law-making power of the legislature.
Statutory Role as University Chancellor (By State Laws) Appointing Vice-Chancellors (VCs).	**Politicisation of Education:** Friction over VC appointments has led state governments to pass bills stripping the Governor of the Chancellor's role entirely.	SC and Various High Courts rulings upheld UGC norms, but the underlying political conflict remains.	**Punchhi Commission:** The Governor should not be burdened with the role of University Chancellor, as it inevitably drags the constitutional office into daily political controversies.

Ultimately, the Office of the Governor must transcend its contemporary misuse as a partisan proxy to reclaim its true constitutional mandate as the detached linchpin of India's cooperative federalism. By institutionalising the Punchhi Commission's safeguards - such as fixed tenures and strict timelines for legislative assent - the office can be effectively insulated from daily political friction. This will ensure the Governor functions not as a parallel power centre but as a vital, stabilising constitutional sentinel.

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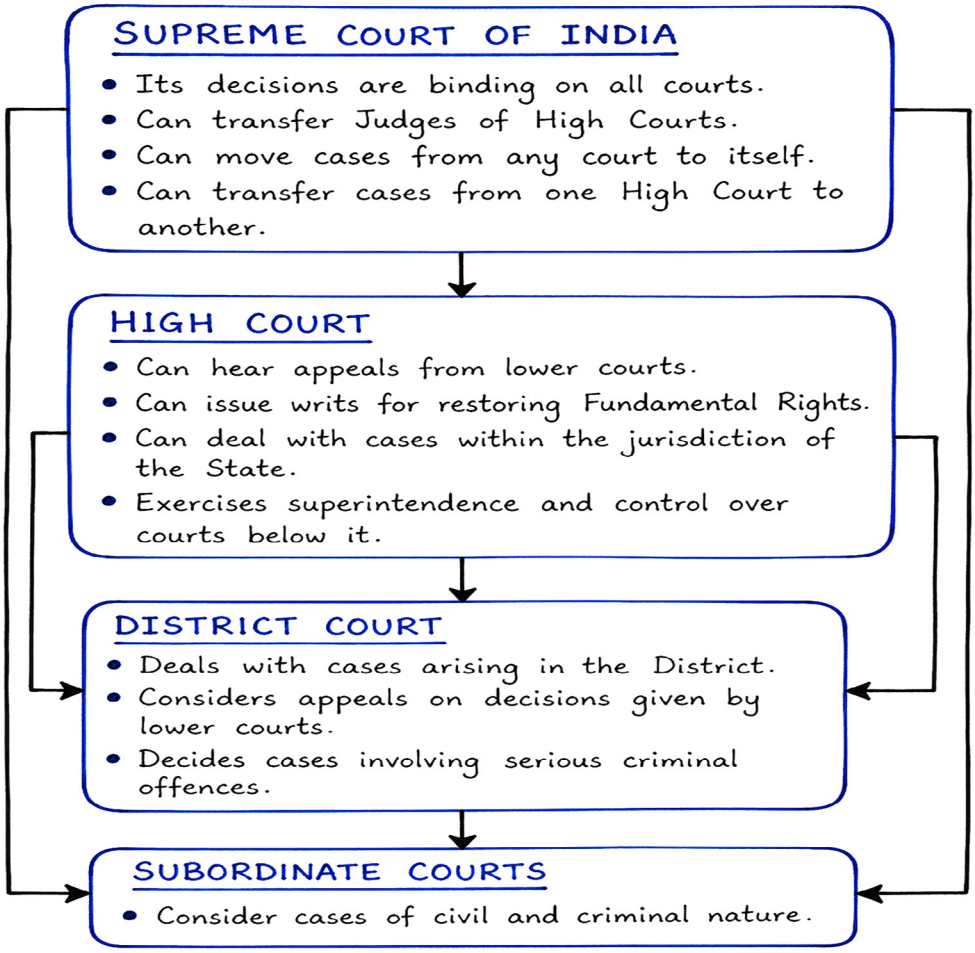
24 The Judiciary - Supreme Court, High Courts and Subordinate Courts

24.1 The Supreme Court

Enshrined in Part V (Articles 124–147) of the Constitution, the Supreme Court of India stands at the apex of the country's integrated judicial system. Envisioned by the framers as the ultimate guardian of Fundamental Rights, the final interpreter of the Constitution, and the protector of its Basic Structure, it functions not merely as a court of law but as a 'sentinel on the qui vive' - the vigilant guardian of constitutional governance and the rule of law.

UPSC Mains PYQs

1. Discuss the evolution of the collegium system in India. Critically examine the advantages and disadvantages of the system of appointment of the Judges of the Supreme Court of India and that of the USA. **(2025)**
2. Explain the reasons for the growth of public interest litigation in India. As a result of it, has the Indian Supreme Court emerged as the world's most powerful judiciary?. **(2024)**
3. The most significant achievement of modern law in India is the constitutionalization of environmental problems by the Supreme Court. Discuss this statement with the help of relevant case laws. **(2022)**
4. Critically examine the Supreme Court's judgement on 'National Judicial Appointments Commission Act, 2014' with reference to appointment of judges of higher judiciary in India **(2017)**



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24.1.1 The Multi-Faceted Jurisdiction

Type of Jurisdiction	Constitutional Scope & Articles	Why it matters
Original (Article 131)	Exclusive power to **resolve federal** disputes (Centre vs. State, State vs. State).	It is the ultimate federal umpire, ensuring the Constitutional balance between the Union and the States
Writ Jurisdiction (Article 32)	Power to **issue writs** (Habeas Corpus, Mandamus, etc.) to enforce Fundamental Rights.	Dr. Ambedkar called Article 32 the **"heart and soul"** of the Constitution. It makes the SC the direct guarantor of civil liberties.
Appellate (Articles 132-136)	Appeals in constitutional, civil, and criminal matters. Includes **Special Leave Petition (SLP - Article 136).**	**SLP (Article 136)** gives the SC extraordinary residual power to grant an appeal from any court or tribunal in India to prevent gross injustice.
Advisory (Article 143)	The President can seek the **SC's opinion** on questions of law or fact of public importance.	Acts as a **pre-emptive constitutional check** to avoid future legislative friction (e.g., Berubari Union Reference (1960)).
Court of Record (Article 129)	Supreme Court is a Court of Record with power to punish for contempt.	Preserves judicial authority and ensures compliance with its orders.

24.1.2 Does the Supreme Court have the right to create new laws to fill "Constitutional Silences" (gaps in the Constitution), or is that overreach?

The Battle over the Election Commission (Article 324)

The Phase	Event and SC Ruling	The Executive Pushback
The Constitutional Silence	Article 324 states that the Election Commissioners (ECs) shall be appointed by the President subject to any law made by Parliament. For 70 years, Parliament made no law, leaving appointments effectively under executive control through the aid-and-advice mechanism	(No pushback, Executive enjoyed the monopoly).
The Judicial Intervention	**Anoop Baranwal vs. Union of India (2023):** The SC ruled that leaving EC appointments solely to the executive threatens free elections. It created an interim Selection Panel (PM, Leader of Opposition, and the CJI) to appoint ECs until Parliament makes a law.	This was hailed as progressive judicial activism to secure institutional independence.
The Executive Pushback	Parliament quickly passed the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023. **It established a new panel:** The PM, the LoP, and a Union Cabinet Minister (completely removing the CJI).	**The Current Friction:** Parliament, under Article 324(2), enacted a statutory appointment framework different from the one prescribed by the Court. By replacing the CJI with a Cabinet Minister, the Executive enhanced its majority in appointing the umpires of India's elections.

24.1.3 Judicial Appointments: Evolution and Friction

Issue	Legal Reality	Impact
The Original Constitutional Design	**Article 124(2):** Judges shall be appointed by the President (Executive) "in consultation" with the CJI and other judges.	The framers wanted a balance. The Executive would appoint, but the Judiciary would guide, ensuring neither branch had an absolute monopoly over appointments.
The Evolution of the Collegium	**Through the Three Judges Cases (1981, 1993, and 1998)**, the SC re-interpreted the word "consultation" to mean "concurrence" (agreement). **It created the Collegium:** The CJI + 4 senior-most judges who exclusively decide appointments.	Through judicial interpretation, the Court transformed the meaning of "consultation" into judicial primacy. It grants the Judiciary a dominant role in judicial appointments, leaving the Executive with a limited consultative role.

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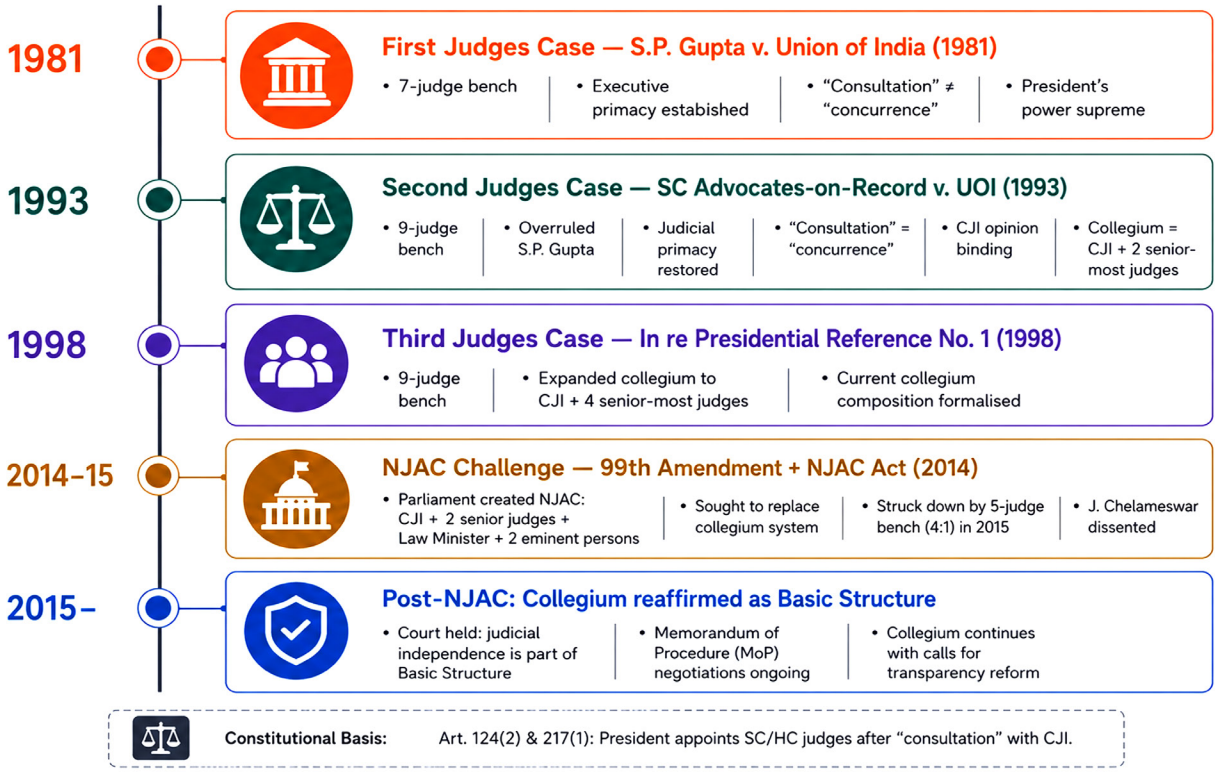
EVOLUTION OF THE COLLEGIUM SYSTEM

Key Judicial Milestones



The Institutional Clash (NJAC)	**The 99th Amendment (2014):** Parliament passed the National Judicial Appointments Commission (NJAC) to replace the Collegium with a panel comprising the CJI, judges, Law Minister, and eminent persons. **The Strike Down (2015):** In the 4th Judges Case, the SC struck down NJAC, citing it threatened "judicial independence" (a basic structure).	The SC successfully insulated itself from executive packing. However, critics argued that the judgement gave insufficient weight to the near-unanimous Constitutional Amendment passed by Parliament and ratified by a majority of States.
The Core Issues with the Current Collegium	Operates via unwritten conventions and closed-door meetings.	**1. Opacity & Nepotism:** No public secretariat and no defined criteria for selection, leading to accusations of the "Uncle Judges Syndrome" (favouritism). **2. Lack of Diversity:** Severe under-representation of women, Dalits, and marginalised communities in the higher judiciary.
Contemporary Friction	The government cannot reject a Collegium recommendation if it is reiterated. However, there is no time limit for the government to act on the file.	**Executive Evasion:** The government frequently uses an informal "pocket veto" - sitting on files of uncomfortable judges for months or selectively clearing names to disrupt the seniority of judges, contributing to judicial vacancies and concerns regarding judicial efficiency
The Memorandum of Procedure (MoP)	The MoP is the official rulebook for appointments. Post-NJAC, the SC and the Government agreed to draft a new MoP to induce transparency.	**The Stalemate:** Years later, the revised MoP remains unfinalised because the Government wants a "national security" clause to veto any judge, which the SC refuses to accept.
Judicial Independence vs Accountability	The collegium protects judicial independence by minimising executive influence	Creates a trade-off between independence and transparency/accountability

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COLLEGIUM SELECTION CRITERIA

Judicial Accountability

Dimension	Legal Basis	Present Position / Issues	Way Forward
Concept & Constitutional Framework	Art. 124(4)-(5), 217, 218; Judges (Inquiry) Act, 1968	• Judicial accountability has two dimensions - **Conduct Accountability(misconduct/removal) and Performance Accountability (transparency, timely justice, reasoned orders).** • Balancing accountability with judicial independence remains the core challenge.	• Strengthen institutional accountability without compromising judicial independence.
Formal Accountability (Impeachment)	Judges (Inquiry) Act, 1968	• Removal requires **100 LS/50 RS MPs,** inquiry committee, special majority in both Houses, followed by Presidential order. • No impeachment has ever succeeded (Ramaswami, Soumitra Sen, Dinakaran). Justice Yashwant Varma (2025–26) exposed the unresolved post-resignation accountability gap.	• Amend the law to explicitly provide for proceedings even after resignation and streamline impeachment procedures.
Informal Accountability (In-House Mechanism)	In-House Procedure (1997/1999)	• CJI-led inquiry may advise, transfer or refer judges, but findings lack statutory force, transparency and enforceability. • Over 1,600 complaints (2017–21) have no publicly known outcomes.	• Give statutory backing to the mechanism with independent oversight, defined timelines and transparent reporting.
Appointments & Collegium Accountability	First (1981), Second (1993), Third (1998) Judges Cases; NJAC Judgment (2015)	• Collegium lacks transparency; reasons for appointments are largely undisclosed; diversity remains low; revised MoPremains pending; regional imbalance persists.	• Finalize revised MoP, establish a permanent Collegium Secretariat, publish objective selection criteria and improve diversity without compromising judicial independence.

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Transparency & Performance Accountability	RTI Judgment (2019); NJDG (National Judicial Data Grid)	• Office of CJI is under RTI, but reasons for collegium decisions remain confidential. • Performance issues include ~55 million pending cases, 371 HC vacancies, 93,000 SC cases, 22 judges per million(against recommended 50), and government being party in ~45% of litigation.	• Expand NJDG-based monitoring, fill vacancies promptly, increase judge strength, reduce government litigation and strengthen judicial infrastructure.
Legislative & Institutional Reforms	Judicial Standards and Accountability Bill, 2010 (lapsed); Law Commission; 2nd ARC	• JSAB lapsed despite proposing judicial asset disclosure, oversight committee and code of conduct. • Debate continues between reviving NJAC versus strengthening accountability within the existing collegium system.	• Revive a modified JSAB, clarify post-resignation proceedings, strengthen conduct oversight while preserving appointment independence, and **consider best practices such as South Africa's Judicial Service Commission.**

India's Collegium vs USA's Presidential Nomination System

Aspect	India's Collegium System	USA's Presidential Nomination System
Core Philosophy	Emphasises judicial independence and minimises executive interference in judicial appointments.	Emphasizes democratic legitimacy through a system of checks and balances between the executive and legislature.
Primary Appointers	The Collegium recommends names, while the President formally makes the appointments → Judges are selected through the Collegium comprising the Chief Justice of India (CJI) and senior Supreme Court judges.	The President nominates judges, while the Senate confirms appointments through a formal approval process.
Key Advantages	Protects the judiciary from political and executive pressure, thereby safeguarding judicial independence and enabling impartial adjudication.	Ensures democratic accountability through elected institutions and subjects nominees to legislative scrutiny before appointment.
Key Disadvantages	Criticised for lack of transparency, perceived favouritism or nepotism, and delays leading to judicial vacancies.	Often criticised for excessive politicisation, ideological polarisation, and partisan battles during confirmation.
Transparency & Scrutiny	Relatively low transparency; deliberations occur behind closed doors, and selection criteria are not formally codified.	High transparency; nominees undergo public hearings and extensive scrutiny before the Senate Judiciary Committee.
Accountability	Limited external accountability, as appointments are primarily controlled by the judiciary itself.	Greater accountability through oversight by elected branches, though lifetime tenure increases the long-term impact of appointments.
Diversity & Representation	Concerns persist regarding adequate representation of women, SC/ST communities, minorities, and regional groups.	Greater scope for promoting demographic and social diversity through conscious nomination policies of successive Presidents.
Nature of Decision-Making	Based on peer evaluation and judicial expertise within the higher judiciary.	Based on a combination of executive choice, political considerations, and legislative approval.
Constitutional Basis	Evolved through the First Judges Case (1981), Second Judges Case (1993) and Third Judges Case (1998) interpretations of Articles 124 and 217.	Rooted in the **Appointments Clause of the U.S. Constitution**, requiring Presidential nomination and Senate consent.
Removal of Judges	Parliamentary impeachment process	Congressional impeachment process
Major Criticism	Seen by critics as a system of judicial overreach/ self-selection lacking transparency and accountability.	Seen by critics as excessively politicised, with ideological considerations sometimes overshadowing merit.

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Both India's Collegium system and the U.S. Presidential Nomination system embody different constitutional priorities. The Collegium emphasises judicial independence by limiting executive influence, while the U.S. model emphasises democratic accountability through public scrutiny and institutional checks.

Going forward, India would benefit from greater transparency and accountability in appointments, while the United States would benefit from reducing excessive politicisation and restoring broader bipartisan trust. A balanced combination of these strengths can help build a more resilient, diverse, and trusted judiciary.

Judicial Independence: A Prerequisite for Democracy

WHY IT IS A PREREQUISITE (THE PHILOSOPHY)

Aspect	Constitutional Backing	Examples / Judgements
Protector of Fundamental Rights	Acts as a bulwark against majoritarian tyranny, protecting individual liberties via Articles 32 & 226.	**Puttaswamy Case (2017):** SC protected citizens' Right to Privacy against potential State overreach.
Upholding Rule of Law	Ensures constitutionalism through Judicial Review (Article 13, 32, 226, etc.), striking down arbitrary executive or legislative actions.	**Shreya Singhal Case (2015):** SC struck down Section 66A of the IT Act to protect free speech from arbitrary police arrests.
Federal Equilibrium	Impartially resolves disputes between the Centre and States through its Original Jurisdiction (Article 131).	**Kerala vs. Union of India (2020):** Kerala invoked Article 131 to challenge the constitutionality of the Citizenship Amendment Act (CAA).
Safeguarding Electoral Process	Cleanses the democratic process to ensure free, fair, and transparent elections.	**Association for Democratic Reforms v. Union of India (2024):** SC struck down the Electoral Bonds scheme as unconstitutional to protect the voter's right to information.

CONSTITUTIONAL GUARANTEES (THE MECHANISM)

Security of Tenure	Judges can only be removed via a stringent parliamentary impeachment process **(Article 124(4))**.	**Justice V. Ramaswami (1993):** The only SC judge to face impeachment; the motion failed, proving how strictly tenure is protected against political whims. Also, removal requires a special majority in both Houses of Parliament.
Mode of Appointment	The **Collegium System** ensures the executive does not have absolute control over appointments.	**Fourth Judges' Case (2015):** SC struck down the 99th Amendment (NJAC), citing that executive interference in appointments violates the Basic Structure.
Financial Independence	Salaries and pensions are charged on the **Consolidated Fund of India (Article 112 (3)).** - SC Article 125 (SC judges' salaries) Article 221 (HC judges' salaries)	Salaries and allowances cannot be varied to the disadvantage of judges after appointment, except during a Financial Emergency (**Article 360**).
Power to Punish for Contempt	SC and HCs are courts of record and can be punished for their contempt **(Articles 129 & 215)**.	**Prashant Bhushan Case (2020):** SC exercised this power to penalise statements deemed to lower the authority of the court.
Conduct Cannot be Discussed	Parliament is barred from discussing the conduct of judges in the discharge of their duties **(Article 121)**.	MPs cannot debate the merits of a judge's ruling on the floor of the House unless an impeachment motion is active.
Separation from Executive	Directive Principle mandating the State to separate the judiciary from the executive **(Article 50)**.	**CrPC Reforms (1973):** Stripped Executive Magistrates (like Collectors) of judicial trial powers, transferring them to Judicial Magistrates.
Administrative Independence	Articles 146 & 229	Service conditions cannot be altered to the disadvantage of judges after appointment (except during a financial emergency).

The current deadlock over judicial appointments is a symptom of a systemic institutional trust deficit. While the Collegium protects judicial independence, its opacity breeds a severe democratic deficit. The way forward lies in finalising a revised **Memorandum of Procedure (MoP)** that establishes an independent, permanent secretariat for the Collegium.

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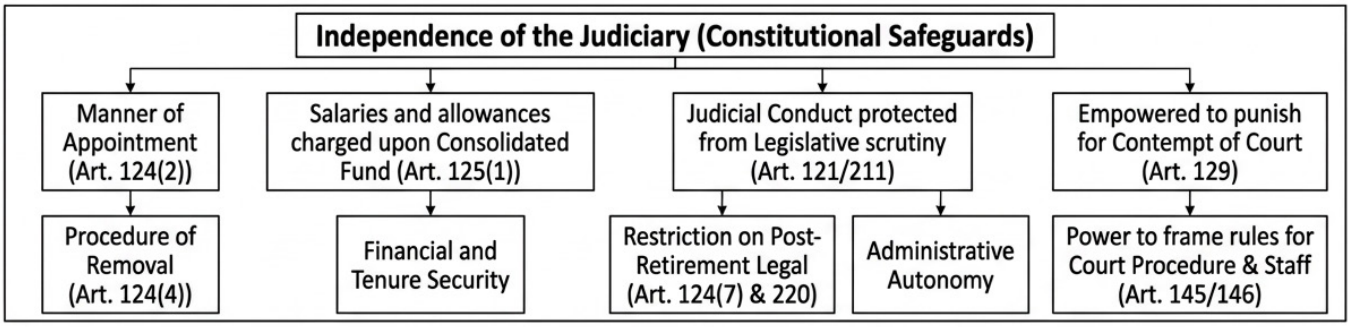

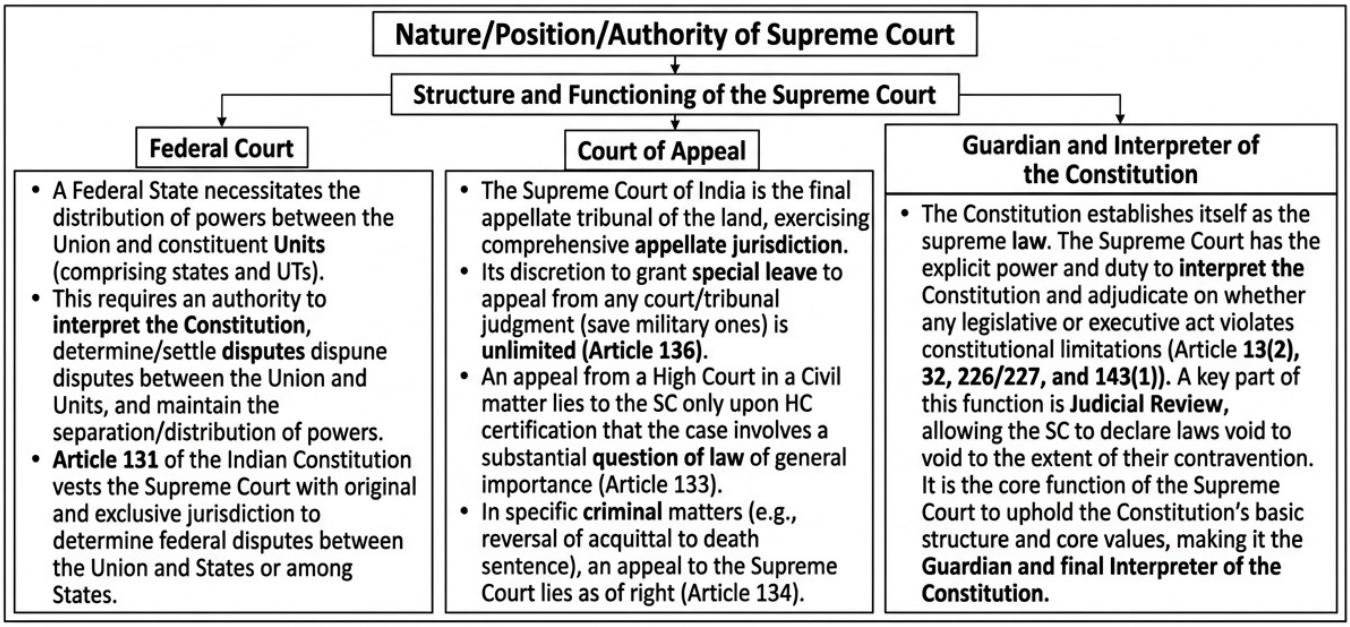

24.1.4 Judicial Review

Judicial Review is the foundational power of the Supreme Court to examine the constitutionality of legislative enactments and executive orders. If they violate the Constitution (especially Part III - Fundamental Rights), they are declared ultra vires (null and void).

The Constitutional Basis: While the phrase "**Judicial Review**" is nowhere explicitly mentioned in the Constitution, it is deeply embedded in several articles:

- **Article 13:** Declares that any law inconsistent with Fundamental Rights is void.
- **Articles 32 & 226:** The power to issue writs for the enforcement of rights.
- Articles **131**–136 (judicial powers)
- Article **141** (law declared by SC binding)
- Article **142** (complete justice)

Landmark instances of Judicial Review

Landmark Case	What the SC Reviewed	Impact
Minerva Mills (1980)	Struck down Section 55 of the 42nd Amendment, which gave Parliament unlimited power to amend the Constitution.	Established that **"Judicial Review" itself is a Basic Structure** of the Constitution. Parliament cannot amend it away.
Shreya Singhal Case (2015)	Struck down **Section 66A of the IT Act**, which allowed police to arrest people for "offensive" online posts.	A classic review of statutory law protecting the **Fundamental Right to Free Speech (Article 19)** against arbitrary executive policing.
4th Judges' Case (2015)	Struck down the 99th Constitutional Amendment Act (NJAC).	Proved that the SC will use judicial review even against a unanimous Parliamentary mandate if it threatens institutional independence.

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Contempt of Court

Definition: The Contempt of Courts Act, 1971, defines contempt and divides it into two categories:

- **Civil Contempt:** Willful disobedience to any judgement, decree, direction, or order of a court, or willful breach of an undertaking given to a court.
- **Criminal Contempt:** The publication of any matter or the doing of any act which scandalises the court, prejudices any judicial proceeding, or interferes with the administration of justice.

Constitutional Backing:

- **Article 129:** Declares the Supreme Court as a Court of Record with the power to punish for its contempt.
- **Article 215:** Vests similar powers in the High Courts.
- **Article 142(2):** Enables the Supreme Court to investigate and punish any person for its contempt to ensure complete justice.
- **Article 19(2):** Places "Contempt of Court" as a **reasonable restriction** on the Fundamental Right to Freedom of Speech and Expression under Article 19(1)(a).

The Need for Contempt Power

- **Upholding Court Honour:** The judiciary relies on public trust. In **Pritam Lal v. The High Court** of M.P., the SC held that punishing contempt is the duty of the Court to preserve the authority of courts and public confidence in the administration of justice.
- **Sustaining the Rule of Law:** Disobedience of court orders directly violates the Rule of Law. Thus, contempt power acts as the glue holding the basic structure of the Constitution together.
- **Ensuring Equality Before Law:** It acts as an equaliser, forcing powerful entities, the rich, and the executive to strictly comply with judicial orders.
- **Protecting Judicial Independence:** It shields judges and ongoing proceedings from undue public pressure, political interference, and media trials.
- **Preserving Justice Administration:** As noted in *Brahma Prakash Sharma v State of UP (1954)*, one does not need to prove *actual* interference; the mere tendency to interfere with justice is sufficient to invoke contempt.

Established Defenses Against Contempt

Over the years, the law and the judiciary have evolved specific safeguards to prevent the misuse of contempt powers:

1. **Fair and Accurate Reporting:** Responsible media reporting of judicial proceedings (Sahara India Real Estate v. SEBI, 2012).
2. **Fair Criticism:** Constructive and fair criticism of judicial orders or the judiciary's functioning (*PN Dua v. Shiv Shankar, 1988*).
3. **Truth as a Defense:** Following the 2006 Amendment to the Act, truth was introduced as a valid defense, provided it is made in the public interest and is bona fide (*Subramanian Swamy v. Arun Shourie, 2014*).
4. **Slight Harm (Section 13):** The Contempt of Courts Act states that no court shall impose a penalty unless the contempt is of such a nature that it substantially interferes with the due course of justice.

The Mulgaonkar Principles (1978)

In the landmark case **In Re: S. Mulgaokar (1978),** the Supreme Court laid down essential principles to guide the use of contempt powers, emphasising judicial restraint to balance authority with free speech:

- **Exercise of Restraint:** Contempt powers should be used sparingly and only when absolutely necessary to uphold the administration of justice.
- **Tolerance of Criticism:** Fair, reasonable, and even outspoken criticism of the judiciary should not invite contempt proceedings.
- **Avoidance of Hypersensitivity:** Judges must not be overly sensitive to criticism and should maintain composure and broad shoulders in the face of public scrutiny.
- **Real Threat Requirement:** Contempt action is only warranted when criticism crosses the line and poses a *real threat* to the judicial process or public confidence.

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Despite the safeguards (like those highlighted in the **Law Commission's 274th Report**), the power of contempt remains controversial.

Criticism	Way Forward
Vague Grounds ("Scandalising the Court"): Terms like "scandalising" are highly subjective, opening the door for arbitrary use by individual judges.	**Precise Definitions:** Parliament should amend the Act to define contempt more precisely, removing subjective terms like "scandalising" (which the UK abolished in 2013).
Chilling Effect on Free Speech: Fear of contempt stifles legitimate criticism of the judiciary, reducing democratic accountability.	**Protecting Accountability:** Establish a clearer legal distinction between constructive criticism of a judge/ judgement and actual obstruction of justice.
Violation of Natural Justice: Contempt proceedings often involve the judge acting as both the victim and the adjudicator (*Nemo judex in causa sua* - no one should be a judge in their own cause).	**Independent Review Panels:** Establish an independent judicial or peer panel to review contempt cases instead of the aggrieved judge hearing the matter.
Delay in Proceedings: Contempt cases often drag on beyond the one-year limitation period, defeating the purpose of swift justice.	**Strict Time Limits:** Ensure strict enforcement of the one-year limitation limit and timely, expedited disposal of contempt petitions.
Outdated Global Practice: In modern democracies (like the USA and UK), public discussion and harsh criticism of the judiciary are heavily protected by free speech laws.	**Adopt Global Best Practices:** India should evolve its jurisprudence to support judicial dignity without gagging speech, trusting that the judiciary's authority stems from its judgements, not the fear of punishment.

Criminal Justice system in India

Criminal Justice System is a formal mechanism involving Crime prevention, investigation, prosecution, punishment, and rehabilitation. It follows principles of deterrence, retribution, incapacitation, rehabilitation, and reparation.

Need for Reform

Low Conviction Rates	Case Pendency	Tech Evolution	Poor Extradition Rate	Manpower Shortage	Low Judge-Population Ratio
Murder – 43.8%, Rape – 27.4% (NCRB, 2022)	4.7 crore cases pending across courts	Need to modernize evidence collection and storage	Only 1 in 3 fugitives successfully extradited	192 police per lakh vs. UN norm of 222	Only 21 judges per million.

Steps Taken

New Laws:	Witness Protection Scheme (2018)	Fast Track Special Courts	Open Prisons:	Criminal Procedure (Identification) Act, 2022
Bharatiya Nyaya Sanhita, Bharatiya Nagarik Suraksha Sanhita, Bharatiya Sakshya Adhiniyam.			Rajasthan model noted in NCRB 2015 Report	

Way Forward

Police Reforms (Prakash Singh Case, 2006)

- State Security Commission to check political interference.
- Merit-based DGP Appointment (2-year minimum tenure).
- Police Establishment Board to handles transfers, promotions.
- National Security Commission for Central Police leadership.

Strengthening Prosecution

Operational and financial independence for Department of Prosecution (DoP).

Malimath Committee Recommendations

- Article 20(3): Modify "right to silence" of accused.
- Rights of Accused: Code to be published in regional languages.
- Evidence Law: Allow dying declarations, Audio/Video recorded confessions.
- Public Prosecution: Recruit Assistant Public Prosecutors via competitive exams.

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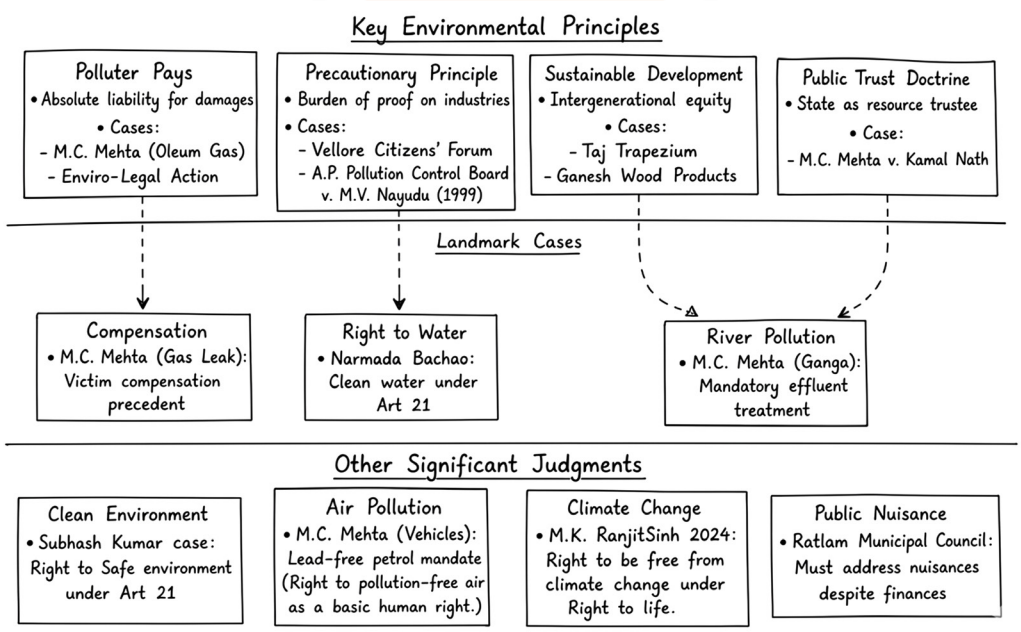
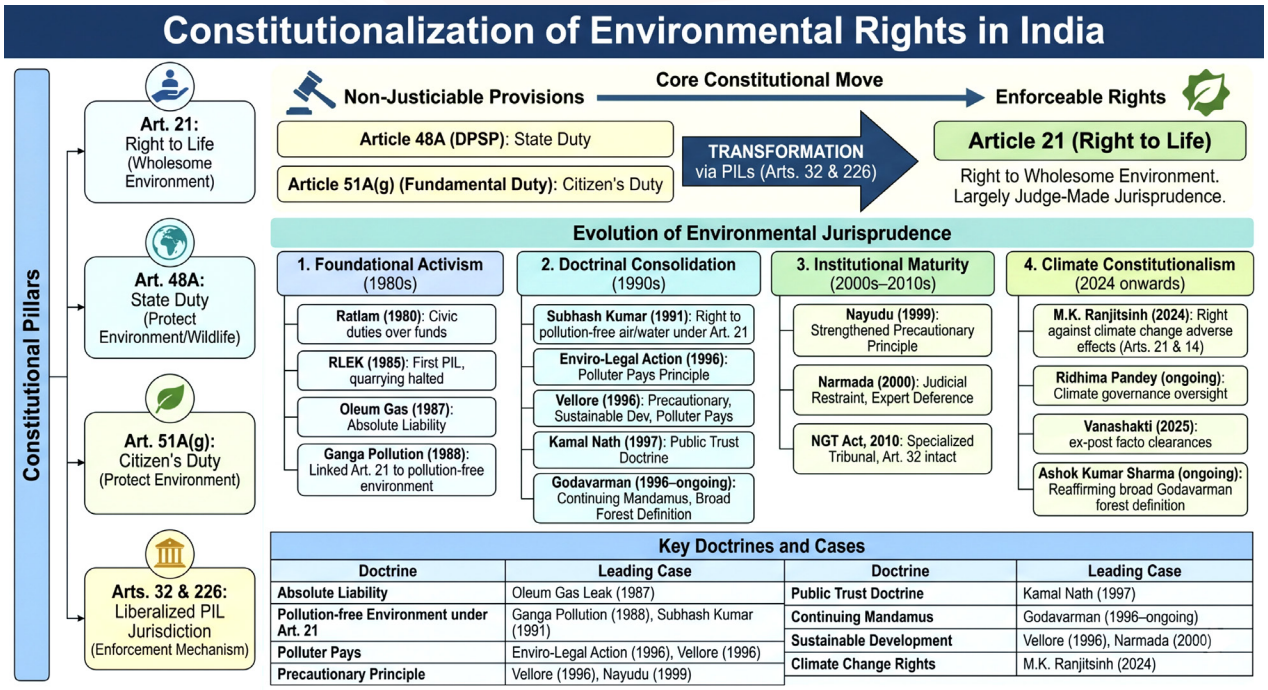
24.1.5 Public Interest Litigation

In the late 1970s and 1980s, visionary judges like **Justice V.R. Krishna Iyer** and **Justice P.N. Bhagwati** shattered this rule, allowing any public-spirited individual or NGO to file a case on behalf of those who are socially or economically disadvantaged.

The Evolution and impact of PIL

Dimension	How PIL transformed the Judiciary	Key Cases
Epistolary Jurisdiction	The SC began treating ordinary letters, telegrams, and newspaper reports as formal writ petitions.	***Sunil Batra Case (1978):*** A letter from a prisoner about the torture of a fellow inmate was treated as a PIL, revolutionising prison reforms.
Undertrials & Speedy Justice	PIL exposed the horrifying reality of poor undertrials languishing in jails for periods longer than their maximum possible sentence.	***Hussainara Khatoon (1979):*** The first major PIL. Led to the release of 40,000 undertrials and established the **Right to Speedy Trial** under Article 21.
Environmental Protection	PIL allowed activists to challenge industrial pollution and deforestation on behalf of the public and future generations.	***M.C. Mehta Cases:*** Resulted in the introduction of lead-free petrol, the protection of the Taj Mahal, and the cleaning of the Ganga.





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Evaluating the Relevancy of PILs Today

During the recent 9-judge Constitution Bench hearings on the Sabarimala issue, the Centre took an unprecedented stance: **urging the Supreme Court to entirely remove the concept of PIL.** The debate centred on whether "strangers" (non-devotees) should have the *locus standi* to challenge religious practices.

The Centre's Argument (Why PIL should be abolished)	The Supreme Court's Response (Why it must be retained, but cautiously)
The Access Deficit is Resolved: The original justification for PILs was poverty and illiteracy preventing access to courts. The Centre argues this has been structurally addressed through tech (e-filing) and robust statutory bodies like **NALSA and DLSAs** (Legal Services Authorities).	**The Filtering Mechanism:** Chief Justice Surya Kant clarified that the Court has evolved over the last two decades. It no longer accepts PILs blindly. It applies strict parameters to test the **"real cause"** and issues notices only when there is undeniable Constitutional substance.
Surrogate & Agenda-Driven Litigation: PILs have degraded into "Publicity/Private Interest Litigation." They are increasingly filed at the behest of undisclosed interests, displacing the truly aggrieved parties from the centre of Constitutional adjudication.	**Grave Constitutional Issues:** While acknowledging misuse, the Court maintains that certain issues transcend individual grievances. **For instance, the 2018 Sabarimala** verdict allowed judicial intervention in matters involving fundamental rights (like women's rights across religions), regardless of strict *locus standi*.
Docket Explosion: The Centre highlighted a catastrophic expansion (from 25,000 filings in 1985 to over 70,000 recently).	**Judicial Prudence over Blanket Removal:** The Court agreed that it must be highly cautious about petitioners with hidden agendas.
It argued that the "exception has swallowed the rule" and operates in a factual vacuum, urging a return to ordinary principles of *locus standi*.	However, instead of removing the constitutional device altogether, the solution lies in judicial self-restraint and dismissing frivolous cases at the threshold.

- **Rising PIL Backlog:** Parliament informed that 3,525 PILs are pending before the Supreme Court, with 698 pending for over 10 years.
  - The Government admitted that there is no data on average disposal time of PILs, highlighting institutional gaps in monitoring PIL outcomes.
  - M.C. Mehta Case: One of the oldest environmental PILs, filed in 1985, was finally closed in 2026 after nearly 39 years, exposing the problem of perpetual litigation.
  - Long-term judicial supervision may blur the separation of powers, consume judicial resources, and contribute to mounting case pendency.
  - The challenge is balancing effective enforcement of Fundamental Rights through continuing mandamus while avoiding judicial overreach and endless litigation.

The advent of Public Interest Litigation fundamentally democratised access to justice in India, breathing life into Article 21. However, as the recent Union Government submissions highlight, the proliferation of 'agenda-driven' surrogate litigation threatens to clog the Constitutional courts and displace genuine grievances. While dismantling the PIL framework entirely would be a regressive step against marginalised communities, the Supreme Court's current stance of exercising extreme 'judicial prudence' is the correct path.

24.1.6 Judicial Activism vs. Judicial Overreach

Judicial Activism: 'Judicial activism' refers to an expansive interpretation of Constitutional provisions to *protect Rights and address governance gaps* where other organs have failed to act.

Judicial Overreach (Adventurism): When the judiciary crosses the Constitutional boundary of the **Separation of Powers** and starts performing the functions of the Executive (day-to-day administration) or the Legislature (policy-making).

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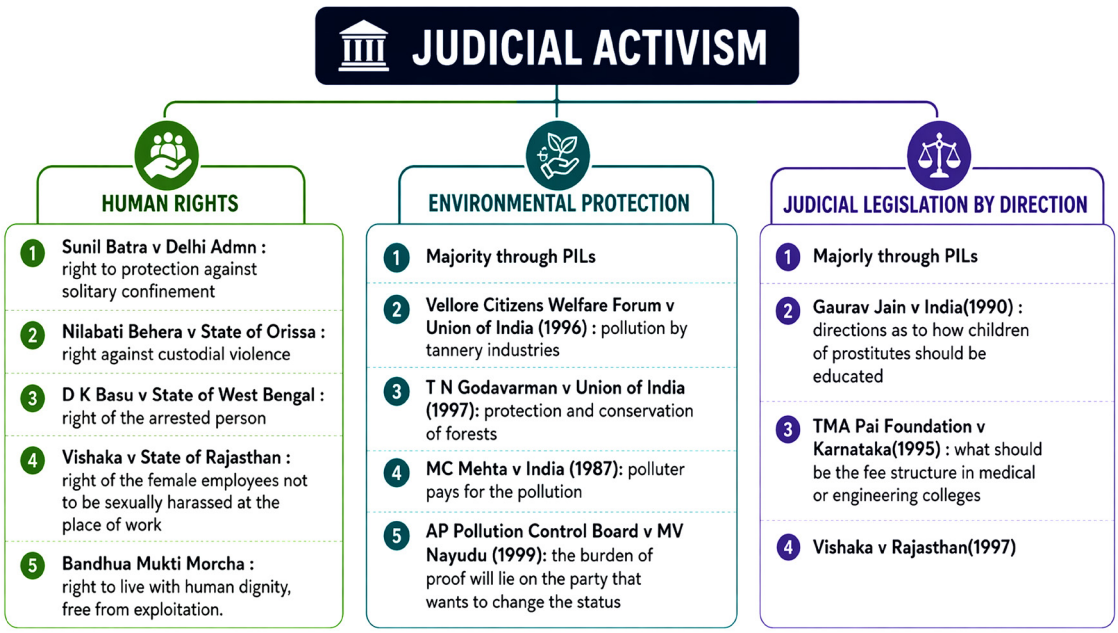

Activism vs. Overreach

Classification	Rationale for Classification	Landmark Case Law / Example
Judicial Activism (Positive)	**Addressing a Legislative Vacuum:** There was no law protecting women from workplace harassment. The SC didn't just judge a case; it created binding laws until Parliament acted.	***Vishaka vs State of Rajasthan (1997):*** The SC laid down the "Vishaka Guidelines", effectively creating temporary legislation to protect women's dignity (Article 21).
Judicial Activism (Positive)	**Electoral Transparency:** Parliament was unwilling to force politicians to declare their criminal records. The SC stepped in to protect the voter's "Right to Know" (Article 19).	***ADR vs. Union of India (2002):*** Mandated candidates to disclose criminal, educational, and financial antecedents.
Judicial Overreach (Negative)	**Encroaching on Executive Policy:** Imposing blanket bans based on morality rather than constitutional law, destroying state revenues and local businesses without legislative backing.	**The Highway Liquor Ban (2016):** The SC invoked Article 142 to ban liquor sales within 500 metres of all national highways, crippling the hospitality sector.
Judicial Overreach (Negative)	**Encroaching on the Legislature:** Critics argued that the Court entered the domain of symbolic policy-making and cultural regulation by making administrative rules for private entertainment venues.	***Shyam Narayan Chouksey (2016):*** The SC made it mandatory to play the National Anthem in cinema halls (later walked back after massive criticism of overreach).

Why is Overreach Dangerous?

1. **Lack of Expertise:** Judges are legal experts, not economists, environmental scientists, or urban planners. Policy decisions made from the bench often have disastrous, unforeseen economic consequences (e.g., cancelling 122 telecom licenses in the 2G case caused massive foreign investment flight).
2. **No Accountability:** If the Executive makes a bad policy, they can be voted out. If the SC makes a bad policy, they are completely unaccountable to the electorate, though they remain accountable through Constitutional reasoning, review jurisdiction and public scrutiny.

Does Judicial Activism Undermine Parliamentary Democracy?

Dimension	Arguments: YES (It Undermines / Threatens Democracy)	Arguments: NO (It Strengthens / Upholds Democracy)
Representation vs Accountability	**Unelected Nature:** Judges are neither elected by the people nor directly answerable to them. Courts are not representative bodies reflecting the popular will.	**Reason-Based Accountability:** Judges are accountable through the reasoning in their judgements. Flawed decisions are openly criticised, set aside, or reviewed.

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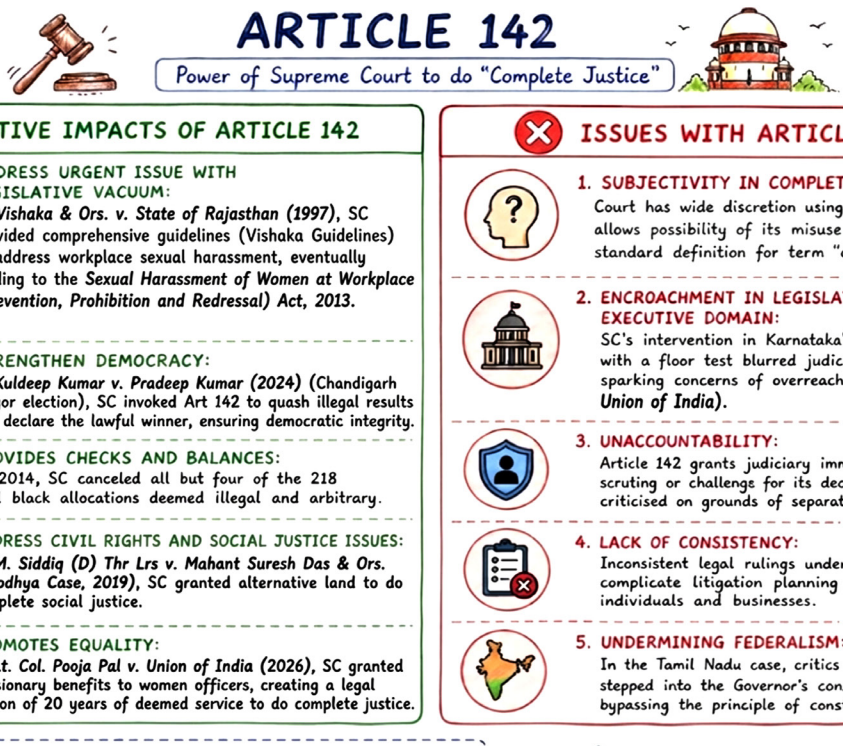
Separation of Powers vs Checks and Balance	**Constitutional Trespass:** It violates the Doctrine of Separation of Powers (Article 50). Law-making and policy formulation are the core responsibilities of the legislature and executive.	**Checks and Balances:** It is an inevitable response to check the arbitrary or unconstitutional exercise of public power by the State.
Governance Aspect	**Lack of Technical Expertise:** Courts lack the resources, data, and technical competence to draft complex economic, environmental, or administrative policies.	**Filling the Governance Vacuum:** When the executive/legislature are apathetic, lax, or incompetent, the judiciary must step in to protect the basic rights of citizens.
Impact on Institutions	**Diminishes Institutional Respect:** Frequent interventions can demoralize the bureaucracy and reduce the legislature to a secondary role.	**Protects the Marginalized:** Mechanisms like PILs (Public Interest Litigation) give a voice to the voiceless, ensuring constitutional promises reach the grassroots.

Has the Judiciary Taken Over the Role of the Executive and Legislature?

Aspect	Constructive Activism (Filling Gaps & Upholding Rights)	Judicial Overreach (Usurping Executive/Legislative Roles)
Law Making (Legislature)	**Bridging Statutory Gaps:** Issuing guidelines where no law exists until Parliament legislates. • Vishaka Guidelines (sexual harassment at the workplace).	**Judicial Legislation:** Passing orders that act as outright laws or striking down Constitutional amendments without valid basic structure threats. • Firecracker Ban in Delhi NCR.
Policy & Administration (Executive)	**Enforcing Fundamental Rights (Art 21):**Expanding the scope of Right to Life to include livelihood and environment. • Olga Tellis Case (Right to Livelihood). • Bandhua Mukti Morcha (Abolition of bonded labour). • Ordering mid-day meals for school children.	**Micro-managing Administration:** Entering fields traditionally reserved for the executive (policy decisions). • **Liquor Ban:** Banning liquor sales within 500m of highways (State of TN v. K. Balu). • **Cricket Administration:** Setting up the Lodha Committee to reform the BCCI (a private body).
Directives & Censorship	Protecting Citizens & Environment: • **Shriram Fertilizer Case:** Closure of plant and victim compensation fund. • Setting up SIT to investigate black money when the state was reluctant.	**Imposing Morality/Censorship:** • National Anthem Case: Imposing patriotism by making it mandatory in theatres (Shyam Narayan Chouksey). • Proactive censorship in films (e.g., Jolly LLB 2).



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The Way Forward

Principle	Explanation & Application
Primacy of Legislature	Just as the **"independence of the judiciary"** is a part of the Basic Structure, Parliamentary democracy and separation of powers are also components of the basic structure. Interference is not always justified.
Judicial Restraint	Judges should not indulge in **"judicial romanticism"** or **pass ad hoc decisions** without sound backing. The Supreme Court itself noted in Aravali Golf Club v. State of Haryana that judges must know their limits and not try to run the government.
Exceptional Use	Activism should be the exception, not the rule. It must be limited to: 1. Furthering the mandates of the Constitution. 2. When a legal norm is urgently required by society and the legislature is unable/unwilling to act. 3. When there is a clear gap in statutory law.
Final Conclusion	Judicial Activism is like a life-saving drug, not daily bread. While judicial review is essential to protect democracy from majoritarian tyranny, continuous overreach risks undermining the very parliamentary democracy the Constitution seeks to protect.

While Judicial Activism serves as a vital constitutional safety valve during times of legislative inertia, it must not devolve into Judicial Adventurism. The Constitution is anchored in the delicate Separation of Powers; courts are equipped to test the legality of a policy, but they lack the socio-economic expertise and democratic mandate to formulate it.

24.2 High Courts

While the SC is the highest *appellate* court, High Courts are **Coordinate Constitutional Courts**.

- The SC has no administrative control over the High Courts.
- A High Court judge is not a subordinate of a Supreme Court judge.

24.2.1 Structural Framework

Element	Constitutional aspect	Difference from SC
Number of Judges (Strength) (Article 216)	Every HC consists of a Chief Justice and such other judges as the President may from time to time deem necessary to appoint.	Parliament determines the strength of the Supreme Court, but the **President (Executive)** determines the strength of the High Courts based on workload. There is no fixed constitutional maximum for HCs.
Qualifications of HC Judge (Article 217)	1. Citizen of India. 2. Held a judicial office for 10 years OR been an advocate of a High Court for 10 years.	The Constitution allows a "distinguished jurist" to be appointed to the Supreme Court. However, there is no provision to appoint a distinguished jurist to a High Court.
The Appointment Process (Article 217)	Appointed by the President. The Consultation Mechanism: The President consults the CJI, the Governor of the State, and the Chief Justice of that HC.	The HC Collegium Nuance: To appoint an HC judge, the SC Collegium (CJI + 2 senior-most judges, not 4) considers the recommendation sent by the HC Collegium (HC CJ + 2 senior-most HC judges) and the State Government.
Oath of Office (Article 219)	Administered by the Governor of the State (or their appointee).	An HC judge is appointed by the President and removed by the President but takes their oath before the Governor.

24.2.2 Independence and Accountability Mechanism

Element	The High Court Rule & Associated Acts	Significance & Issues
Tenure & Resignation	Retires at the age of 62 years (unlike SC judges who retire at 65). Can resign by writing to the President.	Law Commissions have repeatedly recommended raising the HC retirement age to 65 to retain talent, reduce pendency, and bring parity with the SC, but constitutional amendments for this have stalled.

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Removal / Impeachment (Article 217 read with Article 124(4))	An HC judge can be removed from office by the President in the exact same manner as a Supreme Court judge. **Grounds:** Proved misbehaviour or incapacity. **Law:** The Judges (Enquiry) Act, 1968, governs the process (requires a special majority in both Houses of Parliament).	The process is deliberately made extremely rigid. No HC judge has ever been successfully impeached in Indian history.
Post-Retirement Restrictions (Article 220)	A permanent judge of a High Court cannot plead or act in any court or before any authority in India... except the Supreme Court and other High Courts.	**Ensuring Neutrality**: Prevents a retired judge from practicing in the very court where they once sat, preventing them from using their past influence over junior judges or lawyers.
Acting & Additional Judges (Articles 223 & 224)	The President can appoint duly qualified persons as Additional Judges for a temporary period (not exceeding 2 years) to clear arrears of work.	This is a crucial administrative tool used to tackle the vacancies in heavily burdened courts like Allahabad and Bombay without permanently expanding the sanctioned strength.

24.2.3 Writ Jurisdiction of the High Court

Dimension	Supreme Court (Article 32)	High Court (Article 226)	Significance
Scope of Writs	Can issue writs ONLY for the enforcement of Fundamental Rights (Part III).	Can issue writs for Fundamental Rights AND "for any other purpose" (ordinary legal rights).	**The Wider Umbrella:** The HC's writ jurisdiction is vastly wider than the SC's. It acts as the primary constitutional shield for citizens against all forms of administrative overreach, not just fundamental rights violations.
Territorial Reach	Pan-India jurisdiction.	Restricted to its territorial borders (or where the cause of action arises).	**Federal Accessibility:** HCs ensure that constitutional remedies are geographically accessible, preventing Delhi from becoming the sole arbiter of justice.
Discretionary Nature	Article 32 is a Fundamental Right itself. The SC generally cannot refuse to hear a valid petition.	Article 226 is a **discretionary power**. The HC can refuse to hear a petition if an alternative remedy exists.	**The Doctrine of Exhaustion:** The SC increasingly uses this to force litigants to approach HCs first, preventing the apex court from becoming a glorified trial court.

24.2.4 Constitutional Powers

Constitutional Provision	Core Power	Significance	Landmark Case / Example
Article 226 (Writ Jurisdiction)	Power to issue writs for Fundamental Rights AND "any other purpose" (ordinary legal rights).	**The Wider Umbrella:** Makes the HC the primary constitutional shield against administrative overreach. It is geographically accessible, preventing the SC from becoming the sole arbiter of justice.	General Doctrine of Exhaustion: SC forces litigants to approach HCs first.
Article 227 (Supervisory Jurisdiction)	Power of superintendence over all courts and tribunals throughout the state's territory.	**Checking Tribunalisation:** Prevents the Executive from bypassing the HC via specialised tribunals. Appeals from tribunals *must* go through the HC before reaching the SC.	***L. Chandra Kumar Case (1997):*** SC ruled that HC judicial review under 226/227 is a Basic Structure.
Article 228	Withdrawal of cases involving substantial constitutional interpretation from subordinate courts.	Ensures constitutional questions are decided by High Courts.	***Ranadeb Choudhuri vs. Land Acquisition Judge (1971):*** Calcutta HC established that if a subordinate court is dealing with a matter of a Constitutional issue, the High Court can withdraw the case.

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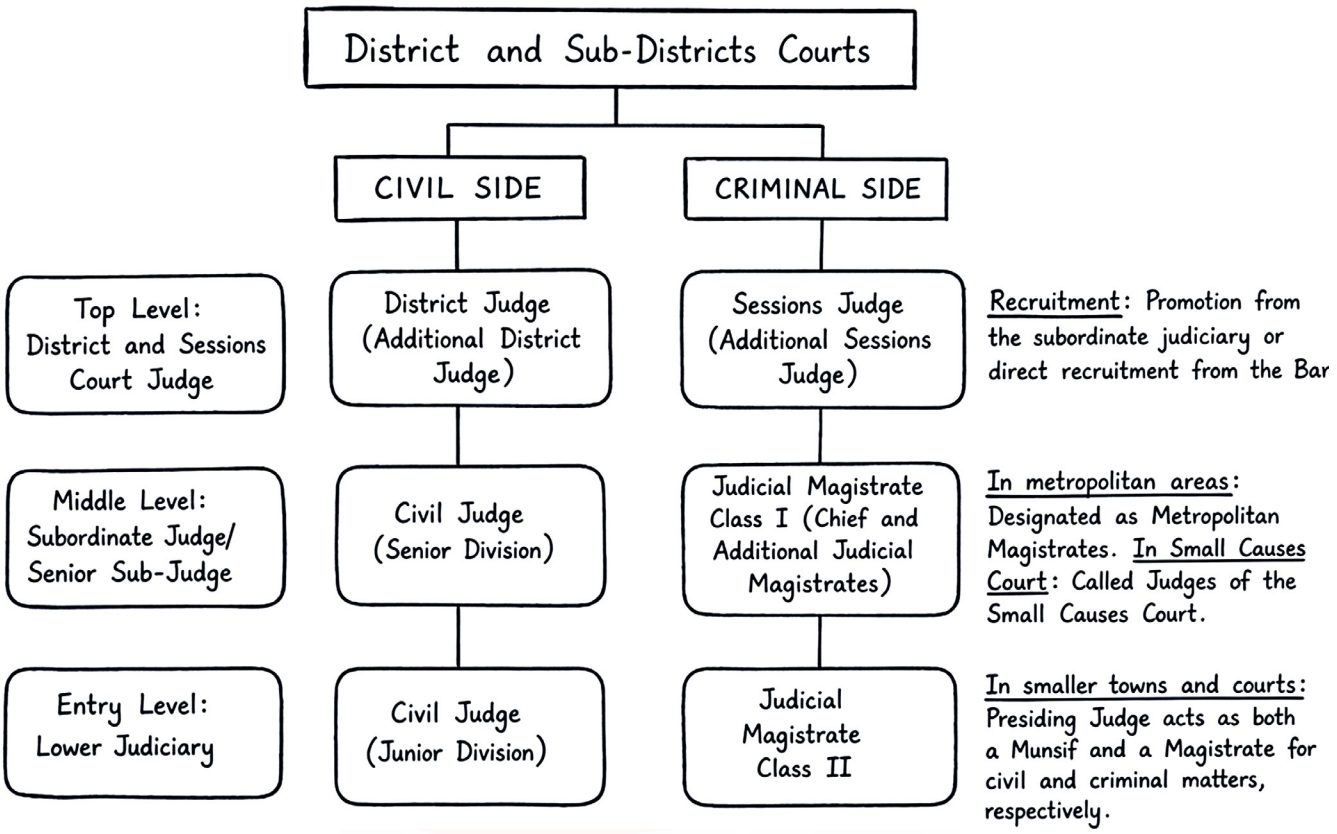
Article 235 (Control over Subordinate Courts)	Vests "control" (posting, promotion, and leave) of district judges exclusively in the High Court.	**Insulating the Lower Judiciary:** Prevents the State Executive (Chief Minister/Governor) from blackmailing, punishing, or transferring district judges who rule against the government.	Constitutional safeguard for Judicial Separation of Powers at the grassroots
RPA, 1951 (Original Jurisdiction)	The HC is the frontline court to hear election petitions challenging the election of an MP or MLA.	**Guarantor of Electoral Purity:** Vests monumental democratic power in the HC to act as the ultimate umpire of India's legislative elections.	**Allahabad HC (1975):** Famously convicted then-PM Indira Gandhi of electoral malpractices.



24.3 Challenges Faced by Judiciary

The Systemic Crisis	The Core Issue	The Proposed Institutional Fix / SC Ruling
The Pendency Crisis	With over 5 crore pending cases (87% in subordinate courts), the system suffers from an **"Adjournment Culture."** This violates the Fundamental Right to Speedy Trial (Article 21) and deters foreign investment due to contract enforcement delays.	Shift from litigation to Alternative Dispute Resolution (ADR), institutionalise Online Dispute Resolution (ODR) for petty cases, and strictly enforce time limits under the Civil Procedure Code (CPC) for adjournments.
Subordinate Vacancies & AIJS	**The Friction:** High Courts and State Public Service Commissions fail to conduct timely exams, leading to massive judicial vacancies at the district level. **The Federal Roadblock:** States oppose the All India Judicial Service (AIJS), arguing that it may dilute states' role in judicial recruitment and reduce sensitivity to local linguistic and social conditions.	Implement a modified AIJS that includes strict linguistic proficiency tests for state-specific cadres, ensuring national talent is recruited without compromising local linguistic comprehension.

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The Tribunalisation of Justice (Articles 323A /323B)	**The Friction:** Tribunals were created for speed and domain expertise, but they have resulted in the **"Bureaucratisation of Justice."** Because the Executive controls their appointments and funding, they lack independence. Furthermore, they initially tried to bypass High Courts.	**L. Chandra Kumar Case (1997):** SC ruled tribunals cannot bypass High Courts' writ jurisdiction (Article 226). **Madras Bar Association v. Union o f India (2025): The Supreme** Court struck down the **Tribunals Reform Act, 2021,** holding it unconstitutional and violative of the Constitution's basic structure. **Structural Fix:** Strengthen tribunal independence through autonomous appointment, administration and financial mechanisms.
Appointment of Judges	The **Collegium System** faces repeated criticism for its lack of transparency, opacity in candidate selection, and delays in processing appointments.	Transition to a more transparent, consensus-based, and time-bound mechanism for judicial appointments to address the high vacancy rates
Infrastructure	Many subordinate courts lack basic technology, proper courtrooms, and secure linkages with jails, hindering efficient day-to-day operations.	Launch a centralised National Judicial Infrastructure Authority to fast-track and standardise court funding.
Excessive Government Litigation	The state is the largest single litigant, filling courts with inter-departmental disputes.	Enforce a strict National Litigation Policy to resolve government disputes internally without filing lawsuits.
Deep Gender and Social Imbalance	The higher judiciary suffers from severe lack of diversity; women represent fewer than 15% of High Court judges, with some states having zero or only one female judge.	Create institutional reservation or formal, transparent targets for under-represented communities and women during the recruitment of subordinate and higher judiciary members.
Language and Accessibility Barriers	Court proceedings and judgements in the High Courts and Supreme Court are conducted primarily in English, alienating the majority of rural litigants who cannot comprehend the process	Mandate the use of translation tools like the Bhashini AI platform to provide judgements in all regional scheduled languages simultaneously with English.
Transfer of Judges (Article 222)	President (via the SC Collegium) can transfer a judge from one HC to another. → Sudden, opaque transfers of independent-minded judges are viewed as punitive victimisation, reducing co-ordinate judges to transferable civil servants.	***K. Ashok Reddy Case (1994): The*** SC ruled transfers must only be for "public interest" (not punishment) and are subject to limited Judicial Review.
Interference in status of High Courts	HCs are not structurally or administratively subordinate to the Supreme Court. The SC sometimes acts as a routine appellate court, micromanaging state issues and diluting the Constitutional autonomy of the High Courts.	***Tirupati Balaji Developers (2004): The*** SC explicitly affirmed that HCs are "Coordinate Constitutional Courts" whose autonomy must be protected.

24.4 How Judicial accountability could be ensured?

Dimension	Aspect	Key Details, Case Laws, and Impact
Constitutional and Legal Mechanisms	**Impeachment (Articles 124(4) & 217(1)(b))**	Removal strictly for "proved misbehaviour or incapacity".
	Judges (Inquiry) Act, 1968	Rigid process: Motion by 100 LS / 50 RS members → 3-member probe committee → requires 2/3rd special majority in Parliament.
Institutional Mechanisms	**In-House Procedure**	SC's internal inquiry mechanism. Case Law: K. Veeraswami v. UoI (1991) – The court ruled that no First Information Report (FIR) can be registered against a sitting judge without the prior sanction of the Chief Justice of India (CJI)
	Ethical Framework	Restatements of Judicial Values (1999): Adopted by the judiciary as a moral code of conduct.

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Critical Issues (Flaws)	**High Threshold & Politics**	The rigid statutory requirement makes removal almost impossible. **Example**: *Justice V. Ramaswami (1993) impeachment* failed due to political abstentions.
	The "Resignation Loophole"	**Judges resign to abruptly halt investigations** and escape formal public findings. **Examples**: Justice Soumitra Sen and Justice P.D. Dinakaran.
	Lack of Intermediate Sanctions	The current law is "all-or-nothing". There is no provision for lesser penalties like censure, private reprimand, or temporary suspension.
	Opaque Internal Probes	The SC's in-house mechanism lacks statutory backing, operates entirely in secret, and its decisions are not publicly disclosed.
Reforms	**Independent Oversight Body**	Establish a **body with non-judicial members to oversee conduct** (UK Model). Action: Revive the lapsed Judicial Standards & Accountability Bill, 2010.
	Introduce Lesser Penalties	**Amend the Judges (Inquiry) Act** to allow intermediate sanctions (reprimands/suspensions), similar to the US Federal Judicial Councils.
	Close Escape Routes	Amend laws to ensure investigations continue to their logical conclusion even if a judge resigns, and publish the final findings.
	Enforce Transparency	Mandate the public disclosure of assets/liabilities, **clearly define "misbehaviour"** to include corruption, and set strict statutory timelines for probes.

24.5 Way Forward

To rescue the Indian Judiciary from institutional gridlock, reforms must move beyond piecemeal vacancy-filling and focus on structural, procedural, and technological re-engineering:

- **Enacting a National Litigation Policy:** The State (Union and State governments) is the largest single litigant in India, responsible for nearly 46-50% of all pending cases.
  - A strict policy must be enforced to stop government departments from filing frivolous appeals and routinely dragging employees to court over minor service disputes.
- **Establishing a National Tribunals Commission (NTC):** To cure the "bureaucratisation" of tribunals, an independent NTC must be created. This body would oversee appointments, infrastructure, and financial autonomy for all tribunals, completely removing the Executive's leverage over them.
- **Technological Integration (e-Courts Phase III):** Move beyond mere digitisation of records. The system requires AI-assisted case management, smart scheduling and digital translation tools and the scaling of SUVAS (**Supreme Court Vidhik Anuvaad Software**) to instantly translate judgements into vernacular languages.
- **Mainstreaming Pre-Institution Mediation:** Taking a cue from the Commercial Courts Act, expand pre-institution mediation, particularly in commercial, family and property disputes before they are allowed to enter the formal court system, filtering out millions of reconcilable cases.
- **Infrastructure & Financial Autonomy**: The subordinate judiciary operates in severe infrastructural deficit. The Union must increase funding under Centrally Sponsored Schemes to build better courtrooms and digital infrastructure, decoupling the lower judiciary's efficiency from the fiscal constraints of individual state governments.

Ultimately, the Indian Judiciary must balance its proactive role as the sentinel of Constitutional rights with strict adherence to the separation of powers. Moving forward, addressing structural bottlenecks like pendency, opaque appointments, and executive encroachment is imperative to ensure justice remains accessible, timely, and truly independent.

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25 Pressure Groups

Pressure groups are organized associations formed to protect and promote specific socio-economic, political, or ideological interests. Unlike political parties, they do not seek to directly capture political power or contest elections; instead, they operate "behind the scenes" to influence government policy, legislation, and public opinion in their favour.

UPSC Mains PYQs

1. Pressure groups play a vital role in influencing public policy making in India." Explain how the business associations contribute to public policies. **(2021)**
2. How do pressure groups influence the Indian political process? Do you agree with this view that informal pressure groups have emerged as more powerful than formal pressure groups in recent years? **(2017)**

Formal vs Informal Pressure Groups

Aspect	Formal Pressure Groups	Informal Pressure Groups
Nature	Organised, structured and registered organisations.	Loosely organised networks based on identity or issues.
Examples	CII, FICCI, trade unions, and professional associations.	Caste groups, religious groups, social movements, online campaigns.
Organisation	Permanent structure and membership.	Flexible and issue-based mobilisation.
Method	Institutional lobbying and consultations.	Mass mobilisation and public pressure.
Reach	Sector-specific.	Wider social and electoral influence.

Methods Used by Pressure Groups to Influence the Political Process

Method	How It Influences Politics	Examples
Lobbying	Direct interaction with ministers, MPs and bureaucrats.	Industry bodies influencing economic policies.
Public Campaigns	Shape public opinion through media and social mobilisation.	Environmental and anti-corruption movements.
Petitions & Memoranda	Submit demands and policy recommendations.	Trade unions and farmer groups.
Protests & Demonstrations	Mobilise public pressure on governments.	Farmers' protests, labour strikes.
Litigation & PILs	Seek judicial intervention in policy matters.	Environmental groups using PILs.
Election Influence	Indirect support through funding, endorsements and mobilisation.	Business and caste-based groups.
Social Media Mobilisation	Rapid opinion building and issue-based campaigns.	Digital advocacy movements.
Participation in Committees	Inputs to commissions and advisory bodies.	Industry and professional associations.

Why Informal Pressure Groups Have Become More Influential

Reason	Illustration
Identity Politics	Caste and community organisations influence electoral outcomes.
Mass Mobilisation Capacity	Farmers' movements and reservation agitations shape government decisions.
Social Media Influence	Digital campaigns quickly mobilise public opinion.

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Electoral Relevance	Political parties increasingly respond to community-based demands.
Issue-Based Movements	Anti-corruption, environmental and citizenship-related movements.

Why Formal Pressure Groups Remain Powerful

Formal Pressure Groups Continue to Matter Because	Examples
Provide technical expertise unavailable to informal groups.	CII, FICCI, ASSOCHAM.
Influence economic and regulatory policies.	GST, industrial and trade policies.
Have direct institutional access to policymakers.	Parliamentary committees and ministries.
Shape investment and fiscal decisions.	Budget consultations and economic reforms.

Pressure Groups Influencing Public Policy Making

Dimension	Contribution to Public Policy	Examples
Policy Consultation	Provide expert inputs to ministries, parliamentary committees and regulatory bodies. Submit pre-budget memoranda to the Finance Ministry.	Confederation of Indian Industry and Federation of Indian Chambers of Commerce and Industry consultations on industrial and trade policy.
Economic Reforms Advocacy	Recommend reforms in taxation, labour laws, ease of doing business and investment climate.	Inputs during GST and labour code reforms.
Sector-Specific Expertise	Provide technical knowledge for emerging sectors.	IT, telecom, renewable energy and startup policies.
Public-Private Partnership	Facilitate collaboration between government and industry.	Infrastructure and logistics projects.
Global Competitiveness	Advise on trade agreements and export promotion measures.	Inputs on FTAs and export policies.
Employment Generation	Advocate policies supporting MSMEs and job creation.	MSME support packages and skill development initiatives.
Research & Evidence-Based Inputs	Publish reports and policy papers influencing decision-making.	CII, FICCI and Associated Chambers of Commerce and Industry of India reports.

Challenges Associated with Pressure Groups & Way Forward

Challenge	Description	Way Forward
Lack of Transparency	Informal lobbying and opaque funding reduce public trust and accountability.	Introduce a transparent lobbying framework and mandatory disclosure norms.
Unequal Influence	Resource-rich business and elite groups enjoy disproportionate access to policymakers.	Ensure inclusive stakeholder consultations and strengthen representation of weaker sections.
Policy Capture	Narrow sectional interests may influence policies at the expense of public welfare.	Strengthen parliamentary scrutiny and evidence-based policymaking.
Identity-Based Mobilisation	Caste, religious and regional groups may promote sectionalism and social divisions.	Encourage issue-based advocacy guided by constitutional values.
Coercive Pressure Tactics	Strikes, bandhs and disruptive protests can affect governance and economic activity.	Promote institutional dialogue, mediation and peaceful democratic engagement.
Lack of Accountability	Pressure groups influence policy without direct electoral responsibility.	Develop registration mechanisms and codes of ethical conduct.
Misinformation & Digital Pressure	Social media campaigns may spread misinformation and polarisation.	Strengthen fact-checking mechanisms and digital literacy initiatives.

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Salient Features Of The Representation Of People's Act

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26 Representation of People Acts

While Article 324 of the Constitution vests the Election Commission with the sweeping power of 'superintendence, direction, and control,' it provides only the skeletal framework of India's democracy. It is the Representation of the People Acts (1950 and 1951) that provide the operational muscle, translating the constitutional promise of Universal Adult Suffrage into a tangible, legally enforceable democratic reality.

UPSC Mains PYQs

1. Discuss the 'corrupt practices' for the purpose of the Representation of the People Act, 1951. Analyze whether the increase in the assets of the legislators and/or their associates, disproportionate to their known sources of income, would constitute 'undue influence' and consequently a corrupt practice. **(2025)**
2. Discuss the procedures to decide the disputes arising out of the election of a Member of the Parliament or State Legislature under The Representation of the People Act, 1951. What are the grounds on which the election of any returned candidate may be declared void? What remedy is available to the aggrieved party against the decision? Refer to the case laws. **(2022)**
3. "There is a need for simplification of procedure for disqualification of persons found guilty of corrupt practices under the Representation of Peoples Act". Comment. (2020)
4. On what grounds a people's representative can be disqualified under the Representation of People Act, 1951? Also mention the remedies available to such person against his disqualification. **(2019)**

26.1 RPA 1950 vs. RPA 1951

Statutory Provision	Description	Analysis & Supreme Court Judgments
RPA, 1950 (The Preparation Phase)	**Deals with the foundational setup:** Allocation of seats, delimitation of constituencies, qualifications of voters, and preparation of electoral rolls.	**Demographic Justice:** Ensures the constitutional promise of "One Person, One Value." It creates the level playing field before the electoral battle begins.
RPA, 1951 (General) (The Execution Phase)	**Deals with the actual combat:** Qualifications/disqualifications of candidates, conduct of polls, counting of votes, and resolving election disputes.	**Electoral Purity:** Acts as the primary statutory shield to filter out tainted candidates and regulate the ethical conduct of politicians during the campaign.
Sections 8, 9, 10 (RPA 1951) (Disqualification)	• **Sec 8:** Conviction for crimes (Immediate disqualification if sentence is 2+ years). • **Sec 8A:** Found guilty of corrupt practices. • **Sec 9/9A:** Dismissal for corruption/disloyalty or holding government contracts. • **Sec 10A:** Failure to lodge election expenses.	**The Criminalization Battleground:** • **Lily Thomas Case (2013):** SC struck down the protective shield of Sec 8(4), meaning an MP/MLA now loses their seat immediately upon a 2-year conviction. (**Pending Reform:** ECI demands disqualification upon framing of charges for heinous crimes, not just conviction.) • The law heavily penalises criminality and financial opacity.**The Remedy:** The aggrieved person can appeal to higher courts (HC/SC). Furthermore, under **Section 11**, the Election Commission of India (ECI) has the extraordinary statutory power to remove or reduce the period of disqualification (e.g., invoked for Sikkim CM P.S. Tamang in 2019).

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Section 29A (RPA 1951) (Political Parties)	Mandates the registration of political parties with the Election Commission of India (ECI).	**The Inner-Party Democracy Deficit:** The law allows the ECI to register parties but gives it **no statutory power to deregister** them for failing to hold internal democratic elections, leading to dynastic centralisation.
Section 123 (RPA 1951) (Corrupt Practices)	Defines illegal campaign tactics, including bribery, **undue influence,** booth capturing, and appealing to voters on the grounds of religion, race, caste, or language.	**Protecting the Secular Mandate:** • **Abhiram Singh Case (2017):** SC ruled that appealing to the religion/caste of the candidate, rival, or the voter is a corrupt practice, strictly enforcing elections as a secular exercise. **Lok Prahari Case (2018) :** • The Supreme Court h eld that concealing assets, liabilities, or income sources misleads voters and amounts to a "fraud on the voter." • **Such non-disclosure interferes with the voter's free choice and constitutes "Undue Influence" under Section 123(2) of the RPA, 1951.** • Therefore, suppression of material financial information is a corrupt practice and can be a ground for voiding an election.
Election Petitions (Dispute Resolution)	The only legal mechanism to challenge a rigged election or corrupt practice is by filing an Election Petition in the High Court after the results are declared.	**Delayed Justice:** While Article 329 prevents courts from stalling an ongoing election, High Courts often take years to resolve these petitions, rendering the mechanism toothless by the time a verdict is reached.
Section 80A & Section 100 (Election Disputes & Voiding Elections)	• **Sec 80A:** Election disputes can only be heard by the High Court via an Election Petition (filed within 45 days). • **Sec 100 (Grounds to Void):** **1.** Corrupt practice committed by the candidate/agent. **2.** Improper acceptance/ rejection of nomination. **3.** Non-compliance with the Constitution or RPA.	• **Procedure:** The HC tries the petition as an original suit. If grounds under Sec 100 are met, the HC declares the election void. • **Remedy:** The aggrieved party can file a statutory appeal to the Supreme Court under **Section 116A** of the RPA. • **Case Law:** Indira Gandhi vs. Raj Narain (1975) (Allahabad HC voided the PM's election for corrupt practices); Abhiram Singh (2017) (SC expanded the definition of religious appeal as a corrupt practice).

DISQUALIFICATION OF CANDIDATES – KEY PROVISIONS

(REPRESENTATION OF THE PEOPLE ACT, 1951)

SECTION	GROUND FOR DISQUALIFICATION	PERIOD OF DISQUALIFICATION
Section 8 (1)	Conviction for specific heinous offences (promoting enmity, bribery, untouchability, terrorism, dowry, sati, rape, etc.).	From the date of conviction + 6 years after release. (Even a penalty of just a fine triggers disqualification).
Section 8 (2)	Conviction for hoarding, profiteering, adulteration of food/drugs.	If sentenced to imprisonment of at least 6 months: Disqualified from conviction + 6 years after release.
Section 8 (3)	Conviction for any other offence.	If sentenced to imprisonment of at least 2 years: Disqualified from conviction + 6 years after release.
Section 8A	Found guilty of corrupt electoral practices (e.g., booth capturing, bribing voters).	Up to 6 years. (Determined by the President based on the binding opinion of the Election Commission).
Section 9	Dismissal from Central or State Government service for corruption or disloyalty to the State.	5 years from the date of such dismissal.
Section 9A	Having a subsisting contract with the Government for the supply of goods or execution of works.	For as long as the contract subsists.
Section 10	Managing agent, manager, or secretary of any company in which the Government has at least 25% share capital.	For as long as they hold the office.
Section 10A	Failure to lodge the account of election expenses within the prescribed time and manner without good reason.	3 years from the date the ECI issues the order.

Note: The above periods are in addition to any other disqualifications that may apply under the Representation of the People Act, 1951 or any other law.

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26.2 RPA 1951 Contemporary Issues

Contemporary Issue	The Core Friction	ECI/Judicial Stance
The "Party Loophole" in Finance (Section 77)	**The Limitless War Chest:** The law caps election expenditure for *individual candidates* (₹95 Lakhs for LS) but places **zero limits** on how much a *political party* can spend in a constituency, rendering candidate limits meaningless and favouring corporate-backed parties.	**The ECI Stance:** The ECI has repeatedly demanded that this loophole be closed by bringing political party expenditure under a statutory ceiling.
The MCC Statutory Vacuum (No RPA Backing)	**Teeth vs. Agility:** The Model Code of Conduct (MCC) is merely a moral consensus without legal teeth. While civil society demands adding it to the RPA to criminalise violations, the ECI opposes this.	**The ECI Argument:** If the MCC is made statutory, every violation requires a lengthy judicial trial. The ECI prefers the current system, which allows for immediate, summary administrative action (e.g., 48-hour campaign bans)
Disenfranchisement of Prisoners (Section 62(5))	**The Undertrial Paradox:** The RPA bans anyone in police custody or prison from voting. Since over 70% of Indian prisoners are *undertrials* (innocent until proven guilty), this systemically disenfranchises millions of marginalized citizens, violating Article 14 (Equality).	***Anukul Chandra Pradhan Case (1997):*** The SC upheld this ban, ruling that voting is a statutory right, not a fundamental one, and citing the logistical impossibility of setting up booths in prisons.
Digital Subversion of the Silence Period (Section 126)	**The 20th Century Law:** Section 126 bans public meetings and TV/radio broadcasting 48 hours before polling. However, it **does not explicitly cover the internet or social media,** allowing parties to target voters via social media during the "silence period".	**The ECI Challenge:** The ECI struggles to enforce jurisdiction over offshore tech servers, relying on voluntary codes of ethics from social media platforms rather than hard law.

26.3 Important Electoral Reforms & Judicial Interventions under the RPA 1951

Provision / Issue	Statutory Basis / Case	Significance
Candidate Disclosure of Criminal, Financial and Educational Background	**ADR Case (2002)** + Section 33A, RPA 1951	Supreme Court held that voters have a **Right to Know** about candidates. Mandatory disclosure of criminal antecedents, assets, liabilities and educational qualifications in nomination affidavits.
Right to Know as Part of Free Speech	**PUCL v. Union of India (2003)**	Court held that voters' right to information regarding candidates flows from **Article 19(1)(a)**. Section 33B of RPA (which attempted to dilute disclosures) was struck down.
None of the Above (NOTA)	**PUCL v. Union of India (2013)**	Introduced NOTA in EVMs, strengthening voter choice and electoral participation while preserving the secrecy of voting.
Electoral Bonds Judgment	**Association for Democratic Reforms v. Union of India (2024)**	The Supreme Court struck down the Electoral Bond Scheme and related amendments to the RPA, Companies Act and IT Act, citing violation of voters' Right to Information under Article 19(1)(a).
Disclosure of Political Donations	RPA Sections 29B & 29C	Political parties may receive contributions, but donations above the prescribed threshold must be reported to the Election Commission. Promotes transparency in political funding.
Paid News	ECI Guidelines + RPA Framework	Paid news distorts voter choice and may be treated as unaccounted election expenditure. ECI has repeatedly sought stronger statutory provisions.

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Proxy Voting for Overseas Electors	RPA Amendments & ECI Proposals	NRIs can register as overseas electors, but practical voting participation remains limited. Various reforms, including proxy and remote voting, have been debated.
Election Expenditure Monitoring	Section 77, RPA 1951	Requires maintenance of election expenditure accounts by candidates. Failure may attract disqualification under Section 10A.
False Affidavits	Section 125A, RPA 1951	Providing false information or concealing material facts in nomination affidavits is a punishable offence.

26.4 Way Forward

Issue & Statutory Focus	Committee / Source	Specific Recommendation
Campaign Finance (Section 77 of RPA)	255th Law Commission Report Indrajit Gupta Committee (1998)	**Ceiling on Parties:** Amend Section 77 to impose a strict statutory ceiling on party expenditure, not just candidate expenditure. **Auditing:** Mandate concurrent auditing of party accounts by the CAG. **State Funding:** Transition to partial state funding of elections (in-kind subsidies like free fuel, voter slips, and media airtime).
Digital Campaigning (Section 126 of RPA)	**Umesh Sinha Committee (2019)**	**Digital Intermediaries:** Explicitly amend Section 126 to include "Social Media Platforms". **Strict Enforcement:** Platforms must be legally bound to take down violative political content within 3 hours during the 48-hour silence period.
Decriminalization (Section 8 of RPA)	**Election Commission of India (ECI)**	**Framing of Charges:** Do not wait for a final conviction. Amend Section 8 to disqualify candidates the moment a competent court frames charges against them for heinous crimes (punishable by 5+ years), provided charges are framed at least 6 months before the election.
Undertrial Voting Rights (Section 62(5) of RPA)	**General Reform Proposal**	**Postal Ballots:** Since physical polling booths in prisons are a logistical nightmare, the RPA must be amended to extend the Postal Ballot facility to undertrials. The State bears a positive obligation to protect their statutory right to vote before they are proven guilty.

The RPA must transition from a 20th-century procedural statute into a proactive shield against modern electoral subversions like digital manipulation and opaque campaign finance. Implementing these structural reforms is no longer optional but a democratic imperative to preserve the absolute purity of India's electoral mandate.

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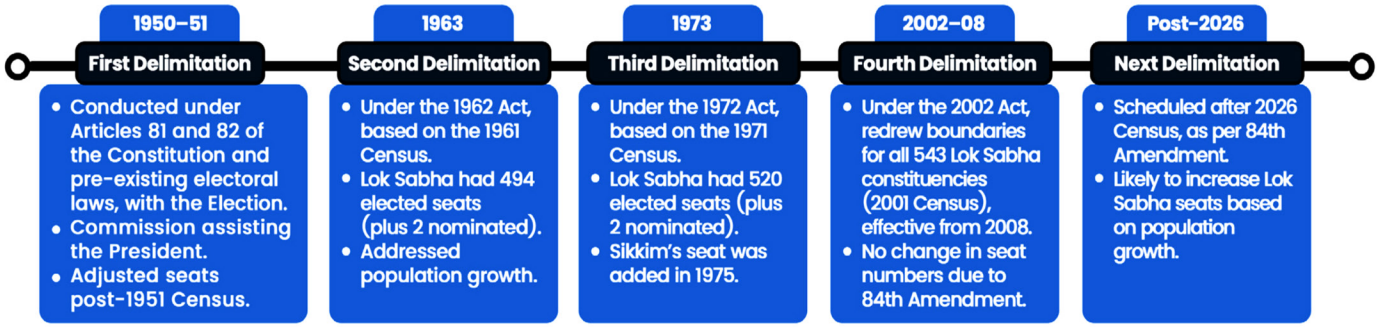
27 Delimitation Commission

The Delimitation Commission serves as the institutional bedrock of India's representative democracy, translating the constitutional ideal of 'One Person, One Value' into tangible electoral geography.

Core Mandate: To redraw parliamentary and state assembly constituencies based on the latest Census to ensure equitable representation.

- **Article 82:** Parliament enacts a Delimitation Act after every Census (Union Level).
- **Article 170:** States are divided into territorial constituencies based on the Census.
- **Articles 330 & 332:** The Commission holds the sole authority to identify and reserve seats for SCs/STs based on population proportion.

Historical Timeline of Delimitation



27.1 The Anatomy of the Commission

Feature	Structure	Significance
Establishment	A statutory body appointed by the **President** of India, operating independently but closely associated with the Election Commission of India (ECI).	**Historical Timeline:** Despite the constitutional mandate (after *every* census), it has only been constituted four times: **1952, 1963, 1973, and 2002**.
Composition	1. A serving or retired Supreme Court Judge (Chairperson). 2. The Chief Election Commissioner (or their nominee). 3. The State Election Commissioner (of the respective state).	Blends high judicial integrity with the logistical expertise of the electoral machinery.
Associate Members	Includes 5 MPs (LS) and 5 MLAs from the respective state.	Associate members only have an *advisory role*. They have **no voting rights** in the final decisions of the Commission.
Power	• **Article 329(a)** bars challenging delimitation laws (made under Arts. 327/328). • **Section 10(2) of the Delimitation Act, 2002:** The orders of the Delimitation Commission have the force of law and cannot be challenged in any court.	This absolute immunity prevents frivolous litigation from stalling elections indefinitely.

Note:

- The 84th Amendment froze the delimitation of Lok Sabha and State Assembly seats until the first Census after 2026.
- 87th Amendment allowed readjustment based on 2001 Census without changing seat numbers

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27.2 What Happens When the Seat Freeze Ends After 2026?

The impending post-2026 unfreezing of seats represents a severe stress test to Indian Federalism, triggering a high-stakes collision between demographic realities and political equity.

Issues	Imbalance	Impact
Expansion of Parliament	• The total number of parliamentary seats will increase significantly, with proposals suggesting an expansion of the Lok Sabha from 543 seats up to a maximum of 850.	• Individual MPs will see their legislative influence diluted due to shorter speaking windows in a crowded chamber. However, because each MP will represent fewer citizens, local governance efficiency and constituent accessibility will improve.
The Federal Imbalance (North vs. South)	• If seats are allocated by the 2027 Census, Northern states (UP, Bihar and MP) will gain new Lok Sabha seats due to their massive population boom. • Southern states will lose their relative political weight.	• **The "Demographic Penalty":** Progressive states feel penalised for successfully implementing state policies (healthcare, education, family planning). • This threatens the fragile "holding-together" nature of Indian federalism.
Women's Reservation	• Redrawn boundaries will activate the Women's Reservation Act, 2023, reserving exactly 33% of Lok Sabha and State Assembly seats for women through a rotational lottery system.	• Traditional male-dominated political networks will break down, rapidly accelerating a diverse pipeline of female leadership.
Representation Gaps (One Person, One Value)	• Currently, a single MP from Uttar Pradesh represents an average of ~1.8 million voters, whereas an MP from Kerala represents roughly ~1.3 million	• The democratic principle of "One Person, One Value" is heavily distorted. A UP voter's voice is mathematically worth less in Parliament than a voter in Kerala.

27.3 Judicial Review of Delimitation

Case	Core Principle	Impact
Constitutional Mandate (Article 329(a))	Expressly bars courts from interfering in electoral matters, including the validity of delimitation laws or seat allotments.	**Absolute Bar** (General Rule) to ensure elections are not derailed by litigation.
Gujarat High Court (Earlier Stance)	Adhered strictly to Article 329(a) and dismissed petitions challenging delimitation.	**Strict Compliance** with the absolute bar on judicial interference.
SC in *Meghraj Kothari* Case	Clarified the purpose of the bar: it is meant to prevent endless litigation from stalling the electoral process.	The SC decision solidified the inviolability of the Delimitation Commission's orders concerning the delimitation of constituencies.
SC in *DMK v. State of T.N. (2020)*	Balanced Article 329(a) with the principles of justice, explicitly rejecting a total ouster of judicial review.	**Established Exceptions:** Courts can intervene if the exercise of power is *mala fide* (bad faith) or arbitrary.
SC in *Kishorchandra Rathod* Case (2024)	Cemented the exceptions based on the "Basic Structure" doctrine.	**Current Stance:** Constitutional courts retain the power to review Delimitation Commission orders if they are "manifestly arbitrary" or violate Constitutional values.

27.4 Way Forward

Proposed Solution	Mechanism
Expanding the Pie (The "848 Solution")	• Do not take seats away from the South. Instead, dramatically increase the total number of Lok Sabha seats (e.g., to 848, utilising the new Parliament building's capacity). • Allocate the new seats to the North based on population, ensuring the South retains its absolute numbers, even if its relative percentage drops

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Asymmetric Federalism (The Rajya Sabha Fix)	• To compensate the Southern states for their loss of relative power in the Lok Sabha, the Constitution can be amended to guarantee them equal or disproportionately higher representation in the Rajya Sabha (similar to the US Senate model), creating a true federal balancing chamber.
Fiscal Compensation (via Finance Commission)	• Ensure the Finance Commission aggressively rewards states with strong demographic performance via specific fiscal transfers. This offsets their loss of political capital with enhanced financial autonomy.
Constitutional Upgrades (Autonomy & Transparency)	1. **Digital Transparency:** Introduce a digital portal for the Delimitation Commission to actively solicit real-time public feedback on boundary drafts, neutralising fears of gerrymandering. 2. **Elevated Status:** Grant the Commission constitutional status (similar to the ECI/UPSC) to enhance its institutional autonomy.

Ultimately, the impending post-2026 delimitation is not merely an exercise in electoral cartography but the ultimate crucible for Indian federalism. To preserve the Republic's unity, Parliament must ensure the Commission's pursuit of demographic justice is harmonised with bold constitutional compromises that protect progressive states from a demographic penalty.

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28 Election Commission

The Election Commission of India (ECI) is an autonomous Constitutional authority established on January 25, 1950, under Article 324. It ensures free, fair, and impartial elections for the Parliament, State Legislatures, and the offices of the President and Vice President. By managing electoral rolls and enforcing the Model Code of Conduct, the ECI independently safeguards the democratic fabric of the world's largest electorate.

UPSC Mains PYQs

1. Examine the need for electoral reforms as suggested by various committees with particular reference to “one nation – one election” principle. **(2024)**
2. Discuss the role of the Election Commission of India in light of the evolution of the Model Code of Conduct. **(2022)**
3. In the light of recent controversy regarding the use of Electronic Voting Machine (EVM), what are the challenges before the Election Commission of India to ensure the trustworthiness of elections in India? **(2018)**
4. To enhance the quality of democracy in India the Election Commission of India has proposed electoral reforms in 2016. What are the suggested reforms and how far are they significant to make democracy successful? **(2017)**
5. ‘Simultaneous election to the Lok Sabha and the State Assemblies will limit the amount of time and money spent in electioneering, but it will reduce the government’s accountability to the people.' Discuss. **(2017)**

28.1 Constitutional Mandate

Article/ Dimension	Constitutional Provision	Significance
Article 324	Vests the power of **superintendence, direction, and control** of elections (Parliament, State Legislatures, President, and Vice-President) in the ECI.	**The "Reservoir of Power":** The Supreme Court ruled in *Mohinder Singh Gill (1977)* that Article 324 is a "reservoir of power". If the RPA is silent on an issue, the ECI can invoke Article 324 to take any administrative action necessary for free elections.
Article 325	One general electoral roll for every constituency. No person can be included or excluded on grounds of **religion, race, caste, or sex**.	**The Secular Bedrock:** Eradicates the colonial legacy of separate communal electorates (like the 1909 Morley-Minto reforms).
Article 326	**Universal Adult Suffrage.** Elections must be held on the basis of adult franchise (voting age reduced from 21 to 18 via the 61st Amendment, 1988).	Ensures political equality, regardless of property, education, or wealth.
Articles 327 & 328	Empowers **Parliament** (327) and **State Legislatures** (328) to make laws regarding elections (delimitation and preparation of rolls).	This is the source power for the *Representation of the People Acts (1950 & 1951)*.
Article 329	Bars the **interference of courts** in electoral matters (delimitation, allotment of seats). Elections can only be challenged via an Election Petition.	Prevents judicial delays from derailing the massive logistical exercise of a nationwide election.

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Appointment & Independence	Constitution leaves appointments to the President (Executive), prescribing **no qualifications** and **no bar on post-retirement jobs**.	**Anoop Baranwal (2023):** SC mandated a Collegium (PM, LoP, CJI) to stop executive capture. **The Friction:** Parliament enacted the Chief Election Commissioner and Other Election Commissioners (Appointment, Conditions of Service and Term of Office) Act, 2023, *replacing the CJI with a Union Cabinet Minister,* increasing executive influence in the appointment process.
Internal Equality & Removal	The CEC is protected (removed like an SC judge). The other two ECs lack this protection and can be removed on the CEC's recommendation.	**T.N. Seshan Case (1995): The** SC ruled the CEC is just the "first among equals" and all decisions require a majority vote. **Reform Needed:** The 255th Law Commission demands equal removal protection for all three ECs.

Recommendations on the Selection Committee for Appointment of Election Commissioners

Body/Committee	Suggested Composition of Selection Committee
Goswami Committee (1990)	**For CEC:** President to appoint in consultation with the Chief Justice of India (CJI) and Leader of Opposition (LoP) in Lok Sabha (or leader of the largest party in Lok Sabha). **For ECs:** President to appoint in consultation with the CJI, LoP in Lok Sabha (or leader of the largest party), and the CEC.
Constitution (70th Amendment) Bill, 1990	Chairman of Rajya Sabha + Speaker of Lok Sabha + LoP (or leader of the largest party) in Lok Sabha. The CEC was also to be part of the consultative process for appointing Election Commissioners.
National Commission to Review the Working of the Constitution (NCRWC), 2002	Prime Minister + LoP in Lok Sabha + LoP in Rajya Sabha + Speaker of Lok Sabha + Deputy Chairman of Rajya Sabha
Law Commission (255th Report), 2015	Prime Minister + LoP in Lok Sabha (or leader of the largest opposition party) + Chief Justice of India
Supreme Court (Anoop Baranwal Case, 2023)	Prime Minister + LoP in Lok Sabha (or leader of the largest opposition party) + Chief Justice of India

Selection Process of Election Commissions in Other Countries

Country	Appointing Authority	Selection Committee / Process
South Africa	President	Selection panel includes the President of the Constitutional Court (Chairperson), a representative of the Human Rights Commission, a representative of the Commission on Gender Equality, and the Public Protector.
United Kingdom	Monarch (after parliamentary approval)	The Speaker's Committee on the Electoral Commission oversees recruitment. Candidates are approved by the House of Commons and formally appointed by the Monarch.
United States	President	Members are nominated by the President and confirmed by the Senate.
Canada	House of Commons	Appointed through a resolution passed by the House of Commons.

28.2 Basics of CEC Removal

Feature	Details
Context/Trigger	Opposition parties considering a motion against the CEC over allegations of biased conduct.
Constitutional Provision	Article 324(5) guarantees security of tenure and independence to the CEC.
Manner of Removal	The CEC can be removed only in the same manner as a Supreme Court Judge.
Grounds for Removal	strictly limited to two specific charges: **1. Proved Misbehaviour or 2. Incapacity.**

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Constitutional Terminology	The formal term is "Removal". (The term "Impeachment" is constitutionally reserved only for the President under Article 61).
Statutory Backing	Governed procedurally by the Judges (Inquiry) Act, 1968, and aligned with the recent CEC and other ECs (Appointment, Conditions of Service and Term of Office) Act, 2023.
Other Safeguards	• Service conditions cannot be altered to the CEC's disadvantage after appointment. • Other Election Commissioners/Regional Commissioners can only be removed on the recommendation of the CEC.

Step-by-Step Removal Procedure (Quasi-Judicial)

Stage	Action / Procedure	Key Requirements & Conditions
Initiation	A removal motion stating the grounds is introduced and submitted to the Presiding Officer (Speaker/Chairman).	Can be initiated in either House. Requires signatures of: • 100 members in Lok Sabha, OR • 50 members in Rajya Sabha.
Admission & Investigation	The Presiding Officer may either admit or refuse the motion. If admitted, an investigative committee is formed.	The 3-Member Committee comprises: 1. A Supreme Court Judge 2. A High Court Chief Justice 3. A Distinguished Jurist
Inquiry & Report	The committee investigates the charges. The CEC is given the right to defend themselves.	• **If Not Proved:** The motion is dropped; process ends. • **If Proved:** The guilty report is submitted back to the House where the motion originated.
Parliamentary Voting	The House takes up the motion for consideration based on the committee's guilty report.	Must be passed by a Special Majority in both Houses during the same session: • Majority of the total membership of the House, AND • Majority of > 2/3rd of members present and voting.
Final Order	If the motion successfully passes both Houses, a formal address is presented to the Executive head.	The President of India issues the official order for the removal of the CEC.

Scope of Judicial Interference in Electoral Processes

Context: The Supreme Court recently dismissed a plea challenging the rejection of a nomination paper for a Rajya Sabha election, reaffirming the strict constitutional bar on judicial intervention while an election process is ongoing.

- **Constitutional Bar on Interference: Article 329(b)** of the Constitution imposes a strict, blanket ban on judicial interference in electoral matters once the election process has commenced.
  - It dictates that no election to **Parliament or a State Legislature** can be called into question except by an **Election Petition** presented to the appropriate authority (the High Court) after the election process concludes.
  - Once the election notification is issued, the writ jurisdictions of both the Supreme Court (Article 32) and the High Courts (Article 226) stand excluded regarding the conduct of the election.
- **Nature of Electoral Rights:** Not a Fundamental Right → The Supreme Court has repeatedly held that the right to vote, the right to contest an election, and the right to dispute an election are purely Statutory Rights, not Fundamental Rights or common law rights.
  - Implication for Article 32: Because the right to contest is not a Fundamental Right, an aggrieved candidate cannot bypass the standard electoral laws to seek immediate relief directly from the Supreme Court under Article 32.
- **The Statutory Remedy: RPA, 1951 → Section 100(1)(c) of the RPA:** This section specifically addresses the issue of nominations. It states that the "improper rejection of any nomination" is a valid statutory ground to declare an election void, but this can only be invoked via an **Election Petition** after the election results are declared.
- **The Debate on Exceptions: "Manifest Illegality" → The Petitioner's Argument (The Exception Rule)**: Candidates often argue that courts should intervene if a **Returning Officer's** rejection is **completely arbitrary or a "patent illegality,"** arguing that intervention would facilitate rather than obstruct the democratic process.
  - **The Supreme Court's Stance (Strict Adherence):** The Court has expressly refused to carve out any exceptions for "glaring" or manifest illegalities.
  - **Reasoning:** Allowing exceptions would incorrectly split election disputes into two categories (those requiring immediate intervention vs. those requiring election petitions). This would inevitably delay and derail the time-sensitive election schedule, which the Constitution seeks to prevent.

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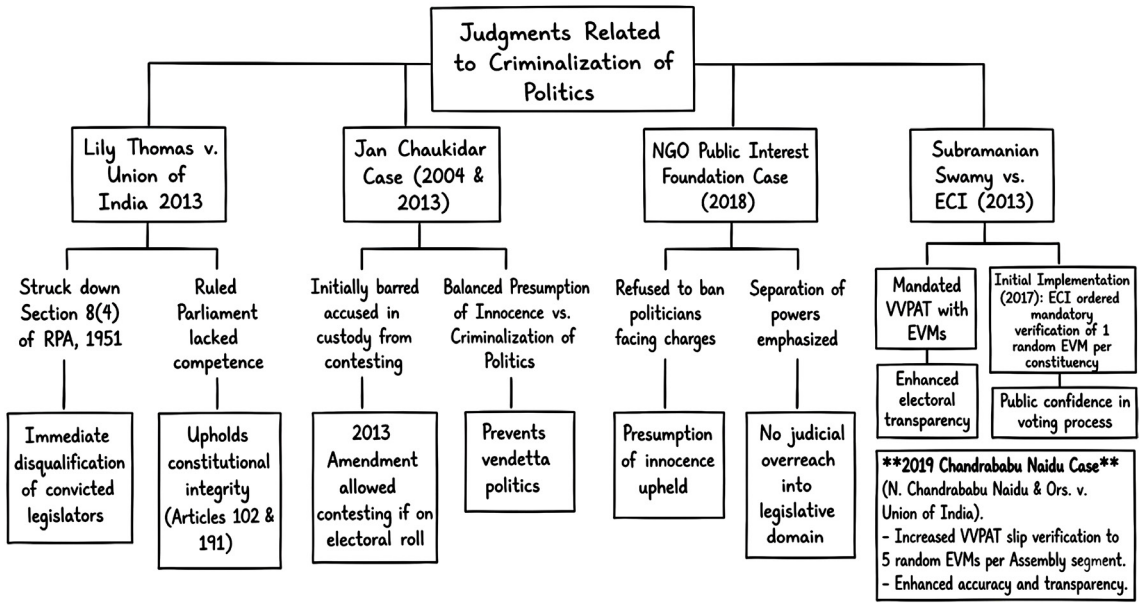
- **Key Judicial Precedents**
  - **N.P. Ponnuswami v. Returning Officer (1952)**: A landmark judgement establishing that the word "election" in **Article 329(b)** covers the entire continuous process from the issuance of the notification to the final declaration of results. Judicial review is barred during this entire window.
  - **Jyoti Basu v. Debi Ghosal (1982):** Cemented the doctrine that electoral rights (including the right to be elected) are strictly statutory creations, subject to statutory limitations.
  - **Mohinder Singh Gill v. Chief Election Commissioner (1977):** Clarified that while courts shouldn't intervene to obstruct the election, the Election Commission has broad powers under Article 324 to ensure free and fair elections where laws are silent, but this doesn't override the Article 329(b) bar for candidates seeking court injunctions.

28.3 Electoral Challenges and Reforms

Challenge	Mechanism	Way Forward
The MCC Conundrum (Non-Statutory Code)	The MCC has no legal backing. The ECI prefers it this way, using summary powers (Article 324) to ban campaigners for 48 hours rather than waiting for lengthy court trials.	**Freebies (Subramaniam Balaji):** SC ordered the ECI to include manifesto guidelines in the MCC. **Digital Era: The** Umesh Sinha Committee recommends legally holding social media platforms liable during the 48-hour silence period.
Trust Deficit in Tech (EVMs & VVPATs)	EVMs use standalone, One-Time Programmable chips (no Wi-Fi/Bluetooth hacking possible). Machines undergo First-Level Checks (FLC) and software randomisation.	**SC 2024 Directive:** Rejected 100% VVPAT slip counting due to delays, but mandated that Symbol Loading Units (SLUs) be sealed and stored for 45 days post-election for potential auditing.
Political Funding (The Corporate Nexus)	**The Reality:** A major challenge due to deep-rooted issues with opaque funding sources, uneven financial power among parties, unregulated campaign expenses, and the potential for corporate corruption. These factors severely distort the democratic process. Also, party expenditure has no legal ceiling under Section 77 of the RPA.	**Indrajit Gupta Committee:** Transition to partial state funding of elections. **Law Commission:** Amend Sec 77 to cap party expenditure and mandate CAG audits of party finances. Also, Electoral Bonds were struck down in 2024 for violating the Right to Know.
Criminalization of Politics ("Winability" Factor)	**The Reality:** Criminals exploit judicial delays. Disqualification currently only happens upon a final conviction of 2+ years (Section 8 of RPA).	**ECI 2016 Proposal:** Disqualify candidates the moment a competent court frames charges against them for heinous crimes (6 months prior to polls).
Perennial Election Cycle (Simultaneous Elections)	**The Debate:** Constant elections cause policy paralysis and drain exchequers, but forcing synchronisation threatens state-level federal accountability.	**Kovind Committee (2024):** Implement simultaneous elections in phases. Crucially, if a state government falls early, hold mid-term polls only for the remainder of the term to preserve the synchronised cycle.



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28.4 Evolution of Electoral Playing Field Since Independence

Era/Committee	Reforms Implemented	Significance
1988 (61st Amendment)	**Lowering the Voting Age:** Reduced the voting age from 21 years to 18 years.	Radically expanded Universal Adult Suffrage, forcing political parties to integrate the youth demographic into policy-making.
1990 (Dinesh Goswami Committee)	1. **Restricting Contesting Seats:** Capped the number of constituencies a candidate can contest simultaneously to two. 2. **Proposers:** Mandated 10 proposers for independent/unrecognised candidates.	Checked the proliferation of non-serious/ dummy candidates who contested solely to confuse voters or split vote banks.
1996 (National Honour Act)	**Disqualification:** A person convicted under the Prevention of Insults to National Honour Act, 1971, is disqualified for 6 years.	Enforced a baseline of Constitutional patriotism for aspiring legislators.
2003 (Transparency & Subsidies)	1. **Media Time:** Equitable sharing of time on state electronic media based on past performance. 2. **Tax Relief:** Mandated reporting of contributions above ₹20,000 to claim IT exemptions.	An early, primitive step toward partial state funding (in-kind subsidies) and financial transparency.
2009 (Electoral Sanity)	**Exit Poll Ban:** Prohibited conducting and publishing exit polls while elections are ongoing.	Prevented the "bandwagon effect", where early exit polls manipulated voter behaviour in the later phases of multi-phase elections.

28.5 How have recent laws created new democratic paradoxes?

Provision	Rule	Issue
The "Jail Paradox" (2013 RPA Amendment)	Parliament amended the RPA after the Supreme Court's Jan Chaukidar (2013) judgement and clarified that a person confined in prison or police custody does not cease to be an elector merely because of such confinement.	Under Section 62(5), a prisoner cannot vote, yet an undertrial or person in lawful custody may still contest elections (unless disqualified upon conviction), creating the paradox of being eligible to stand for election while being ineligible to cast a vote.
Corporate Funding (2017 Finance Act)	Removed the cap on corporate contributions (previously restricted to 7.5% of net profit) and allowed loss-making companies to donate.	Legalised unlimited corporate interference in elections, directly undermining shareholder interests and exacerbating increased scope for corporate influence.
Foreign Funding (FCRA Amendment)	Retrospectively amended the Foreign Contribution (Regulation) Act, 2010, to allow political parties to receive foreign funds.	Opened the floodgates for foreign interference in domestic policy-making through opaque corporate routing.

28.6 Electoral Reforms Still Pending Today

Issue	Reform	How it Enhances the Democracy
Contesting Multiple Seats	Amend the RPA to restrict candidates to contesting from **only one constituency** (down from the current limit of two).	Saves public money. Currently, if a leader wins both seats, they resign from one, forcing a costly and unnecessary by-election on the exchequer.
Government Advertising	Prohibit government "achievement advertisements" for a period of **six months** prior to the expiry of the House.	Prevents the ruling party from using taxpayer funds to run disguised political campaigns just before the Model Code of Conduct kicks in.
Anti-Defection Adjudication	Shift the power to decide disqualifications under the 10th Schedule from the Speaker to the **President/Governor acting on the binding advice of the ECI**.	Removes the partisan bias of the Speaker, ensuring swift, neutral justice against defecting MLAs/MPs.
Protecting Voter Privacy	Introduce **totaliser machines** that aggregate votes from 14 EVMs before revealing the count.	Currently, parties know exactly which polling booth voted against them, leading to targeted post-poll violence or denial of development funds. Totalisers mask booth-level voting patterns.

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Bogus Voters & Duplication	Link citizen identification databases (like Aadhaar) with the EPIC (Voter ID) card network.	Cleanses the ERONET database by weeding out duplicate voters registered across different states (e.g., migrant workers holding IDs in both UP and Delhi).
The Campaign Expenditure Trap	Revoke the **"Star Campaigner"** status under Paragraph 16A of the Symbols Order for severe MCC violations.	Deprives the offending party of the financial loophole that exempts Star Campaigner travel costs from the candidate's expenditure limit.

28.7 Special Intensive Revision (SIR) vs. Special Summary Revision (SSR)

Feature	SSR	SIR
Nature of Exercise	Routine, annual updating of the existing voter list.	A complete, ground-up rebuilding of the electoral roll.
Methodology	Relies on voters voluntarily submitting Form 6 (Additions) or Form 7 (Deletions) based on draft rolls.	Proactive **door-to-door enumeration** by Booth Level Officers (BLOs). Voters *must* submit fresh enumeration forms and photographs to remain on the list.
The Documentation Rule	Standard address and age proof	**The 2003 Benchmark:** In the 2025-2026 SIR, voters registered before January 2003 need only provide the 2003 roll extract. However, voters registered *after* 2003 are required to submit additional eligibility and citizenship documents.
Frequency	Conducted every year before January 1st.	Extremely rare. The last nationwide SIR was conducted in 2001-2004. Triggered only when the ECI believes the rolls are fundamentally compromised by migration, urbanisation, or illegal immigration.

28.7.1 SIR Issues

The deletion of lakhs of voters has triggered profound administrative and legal battles, testing the limits of the Election Commission's mandate.

Theme of Friction	The Core Issue & ECI's Rationale	Democratic Critique & Judicial Challenge
Citizenship Checks	• **The Issue:** SIR requires legacy documents (pre-2003 residency) in certain states. • **ECI Rationale:** Rapid migration and border-state demographics (e.g., West Bengal, Assam) necessitate strict document checks to weed out foreign illegal immigrants holding duplicate IDs.	• **The Critique:** Places an impossible burden of proof on marginalised communities (Dalits, Adivasis, migrant labourers). • **ADR & Ors. v. ECI (2026): SC** ruled that while the ECI has the authority to verify non-citizenship to maintain roll integrity (under Section 16 of the RPA), it cannot act as a de facto citizenship adjudicatory authority.
Mass Deletions vs. Universal Suffrage	• **The Issue:** Over 5.5 cro re voters were removed across states. • **ECI Rationale:** Vital for cleaning the democratic mandate by excising millions of duplicate, shifted, and deceased individuals (over 60 lakh dead voters removed).	• **The Critique:** Opposition parties term it "Selective Ideological Removal," alleging massive purges disproportionately target minority enclaves. • **Constitutional Friction:** Argued as an indirect violation of Articles 325 & 326, effectively disenfranchising the undocumented poor and denying Universal Adult Suffrage.
Administrative Timelines vs. ECI Autonomy	• **The Issue:** The June 2025 ECI notification mandated strict, rapid deadlines to ensure rolls were ready before the 2026 assembly elections. • **ECI Rationale:** Under Article 324(1), the ECI asserts absolute authority over the preparation of electoral rolls and insists courts cannot dictate its methodological timelines.	• **The Critique:** State Chief Electoral Officers (e.g., Maharashtra) red-flagged the tight timelines. (The 2002 SIR took 13 months). • Rushing through complex verifications leads to high error rates, wrongful deletions and denies voters adequate time to appeal.

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Way Forward for SIR

- **Separate ECI and Citizenship Functions:** Maintain a clear firewall between electoral roll verification by the ECI and citizenship determination under the Citizenship Act, 1955.
- **Ensure Inclusive Verification:** Adopt flexible documentary standards and retain a rebuttable presumption of validity for existing voters to prevent exclusion of genuine electors.
- **Strengthen Transparency & Appeals:** Publish district-wise deletion reasons, provide accessible online/offline grievance mechanisms, and empower Booth Level Agents (BLAs) for greater transparency.
- **Institutionalise Independent Oversight:** Conduct independent post-revision audits and preserve judicial review against arbitrary or wrongful deletions.
- **Adopt Realistic, Phased Timelines:** Fix state-specific timelines, implement phased revisions, and provide dedicated error-correction windows before finalising electoral rolls.
- **Leverage Reliable Technology:** Use robust de-duplication and verification systems, disclose methodologies, and periodically audit technological processes to minimise erroneous deletions.

Recent initiatives by ECI

Initiative	Key Features
ECINET (2025)	Integrated digital platform for voters, election officials and political parties; facilitates technology sharing with Election Management Bodies (EMBs).
cVIGIL App	Enables citizens to report Model Code of Conduct (MCC) violations through geo-tagged photos/videos for quick Flying Squad action.
100% Webcasting	Real-time monitoring of polling stations nationwide to enhance transparency and electoral integrity.
EVM Microcontroller Verification	Enhanced post-election verification, including checks on 5% of EVMs, to strengthen confidence in EVMs.
EVM–VVPAT Reconciliation	Strengthened verification procedures for EVM-VVPAT data mismatches.
Automatic Death Database Linkage	Enables automatic removal of deceased voters from electoral rolls.
Duplicate EPIC Removal	Eliminates duplicate Elector Photo Identity Card (EPIC) numbers across states.
SVEEP	Flagship voter awareness programme promoting participation of youth, women and first-time voters.
Home Voting	Home voting facility for 80+ senior citizens and Persons with Disabilities (PwDs).
Reduced Polling Station Size	Voter limit reduced from 1,500 to 1,200 per polling station to reduce congestion.
Fast-Track EPIC Delivery	Voter ID cards delivered within 15 days.
Redesigned Voter Information Slip	Improved readability with clearer serial and part numbers for easier verification.
Mobile Deposit Counters	Counters outside polling stations to enforce the no-mobile-phone rule inside booths.
Additional Urban Booths	More polling stations established in high-rise residential complexes for better accessibility.
Special Intensive Revision (SIR)	Comprehensive electoral roll revision launched in Bihar (2025) and expanded to 12 States/UTs; upheld by the Supreme Court (2026).
Delisting of Inactive Political Parties	Removal of inactive and unrecognised political parties from the electoral registry.
Photo ID Cards for BLOs	Identity cards introduced for Booth Level Officers (BLOs) to improve accountability during roll revision.

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Model Code of Conduct

Aspect	Details
Meaning & Nature	• A non-statutory set of guidelines issued by the Election Commission of India (ECI) under Article 324 to regulate the conduct of political parties, candidates and governments during elections, ensuring free and fair elections. • It comes into force immediately after the election schedule is announced and remains effective until the electoral process concludes.
Historical Evolution	• 1960: First adopted in Kerala • 1962: Extended nationwide by ECI • 1974: Formal MCC issued • 1979: Expanded to regulate the party in power • 1991: Strict enforcement under T.N. Seshan • 2013: Manifesto guidelines added following SC directions • 2018: cVIGIL app launched • 2024: Extended to social media campaigns • 2025: AI-generated/deepfake campaign content required to be labelled.
Major Provisions	• **General Conduct:** No caste/communal appeals, bribery, intimidation or personal attacks • **Meetings & Processions:** Prior permission and coordination required • **Polling Day:** Code of conduct for candidates and polling agents • **Party in Power:** No misuse of official machinery, government advertisements, scheme announcements or official visits for campaigning • **Transfers:** No transfer/posting of election officials without ECI approval • **Manifestos (2013):** Promises should not unduly influence voters and must indicate feasible means of implementation.
Enforcement Mechanism	• Though not legally enforceable, violations may attract action under the **Representation of the People Act, 1951**, **Bharatiya Nyaya Sanhita (earlier IPC)** and other laws. • **Complaints** can be filed with the **Returning Officer, CEO, ECI or through cVIGIL.** • **ECI** issues notices, deploys Observers, Flying Squads and video surveillance, and may censure candidates, suspend party recognition, disqualify candidates or postpone/cancel polls in exceptional cases.
Major Criticisms	• No statutory backing, reliance on moral authority; • Ambiguity leading to selective enforcement allegations; • Inadequate regulation of electoral funding, hate speech and digital campaigns; applicable only during election periods; • Restrictions may affect routine governance; • AI and social media pose new enforcement challenges.
Recommendations	• **Dinesh Goswami Committee (1990):** Statutory backing for MCC • **2nd ARC (2008):** Strengthen ECI's enforcement powers • **Parliamentary Standing Committee (2013):** Incorporate MCC into the RPA, 1951 • **Law Commission (255th Report, 2015):** Legal enforceability with penalties • **ECI's View:** Opposes full legalisation, arguing that court-based enforcement would delay elections within the short electoral timeline.

The Election Commission of India's initiatives and the evolving framework of the Model Code of Conduct reflect a proactive, technology-driven approach to maintaining electoral integrity in an increasingly complex digital landscape. While these measures significantly enhance transparency and accessibility, the ongoing debate regarding statutory backing versus flexible moral authority highlights the challenge of balancing robust enforcement with the need to ensure the efficient conduct of elections.

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Appointment to Various Constitutional Posts, Powers, Functions and Responsibilities of Various Constitutional Bodies

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29 Union Public Service Commission

Enshrined in Part XIV of the Constitution, the Public Service Commissions serve as the institutional watchdogs of meritocracy in India. Designed to insulate the recruitment of civil servants from the vagaries of political patronage and executive aggrandisement, the UPSC, SPSCs, and JSPSCs form the bedrock of an impartial, permanent executive capable of delivering objective governance in a complex federal democracy.

Constitutional Aspect	UPSC	SPSC	JSPSC
Creation Mandate	Direct Constitutional Creation (Article 315).	Direct Constitutional Creation (Article 315).	**Statutory Creation:** Created by an Act of Parliament upon the request of two or more state legislatures.
Appointment	The **President** of India appoints the Chairman and members.	The **Governor** of the State appoints the Chairman and members.	The **President** of India appoints the Chairman and members.
Composition Limit	Not specified in the Constitution. Usually 9 to 11 members (*President's discretion*)	Not specified. Left to the Governor's discretion.	Not specified. Left to the President's discretion.
Tenure & Age Limit	6 years or until the age of **65 years**, whichever is earlier (Article 316).	6 years or until the age of **62 years**, whichever is earlier.	6 years or until the age of **62 years**, whichever is earlier.
Removal Authority	Removed only by the **President** (after an SC inquiry).	Appointed by the Governor, but can only be removed by the **President** (after SC inquiry).	Removed by the **President** (after an SC inquiry).
Post-Retirement Bar	The chairman cannot hold any other government employment. Members can become UPSC Chairman or SPSC Chairman.	Chairman can become UPSC Chairman/Member. Cannot hold other government jobs.	Same as SPSC.

29.1 Indian Civil Services

Constitutional Framework

- **Part XIV of the Constitution (Articles 308 to 323):** This part deals comprehensively with the services under the Union and the States.
- **Article 309:** Empowers the Parliament and State legislatures to regulate the recruitment and conditions of service of persons appointed to public services under the Centre and States, respectively.
- **Article 310 (Doctrine of Pleasure):** Civil servants hold office during the pleasure of the President (for Union services) or the Governor (for State services). This allows the government to terminate the employment of public servants at will.
  - Doctrine of Pleasure operates subject to constitutional safeguards under Article 311.
- **Article 311:** Provides constitutional safeguards to civil servants. It protects them against arbitrary dismissal, removal, or reduction in rank without a proper inquiry and an opportunity to be heard.

Theme	Details
All India Services (AIS) (Article 312)	**Creation:** Parliament can create new AIS, but it strictly requires a Rajya Sabha resolution (2/3rd majority). **Evolution:** ICS & IP were replaced by IAS & IPS in 1947. The Indian Forest Service (IFS) was added in 1966. **Control:** Officers serve both Centre and States. Immediate control lies with the State, while ultimate control lies with the Centre. **Rationale**: Maintains high administrative standards and systemic uniformity and facilitates Centre-State cooperation.

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Accountability, Transparency & Redressal	**CVC:** Investigates corruption complaints against AIS and Group A Central officers. **RTI Exemptions:** Officials can legally withhold information citing the AIS Conduct Rules (1968) and Official Secrets Act (1923). **Tribunals (Art 323A):** Administrative Tribunals (established 1985) ensure speedy dispute resolution for civil servants regarding recruitment and service conditions.
Proposed Reform: All India Judicial Service (AIJS)	**Constitutional Backing:** The 42nd Amendment (1976) empowered Parliament to create an AIJS under Article 312. Not yet created. **Condition:** Cannot include any post inferior to that of a district judge. **Need:** Aims to resolve high vacancies and varying standards caused by state-wise recruitment by creating a dedicated, standardised professional judicial cadre.

29.2 Challenges and Reforms

Challenge	Description	Way Forward
Examination Integrity & Certificate Fraud	**The Issue:** Evolving methods of fraud and administrative hurdles in verifying caste/income claims undermine equitable access. **Example:** The Puja Khedkar Case (2024), involving allegations of fake OBC and disability certificates to gain reservation benefits and extra attempts.	**Digital Integrity & Verification:** Leverage AI and Blockchain technologies to instantly verify the authenticity of EWS/OBC/Disability certificates, aligning the process with the Digital India mandate to eliminate forged documents.
Opaque Evaluation & Antiquated Cycles	**The Issue:** Aspirants criticise the lack of early answer key disclosure and opaque moderation techniques. **Judicial Stance:** In UPSC vs. Angesh Kumar (2018), the SC backed the UPSC, ruling that disclosing keys before final results would compromise exam confidentiality.	**Examination Modernisation:** Transition the CSE to assess 21st-century analytical skills over rote memorisation. **Baswan Committee (2016):** Urgently implement logistical improvements to reduce the gruelling exam cycle duration and address high absenteeism.
Lateral Entry & Bypassing the Mandate	**The Issue:** Recruiting specialists directly at Joint Secretary/Director levels bypasses the rigorous UPSC CSE process, raising severe concerns about transparency, vetting, and the bypassing of constitutionally mandated SC/ST/OBC reservation rosters.	**Advisory Empowerment & Transparency:** Reduce the exemptions given to the Executive under the UPSC (Exemption from Consultation) Regulations. The government must provide transparent, written justifications to Parliament whenever it recruits outside the standard framework or rejects the Commission's advice.
The Vernacular & Urban-Rural Divide	**The Issue:** Despite reservations, structural inequalities (like poor translation quality in papers and the high cost of urban coaching) systemically disadvantage rural and vernacular-medium aspirants.	**Enhancing Inclusivity:** Actively boost access by dramatically improving translation quality in question papers and providing state-sponsored, high-quality coaching to level the playing field against affluent urban candidates.

The Public Service Commissions are not merely administrative recruitment agencies; they are the Constitutional custodians of equal opportunity and administrative neutrality. To effectively meet the governance challenges of a rising digital India, the UPSC and SPSCs must evolve beyond their traditional paradigms - embracing technological verification to eliminate fraud, ensuring radical transparency in evaluation, and fiercely defending the sanctity of merit against political and systemic subversions.

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30 Comptroller and Auditor General

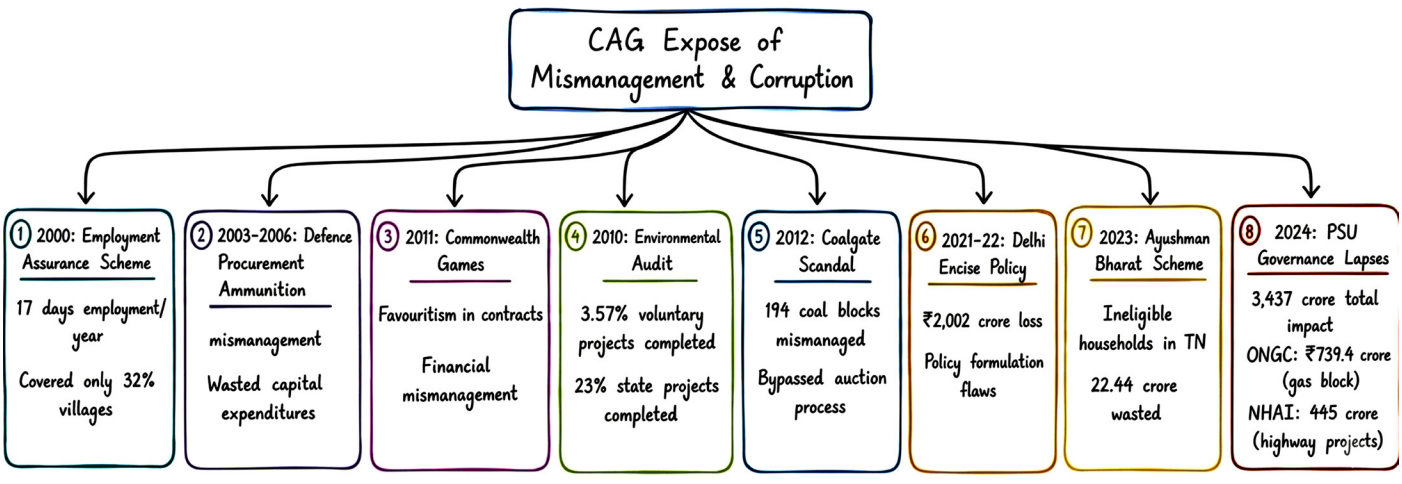
Described by Dr. B.R. Ambedkar as the most important officer under the Constitution of India, the CAG serves as the supreme guardian of the public purse. While the Election Commission secures the democratic mandate, the CAG secures democratic accountability - ensuring that the Executive remains financially subservient to the Legislature, thereby preventing the arbitrary aggrandisement of public resources.

UPSC Mains PYQs

1. "The duty of the Comptroller and Auditor General is not merely to ensure the legality of expenditure but also its propriety." Comment. **(2024)**
2. "The Comptroller and Auditor General (CAG) has a very vital role to play." Explain how this is reflected in the method and terms of his appointment as well as the range of powers he can exercise. **(2018)**
3. Exercise of CAG's powers in relation to the accounts of the Union and the States is derived from Article 149 of the Indian Constitution. Discuss whether audit of the Government's policy implementation could amount to overstepping its own (CAG) jurisdiction **(2016)**

30.1 Framework

Constitutional Provision	Description	Significance
Article 148 (Appointment & Independence)	Appointed by the President. Removed only in the same manner as a Supreme Court Judge.	Provides iron-clad security of tenure (6 years or until attaining 65 years of age). To prevent post-retirement bias, the CAG is ineligible for further government office after stepping down.
Article 149 (Duties & Powers)	Performs duties prescribed by Parliament. This led to the **CAG (Duties, Powers and Conditions of Service) Act, 1971.**	**The Scope:** Audits all expenditures from the Consolidated Fund, Contingency Fund, and Public Accounts of both the Union and the States.
Article 150 (Form of Accounts)	The accounts of the Union and the States shall be kept in such form as the President may, on the advice of the CAG, prescribe.	Ensures standardisation and prevents states/ departments from hiding fiscal deficits through creative accounting.
Article 151 (Audit Reports)	Submits audit reports to the President (for Parliament) and to the Governor (for State Legislatures).	**The PAC Nexus:** The CAG's reports act as the foundational document for the Public Accounts Committee (PAC). The CAG acts as a "friend, philosopher, and guide" to the PAC.



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30.2 Challenges

Challenge	Description
The "Post-Mortem" Limitation	• Unlike the UK's CAG, India's CAG is merely an "Auditor General," not a true "Comptroller." Money can be drawn from the Consolidated Fund without the CAG's approval. • The audit happens *ex-post facto* (after the money is already spent), meaning the CAG conducts a "post-mortem" of financial disasters rather than preventing them.
Performance Audit vs. Policy Overreach	• **The Friction:** Beyond checking receipts (Compliance Audit), the CAG conducts Performance / Propriety Audits to check the wisdom and economy of government spending. • **The Controversy:** During the 2-G Spectrum and Coalgate reports, the Executive accused the CAG of overstepping into policy-making (estimating "presumptive losses"). • **SC Stance:** In *Arvind Gupta vs. UoI*, the Supreme Court upheld the CAG's authority to conduct performance audits to ensure public resources are not squandered.
The PPP and NGO Blindspot	• With the state transitioning from a "provider" to an "enabler", massive public funds are routed through Public-Private Partnerships (PPPs), Special Purpose Vehicles (SPVs), and NGOs. • Private entities fiercely resist CAG audits, creating massive blind spots in national financial scrutiny (e.g., disputes over auditing DISCOMs).
Delay & Denial of Information	• The CAG relies on government departments to provide files. Departments routinely delay or deny access to crucial documents (e.g., defense procurements), crippling the audit process, as the CAG has no punitive power to compel document production.

30.3 Way Forward

Reform Area	Recommendation
The Appointment Collegium	• Currently, the CAG is appointed solely by the Executive, which violates the principle that the auditor should not be chosen by the auditee. • **Reform:** Implement a Collegium system (PM, Chief Justice, and Leader of Opposition) for CAG appointments to ensure absolute neutrality.
Amending the DPC Act (1971)	• Amend the *CAG (Duties, Powers and Conditions of Service) Act* to grant the CAG **statutory punitive powers** to fine or penalise government departments that fail to produce required documents within a stipulated timeframe.
Bringing PPPs under the Ambit	• Explicitly amend the DPC Act to bring all Public-Private Partnerships, SPVs, and government-funded NGOs under the mandatory audit jurisdiction of the CAG to prevent the privatisation of profits and socialisation of losses.
Transitioning to Real-Time Digital Auditing	• Shift from sample-based, post-mortem auditing to **100% data-driven auditing** using Big Data, Artificial Intelligence, and the integration of government financial portals (like PFMS) to flag financial anomalies in real-time.

In an era characterised by complex public-private financial architectures and massive welfare expenditures, the CAG can no longer be restricted to the role of a traditional accountant conducting post-mortem compliance checks. To preserve the sanctity of legislative control over the executive, the CAG must be statutorily empowered to audit PPPs, modernised with real-time data analytics, and shielded by a collegium-based appointment, ensuring it remains the ultimate bulwark of India's financial integrity.

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31 Finance Commission

Enshrined under Article 280 of the Constitution, the Finance Commission serves as the supreme Constitutional architect of fiscal federalism in India. Designed to correct the inherent vertical and horizontal imbalances of a 'holding-together' federation, the Commission acts as the balancing wheel, ensuring that the political autonomy of the States is not suffocated by financial dependency on the Union.

UPSC Mains PYQs

1. How have the recommendations of the 14th Finance Commission of India enabled the States to improve their fiscal position? **(2021)**
2. How is the Finance Commission of India constituted? What do you know about the terms of reference of the recently constituted Finance Commission? Discuss. **(2018)**

31.1 The Core Framework and Responsibilities

Constitutional Provision	Description	Significance
Article 280 (Composition)	Comprises a Chairman and 4 members. Parliament determines their qualifications (usually experts in public affairs, economics, and high court judges).	Ensures the body has a blend of judicial impartiality, macroeconomic expertise, and administrative foresight.
Article 280(3) (The Core Duties)	1. **Tax Devolution:** Distribution of net tax proceeds between Centre and States (Vertical) and among the States (Horizontal). 2. **Grants-in-Aid (Art 275):** Principles governing grants to states in need. 3. **Local Body Augmentation:** Measures to supplement state resources for Panchayats/ Municipalities.	**The Evolution:** Following the 73rd and 74th Amendments, the FC's role expanded massively from merely balancing Centre-State relations to empowering grassroots democratic institutions (Local bodies).
Article 281 (Recommendations)	The President shall cause every recommendation made by the Finance Commission to be laid before each House of Parliament, along with an explanatory memorandum on the action taken.	**Advisory but Authoritative:** The recommendations are technically advisory, not legally binding on the government. However, by convention, the formula for tax devolution is universally accepted to prevent federal collapse.

31.2 16th Finance Commission Recommendations

Dimensions	Recommendations	Impact
Vertical Devolution	Retained at 41% of the divisible pool (unchanged from the 15th FC).	**The "Grand Bargain" Debate:** States demanded an increase to 50% due to the shrinking divisible pool caused by the Centre's heavy reliance on cesses and surcharges. The FC opted for stability over an increase.
Grants-in-Aid	• Massive Shift: The 16th FC entirely discontinued Revenue Deficit Grants, Sector-specific, and State-specific grants. • Funds are now strictly routed to Local Bodies and Disaster Management.	• Ends the era of "bailout" grants. States with poor fiscal management will no longer be cushioned by Revenue Deficit grants, forcing them to increase their own-source revenues.

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Urbanization & Local Bodies	Urban Local Body (ULB) share increased to 45% of all local grants. Introduced an Urbanisation Premium (for merging peri-urban villages) and tied grants to wastewater management.	Acknowledges India's rapid demographic shift (projected 41% urbanization by 2031) and forces states to proactively manage rural-to-urban transitions rather than reacting to slum formations.
Fiscal Discipline & Subsidies	• Rationalise Freebies: It strongly urged states to review and rationalise their subsidy expenditure. • **Strict Debt Rules:** States capped at 3% fiscal deficit. Ordered a complete halt to Off-Budget Borrowings, bringing all hidden debts onto official books.	• A direct strike against the populist "freebie culture." By forcing off-budget borrowings onto the main ledger, it prevents states from masking their true debt-to-GDP ratios.

Criteria	15th FC (2021-26)	16th FC (2026-31)
Income Distance	45%	42.5%
Population (2011)	15%	17.5%
Demographic Performance	12.5%	10%
Area	15%	10%
Forest	10%	10%
Tax and Fiscal Efforts	2.5%	-
Contribution to GDP	-	10%
Total	**100%**	**100%**

31.3 Challenges

Challenge	Description
The North-South Divide (The Demographic Penalty)	• **The Issue:** Since the 15th FC (and continuing into the 16th FC debates), the Commission uses the 2011 Census (instead of 1971) to allocate funds. • **The Friction:** Southern states (like TN and Kerala) argue this heavily penalises them for successfully stabilising their populations, while rewarding Northern states (like UP and Bihar) for demographic failure, threatening the "cooperative" spirit of federalism.
The "Cess and Surcharge" Loophole (Article 271)	• **The Issue:** Under Article 271, Cesses and Surcharges levied by the Centre do not form part of the divisible pool (states get no share). • **The Friction:** The Centre has aggressively increased cesses (from roughly 10% of gross tax revenue a decade ago to over 20% today). This artificially shrinks the pie available for states, rendering the FC's high devolution percentages (e.g., 41%) practically much lower on the ground.
Conditionality of Grants	• **The Issue:** The FC increasingly ties Grants-in-aid to specific sectoral reforms (e.g., power sector reforms or "One Nation One Ration Card"). • **The Friction:** States view this "performance-based" funding as a backdoor encroachment by the Union into State Subjects, undermining their fiscal autonomy.
Lack of Institutional Continuity	• **The Issue:** Being a temporary body constituted every 5 years, the FC lacks a permanent secretariat. • Once a Commission submits its report, it is dissolved, leaving no institutional mechanism to monitor whether the Centre actually releases the recommended funds or compliance.

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31.4 Way Forward

Reform Area	Recommendations
Capping the Cess & Surcharge Levy	**Reform:** Amend the Constitution or establish a binding statutory ceiling to cap the total collection of cesses and surcharges at a maximum of 10% of the Union's Gross Tax Revenue. Anything collected beyond this must be mandatorily routed into the divisible pool.
Rewarding Performance (Weightage)	**Reform:** To appease progressive states and neutralise the "demographic penalty", the 16th Finance Commission must assign significantly higher weightage to criteria like Demographic Performance, Tax Effort, and Ecological Stewardship (forest cover), shifting the focus from purely need-based equalisation to efficiency-based incentivisation.
Permanent Secretariat for the FC	**Reform:** Upgrade the Finance Commission into a permanent body with a standing secretariat. This will ensure institutional memory, allow for real-time monitoring of fund utilisation by states, and provide continuous macroeconomic advisory.
Rationalizing Discretionary Grants	• **Reform:** The Centre often bypasses the FC by using Article 282 (Discretionary Grants) for massive centrally sponsored schemes. • The mandate of the FC should be expanded to review and rationalise all discretionary transfers to ensure they do not undermine the statutory devolution formula.

As India navigates widening economic disparities and aggressive demographic transitions, the Finance Commission can no longer operate merely as a quinquennial accounting body. To safeguard the structural integrity of the Republic, it must transform into a permanent institution of fiscal equity - one that surgically plugs the 'cess and surcharge' loopholes, rewards progressive governance, and ensures that the pursuit of national equalisation does not inadvertently penalise the very states driving India's economic engine.

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32 Attorney General of India and Advocate General of State

Enshrined under Article 76 and Article 165 of the Constitution, the Attorney General and the Advocate General serve as the primary legal conduits between the Executive and the Judiciary. They are entrusted with a unique dual mandate: to fiercely defend the policies of the elected government while simultaneously upholding the absolute supremacy of constitutional morality as impartial officers of the court.

UPSC Mains PYQs

1. The Attorney General of India plays a crucial role in guiding the legal framework of the Union Government and ensuring sound governance through legal counsel." Discuss his responsibilities, rights and limitations in this regard. **(2025)**
2. "The Attorney-General is the chief legal adviser and lawyer of the Government of India." Discuss **(2019)**

32.1 Constitutional Architecture

Constitutional Aspect	Attorney General of India (AGI)	Advocate General of State (AGS)	Significance
Constitutional Mandate	Article 76	Article 165	Created to ensure the government acts strictly within legal bounds.
Qualifications	Must be qualified to be a **Supreme Court Judge** (5 yrs HC Judge / 10 yrs HC Advocate / Eminent Jurist).	Must be qualified to be a **High Court Judge** (10 yrs Judicial Office / 10 yrs HC Advocate).	Ensures the highest calibre of legal expertise equivalent to the apex judiciary.
Appointment	By the **President** (on advice of the Union Cabinet).	By the **Governor** (on advice of the State Cabinet).	Structurally, they are political appointees, not career bureaucrats
Tenure & Removal	No fixed tenure. Holds office during the **"Pleasure of the President."**	No fixed tenure. Holds office during the **"Pleasure of the Governor."**	**The Vulnerability:** They lack the security of tenure enjoyed by the ECI or CAG, making them subservient to executive whims.
Resignation	Often resigns following a change in government.	Often resigns following a change in government.	Reinforces the reality that the office is *co-terminus* with the political executive.

32.2 Roles of Attorney General

Functional Domain	Details
Primary Advisory Role	**Legal Advisor:** Advises the Union on complex matters (e.g., GST, amendments). **President's Assignments:** Drafts legal documents and renders opinions.
Representation of the Union	**Court Advocate:** Defends the Centre in SC/HCs (e.g., Aadhaar, CAA, NRC). **Art. 143:** Represents the Govt. in Presidential advisory references to the SC.
Constitutional & Parliamentary	**Interpretation:** Assists courts in clarifying constitutional laws (e.g., Privacy case). **Art. 88:** Participates in Parliament (no vote) to aid complex law-making.
Strategic & Reformative	**International Guidance:** Advises on global treaties (like Paris Climate Agreement). **Legal Reforms:** Suggests improvements to existing laws and judicial processes.

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32.3 Powers and Limitations

Rights	Limitations
Right of Audience: The AGI has the right of audience in **all courts** in the territory of India. (AGS has it before any court within the State).	**No Anti-Government Advice:** Cannot appear against the Government without permission.
Legislative Privileges (Art 88 / Art 177): They have the right to speak and take part in the proceedings of both Houses of Parliament/State Legislature or any joint sitting/committee.	**No Criminal Defense:** Cannot defend accused persons in criminal prosecutions without the explicit permission of the Government.
Immunity: Enjoys all the privileges and immunities available to an MP/MLA, despite not being a member of the House.	**Corporate Board Bar:** Cannot accept appointments as a director in any company or corporation without Government permission.
The Private Practice Loophole: They are not full-time government servants. They are allowed to continue their private legal practice.	**The Friction:** This private practice allowance is heavily criticised for creating conflicts of interest between private corporate clients and public duty.

32.4 Challenges

Challenge	Description
The "Pleasure Doctrine" & Partisanship	**The Issue:** Because the AGI/AGS can be dismissed instantly without cause, they often function as political mouthpieces rather than independent legal advisors. **Impact:** They are sometimes forced to defend clearly unconstitutional laws or executive overreach in the Supreme Court to appease the ruling party.
Conflict of Interest (Private Practice)	**The Issue:** Allowing the top government lawyer to maintain a private practice creates massive ethical grey areas. **Impact:** An AGI might represent the government on Monday and represent a corporate giant on Tuesday. Even with safeguards, the sheer access to classified government policy creates an unparalleled advantage in private practice.
Shielding the Executive from Scrutiny	**The Issue:** Governments increasingly use the AGI/AGS to file "sealed cover" reports in courts, shielding controversial executive decisions (like electoral bonds or security procurements) from public transparency and adversarial judicial scrutiny.

32.5 Way Forward

Aspect	Description
Statutory Security of Tenure	• Implement a fixed statutory tenure (e.g., 3 or 5 years) that survives changes in government, removing the Damocles sword of the "Pleasure Doctrine".
Banning Private Practice	• The Law Commission has debated whether the AGI/AGS should be made **full-time government servants**. Prohibiting private practice entirely during their tenure would eliminate all corporate conflicts of interest.
The UK Model (Separating Politics from Prosecution)	• In the UK, the Attorney General is a political figure (Cabinet Minister), but the actual prosecutions are handled by an independent **Director of Public Prosecutions (DPP)**. • India should establish an independent DPP with constitutional backing to handle criminal matters neutrally, leaving the AGI to handle constitutional advice.
Enhancing Transparency	• Limit the AGI's use of "sealed cover jurisprudence". The office must prioritise its duty as an *officer of the court* over its duty as a *defender of the executive* by advising the government to drop unconstitutional bills *before* they become law.

The Attorney General and Advocate General serve as the indispensable "first law officers" to the Union and State executives respectively, providing vital constitutional continuity and legal counsel across both tiers of governance. Operating under a fusion-of-powers model, they act as the essential bridge between the political executive and the judiciary by defending state interests and assisting legislatures on complex legal questions.

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33 Social Justice Commissions: NCSC, NCST, & NCBC

Enshrined in **Part XVI of the Constitution,** the National Commissions for SCs, STs, and Backward Classes represent the institutional bulwark of India's affirmative action framework. Evolving from a single Special Officer to a triad of robust constitutional bodies, they are mandated to oversee the socio-economic empowerment of marginalized communities, ensuring that the constitutional promise of equality is translated from legal text to lived reality.

UPSC Mains PYQs

1. Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body. **(2022)**

33.1 Constitutional Evolution & Architecture

Commission	Constitutional Evolution & Article	Composition & Appointment	Significance
NCSC (Scheduled Castes)	**Article 338:** Originally, there was only one Special Officer. The 65th Amendment (1990) created a combined multi-member commission for both SCs and STs.	1 Chairman, 1 Vice-Chairman, 3 Members. Appointed by the President (warrant under hand and seal).	The foundational body. Mandated to investigate specific complaints regarding the deprivation of rights of the scheduled castes.
NCST (Scheduled Tribes)	**Article 338A:** The 89th Amendment (2003) bifurcated the combined commission, creating a separate NCST to focus exclusively on tribal nuances.	Same as NCSC (1+1+3). Appointed by the President.	**The Tribal Nuance:** Created because tribal issues (forest rights, displacement, PESA) are geographically and culturally distinct from the untouchability issues faced by SCs.
NCBC (Backward Classes)	**Article 338B:** Previously a mere statutory body under an Act of 1993. Elevated to constitutional status by the 102nd Amendment (2018).	Same as NCSC (1+1+3). Appointed by the President.	**The Parity Shift:** Brought the NCBC on par with the NCSC/NCST, giving it the power to hear specific grievances of OBCs, rather than just advising on inclusion/exclusion in the central list.

33.2 Core Powers (The Civil Court Authority)

All **three Commissions** share the exact same investigative powers under the Constitution.

- **Powers of a Civil Court:** When investigating any matter or enquiring into any complaint, they have the powers of a civil court trying a suit, specifically regarding:
  - Summoning and enforcing the attendance of any person and examining them on oath.
  - Requiring the discovery and production of any document.
  - Receiving evidence on affidavits.
  - Requisitioning any public record from any court or office.
- **Mandatory Consultation:** The Union and every State Government shall consult the respective Commission on all major policy matters affecting SCs, STs, or SEBCs (Socially and Educationally Backward Classes).

33.3 Challenges

Challenge	Details
The "Toothless Tiger" Critique	• **The Issue:** Despite having the powers of a civil court to summon, they have absolutely no power to penalise. Their reports are purely recommendatory. Governments routinely ignore their findings, and Action Taken Reports (ATRs) are delayed for years in Parliament.
The Sub-Categorization Dilemma	• **The Issue:** The most burning contemporary debate. The Commissions are struggling to address "elite capture" within reservations. • **Context:** Demands from the Madiga community (NCSC) and the findings of the Justice Rohini Commission (NCBC) point to the need to sub-categorise quotas so that the most marginalised within the SC/OBC categories get their due, challenging the Commissions to redefine backwardness.

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The NCBC & Federal Friction (105th Amendment)	• **The Issue:** The 102nd Amendment initially caused chaos by implying states lost the power to identify their own backward classes. • **The Fix:** Parliament had to pass the 105th Amendment (2021) to clarify and restore the power of State Governments to maintain their own SEBC lists, showcasing a friction between central oversight and federal autonomy.
Vacancies and Bureaucratic Apathy	• **The Issue:** These commissions frequently operate without a full quorum. Furthermore, they lack an independent investigative cadre (relying entirely on state police to investigate atrocities), leading to severe delays and compromised fact-finding in various cases.

33.4 Way Forward

Reform Area	Strategy
Statutory Teeth for Recommendations	Amend the respective constitutional articles to mandate that the Executive must table the Action Taken Report (ATR) in Parliament within a strictly fixed timeframe of **six months**. Unreasonable rejection of recommendations should be subject to judicial review.
Independent Investigative Cadre	Establish a dedicated, permanent investigative wing for all three commissions, drawing officers on deputation who are structurally insulated from state-level political pressure, ensuring unbiased probes into atrocities (**SC/ST PoA Act violations**).
Proactive Policy Formulation	Shift focus from *reactive* grievance redressal to *proactive* policy design. The commissions must aggressively audit the implementation of Sub-Plans (SCSP/TSP) and utilise big data to identify micro-communities facing extreme intersectional vulnerability.
Convergence and Joint Sittings	Address jurisdictional overlaps (e.g., a tribal woman facing custodial violence falls under **NCST, NCW, and NHRC**) by institutionalising joint task forces to prevent bureaucratic ping-pong and ensure swift justice for intersectional victims.

The constitutional elevation of the NCSC, NCST, and NCBC signifies India's enduring commitment to restorative justice. However, a constitutional tag without punitive teeth renders these commissions as mere spectators to systemic discrimination.

To truly safeguard the marginalised, Parliament must empower these bodies with binding investigative authority and independent administrative machinery, transforming them from passive advisory boards into formidable engines of socio-economic egalitarianism.

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Statutory, Regulatory and Various Quasi-Judicial Bodies

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34 National Human Rights Commission

Established on **12th October 1993** under the Protection of Human Rights Act (PHRA) and inspired by the **Paris Principles (1991/1993)**, the NHRC serves as India's principal statutory guardian of life, liberty, equality, and dignity. However, as former Chairperson Justice H.L. Dattu aptly observed, the NHRC is largely a **"moral compass".** Because its enforcement powers are constrained, its true efficacy is realised only when it acts as an aggressive complement to the Judiciary, civil society, and other accountability mechanisms to promote SDG 16 (Peace, Justice, and Strong Institutions).

34.1 How Does the NHRC Use its Mandate to Support and Reduce the Burden on Constitutional Courts and Other Statutory Bodies?

Function	Framework	Complements Judiciary
Inquiry & Investigation	Suo motu or petition-based inquiries equipped with Civil Court powers (CPC 1908). Upholds Article 21.	**Complementing Courts:** Reduces judicial pendency by doing ground-level fact-finding. **Example:** Issued notice to Odisha over delays in custodial death compensation, aiding the enforcement of the SC's D.K. Basu guidelines.
Judicial Intervention	Can intervene in ongoing human rights proceedings with the prior approval of the court.	**Complementing Courts:** Acts as an amicus curiae (friend of the court). **Example:** The NHRC relies on the compensatory jurisprudence established in the Nilabati Behera case to investigate custodial deaths and human rights violations, subsequently recommending that State governments pay monetary relief to the victims' families.
Institutional Oversight	Mandated by Protection of Human Rights Act (PHRA) to visit jails, detention centres, and state hospitals to assess living conditions.	**Complementing State Machinery:** Issued notice to the UP government over the reported deaths of three prisoners in Varanasi jails. Its 1998 Jail Reform Guidelines complement the SC's R.D. Upadhyay (2006) judgement on prison reforms.
Policy Review & Advocacy	Reviews safeguards under international covenants (ICCPR, ICESCR) and recommends policy shifts.	**Complementing Statutory Commissions:** Advocated for the Idate Commission Report (2017) for Denotified Tribes (DNTs). Note: NHRC coordinates with NCST, whose chief is an ex-officio member to prevent overlapping jurisdictions.

34.2 Synergies with Accountability Mechanisms

Institutional Partner	How the NHRC Complements Them	Landmark Examples
The Judiciary (Supreme/High Courts)	**Fact-Finding vs. Adjudication:** Courts are burdened with pendency and strict procedural laws. The NHRC complements them by conducting rapid, on-ground fact-finding missions. It often approaches the Supreme Court to enforce its findings when the government ignores them.	**The Gujarat Riots (2002):** The NHRC intervened in the Supreme Court, leading to the transfer of key trial cases outside the state. **Encounter Killings:** SC mandated that all encounter killings must be reported to the NHRC within 48 hours for independent review.
Other Statutory Commissions (NCSC, NCST, NCW)	**Intersectional Justice via Ex-Officio Members:** Human rights violations are rarely one-dimensional (e.g., violence against a Dalit woman involves gender and caste). The PHRA mandates that the Chairpersons of the NCSC, NCST, NCW, and Minorities Commission sit as ex-officio members of the NHRC, ensuring a coordinated, intersectional approach rather than bureaucratic turf wars.	**Custodial Violence:** If a tribal youth dies in custody, the NCST and NHRC can pool their investigative resources to establish a systemic pattern of abuse.
Civil Society & NGOs	**Institutionalizing Activism:** NGOs have grassroots intelligence but lack official power. The NHRC acts as a bridge, utilizing NGOs as its eyes and ears to bypass apathetic state police networks.	Regular interactions with human rights defenders to monitor illegal mining, bonded labor, and manual scavenging.

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34.3 Recent NHRC Initiatives

Area	Initiative	Details
Women & Labor Rights	**Foxconn Case & National Symposium**	Ordered a reinvestigation into gender bias in hiring (Foxconn); held symposiums on workplace safety, female labour force participation, and gig worker rights.
Vulnerable Groups	**Comprehensive Advisories (2023-24)**	Issued specific directives on widows' rights, anti-begging (integration with the SMILE scheme), mental health, and child protection (CSAM).
Transgender Rights	**National Conference (2025) & Policy**	Evaluated 'Garima Greh' shelters to improve infrastructure; issued advisories for comprehensive welfare and livelihood support.
Justice & Custodial Safety	**Relief for Custodial Deaths & Prison Reforms**	Recommended ₹4.5 cr compensation in 89 cases; held a national conference advocating the transformation of prisons into reform spaces.
Social Protection	**Anti-Trafficking Push**	Directed states to appoint senior nodal officers explicitly to combat human trafficking after alarming state-level reports.
Grievance Redressal	**Aggressive Case Resolution (2024-25)**	Handled over 73,849 complaints (including 108 suo motu cases), recommending around ₹9 crore in monetary relief to victims in 210 cases.
Outreach & Fast-tracking	**Camp Sittings & Public Hearings**	Held regional sittings (e.g., Guwahati, Shimla) to fast-track pending human rights cases and engage local police/NGOs directly.
Awareness & Education	Competitions & Specialized Training	Organised awareness contests (short films/photography on LGBTQ+ and caste); conducted human rights training in sensitive regions like Manipur.

Issues and Way Forward with the Functioning of NHRC

Issue	Evidence (GANHRI SCA, 2025–26)	Way Forward
Conflict of Interest in Investigations	NHRC relies on government-seconded police officers to investigate custodial torture and police excesses; concern repeatedly flagged since 2017.	Amend PHRA, 1993 to create an independent investigative wing with forensic, legal and human rights experts.
Executive Influence in Administration	The Secretary General is a government-deputed civil servant, undermining NHRC's independence.	Allow NHRC to independently appoint its Secretary General and senior officials.
Lack of Diversity & Vacancies	2 of 6 Commissioner posts vacant; only 93 women out of 339 staff; inadequate representation of SC/ STs, minorities, PwDs and LGBTQ+ persons.	Ensure time-bound appointments and adopt transparent diversity benchmarks in appointments.
Opaque Appointment Process	Selection process remains executive-dominated, limiting institutional autonomy.	Broaden the selection committee to include judiciary and civil society with transparent, merit-based selection.
Weak Action on Systemic Violations	Limited action on custodial deaths, shrinking civic space, Human rights defenders (HRDs), surveillance concerns; most cases end with compensation rather than prosecution.	Publish periodic thematic reports, institutionalise civil society consultations, and recommend prosecution & disciplinary action in serious violations.
Institutional Credibility Concerns	NHRC questioned the Paris Principles/GANHRI accreditation instead of addressing deficiencies.	Implement GANHRI recommendations and strengthen compliance to restore global credibility.

The NHRC remains the cornerstone of India's human rights protection architecture. Strengthening its **independence, enforcement powers, and institutional capacity** is essential to transform it from a recommendatory body into an effective guardian of constitutional rights.

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35 Central Vigilance Commission

The Central Vigilance Commission (CVC) is the apex statutory vigilance institution of the Government of India, mandated to combat corruption and ensure integrity in public administration.

- **Origin:** It was established in 1964 via an executive resolution based on the recommendations of the **Santhanam Committee** on Prevention of Corruption (1962–64).
- **Statutory Status**: Originally an advisory body, it was granted statutory status by Parliament through the Central Vigilance Commission Act, 2003, following the Supreme Court's directives in the landmark Vineet Narain case (1997).
- **Nature:** It is an independent body, free of control from any executive authority, responsible only to Parliament.

35.1 Structure and Composition

Aspect	Details
Composition	**Multi-member body:** 1 Central Vigilance Commissioner (Chairperson) + Maximum of 2 Vigilance Commissioners.
Appointment	Appointed by the President on the recommendation of a high-powered committee comprising: 1. Prime Minister (Chairperson) 2. Union Minister of Home Affairs 3. Leader of the Opposition in the Lok Sabha
Tenure	4 years or until they attain the age of 65 years, whichever is earlier. They are not eligible for reappointment in any Central/State government agency, ensuring post-retirement neutrality.
Removal	Removed by the President on grounds of proved misbehaviour or incapacity only after an inquiry by the Supreme Court. The President can also remove them for insolvency, paid outside employment, or moral turpitude.
Independence	Their salary, allowances, and service conditions are identical to those of the UPSC Chairman and Members, charged to the Consolidated Fund of India.

35.2 Issues and Challenges

Issue	Challenges & Data Points
1. Massive Pendency in Trials & Appeals	• **Trial Delays:** 7,072 corruption cases pending trial (379 pending for >20 years; 2,660 for >10 years). • **Appellate Bottlenecks:** 13,100 appeals/revisions pending in High Courts and the Supreme Court (606 pending for >20 years).
2. Delays in Investigation by CBI	• **Unmet Timelines:** While investigations should ideally conclude within 1 year, 529 corruption cases are pending investigation (56 for >5 years). • **Complex Scrutiny:** Prolonged time required to scrutinise voluminous records, especially in economic offences and bank frauds. • **Logistical Hurdles:** Delays in locating and examining witnesses in remote areas.
3. Administrative & Procedural Bottlenecks	• **Prosecution Sanction:** Delays by competent authorities in granting sanction to prosecute corrupt officials act as a major shield for the corrupt. • **Letters Rogatory (LRs):** Extreme delays in obtaining international cooperation and responses to LRs in cross-border corruption cases.
4. Manpower and Capacity Constraints	• **Resource Crunch:** The report explicitly cites "inadequate manpower" and "excessive work" as primary reasons for delayed investigations. • **CVO Dependency:** CVC heavily relies on the Chief Vigilance Officers (CVOs) of respective departments, who often face a conflict of interest or lack adequate staff.
5. Declining Conviction Rates	• **Dip in Success:** The conviction rate in corruption cases dropped to 69.14% in 2024 from 71.47% in 2023, indicating potential gaps in evidence gathering or prolonged trials weakening cases over time (witnesses turning hostile/dying).
6. "Toothless Tiger" (Advisory Nature)	• **Lack of Punitive Power:** The CVC is fundamentally an advisory body. Central Government departments are free to either accept or reject its advice regarding disciplinary actions against corrupt officials. • It does not have the power to register criminal cases; it only exercises "superintendence" over the CBI for Prevention of Corruption Act (PCA) cases.

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7. Lack of an Independent Investigation Wing	• **Borrowed Personnel:** The CVC lacks its own dedicated investigative machinery. It is entirely dependent on the CBI or departmental CVOs for field investigations, limiting its direct operational control.
8. Jurisdictional Limitations	• **Limited Scope:** The CVC's jurisdiction primarily covers Group 'A' officers of the Central Government and higher-ups in PSUs/Public Sector Banks. It does not comprehensively cover all government employees or state-level machinery.

35.3 Way Forward

Category of Reform	Solutions & Recommendations
1. Tackling Judicial Pendency & Trial Delays	• **Dedicated Fast-Track Courts:** Establish special CBI courts mandated to conduct day-to-day hearings without arbitrary adjournments. • **Strict Appellate Timeframes:** Create specialised benches in High Courts and the Supreme Court with a statutory time limit (e.g., 6–12 months) for disposing of appeals under the Prevention of Corruption Act (PCA). • **Digitisation of Evidence:** Leverage the e-Courts project to digitise voluminous charge sheets and evidence to prevent delays caused by misplaced physical files.
2. Reforming the Investigation Process (CBI & CVOs)	• **Augmenting Expertise:** Directly recruit subject-matter specialists (chartered accountants, cyber forensics experts, financial analysts) to expedite the scrutiny of complex economic offences. • **Enforcing Deadlines:** Strictly monitor the CVC's 1-year investigation completion deadline; hold Investigating Officers (IOs) accountable for unjustified delays through performance reviews. • **Streamlining Letters Rogatory (LRs):** Establish a dedicated MEA-MHA cell to fast-track mutual legal assistance and LRs to prevent stalling in cross-border probes.
3. Institutional Empowerment of the CVC	• **From Advisory to Binding Authority:** Amend the CVC Act so that if a Ministry rejects the CVC's recommendation for disciplinary action, it must record the reasons in writing and table them before Parliament. • **Independent Investigative Wing:** Provide the CVC with its own dedicated, independent investigative cadre to reduce its over-reliance on the CBI and departmental CVOs. • **Protecting CVOs:** Ensure CVO independence by mandating that their Annual Confidential Reports (ACRs) are written entirely by the CVC, shielding them from departmental pressure.
4. Addressing Administrative Bottlenecks	• **Enforcing 'Deemed Sanction':** Strictly enforce the 3-month statutory limit for competent authorities to grant prosecution sanction. If they fail to decide, it should be legally treated as "deemed sanction" so trials can commence. • **Protecting Honest Officers:** Implement Hota Committee recommendations to protect honest civil servants from harassment for bona fide administrative errors, preventing 'policy paralysis'.
5. Leveraging Technology & Preventive Vigilance	• **AI for Document Scrutiny:** Deploy Artificial Intelligence and Big Data analytics to scan millions of pages of bank records and procurement documents to detect anomalies swiftly. • **Minimising Human Interface:** Expand the scope of e-Procurement, GeM (Government e-Marketplace), and Direct Benefit Transfers (DBT) to eliminate the root causes of systemic bribery.

To transform the CVC from an advisory "toothless tiger" into a formidable anti-corruption bulwark, it is imperative to grant its recommendations binding statutory authority and equip it with an independent investigative cadre. Ultimately, coupling this institutional empowerment with technological integration and fast-tracked judicial processes is vital to ensuring swift accountability and upholding the highest standards of integrity in India's public administration.

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36 Lokpal

The **Lokpal** is India's premier independent statutory anti-corruption ombudsman, established to enquire into allegations of corruption against certain categories of high-ranking public servants.

36.1 Evolution and Statutory Framework

Aspect	Details
Global Origin	The concept originated with the Ombudsman in Sweden (1809) and the term "Lokpal" was coined by L.M. Singhvi in 1963.
First Recommendation	In 1966, the 1st Administrative Reforms Commission (ARC) (headed by Morarji Desai) recommended setting up a Lokpal at the Centre and Lokayuktas in States.
Subsequent Endorsements	Recommended by the National Commission to Review the Working of the Constitution (NCRWC, 2002) and the 2nd ARC (2005) under Veerappa Moily.
Legislative Attempts	Between 1968 and 2011, eight separate Lokpal Bills were introduced in Parliament but repeatedly failed to pass due to political deadlocks.
Final Momentum	The "India Against Corruption" movement led by Anna Hazare in 2011 forced the government to fast-track the legislation.
Statutory Backing	The Lokpal and Lokayuktas Act, 2013, was passed by Parliament and received Presidential assent on January 1, 2014.

36.2 Structure, Composition, and Tenure

Feature	Details
Composition	Consists of a Chairperson (former CJI/SC Judge or eminent person) and a maximum of 8 members.
Representation Mandate	50% must be judicial members. Furthermore, at least 50% of total members must be from SC, ST, OBC, minorities, or women.
Selection Committee	Comprises: 1. Prime Minister (Chair), 2. Speaker of Lok Sabha, 3. Leader of Opposition (LS), 4. Chief Justice of India (or SC judge nominee), 5. Eminent jurist nominated by the President.
The LoP Amendment (2016)	Due to the absence of a recognised LoP (requiring 10% of seats), the Act was amended to include the Leader of the Single Largest Opposition Party in the Selection Committee.
Search Committee	The Selection Committee must form a Search Committee of at least 7 persons to prepare a panel of names. Note: The 50% reservation rule (SC/ST/OBC/Women) applies to this committee as well.
Term & Conditions	5 years or until 70 years of age. Salaries and allowances are equivalent to the CJI (for the Chairperson) and Supreme Court Judges (for members).
Strict Post-Tenure Bar	Members are barred from any diplomatic assignment, appointment to any territory/state as Administrator/Governor, or contesting any election (President/VP/MP/MLA) for 5 years after ceasing to hold office.

36.3 Jurisdiction and Operational Functions

Aspect	Provisions, Scope, and Exemptions
Public Servants Covered	Prime Minister, Union Ministers, MPs, and Group A, B, C, and D officers of the Central Government.
NGOs and Societies	Jurisdiction extends to anyone managing a society/trust/NGO that receives a government grant above ₹1 crore or foreign contributions above ₹10 lakh (under FCRA).
PM Exceptions	Cannot enquire into allegations against the PM related to: International Relations, External/Internal Security, Public Order, Atomic Energy, and Space.
MPs' Privilege Exemption	Does not have jurisdiction over any speech made or vote given by an MP in Parliament (protected under Article 105).

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Asset Confiscation	Vested with the power to provisionally attach and confiscate property, assets, and receipts acquired by corrupt means, even during the pendency of prosecution (before conviction).
Transfer of Officers	Can recommend the transfer or suspension of public servants connected with corruption allegations to prevent evidence tampering.
Limitation Period	The Lokpal cannot enquire into any complaint made after the expiry of 7 years from the date on which the offense was committed.

36.4 Issues and Way Forward

Issues / Limitations	Suggested Reforms
No Suo Motu Power: The Lokpal cannot initiate enquiries on its own; it can only act on complaints filed in the prescribed format.	**Grant Suo Motu Cognisance:** Empower the Lokpal to take up cases based on media reports or intelligence, similar to the NHRC or Supreme Court.
Exclusion of the Judiciary: The Lokpal Act completely excludes the higher judiciary from its ambit.	**Judicial Standards Bill:** Enact a separate, robust mechanism (like the Judicial Standards and Accountability Bill) to address judicial corruption.
Lack of Independent Machinery: Relies heavily on the CBI and CVC. The CBI continues to be administratively controlled by the DoPT (Executive).	**Dedicated Investigation Cadre:** Equip the Lokpal with its own independent investigative wing to free it from executive pressure.
Anonymous Complaints Barred: The Act severely punishes "false and frivolous" complaints (up to 1-year imprisonment) and bans anonymous complaints, deterring honest whistleblowers.	**Operationalise Whistleblower Act:** Fully implement the Whistle Blowers Protection Act, 2014, and protect the identity of complainants to encourage reporting.
Administrative Friction: Overlap of duties between CVC (handling vigilance for Group C & D) and Lokpal.	**Institutional Synergy:** Clearly define the hierarchy. Make the CVC an explicit investigative arm and strengthen coordination between Lokpal and CVC.

The Lokpal represents the culmination of decades of efforts to create an independent and credible anti-corruption watchdog at the national level. While the **Lokpal and Lokayuktas Act, 2013** has strengthened accountability in public life, its effectiveness remains constrained by institutional and operational limitations. Empowering the Lokpal with greater functional autonomy, independent investigative capacity, and stronger whistleblower protection can transform it into a robust pillar of transparent, ethical, and citizen-centric governance.

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37 Lokayukta

The Lokayukta is India's adaptation of the Swedish Ombudsman (established 1809; the word means "legal representative"). The First Administrative Reforms Commission (ARC, 1966–70) under Morarji Desai, in its landmark report on "Problems of Redress of Citizens' Grievances," first recommended independent authorities at both the Union (Lokpal) and state (Lokayukta) levels.

- **Maharashtra (1971):** First state to establish a Lokayukta under the Maharashtra Lokayukta and Upa-Lokayuktas Act, 1971; widely regarded as India's first Lokayukta institution (Odisha's 1970 Lokpal used different nomenclature).
- **Karnataka (1984):** Introduced the most powerful Lokayukta model, featuring independent police powers, suo motu jurisdiction, and special courts; often considered the gold standard for anti-corruption ombudsman institutions.

Feature	Standard Provisions & State Variations
Appointment	Appointed by the Governor of the respective state.
Consultation Process	Different states have different procedures. In most states, the Governor must consult the Chief Justice of the State High Court and the Leader of Opposition (LoP) in the State Legislative Assembly.
Qualifications	Generally restricted to individuals with a high judicial background (e.g., a former Supreme Court Judge or a former Chief Justice of a High Court). Some states allow eminent non-judicial members.
Tenure	Typically 5 years or until the age of 65/70. **Variation:** States like Uttar Pradesh and Rajasthan previously had Lokayukta's tenure set to 8 years.
Removal Process	Enjoys security of tenure. Cannot be dismissed or transferred by the state executive. Removal requires an impeachment-style motion passed by the state legislature, ensuring independence.

Jurisdiction and Operational Powers

Aspect	Provisions, Scope, and Exemptions
The Chief Minister	**Included:** States like Himachal Pradesh, Andhra Pradesh, Madhya Pradesh, Maharashtra and Gujarat bring the CM under the Lokayukta's ambit. **Excluded:** States like Uttar Pradesh and Rajasthan explicitly exempt the CM from its jurisdiction.
Public Servants Covered	Usually includes State Ministers, MLAs, members of local authorities, statutory bodies, and all state government officers.
Investigative Mechanism	Most Lokayuktas lack their own independent investigation wing. They must rely on state agencies like the Anti-Corruption Bureau (ACB) or the State CID, which creates a conflict of interest.
Nature of Action	Their powers are predominantly advisory/recommendatory. After an inquiry, the Lokayukta submits an annual consolidated report to the Governor.
Legislative Accountability	The Governor is constitutionally bound to lay this report before the State Legislature, accompanied by an explanatory memorandum detailing the government's action (or reasons for inaction) on the recommendations. → This obligation arises from respective state Lokayukta Acts, not directly from the Constitution.

Lokayukta remains one of India's most important instruments for promoting transparency, integrity, and citizen-centric governance. Experiences from states such as Karnataka demonstrate that a well-designed and empowered Lokayukta can serve as an effective check on corruption. With greater institutional independence, stronger investigative capacity, and uniform standards across states, the institution can evolve into a cornerstone of accountable and ethical governance in India's federal framework.

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